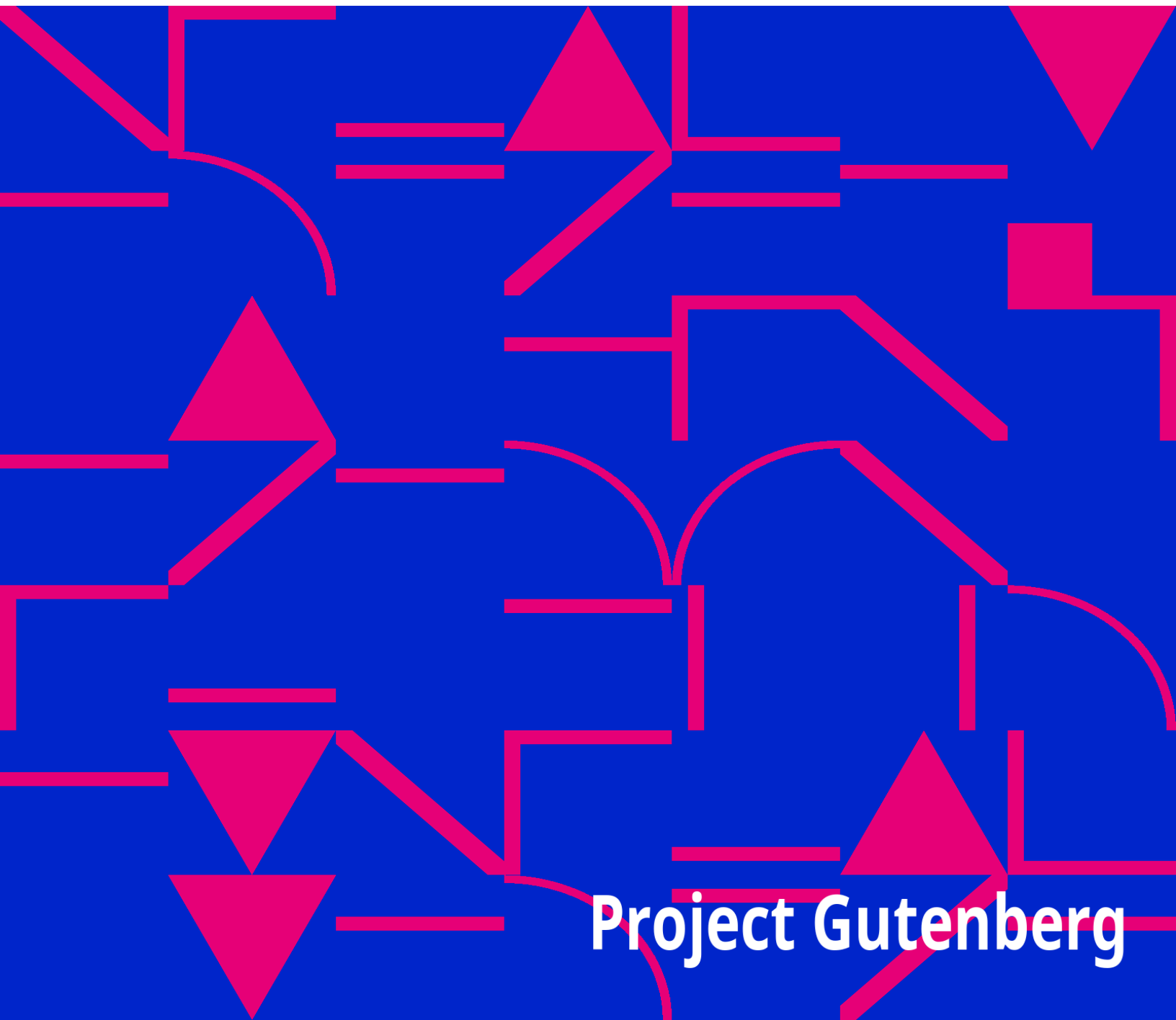


Moral Science; a Compendium of Ethics

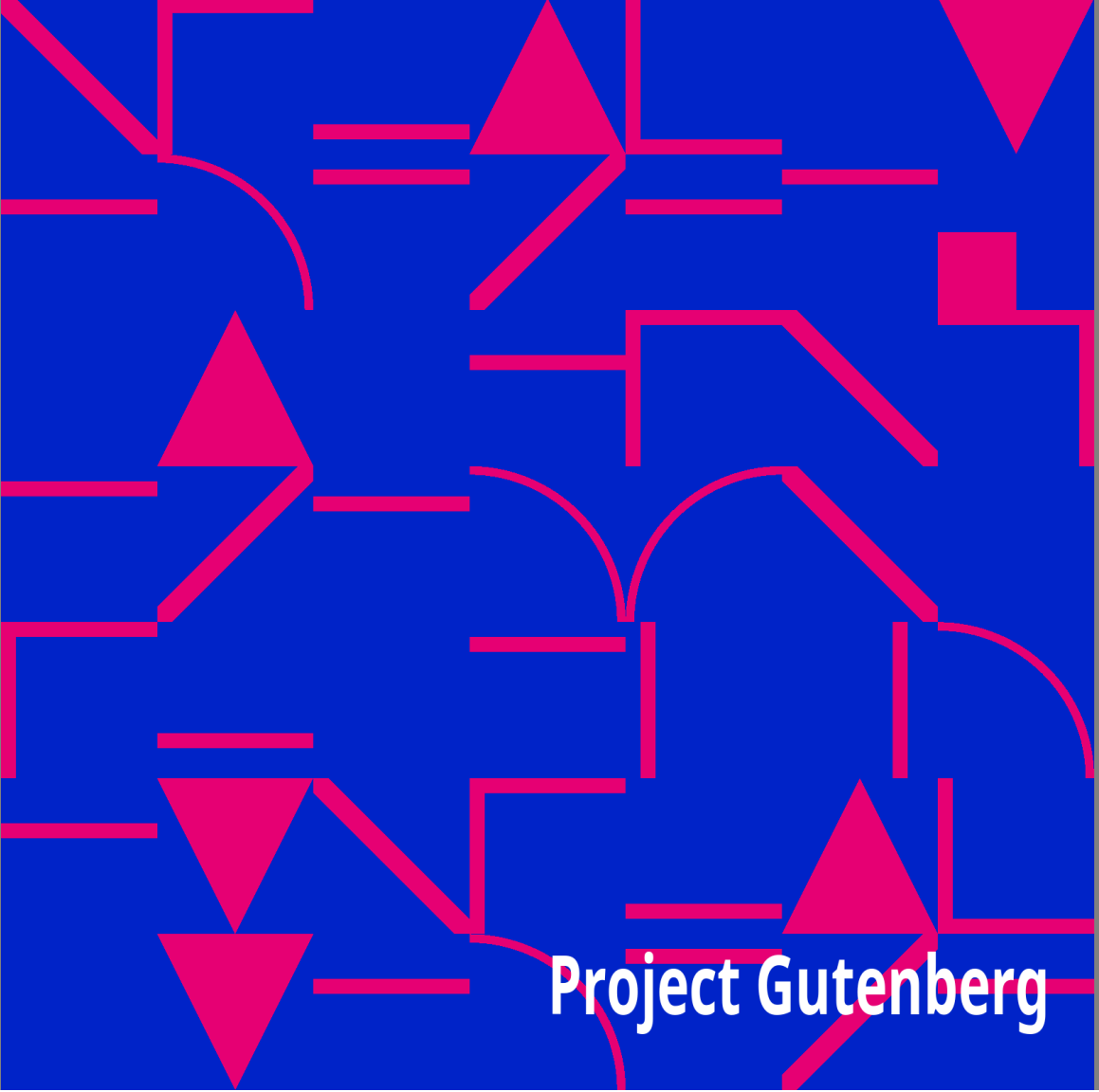
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Alexander Bain



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*** START OF THE PROJECT GUTENBERG EBOOK MORAL
SCIENCE; A COMPENDIUM OF ETHICS ***

MORAL SCIENCE: A COMPENDIUM OF ETHICS

by

ALEXANDER BAIN, M.A.,

Author of "Mental Science: A Compendium of Psychology;" "The Senses and the Intellect;" "The Emotions and the Will;" "A Manual of Rhetoric;" Professor of Logic in the University of Aberdeen, etc., etc., etc.

1869

PREFACE

The present Dissertation falls under two divisions.

The first division, entitled The Theory of Ethics, gives an account of the questions or points brought into discussion, and handles at length the two of greatest prominence, the Ethical Standard, and the Moral Faculty.

The second division—on The Ethical Systems—is a full detail of all the systems, ancient and modern, by conjoined Abstract and Summary. With few exceptions, an abstract is made of each author's exposition of his own theory, the fulness being measured by relative importance; while, for better comparing and remembering the several theories, they are summarized at the end, on a uniform plan.

The connection of Ethics with Psychology is necessarily intimate; the leading ethical controversies involve a reference to mind, and can be settled only by a more thorough understanding of mental processes.

Although the present volume is properly a continuation of the Manual of Psychology and the History of Philosophy, recently published, and contains occasional references to that treatise, it may still be perused as an independent work on the Ethical Doctrines and Systems. A.B.

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ETHICS

PART I.

THE THEORY OF ETHICS.

CHAPTER I.

PRELIMINARY VIEW OF ETHICAL, QUESTIONS.

As a preface to the account of the Ethical Systems, and a principle of arrangement, for the better comparing of them, we shall review in order the questions that arise in the discussion.

I. First of all is the question as to the ETHICAL STANDARD. What, in the last resort, is the test, criterion, umpire, appeal, or Standard, in determining Right and Wrong? In the concrete language of Paley, "Why am I obliged to keep my word? The answer to this is the Theory of Right and Wrong, the essential part of every Ethical System."

We may quote the leading answers, as both explaining and summarizing the chief question of Ethics, and more especially of Modern Ethics.

1. It is alleged that the arbitrary Will of the Deity, as expressed in the Bible, is the ultimate standard. On this view anything thus commanded is right, whatever be its consequences, or however it may clash with our sentiments and reasonings.

2. It was maintained by Hobbes, that the Sovereign, acting under his responsibility to God, is the sole arbiter of Right and Wrong. As regards Obligatory Morality, this seems at first sight an identical proposition; morality is another name for law and sovereignty. In the view of Hobbes, however, the sovereign should be a single person, of absolute authority, humanly irresponsible, and irremovable; a type of sovereignty repudiated by civilized nations.

3. It has been held, in various phraseology, that a certain *fitness*, suitability, or propriety in actions, as determined by our Understanding or Reason, is the ultimate test. "When a man keeps his word, there is a certain congruity or consistency between the action and the occasion, between the making of a promise and its fulfilment; and wherever such congruity is discernible, the action is right." This is the view of Cudworth, Clarke, and Price. It may be called the Intellectual or Rational theory.

A special and more abstract form of the same theory is presented in the dictum of Kant—'act in such a way that your conduct might be a law to all beings.'

4. It is contended, that the human mind possesses an intuition or instinct, whereby we feel or discern at once the right from the wrong; a view termed the doctrine of the Moral Sense, or Moral Sentiment. Besides being supported by numerous theorists in Ethics, this is the prevailing and popular doctrine; it underlies most of the language of moral suasion. The difficulties attending the stricter interpretation of it have led to various modes of qualifying and explaining it, as will afterwards appear. Shaftesbury and Hutcheson are more especially identified with the enunciation of this doctrine in its modern aspect.

5. It was put forth by Mandeville that Self-interest is the only test of moral rightness. Self-preservation is the first law of being; and even when

we are labouring for the good of others, we are still having regard to our own interest.

6. The theory called, Utility, and Utilitarianism, supposes that the well-being or happiness of mankind is the sole end, and ultimate standard of morality. The agent takes account both of his own happiness and of the happiness of others, subordinating, on proper occasions, the first to the second. This theory is definite in its opposition to all the others, but admits of considerable latitude of view within itself. Stoicism and Epicureanism, are both included in its compass.

The two last-named theories—Self-Interest, and Utility or the Common Well-Being, have exclusive regard to the consequences of actions; the others assign to consequences a subordinate position. The terms External and Dependent are also used to express the reference to Happiness as the end: Internal and Independent are the contrasting epithets.

II. Ethical Theory embraces certain questions of pure PSYCHOLOGY.

1. The Psychological nature of Conscience, the Moral Sense, or by whatever name we designate the faculty of distinguishing right and wrong, together with the motive power to follow the one and eschew the other. That such a faculty exists is admitted. The question is, what is its place and origin in the mind?

On the one side, Conscience is held to be a *unique* and ultimate power of the mind, like the feeling of Resistance, the sense of Taste, or the consciousness of Agreement. On the other side, Conscience is viewed as a growth or derivation from other recognized properties of the mind. The Theory of the Standard (4) called the doctrine of the Moral Sense, proceeds upon the first view; on that theory, the Standard and the Faculty make properly but one question. All other theories are more or less compatible

with the composite or derivative nature of Conscience; the supporters of Utility, in particular, adopt this alternative.

2. A second Psychological question, regarded by many (notably by Kant) as vitally implicated in Moral Obligation, is the Freedom of the Will. The history of opinion on this subject has been in great part already given.

3. Thirdly, It has been debated, on Psychological grounds, whether our Benevolent actions (which all admit) are ultimately modes of self-regard, or whether there be, in the human mind, a source of purely Disinterested conduct. The first view, or the reference of benevolence to Self, admits of degrees and varieties of statement.

(1) It may be held that in performing good actions, we expect and obtain an immediate reward fully equivalent to the sacrifice made. Occasionally we are rewarded in kind; but the reward most usually forthcoming (according to Mandeville), is praise or flattery, to which the human mind is acutely sensitive.

(2) Our constitution may be such that we are pained by the sight of an object in distress, and give assistance, to relieve ourselves of the pain. This was the view of Hobbes; and it is also admitted by Mandeville as a secondary motive.

(3) We may be so formed as to derive enjoyment from the performance of acts of kindness, in the same immediate way that we are gratified by warmth, flowers, or music; we should thus be moved to benevolence by an intrinsic pleasure, and not by extraneous consequences.

Bentham speaks of the pleasures and the pains of Benevolence, meaning that we derive pleasure from causing pleasure to others, and pain from the sight of pain in others.

(4) It may be affirmed that, although we have not by nature any purely disinterested impulses, these are generated in us by associations and habits, in a manner similar to the conversion of means into final ends, as in the case of money. This is the view propounded by James Mill, and by Mackintosh.

Allowance being made for a certain amount of fact in these various modes of connecting Benevolence with self, it is still maintained in the present work, as by Butler, Hume, Adam Smith, and others, that human beings are (although very unequally) endowed with a prompting to relieve the pains and add to the pleasures of others, irrespective of all self-regarding considerations; and that such prompting is not a product of associations with self.

In the ancient world, purely disinterested conduct was abundantly manifested in practice, although not made prominent in Ethical Theory. The enumeration of the Cardinal Virtues does not expressly contain Benevolence; but under Courage, Self-sacrifice was implied. Patriotic Self-devotion, Love, and Friendship were virtues highly cultivated. In Cicero, Seneca, and Marcus Aurelius, there is a recognition of general Benevolence.

The two heads now sketched—The Standard and the Psychology of our Moral nature—almost entirely exhaust modern Ethics. Smith, Stewart, and Mackintosh agree in laying down as the points in dispute these two:—First, What does virtue consist in? Secondly, What is the power or faculty of the mind that discovers and enforces it?

These two positions, however, are inadequate as regards Ancient Ethics. For remedying the deficiency, and for bringing to light matters necessary to the completeness of an Ethical survey, we add the following heads:—

III. The Theory of what constitutes the Supreme END of Life, the BONUM or the SUMMUM BONUM. The question as to the highest End has divided the Ethical Schools, both ancient and modern. It was the point at issue between the Stoics and the Epicureans. That Happiness is not the highest end has been averred, in modern times, by Butler and others: the opposite position is held by the supporters of Utility. What may be called the severe and ascetic systems (theoretically) refuse to sanction any pursuit of happiness or pleasure, except through virtue, or duty to others. The view practically proceeded upon, now and in most ages, is that virtue discharges a man's obligations to his fellows, which being accomplished, he is then at liberty to seek what pleases himself. (For the application of the laws of mind to the theory of HAPPINESS, see Appendix C.)

IV.-The CLASSIFICATION OF DUTIES is characteristic of different systems and different authors. The oldest scheme is the Four Cardinal Virtues—Prudence, Courage, Temperance, Justice. The modern Christian moralists usually adopt the division—Duties to God, to Others, to Self.

Moreover, there are differences in the substance of Morality itself, or the things actually imposed. The code under Christianity has varied both from Judaism and from Paganism.

V.-The relationship of Ethics to POLITICS is close, while the points of difference of the two are also of great importance. In Plato the two subjects were inseparable; and in Aristotle, they were blended to excess. Hobbes also joined Ethics and Politics in one system. (See Chap, ii., § 3.)

VI.-The relation of Ethics to THEOLOGY is variously represented in modern systems. The Fathers and the Schoolmen accepted the authority of the Bible chiefly on tradition, and did not venture to sit in judgment on the substance of the revelation. They, therefore, rested their Ethics exclusively

on the Bible; or, at most, ventured upon giving some mere supplement of its precepts.

Others, in more modern times, have considered that the moral character of a revelation enters into the evidence in its favour; whence, morality must be considered as independent, and exclusively human, in its origin. It would be reasoning in a circle to derive the moral law from the bible, and then to prove the bible from the moral law.

Religion superadds its own sanction to the moral duties, so far as adopted by it; laying especial stress upon select precepts. It likewise calls into being a distinct code of duties, the religious duties strictly so called; which have no force except with believers. The 'duties to God,' in the modern classification, are religious, as distinguished from moral duties.

CHAPTER II.

THE ETHICAL STANDARD.

1. ETHICS, or Morality, is a department of Practice; and, as with other practical departments, is defined by its End.

Ethics is not mere knowledge or speculation, like the sciences of Astronomy, Physiology, or Psychology; it is knowledge applied to practice, or useful ends, like Navigation, Medicine, or Politics. Every practical subject has some end to be served, the statement of which is its definition in the first instance. Navigation is the applying of different kinds of knowledge, and of a variety of devices, to the end of sailing the seas.

2. The Ethical End is a certain portion of the welfare of human beings living together in society, realized through rules of conduct duly enforced.

The obvious intention of morality is the good of mankind. The precepts—do not steal, do not kill, fulfil agreements, speak truth—whatever other reasons may be assigned for them, have a direct tendency to prevent great evils that might otherwise arise in the intercourse of human beings.

Farther, the good aimed at by Ethics is attained by *rules of acting*, on the part of one human being to another; and, inasmuch as these rules often run

counter to the tendencies of the individual mind, it is requisite to provide *adequate inducements* to comply with them.

The Ethical End is what is otherwise called the STANDARD, test, or criterion, of Right and Wrong. The leading controversy of Morals is centered in this point.

3. The Rules of Ethics, termed also Law, Laws, the Moral Law, are of two kinds:—

The first are rules imposed under a Penalty for neglect, or violation. The penalty is termed *Punishment*; the imposing party is named Government, or Authority; and the rules so imposed and enforced, are called Laws proper, Morality proper, Obligatory Morality, Duty.

4. The second are rules whose only external support is *Rewards*; constituting Optional Morality, Merit, Virtue, or Nobleness.

Moral duties are a set of rules, precepts, or prescriptions, for the direction of human conduct in a certain sphere or province. These rules are enforced by two kinds of motives, requiring to be kept distinct.

I.—One class of rules are made compulsory by the infliction of pain, in the case of violation or neglect. The pain so inflicted is termed a Penalty, or Punishment; it is one of the most familiar experiences of all human beings living in society.

The Institution that issues Rules of this class, and inflicts punishment when they are not complied with, is termed Government, or Authority; all its rules are authoritative, or obligatory; they are Laws strictly so called, Laws proper. Punishment, Government, Authority, Superiority, Obligation,

Law, Duty,—define each other; they are all different modes of regarding the same fact.

Morality is thus in every respect analagous to Civil Government, or the Law of the Land. Nay, farther, it squares, to a very great extent, with Political Authority. The points where the two coincide, and those where they do not coincide, may be briefly stated:—

(1) All the most essential parts of Morality are adopted and carried out by the Law of the Land. The rules for protecting person and property, for fulfilling contracts, for performing reciprocal duties, are rules or laws of the State; and are enforced by the State, through its own machinery. The penalties inflicted by public authority constitute what is called the Political Sanction; they are the most severe, and the most strictly and dispassionately administered, of all penalties.

(2) There are certain Moral duties enforced, not by public and official authority, but by the members of the community in their private capacity. These are sometimes called the Laws of Honour, because they are punished by withdrawing from the violator the honour or esteem of his fellow-citizens. Courage, Prudence as regards self, Chastity, Orthodoxy of opinion, a certain conformity in Tastes and Usages,—are all prescribed by the mass of each community, to a greater or less extent, and are insisted on under penalty of social disgrace and excommunication. This is the Social or the Popular Sanction. The department so marked out, being distinct from the Political sphere, is called, by Austin, Positive Morality, or Morality proper.

Public opinion also chimes in with the Law, and adds its own sanction to the legal penalties for offences: unless the law happens to be in conflict with the popular sentiment. Criminals, condemned by the law, are additionally punished by social disgrace.

(3) The Law of the Land contains many enactments, besides the Moral Code and the machinery for executing it. The Province of government passes beyond the properly protective function, and includes many institutions of public convenience, which are not identified with right and wrong. The defence from external enemies; the erection of works of public utility; the promotion of social improvements,—are all within the domain of the public authority.[1]

II.—The second class of Rules are supported, not by penalties, but by Rewards. Society, instead of punishing men for not being charitable or benevolent, praises and otherwise rewards them, when they are so. Hence, although Morality inculcates benevolence, this is not a Law proper, it is not obligatory, authoritative, or binding; it is purely voluntary, and is termed merit, virtuous and noble conduct.

In this department, the members of the community, in their unofficial capacity, are the chief agents and administrators. The Law of the Land occupies itself with the enforcement of its own obligatory rules, having at its command a perfect machinery of punishment. Private individuals administer praise, honour, esteem, approbation, and reward. In a few instances, the Government dispenses rewards, as in the bestowal of office, rank, titles, and pensions, but this function is exceptional and limited.

The conduct rewarded by Society is chiefly resolvable into Beneficence. Whoever is moved to incur sacrifices, or to go through labours, for the good of others, is the object, not merely of gratitude from the persons benefited, but of approbation from society at large.

Any remarkable strictness or fidelity in the discharge of duties properly so called, receives general esteem. Even in matters merely ceremonial, if importance be attached to them, sedulous and exact compliance, being the distinction of the few, will earn the approbation of the many.[2]

5. The Ethical End, or Morality, *as it has been*, is founded partly on Well-being, or Utility: and partly on Sentiment.

The portions of Morality, having in view the prevention of human misery and the promotion of human happiness, are known and obvious. They are not the whole of Morality as it has been.

Sentiment, caprice, arbitrary liking or disliking, are names for states of feeling that do not necessarily arise from their objects, but may be joined or disjoined by education, custom, or the power of the will. The revulsion of mind, on the part of the Jews, against eating the pig, and on our own part, as regards horse flesh, is not a primitive or natural sensibility, like the pain of hunger, or of cold, or of a musical discord; it is purely artificial; custom has made it, and could unmake it. The feeling of fatigue from overwork is natural; the repugnance of caste to manual labour is factitious. The dignity attached to the military profession, and the indignity of the office of public executioner, are capricious, arbitrary, and sentimental. Our prospective regard to the comforts of our declining years points to a real interest; our feelings as to the disposal of the body after death are purely factitious and sentimental. Such feelings are of the things in our own power; and the grand mistake of the Stoics was their viewing all good and evil whatever in the same light.

It is an essential part of human liberty, to permit each person to form and to indulge these sentiments or caprices; although a good education should control them with a view to our happiness on the whole. But, when any individual liking or fancy of this description is imposed as a law upon the entire community, it is a perversion and abuse of power, a confounding of the Ethical end by foreign admixtures. Thus, to enjoin authoritatively one mode of sepulture, punishing all deviations from that, could have nothing to do with the preservation of the order of society. In such a matter, the

interference of the state in modern times, has regard to the detection of crime in the matter of life and death, and to the evils arising from the putrescence of the dead.

6. The Ethical End, although properly confined to Utility, is subject to still farther limitations, according to the view taken of the Province of Moral Government, or Authority.

Although nothing should be made morally obligatory but what is generally useful, the converse does not hold; many kinds of conduct are generally useful, but not morally obligatory. A certain amount of bodily exercise in the open air every day would be generally useful; but neither the law of the land nor public opinion compels it. Good roads are works of great utility; it is not every one's duty to make them.

The machinery of coercion is not brought to bear upon every conceivable utility. It is principally reserved, when not abused, for a select class of utilities.

Some utilities are indispensable to the very existence of men in society. The primary moral duties must be observed to some degree, if men are to live together as men, and not to roam at large as beasts. The interests of *Security* are the first and most pressing concern of human society. Whatever relates to this has a surpassing importance. Security is contrasted with Improvement; what relates to Security is declared to be Right; what relates to Improvement is said to be Expedient; both are forms of Utility, but the one is pressing and indispensable, the other is optional. The same difference is expressed by the contrasts—Being and Well-being; Existence and Prosperous Existence; Fundamentals or Essentials and Circumstantial. That the highway robber should be punished is a part of Being; that the highways should be in good repair, is a part of Well-being. That Justice should be done is Existence; that farmers and traders should give in to

government the statistics of their occupation, is a means to Prosperous Existence.[3]

It is proper to advert to one specific influence in moral enactments, serving to disguise the Ethical end, and to widen the distinction between morality as it has been, and morality as it ought to be. The enforcing of legal and moral enactments demands a *power of coercion*, to be lodged in the hands of certain persons; the possession of which is a temptation to exceed the strict exigencies of public safety, or the common welfare. Probably many of the whims, fancies, ceremonies, likings and antipathies, that have found their way into the moral codes of nations, have arisen from the arbitrary disposition of certain individuals happening to be in authority at particular junctures. Even the general community, acting in a spontaneous manner, imposes needless restraints upon itself, delighting more in the exercise of power, than in the freedom of individual action.

7. Morality, in its essential parts, is 'Eternal and Immutable;' in other parts, it varies with Custom.

(1) The rules for protecting one man from another, for enforcing justice, and the observance of contracts, are essential and fundamental, and may be styled 'Eternal and Immutable.' The ends to be served require these rules; no caprice of custom could change them without sacrificing these ends. They are to society what food is to individual life, of sexual intercourse and mother's care to the continuance of the race. The primary moralities could not be exchanged for rules enacting murder, pillage, injustice, unverity, repudiation of engagements; because under these rules, human society would fall to pieces.

(2) The manner of carrying into effect these primary regulations of society, varies according to Custom. In some communities the machinery is

rude and imperfect; while others have greatly improved it. The Greeks took the lead in advancing judicial machinery, the Romans followed.

In the regulations not essential to Being, but important to Well-being, there has prevailed the widest discrepancy of usage. The single department relating to the Sexes is a sufficient testimony on this head. No one form of the family is indispensable to the existence of society; yet some forms are more favourable to general happiness than others. But which form is on the whole the best, has greatly divided opinion; and legislation has varied accordingly. The more advanced nations have adopted compulsory monogamy, thereby giving the prestige of their authority in favour of that system. But it cannot be affirmed that the joining of one man to one woman is a portion of 'Eternal and Immutable Morality.'

Morality is an Institution of society, but not an arbitrary institution.

8. Before adducing the proofs in support of the position above assumed, namely, that Utility or Human Happiness, with certain limitations, is the *proper* criterion of Morality, it is proper to enquire, what sort of evidence the Ethical Standard is susceptible of.

Hitherto, the doctrine of Utility has been assumed, in order to be fully stated. We must next review the evidence in its favour, and the objections urged against it. It is desirable, however, to ask what kind of proof should be expected on such a question.

In the Speculative or Theoretical sciences, we prove a doctrine by referring it to some other doctrine or doctrines, until we come at last to some assumption that must be rested in as ultimate or final. We can prove the propositions of Euclid, the law of gravitation, the law of atomic proportions, the law of association; we cannot prove our present sensations, nor can we demonstrate that what has been, will be. The ultimate data must

be accepted as self-evident; they have no higher authority than that mankind generally are disposed to accept them.

In the practical Sciences, the question is not as to a principle of the order of nature, but as to an *end* of human action. There may be *derived* Ends, which are susceptible of demonstrative proof; but there must also be *ultimate* Ends, for which no proof can be offered; they must be received as self-evident, and their sole authority is the person receiving them. In most of the practical sciences, the ends are derived; the end of Medicine is Health, which is an end subsidiary to the final end of human happiness. So it is with Navigation, with Politics, with Education, and others. In all of them, we recognize the bearing upon human welfare, or happiness, as a common, comprehensive, and crowning end. On the theory of Utility, Morals is also governed by this highest end.

Now, there can be no proof offered for the position that Happiness is the proper end of all human pursuit, the criterion of all right conduct. It is an ultimate or final assumption, to be tested by reference to the individual judgment of mankind. If the assumption, that misery, and not happiness, is the proper end of life, found supporters, no one could reply, for want of a basis of argument—an assumption still more fundamental agreed upon by both sides. It would probably be the case, that the supporters of misery, as an end, would be at some point inconsistent with themselves; which would lay them open to refutation. But to any one consistently maintaining the position, there is no possible reply, because there is no medium of proof.

If then, it appears, on making the appeal to mankind, that happiness is admitted to be the highest end of all action, the theory of Utility is proved.

9. The judgment of Mankind is very generally in favour of Happiness, as the Supreme end of human conduct, Morality included.

This decision, however, is not given without qualifications and reservations; nor is there perfect unanimity regarding it.

The theory of Motives to the Will is the answer to the question as to the ends of human action. According to the primary law of the Will, each one of us, for ourselves, seeks pleasure and avoids pain, present or prospective. The principle is interfered with by the operation of Fixed Ideas, under the influence of the feelings; whence we have the class of Impassioned, Exaggerated, Irrational Motives or Ends. Of these influences, one deserves to be signalized as a source of virtuous conduct, and as approved of by mankind generally; that is, Sympathy with others.

Under the Fixed Idea, may be ranked the acquired sense of Dignity, which induces us often to forfeit pleasure and incur pain. We should not choose the life of Plato's beatified oyster, or (to use Aristotle's example) be content with perpetual childhood, with however great a share of childish happiness.

10. The Ethical end that men are tending to, and may ultimately adopt without reservation, is human Welfare, Happiness, or Being and Well-being combined, that is, Utility.

The evidence consists of such facts as these:—

(1) By far the greater part of the morality of every age and country has reference to the welfare of society. Even in the most superstitious, sentimental, and capricious despotisms, a very large share of the enactments, political and moral, consist in protecting one man from another, and in securing justice between man and man. These objects may be badly carried out, they may be accompanied with much oppression of the governed by the governing body, but they are always aimed at, and occasionally secured. Of the Ten Commandments, four pertain to Religious

Worship; six are Utilitarian, that is, have no end except to ward off evils, and to further the good of mankind.

(2) The general welfare is at all times considered a strong and adequate justification of moral rules, and is constantly adduced as a motive for obedience. The commonplaces in support of law and morality represent, that if murder and theft were to go unpunished, neither life nor property would be safe; men would be in eternal warfare; industry would perish; society must soon come to an end.

There is a strong disposition to support the more purely sentimental requirements, and even the excesses of mere tyranny, by utilitarian reasons.

The cumbersome ablutions of oriental nations are defended on the ground of cleanliness. The divine sanctity of kings is held to be an aid to social obedience. Slavery is alleged to have been at one time necessary to break in mankind to industry. Indissoluble marriage arose from a sentiment rather than from utility; but the arguments, commonly urged in its favour, are utilitarian.

(3) In new cases, and in cases where no sentiment or passion is called into play, Utility alone is appealed to. In any fresh enactment, at the present day, the good of the community is the only justification that would be listened to. If it were proposed to forbid absolutely the eating of pork in Christian countries, some great public evils would have to be assigned as the motive. Were the fatalities attending the eating of pork, on account of *trichiniae*, to become numerous, and unpreventible, there would then be a reason, such as a modern civilized community would consider sufficient, for making the rearing of swine a crime and an immorality. But no mere sentimental or capricious dislike to the pig, on the part of any number of persons, could now procure an enactment for disusing that animal.

(4) There is a gradual tendency to withdraw from the moral code, observances originating purely in sentiment, and having little or no connexion with human welfare.

We have abandoned the divine sacredness of kings. We no longer consider ourselves morally bound to denounce and extirpate heretics and witches, still less to observe fasts and sacred days. Even in regard to the Christian Sabbath, the opinion is growing in favour of withdrawing both the legal and popular sanction formerly so stringent; while the arguments for Sabbath observance are more and more charged with considerations of secular utility.

Should these considerations be held as adequate to support the proposition advanced, they are decisive in favour of Utility as the Moral Standard that *ought to be*. Any other standard that may be set up in competition with Utility, must ultimately ground itself on the very same appeal to the opinions and the practice of mankind.

11. The chief objections urged against Utility as the moral Standard have been in great part anticipated. Still, it is proper to advert to them in detail.

I.—It is maintained that Happiness is not, either in fact or in right, the sole aim of human pursuit; that men actually, deliberately, and by conscientious preference, seek other ends. For example, it is affirmed that Virtue is an end in itself, without regard to happiness.

On this argument it may be observed:—

(1) It has been abundantly shown in this work, that one part of the foregoing affirmation is strictly true. Men are not urged to action exclusively by their pleasures and their pains. They are urged by other motives, of the impassioned kind; among which, is to be signalized

sympathy with the pains and pleasures of others. If this had been the only instance of action at variance with the regular course of the will, we should be able to maintain that the motive to act is still happiness, but not always the agent's own happiness. We have seen, however, that individuals, not unfrequently, act in opposition both to their own, and to other people's happiness; as when mastered by a panic, and when worked up into a frenzy of anger or antipathy.

The sound and tenable position seems to be this:—Human beings, in their best and soberest moods, looking before and after, weighing all the consequences of actions, are generally disposed to regard Happiness, to some beings or others, as the proper end of all endeavours. The mother is not exclusively bent on her own happiness; she is upon her child's. Howard abandoned the common pleasures of life for himself, to diminish the misery of fellow creatures.

(2) It is true that human beings are apt to regard Virtue as an end-in-itself, and not merely as a means to happiness as the final end. But the fact is fully accounted for on the general law of Association by Contiguity; there being many other examples of the same kind, as the love of money. Justice, Veracity, and other virtues, are requisite, to some extent, for the existence of society, and, to a still greater extent, for prosperous existence. Under such circumstances, it would certainly happen that the means would participate in the importance of the end, and would even be regarded as an end in itself.

(3) The great leading duties may be shown to derive their estimation from their bearing upon human welfare. Take first, Veracity or Truth. Of all the moral duties, this has most the appearance of being an absolute and independent requirement. Yet mankind have always approved of deception practised upon an enemy in war, a madman, or a highway robber. Also, secrecy or concealment, even although misinterpreted, is allowed, when it

does not cause pernicious results; and is even enjoined and required in the intercourse of society, in order to prevent serious evils. But an absolute standard of truth is incompatible, even with secrecy or disguise; in departing from the course of perfect openness, or absolute publicity of thought and action, in every possible circumstance, we renounce ideal truth in favour of a compromised or qualified veracity—a pursuit of truth in subordination to the general well-being of society.

Still less is there any form of Justice that does not have respect to Utility. If Justice is defined as giving to every one their own, the motive clearly is to prevent misery to individuals. If there were a species of injustice that made no one unhappier, we may be quite sure that tribunals would not be set up for enforcing and punishing it. The idea of equality in Justice is seemingly an absolute conception, but, in point of fact, equality is a matter of institution. The children of the same parent are, in certain circumstances, regarded as unequal by the law; and justice consists in respecting this inequality.

The virtue of Self-denial, is one that receives the commendation of society, and stands high in the morality of reward. Still, it is a means to an end. The operation of the associating principle tends to raise it above this point to the rank of a final end. And there is an ascetic scheme of life that proceeds upon this supposition; but the generality of mankind, in practice, if not always in theory, disavow it.

(4) It is often affirmed by those that regard virtue, and not happiness, as the end, that the two coincide in the long run. Now, not to dwell upon the very serious doubts as to the matter of fact, a universal coincidence without causal connexion is so rare as to be in the last degree improbable. A fiction of this sort was contrived by Leibnitz, under the title of 'pre-established

harmony;' but, among the facts of the universe, there are only one or two cases known to investigation.

12. II.—It is objected to Utility as the Standard, that the bearings of conduct on general happiness are too numerous to be calculated; and that even where the calculation is possible, people have seldom time to make it.

(1) It is answered, that the primary moral duties refer to conduct where the consequences are evident and sure. The disregard of Justice and Truth would to an absolute certainty bring about a state of confusion and ruin; their observance, in any high degree, contributes to raise the standard of well-being.

In other cases, the calculation is not easy, from the number of opposing considerations. For example, there are two sides to the question, Is dissent morally wrong? in other words, Ought all opinions to be tolerated? But if we venture to decide such a question, without the balancing or calculating process, we must follow blindfold the dictates of one or other of the two opposing sentiments,—Love of Power and Love of Liberty.

It is not necessary that we should go through the process of calculation every time we have occasion to perform a moral act. The calculations have already been performed for all the leading duties, and we have only to apply the maxims to the cases as they arise.

13. III.—The principle of Utility, it is said, contains no motives to seek the Happiness of others; it is essentially a form of Self-Love.

The averment is that Utility is a sufficient motive to pursue our own happiness, and the happiness of others as a means to our own; but it does not afford any purely disinterested impulses; it is a Selfish theory after all.

Now, as Utility is, by profession, a benevolent and not a selfish theory, either such profession is insincere, or there must be an obstruction in carrying it out. That the supporters of the theory are insincere, no one has a right to affirm. The only question then is, what are the difficulties opposed by this theory, and not present in other theories (the Moral Sense, for example) to benevolent impulses on the part of individuals?

Let us view the objection first as regards the Morality of Obligation, or the duties that bind society together. Of these duties, only a small number aim at positive beneficence; they are either Protective of one man against another, or they enforce Reciprocity, which is another name for Justice. The chief exception is the requiring of a minimum of charity towards the needy.

This department of duty is maintained by the force of a certain mixture of prudential and of beneficent considerations, on the part of the majority, and by prudence (as fear of punishment) on the part of the minority. But there does not appear to be anything in our professedly Benevolent Theory of Morals to interfere with the small portion of disinterested impulse that is bound up-with prudential regards, in the total of motives concerned in the morality of social order called the primary or obligatory morality.

Let us, in the next place, view the objection as regards Optional Morality, where positive beneficence has full play. The principal motive in this department is Reward, in the shape either of benefits or of approbation. Now, there is nothing to hinder the supporters of the standard of Utility from joining in the rewards or commendations bestowed on works of charity and beneficence.

Again, there is, in the constitution of the mind, a motive superior to reward, namely, Sympathy proper, or the purely Disinterested impulse to alleviate the pains and advance the pleasures of others. This part of the mind is wholly *unselfish*; it needs no other prompting than the fact that

some one is in pain, or may be made happier by something within the power of the agent.

The objectors need to be reminded that Obligatory Morality, which works by punishment, creates a purely selfish motive; that Optional Morality, in so far as stimulated by Reward, is also selfish; and that the only source of purely disinterested impulses is in the unprompted Sympathy of the individual mind. If such sympathies exist, and if nothing is done to uproot or paralyze them, they will urge men to do good to others, irrespective of all theories. Good done from any other source or motive is necessarily self-seeking. It is a common remark, with reference to the sanctions of a future life, that they create purely self-regarding motives. Any proposal to increase disinterested action by moral obligation contains a self-contradiction; it is suicidal. The rich may be made to give half their wealth to the poor; but in as far as they are *made* to do it, they are not benevolent. Law distrusts generosity and supersedes it. If a man is expected to regard the happiness of others as an end in itself, and not as means to his own happiness, he must be left to his own impulses: 'the quality of mercy is not *strained*' The advocates of Utility may observe non-interference as well as others.

CHAPTER III.

THE MORAL FACULTY.

1. The chief question in the Psychology of Ethics is whether the Moral Faculty, or Conscience, be a simple or a complex fact of the mind.

Practically, it would seem of little importance in what way the moral faculty originated, except with a view to teach us how it may be best strengthened when it happens to be weak. Still, a very great importance has been attached to the view, that it is simple and innate; the supposition being that a higher authority thereby belongs to it. If it arises from mere education, it depends on the teacher for the time being; if it exists prior to all education, it seems to be the voice of universal nature or of God.

2. In favour of the simple and intuitive character of Moral Sentiment, it is argued:—

First, That our judgments of right and wrong are immediate and instantaneous.

On almost all occasions, we are ready at once to pronounce an action right or wrong. We do not need to deliberate or enquire, or to canvass

reasons and considerations for and against, in order to declare a murder, a theft, or a lie to be wrong. We are fully armed with the power of deciding all such questions; we do not hesitate, like a person that has to consult a variety of different faculties or interests. Just as we pronounce at once whether the day is light or dark, hot or cold; whether a weight is light or heavy;—we are able to say whether an action is morally right or the opposite.

3. Secondly, It is a faculty or power belonging to all mankind.

This was expressed by Cicero, in a famous passage, often quoted with approbation, by the supporters of innate moral distinctions. 'There is one true and original law conformable to reason and to nature, diffused over all, invariable, eternal, which calls to duty and deters from injustice, &c.'

4. Thirdly, Moral Sentiment is said to be radically different in its nature from any other fact or phenomenon of the mind.

The peculiar state of discriminating right and wrong, involving approbation and disapprobation, is considered to be entirely unlike any other mental element; and, if so, we are precluded from resolving or analyzing it into simpler modes of feeling, willing, or thinking.

We have many feelings that urge us to act and abstain from acting; but the prompting of conscience has something peculiar to itself, which has been expressed by the terms rightness, authority, supremacy. Other motives, —hunger, curiosity, benevolence, and so on,—have might, this has right.

So, the Intellect has many occasions for putting forth its aptitudes of discriminating, identifying, remembering; but the operation of discerning right and wrong is supposed to be a unique employment of those functions.

5. In reply to these arguments, and in support of the view that the Moral Faculty is complex and derived, the following considerations are urged:—

First, The Immediateness of a judgment, is no proof of its being innate; long practice or familiarity has the same effect.

In proportion as we are habituated to any subject, or any class of operations, our decisions are rapid and independent of deliberation. An expert geometer sees at a glance whether a demonstration is correct. In extempore speech, a person has to perform every moment a series of judgments as to the suitability of words to meaning, to grammar, to taste, to effect upon an audience. An old soldier knows in an instant, without thought or deliberation, whether a position is sufficiently guarded. There is no greater rapidity in the judgments of right and wrong, than in these acquired professional judgments.

Moreover, the decisions of conscience are quick only in the simpler cases. It happens not unfrequently that difficult and protracted deliberations are necessary to a moral judgment.

6. Secondly, The alleged similarity of men's moral judgments in all countries and times holds only to a limited degree.

The very great differences among different nations, as to what constitutes right and wrong, are too numerous, striking, and serious, not to have been often brought forward in Ethical controversy. Robbery and murder are legalized in whole nations. Macaulay's picture of the Highland Chief of former days is not singular in the experience of mankind.

'His own vassals, indeed, were few in number, but he came of the best blood of the Highlands. He kept up a close connexion with his more powerful kinsmen; nor did they like him the less because he was a robber;

for he never robbed them; and that robbery, merely as robbery, was a wicked and disgraceful act, had never entered into the mind of any Celtic chief.'

Various answers have been given by the advocates of innate morality to these serious discrepancies.

(1) It is maintained that savage or uncultivated nations are not a fair criterion of mankind generally: that as men become more civilized, they approximate to unity of moral sentiment; and what civilized men agree in, is alone to be taken as the judgment of the race.

Now, this argument would have great weight, in any discussion as to what is good, useful, expedient, or what is in accordance with the cultivated reason or intelligence of mankind; because civilization consists in the exercise of men's intellectual faculties to improve their condition. But in a controversy as to what is given us by nature,—what we possess independently of intelligent search and experience,—the appeal to civilization does not apply. What civilized men agree upon among themselves, as opposed to savages, is likely to be the reverse of a natural instinct; in other words, something suggested by reason and experience.

In the next place, counting only civilized races, that is, including the chief European, American, and Asiatic peoples of the present day, and the Greeks and Romans of the ancient world, we still find disparities on what are deemed by us fundamental points of moral right and wrong. Polygamy is regarded as right in Turkey, India, and China, and as wrong in England. Marriages that we pronounce incestuous were legitimate in ancient times. The views entertained by Plato and Aristotle as to the intercourse of the sexes are now looked upon with abhorrence.

(2) It has been replied that, although men differ greatly in what they consider right and wrong, they all agree in possessing *some notion* of right and wrong. No people are entirely devoid of moral judgments.

But this is to surrender the only position of any real importance. The simple and underived character of the moral faculty is maintained because of the superior authority attached to what is natural, as opposed to what is merely conventional. But if nothing be natural but the mere fact of right and wrong, while all the details, which alone have any value, are settled by convention and custom, we are as much at sea on one system as on the other.

(3) It is fully admitted, being, indeed, impossible to deny, that education must concur with natural impulses in making up the moral sentiment. No human being, abandoned entirely to native promptings, is ever found to manifest a sense of right and wrong. As a general rule, the strength of the conscience depends on the care bestowed on its cultivation. Although we have had to recognize primitive distinctions among men as to the readiness to take on moral training, still, the better the training, the stronger will be the conscientious determinations.

But this admission has the effect of reducing the part performed by nature to a small and uncertain amount. Even if there were native preferences, they might be completely overborne and reversed by an assiduous education. The difference made by inculcation is so great, that it practically amounts to everything. A voice so feeble as to be overpowered by foreign elements would do no credit to nature.

7. Thirdly, Moral right and wrong is not so much a simple, indivisible property, as an extensive Code of regulations, which cannot even be understood without a certain maturity of the intelligence.

If it is not possible to sum up the whole field of moral right and wrong, so as to bring it within the scope of a single limited perception, like the perception of resistance, or of colour. In regard to some of the alleged intuitions at the foundation of our knowledge, as for example time and space, there is a comparative simplicity and unity, rendering their innate origin less disputable. No such simplicity can be assigned in the region of duty.

After the subject of morals has been studied in the detail, it has, indeed, been found practicable to comprise the whole, by a kind of generalization, in one comprehensive recognition of regard to our fellows. But, in the first place, this is far from a primitive or an intuitive suggestion of the mind. It came at a late stage of human history, and is even regarded as a part of Revelation. In the second place, this high generality must be accompanied with detailed applications to particular cases and circumstances. Life is full of conflicting demands, and there must be special rules to adjust these various demands. We have to be told that country is greater than family; that temporary interests are to succumb to more enduring, and so on.

Supposing the Love of our Neighbour to unfold in detail, as it expresses in sum, the whole of morality, this is only another name for our Sympathetic, Benevolent, or Disinterested regards, into which therefore Conscience would be resolved, as it was by Hume.

But Morals is properly considered as a wide-ranging science, having a variety of heads full of difficulty, and demanding minute consideration. The subject of Justice, has nothing simple but the abstract statement—giving each one their due; before that can be applied, we must ascertain what is each person's due, which introduces complex questions of relative merit, far transcending the sphere of intuition.

If any part of Morals had the simplicity of an instinct, it would be regarded to Truth. The difference between truth and falsehood might almost be regarded as a primitive susceptibility, like the difference between light and dark, between resistance and non-resistance. That each person should say what is, instead of what is not, may well seem a primitive and natural impulse. In circumstances of perfect indifference, this would be the obvious and usual course of conduct; being, like the straight line, the shortest distance between two points. Let a motive arise, however, in favour of the lie, and there is nothing to insure the truth. Reference must be made to other parts of the mind, from which counter-motives may be furnished; and the intuition in favour of Truth, not being able to support itself, has to repose on the general foundation of all virtue, the instituted recognition of the claims of others.

8. Fourthly, Intuition is incapable of settling the debated questions of Practical Morality.

If we recall some of the great questions of practical life that have divided the opinions of mankind, we shall find that mere Intuition is helpless to decide them.

The toleration of heretical opinions has been a greatly contested point. Our feelings are arrayed on both sides; and there is no prompting of nature to arbitrate between the opposing impulses. If the advance of civilization has tended to liberty, it has been owing partly to greater enlightenment, and partly to the successful struggles of dissent in the war with established opinion.

The questions relating to marriage are wholly undecideable by intuition. The natural impulses are for unlimited co-habitation. The degree of restraint to be put upon this tendency is not indicated by any sentiment that can be discovered in the mind. The case is very peculiar. In thefts and murder, the

immediate consequences are injury to some one; in sexual indulgence, the immediate result is agreeable to all concerned. The evils are traceable only in remote consequences, which intuition can know nothing of. It is not to be wondered, therefore, that nations, even highly civilized, have differed widely in their marriage institutions; agreeing only in the propriety of adopting and enforcing *some* regulations. So essentially has this matter been bound up with the moral code of every society, that a proposed criterion of morality unable to grapple with it, would be discarded as worthless. Yet there is no intuitive sentiment that can be of any avail in the question of marriage with a deceased wife's sister.

9. Fifthly, It is practicable to analyze or resolve the Moral Faculty; and, in so doing, to explain, both its peculiar property, and the similarity of moral judgments so far as existing among men.

We begin, by estimating the operation of (1) Prudence. (2) Sympathy, and (3) the Emotions generally.

The inducements to perform a moral act, as, for example, the fulfilling of a bargain,—are plainly seen to be of various kinds.

(1) Prudence, or Self-interest, has obviously much to do with the moral conduct. Postponing for the present the consideration of Punishment, which is one mode of appeal to the prudential regards, we can trace the workings of self-interest on many occasions wherein men act right. To fulfil a bargain is, in the great majority of cases, for the advantage of the agent; if he fails to perform his part, others may do the same to him.

Our self-interest may look still farther. We may readily discover that if we set an example of injustice, it may be taken up and repeated to such a degree that we can count upon nothing; social security comes to an end, and individual existence, even if possible, would cease to be desirable.

A yet higher view of self-interest informs us, that by performing all our obligations to our fellows, we not only attain reciprocal performance, but generate mutual affections and sympathies, which greatly augment the happiness of life.

(2) Sympathy, or Fellow-feeling, the source of our disinterested actions, must next be taken into the account. It is a consequence of our sympathetic endowment that we revolt from inflicting pain on another, and even forego a certain satisfaction to self rather than be the occasion of suffering to a fellow creature. Moved thus, we perform many obligations on the ground of the misery (not our own) accruing from their neglect.

A considerable portion of human virtue springs directly from this source. If purely disinterested tendencies were withdrawn from the breast, the whole existence of humanity would be changed. Society might not be impossible; there are races where mutual sympathy barely exists: but the fulfilment of obligations, if always dependent on a sense of self-interest, would fail where that was not apparent. On the other hand, if we were on all occasions touched with the unhappiness to others immediately and remotely springing from our conduct—if sympathy were perfect and unfailing—we could hardly ever omit doing what was right.

(3) Our several Emotions or Passions may co-operate with Prudence and with Sympathy in a way to make both the one and the other more efficacious.

Prudence, in the shape of aversion to pain, is rendered more acute when the pain is accompanied with Fear. The perturbation of fear rises up as a deterring motive when dangers loom in the distance. One powerful check to the commission of injury is the retaliation of the sufferer, which is a danger of the vague and illimitable kind, calculated to create alarm.

Anger, or Resentment, also enters, in various ways, into our moral impulses. In one shape it has just been noticed. In concurrence with Self-interest and Sympathy, it heightens the feeling of reprobation against wrong-doers.

The Tender Emotion, and the Affections, uphold us in the performance of our duties to others, being an additional safeguard against injury to the objects of the feelings. It has already been shown how these emotions, while tending to coalesce with Sympathy proper, are yet distinguished from it.

The AEsthetic Emotions have important bearings upon Ethical Sentiment. As a whole, they are favourable to human virtue, being non-exclusive pleasures. They, however, give a bias to the formation of moral rules, and pervert the proper test of right and wrong in a manner to be afterwards explained.

10. Although Prudence and Sympathy, and the various Emotions named, are powerful inducements to what is right in action, and although, without these, right would not prevail among mankind, yet they do not stamp the *peculiar attribute* of Rightness. For this, we must refer to the institution of Government, or Authority.

Although the force of these various motives on the side of right is all-powerful and essential, so much so, that without them morality would be impossible, they do not, of themselves, impart the character of a moral act. We do not always feel that, because we have neglected our interest or violated our sympathies, we have on that account done wrong. The criterion of rightness in particular cases is something different.

The reasons are apparent. For although prudence, as regards self, and sympathy or fellow-feeling, as regards others, would comprehend all the

interests of mankind—everything that morality can desire to accomplish—nevertheless, the acting out of these impulses by each individual at random would not suffice for the exigencies of human life. They must be regulated, directed, reconciled by society at large; each person must be made to work upon the same plan as every other person. This leads to the institution of Government and Authority, with the correlatives of Law, Obligation, and Punishment. Our natural impulses for good are now directed into an artificial channel, and it is no longer optional whether they shall fall into that channel. The nature of the case requires all to conform alike to the general arrangements, and whoever is not sufficiently urged by the natural motives, is brought under the spur of a new kind of prudential motive—Punishment.

Government, Authority, Law, Obligation, Punishment, are all implicated in the same great Institution of Society, to which Morality owes its chief foundation, and the Moral Sentiment its special attribute. Morality is not Prudence, nor Benevolence, in their primitive or spontaneous manifestations; it is the systematic codification of prudential and benevolent actions, rendered obligatory by what is termed penalties or Punishment; an entirely distinct motive, artificially framed by human society, but made so familiar to every member of society as to be a second nature. None are allowed to be prudential or sympathizing in their own way. Parents are compelled to nourish their own children; servants to obey their own masters, to the neglect of other regards; all citizens have to abide by the awards of authority; bargains are to be fulfilled according to a prescribed form and letter; truth is to be spoken on certain definite occasions, and not on others. In a formed society, the very best impulses of nature fail to guide the citizen's actions. No doubt there ought to be a general coincidence between what Prudence and Sympathy would dictate, and what Law dictates; but the precise adjustment is a matter of *institution*. A moral act is not merely an act tending to reconcile the good of the agent with the good

of the whole society; it is an act, prescribed by the social authority, and rendered obligatory upon every citizen. Its morality is constituted by its authoritative prescription, and not by its fulfilling the primary ends of the social institution. A bad law is still a law; an ill-judged moral precept is still a moral precept, felt as such by every loyal citizen.

11. It may be proved, by such evidence as the case admits of, that the peculiarity of the Moral Sentiment, or Conscience, is identified with our education under government, or Authority.

Conscience is described by such terms as moral approbation and disapprobation; and involves, when highly developed, a peculiar and unmistakeable revulsion of mind at what is wrong, and a strong resentment towards the wrong-doer, which become Remorse, in the case of self.

It is capable of being proved, that there is nothing natural or primitive in these feelings, except in so far as the case happens to concur with the dictates of Self-interest, or Sympathy, aided by the Emotions formerly specified. Any action that is hostile to our interest, excites a form of disapprobation, such as belongs to wounded self-interest; and any action that puts another to pain may so affect our natural sympathy as to be disapproved, and resented on that ground. These natural or inborn feelings are always liable to coincide with moral right and wrong, although they are not its criterion or measure in the mind of each individual. But in those cases where an unusually strong feeling of moral disapprobation is awakened, there is apt to be a concurrence of the primitive motives of self, and of fellow-feeling; and it is the ideal of good law, and good morality to coincide with a certain well-proportioned adjustment of the Prudential and the Sympathetic regards of the individual.

The requisite allowance being made for the natural impulses, we must now adduce the facts, showing that the characteristic of the Moral Sense is

an education under Law, or Authority, through the instrumentality of Punishment.

(1) It is a fact that human beings living in society are placed under discipline, accompanied by punishment. Certain actions are forbidden, and the doers of them are subjected to some painful infliction; which is increased in severity if they are persisted in. Now, what would be the natural consequence of such a system, under the known laws of feeling, will, and intellect? Would not an action that always brings down punishment be associated with the pain and the dread of punishment? Such an association is inevitably formed, and becomes at least a part, and a very important part, of the sense of duty; nay, it would of itself, after a certain amount of repetition, be adequate to restrain for ever the performance of the action, thus attaining the end of morality.

There may be various ways of evoking and forming the moral sentiment, but the one way most commonly trusted to, and never altogether dispensed with, is the associating of pain, that is, punishment, with the actions that are disallowed. Punishment is held out as the consequence of performing certain actions; every individual is made to taste of it; its infliction is one of the most familiar occurrences of every-day life. Consequently, whatever else may be present in the moral sentiment, this fact of the connexion of pain with forbidden actions must enter into it with an overpowering prominence. Any natural or primitive impulse in the direction of duty must be very marked and apparent, in order to divide with this communicated bias the direction of our conduct. It is for the supporters of innate distinctions to point out any concurring impetus (apart from the Prudential and Sympathetic regards) sufficiently important to cast these powerful associations into a secondary or subordinate position.

By a familiar effect of Contiguous Association, the dread of punishment clothes the forbidden act with a feeling of aversion, which in the end persists of its own accord, and without reference to the punishment. Actions that have long been connected in the mind with pains and penalties, come to be contemplated with a *disinterested* repugnance; they seem to give pain on their own account. This is a parallel, from the side of pain, of the acquired attachment to money. Now, when, by such transference, a self-subsisting sentiment of aversion has been created, the conscience seems to be detached from all external sanctions, and to possess an isolated footing in the mind. It has passed through the stage of reference to authority, and has become a law to itself. But no conscience ever arrives at the independent standing, without first existing in the reflected and dependent stage.

We must never omit from the composition of the Conscience the primary impulses of Self-Interest and Sympathy, which in minds strongly alive to one or other, always count for a powerful element in human conduct, although for reasons already stated, not the strictly moral element, so far as the individual is concerned. They are adopted, more or less, by the authority imposing the moral code; and when the two sources coincide, the stream is all the stronger.

(2) Where moral training is omitted or greatly neglected, there is an absence of security for virtuous conduct.

In no civilized community is moral discipline entirely wanting. Although children may be neglected by their parents, they come at last under the discipline of the law and the public. They cannot be exempted from the associations of punishment with wrong. But when these associations have not been early and sedulously formed, in the family, in the school, and in the workshop, the moral sentiment is left in a feeble condition. There still remain the force of the law and of public opinion, the examples of public

punishment, and the reprobation of guilt. Every member of the community must witness daily the degraded condition of the viciously disposed, and the prosperity following on respect for the law. No human being escapes from thus contracting moral impressions to a very large amount.

(3) Whenever an action is associated with Disapprobation and Punishment, there grows up, in reference to it, a state of mind undistinguishable from Moral Sentiment.

There are many instances where individuals are enjoined to a course of conduct wholly indifferent with regard to universal morality, as in the regulations of societies formed for special purposes. Each member of the society has to conform to these regulations, under pain of forfeiting all the benefits of the society, and of perhaps incurring positive evils. The code of honour among gentlemen is an example of these artificial impositions. It is not to be supposed that there should be an innate sentiment to perform actions having nothing to do with moral right and wrong; yet the disapprobation and the remorse following on a breach of the code of honour, will often be greater than what follows a breach of the moral law. The constant habit of regarding with dread the consequences of violating any of the rules, simulates a moral sentiment, on a subject unconnected with morality properly so called.

The arbitrary ceremonial customs of nations, with reference to such points as ablutions, clothing, eating and abstinence from meats,—when rendered obligatory by the force of penalties, occupy exactly the same place in the mind as the principles of moral right and wrong. The same form of dread attaches to the consequences of neglect; the same remorse is felt by the individual offender. The exposure of the naked person is as much abhorred as telling a lie. The Turkish woman exposing her face, is no less conscience-smitten than if she murdered her child. There is no act, however

trivial, that cannot be raised to the position of a moral act, by the imperative of society.

Still more striking is the growth of a moral sentiment in connexion with such usages as the Hindoo suttee. It is known that the Hindoo widow, if prevented from burning herself with her husband's corpse, often feels all the pangs of remorse, and leads a life of misery and self-humiliation. The habitual inculcation of this duty by society, the penalty of disgrace attached to its omission, operate to implant a sentiment in every respect analogous to the strongest moral sentiment.

PART II.

THE ETHICAL SYSTEMS.

The first important name in Ancient Ethical Philosophy is SOKRATES.
[469-399 B.C.]

For the views of Sokrates, as well as his method,[4] we have first the MEMORABILIA of XENOPHON, and next such of the Platonic Compositions, as are judged, by comparison with the Memorabilia, to keep closest to the real Sokrates. Of these, the chief are the APOLOGY OF SOKRATES, the KRITON and the PHAEDON.

The 'Memorabilia' was composed by Xenophon, expressly to vindicate Sokrates against the accusations and unfavourable opinions that led to his execution. The 'Apology' is Plato's account of his method, and also sets forth his moral attitude. The 'Kriton' describes a conversation between him and his friend Kriton, in prison, two days before his death, wherein, in reply to the entreaties of his friends generally that he should make his escape from prison, he declares his determination to abide by the laws of the Athenian State. Inasmuch as, in the Apology, he had seemed to set his private convictions above the public authority, he here presents another side of his character. The 'Phaedon' contains the conversation on 'the Immortality of the Soul' just before his execution.

The Ethical bearings of the Philosophical method, the Doctrines, and the Life of Sokrates. are these:—

The direction he gave to philosophical enquiry, was expressed in the saying that he brought 'Philosophy down from Heaven to Earth.' His subjects were Man and Society. He entered a protest against the enquiries of the early philosophers as to the constitution of the Kosmos, the nature of the Heavenly Bodies, the theory of Winds and Storms. He called these Divine things; and in a great degree useless, if understood. The Human relations of life, the varieties of conduct of men towards each other in all capacities, were alone within the compass of knowledge, and capable of yielding fruit. In short, his turn of mind was thoroughly *practical*, we might say *utilitarian*.

I.—He gave a foundation and a shape to Ethical Science, by insisting on its practical character, and by showing that, like the other arts of life, it had an End, and a Theory from which flows the precepts or means. The End, which would be the STANDARD, was not stated by him, and hardly even by Plato, otherwise than in general language; the Summum Bonum had not as yet become a matter of close debate. 'The art of dealing with human beings,' 'the art of behaving in society,' 'the science of human happiness,' were various modes of expressing the final end of conduct.[5] Sokrates clearly indicated the difference between an unscientific and a scientific art; the one is an incommunicable knack or dexterity, the other is founded on theoretical principles.

II.—Notwithstanding his professing ignorance of what virtue is, Sokrates had a definite doctrine with reference to Ethics, which we may call his PSYCHOLOGY of the subject. This was the doctrine that resolves Virtue into Knowledge, Vice into Ignorance or Folly. 'To do right was the only way to impart happiness, or the least degree of unhappiness compatible with any

given situation: now, this was precisely what every one wished for and aimed at—only that many persons, from ignorance, took the wrong road; and no man was wise enough always to take the right. But as no man was willingly his own enemy, so no man ever did wrong willingly; it was because he was not fully or correctly informed of the consequences of his own actions; so that the proper remedy to apply, was enlarged teaching of consequences and improved judgment. To make him willing to be taught, the only condition required was to make him conscious of his own ignorance; the want of which consciousness was the real cause both of indocility and of vice' (Grote). This doctrine grew out of his favourite analogy between social duty and a profession or trade. When the artizan goes wrong, it is usually from pure ignorance or incapacity; he is willing to do good work if he is able.

III.—The SUMMUM BONUM with Sokrates was Well-doing. He had no ideal of pursuit for man apart from virtue, or what he esteemed virtue—the noble and the praiseworthy. This was the elevated point of view maintained alike by him and by Plato, and common to them with the ideal of modern ages.

Well-doing consisted in doing well whatever a man undertook. 'The best man,' he said, 'and the most beloved by the gods, is he that, as a husbandman, performs well the duties of husbandry; as a surgeon, the duties of the medical art; in political life, his duty towards the commonwealth. The man that does nothing well is neither useful nor agreeable to the gods.' And as knowledge is essential to all undertakings, knowledge is the one thing needful. This exclusive regard to knowledge was his one-sidedness as a moral theorist; but he did not consistently exclude all reference to the voluntary control of appetite and passion.

IV.—He inculcated Practical Precepts of a self-denying kind, intended to curb the excesses of human desire and ambition. He urged the pleasures of self-improvement and of duty against indulgences, honours, and worldly advancement. In the 'Apology,' he states it as the second aim of his life (after imparting the shock of conscious ignorance) to reproach men for pursuing wealth and glory more than wisdom and virtue. In 'Kriton,' he lays it down that we are never to act wrongly or unjustly, although others are unjust to us. And, in his own life, he furnished an illustrious example of his teaching. The same lofty strain was taken up by Plato, and repeated in most of the subsequent Ethical schools.

V.—His Ethical Theory extended itself to Government, where he applied his analogy of the special arts. The legitimate King was he that knew how to govern well.

VI.—The connexion in the mind of Sokrates between Ethics and Theology was very slender.

In the first place, his distinction of Divine and Human things, was an exclusion of the arbitrary will of the gods from human affairs, or from those things that constituted the ethical end.

But in the next place, he always preserved a pious and reverential tone of mind; and considered that, after patient study, men should still consult the oracles, by which the gods, in cases of difficulty, graciously signified their intentions, and their beneficent care of the race. Then, the practice of well-doing was prompted by reference to the satisfaction of the gods. In so far as the gods administered the world in a right spirit, they would show favour to the virtuous.

PLATO. [427-347 B.C.]

The Ethical Doctrines of Plato are scattered through his various Dialogues; and incorporated with his philosophical method, with his theory of Ideas, and with his theories of man and of society.

From Sokrates, Plato derived Dialectics, or the method of Debate; he embodied all his views in imaginary conversations, or Dialogues, suggested by, and resembling the real conversations of Sokrates. And farther, in imitation of his master, he carried on his search after truth under the guise of ascertaining the exact meaning or definition of leading terms; as Virtue, Courage, Holiness, Temperance, Justice, Law, Beauty, Knowledge, Rhetoric, &c.

We shall first pass in review the chief Dialogues containing Ethical doctrines.

The APOLOGY, KRITON, and EUTHYPHRON (we follow Mr. Grote's order) may be passed by as belonging more to his master than to himself; moreover, everything contained in them will be found recurring in other dialogues.

The ALKIBIADES I. is a good specimen of the Sokratic manner. It brings out the loose discordant notions of *Just* and *Unjust* prevailing in the community; sets forth that the Just is also honourable, good, and expedient—the cause of happiness to the just man; urges the importance of Self-knowledge; and maintains that the conditions of happiness are not wealth and power, but Justice and Temperance.

ALKIBIADES II. brings out a Platonic position as to the *Good*. There are a number of things that are good, as health, money, family, but there is farther required the skill to apply these in proper measure to the supreme end of life. All knowledge is not valuable; there may be cases where ignorance is better. What we are principally interested in knowing is the

Good, the Best, the Profitable. The man of much learning, without this, is like a vessel tossed on the sea without a pilot.[6]

In HIPPIAS MINOR, appears an extreme statement of the doctrine, common to Sokrates and Plato, identifying virtue with knowledge, or giving exclusive attention to the intellectual element of conduct. It is urged that a mendacious person, able to tell the truth if he chooses, is better than one unable to tell it, although wishing to do so; the knowledge is of greater worth than the good disposition.

In MINOS (or the Definition of *Law*) he refuses to accept the decree of the state as a law, but postulates the decision of some Ideal wise man. This is a following out of the Sokratic analogy of the professions, to a purely ideal demand; the wise man is never producible. In many dialogues (Kriton, Laches, &c.) the decision of some Expert is sought, as a physician is consulted in disease; but the Moral expert is unknown to any actual community.

In LACHES, the question 'what is Virtue?' is put; it is argued under the special virtue of *Courage*. In a truly Sokratic dialogue, Sokrates is in search of a definition of Courage; as happens in the search dialogues, there is no definite result, but the drift of the discussion is to make courage a mode of intelligence, and to resolve it into the grand desideratum of the knowledge of good and evil—belonging to the One Wise Man.

CHARMIDES discusses *Temperance*. As usual with Plato in discussing the virtues, with a view to their Logical definition, he presupposes that this is something beneficial and good. Various definitions are given of Temperance; and all are rejected; but the dialogue falls into the same track as the Laches, in putting forward the supreme science of good and evil. It is a happy example of the Sokratic manner and purpose, of exposing the

conceit of knowledge, the fancy that people understand the meaning of the general terms habitually employed.

LYSIS on *Friendship*, or Love, might be expected to furnish some ethical openings, but it is rather a piece of dialectic, without result, farther than to impart the consciousness of ignorance. If it suggests anything positive, it is the Idea of Good, as the ultimate end of affection. The subject is one of special interest in ancient Ethics, as being one of the aspects of Benevolent sentiment in the Pagan world. In Aristotle we first find a definite handling of it.

MENON may be considered as pre-eminently ethical in its design. It is expressly devoted to the question—Is Virtue *teachable*? Sokrates as usual confesses that he does not know what virtue is. He will not accept a catalogue of the admitted virtues as a definition of virtue, and presses for some common, or defining attribute. He advances on his own side his usual doctrine that virtue is Knowledge, or a mode of Knowledge, and that it is good and profitable; which is merely an iteration of the Science of good and evil. He distinguishes virtue from Right Opinion, a sort of quasi-knowledge, the knowledge of esteemed and useful citizens, which cannot be the highest knowledge, since these citizens fail to impart it even to their own sons.

In this dialogue, we have Plato's view of Immortality, which comprises both pre-existence and post-existence. The pre-existence is used to explain the derivation of general notions, or Ideas, which are antecedent to the perceptions of sense.

In PROTAGORAS, we find one of the most important of the ethical discussions of Plato. It proceeds from the same question—Is virtue teachable?—Sokrates as usual expressing his doubts on the point. Protagoras then delivers a splendid harangue, showing how virtue is taught—namely, by the practice of society in approving, condemning, rewarding,

punishing the actions of individuals. From childhood upward, every human being in society is a witness to the moral procedure of society, and by degrees both knows, and conforms to, the maxims of virtue of the society. Protagoras himself as a professed teacher, or sophist, can improve but little upon, this habitual inculcation. Sokrates, at the end of the harangue, puts in his usual questions tending to bring out the essence or definition of virtue, and soon drives Protagoras into a corner, bringing him to admit a view nowhere else developed in Plato, that Pleasure is the only good, Pain the only evil, and that the science of Good and Evil consists in Measuring, and in choosing between conflicting pleasures and pains—preferring the greater pleasure to the less, the less pain to the greater. For example, courage is a wise estimate of things terrible and things not terrible. In consistency with the doctrine that Knowledge is virtue, it is maintained here as elsewhere, that a man knowing good and evil must act upon that knowledge. Plato often repeats his theory of Measurement, but never again specifically intimates that the things to be measured are pleasures and pains. And neither here nor elsewhere, does he suppose the virtuous man taking directly into his calculation the pleasures and pains of other persons.

GORGIAS, one of the most renowned of the dialogues in point of composition, is also ethical, but at variance with the Protagoras, and more in accordance with Plato's predominating views. The professed subject is Rhetoric, which, as an art, Sokrates professes to hold in contempt. The dialogue begins with the position that men are prompted by the desire of good, but proceeds to the great Platonic paradox, that it is a greater evil to do wrong than to suffer wrong. The criminal labours under a mental distemper, and the best thing that can happen to him, is to be punished that so he may be cured. The unpunished wrong-doer is more miserable than if he were punished. Sokrates in this dialogue maintains, in opposition to the thesis of Protagoras, that pleasure is not the same as good, that there are bad pleasures and good pains; and a skilful adviser, one versed in the science of

good and evil, must discriminate between them. He does not mean that those pleasures only are bad that bring an overplus of future pains, which would be in accordance with the previous dialogue. The sentiment of the dialogue is ascetic and self-denying.[7] Order or Discipline is inculcated, not as a means to an end, but as an end in itself.

The POLITIKUS is on the Art of Government, and gives the Platonic *beau idéal* of the One competent person, governing absolutely, by virtue of his scientific knowledge, and aiming at the good and improvement of the governed. This is merely another illustration of the Sokratic ideal—a despotism, anointed by supreme good intentions, and by an ideal skill. The Republic is an enlargement of the lessons of the Politikus without the dialectic discussion.

The postulate of the One Wise man is repeated in KRATYLUS, on the unpromising subject of Language or the invention of Names.

The PHILEBUS has a decidedly ethical character. It propounds for enquiry the *Good*, the Summum Bonum. This is denied to be mere pleasure, and the denial is enforced by Sokrates challenging his opponent to choose the lot of an ecstatic oyster. As usual, good must be related to Intelligence; and the Dialogue gives a long disquisition upon the One and the Many, the Theory of Ideas, the Determinate and the Indeterminate. Good is a compound of Pleasure and Intelligence, the last predominating. Pleasure is the Indeterminate, requiring the Determinate (Knowledge) to regulate it. This is merely another expression for the doctrine of Measure, and for the common saying, that the Passions must be controlled by Reason. There is, also, in the dialogue, a good deal on the Psychology of Pleasure and Pain. Pleasure is the fundamental harmony of the system; Pain its disturbance. Bodily Pleasure pre-supposes pain [true only of some pleasures]. Mental pleasures may be without previous pain, and are therefore pure pleasures. A

life of Intelligence is conceivable without either pain or pleasure; this is the choice of the Wise man, and is the nature of the gods. Desire is a mixed state, and comprehends body and mind. Much stress is laid on the moderate and tranquil pleasures; the intense pleasures, coveted by mankind, belong to a distempered rather than a healthy state; they are false and delusive. Pleasure is, by its nature, a change or transition, and cannot be a supreme end. The mixture of Pleasure and Intelligence is to be adjusted by the all-important principle of Measure or Proportion, which connects the Good with the Beautiful.

A decided asceticism is the ethical tendency of this dialogue. It is markedly opposed to the view of the Protagoras. Still greater is the opposition between it and the two Erotic dialogues, *Phaedrus* and *Symposium*, where *Bonum* and *Pulchrum* are attained in the pursuit of an ecstatic and overwhelming personal affection.

The *REPUBLIC* starts with the question—what is JUSTICE? and, in answering it, provides the scheme of a model Republic. Book I. is a Sokratic colloquy, where one speaker, on being interrogated, defines Justice as 'rendering to every man his due,' and afterwards amends it to 'doing good to friends, evil to enemies.' Another gives 'the right of the strongest.' A third maintains that Injustice by itself is profitable to the doer; but, as it is an evil to society in general, men make laws against it and punish it; in consequence of which, Justice is the more profitable. Sokrates, in opposition, undertakes to prove that Justice is good in itself, ensuring the happiness of the doer by its intrinsic effect on his mind; and irrespective of exemption from the penalties of injustice. He reaches this result by assimilating an individual to a state. Justice is shown to be good in the entire city, and by analogy it is also good in the individual. He accordingly proceeds to construct his ideal commonwealth. In the course of this construction many ethical views crop out.

The state must prescribe the religious belief, and allow no compositions at variance with it. The gods must always be set forth as the causes of good; they must never be represented as the authors of evil, nor as practising deceit. Neither is it to be allowed to represent men as unjust, yet happy; or just, and yet miserable. The poetic representation of bad characters is also forbidden. The musical training is to be adapted for disposing the mind to the perception of Beauty, whence it becomes qualified to recognize the other virtues. Useful fictions are to be diffused, without regard to truth. This pious fraud is openly recommended by Plato.

The division of the human mind into (1) REASON or Intelligence; (2) ENERGY, Courage, Spirit, or the Military Virtue; and (3) Many-headed APPETITE, all in mutual counter-play—is transferred to the State, each of the three parts being represented by one of the political orders or divisions of the community. The happiness of the man and the happiness of the commonwealth are attained in the same way, namely, by realizing the four virtues—Wisdom, Courage, Temperance, Justice; with this condition, that Wisdom, or Reason, is sought only in the Ruling caste, the Elders; Courage, or Energy, only in the second caste, the Soldiers or Guardians; while Temperance and Justice (meaning almost the same thing) must inhere alike in all the three classes, and be the only thing expected in the third, the Working Multitude.

If it be now asked, what and where is Justice? the answer is—'every man to attend to his own business.' Injustice occurs when any one abandons his post, or meddles with what does not belong to him; and more especially when any one of a lower division aspires to the function of a higher. Such is Justice for the city, and such is it in the individual; the higher faculty—Reason, must control the two lower—Courage and Appetite. Justice is thus a sort of harmony or balance of the mental powers; it is to the mind what

health is to the body. Health is the greatest good, sickness the greatest evil, of the body; so is Justice of the mind.

It is an essential of the Platonic Republic that, among the guardians at least, the sexual arrangements should be under public regulation, and the monopoly of one woman by one man forbidden: a regard to the breed of the higher caste of citizens requires the magistrate to see that the best couples are brought together, and to refuse to rear the inferior offspring of ill-assorted connexions. The number of births is also to be regulated.

In carrying on war, special maxims of clemency are to be observed towards Hellenic enemies.

The education of the Guardians must be philosophical; it is for them to rise to the Idea of the good, to master the science of Good and Evil; they must be emancipated from the notion that Pleasure is the good. To indicate the route to this attainment Plato gives his theory of cognition generally—the theory of Ideas;—and indicates (darkly) how these sublime generalities are to be reached.

The Ideal Commonwealth supposed established, is doomed to degradation and decay; passing through Timocracy, Oligarchy, Democracy, to Despotism, with a corresponding declension of happiness. The same varieties may be traced in the Individual; the 'despotized' mind is the acme of Injustice and consequent misery.

The comparative value of Pleasures is discussed. The pleasures of philosophy, or wisdom (those of Reason), are alone true and pure; the pleasures corresponding to the two other parts of the mind are inferior; Love of Honour (from Courage or Energy), and Love of Money (Appetite). The well-ordered mind—Justice—is above all things the source of

happiness. Apart from all consequences of Justice, this is true; the addition of the natural results only enhances the strength of the position.

In TIMAEUS, Plato repeats the doctrine that wickedness is to the mind what disease is to the body. The soul suffers from two distempers, madness and ignorance; the man under passionate heat is not wicked voluntarily. No man is bad willingly; but only from some evil habit of body, the effect of bad bringing-up [very much the view of Robert Owen].

The long treatise called the LAWS, being a modified scheme of a Republic, goes over the same ground with more detail. We give the chief ethical points. It is the purpose of the lawgiver to bring about happiness, and to provide all good things divine and human. The divine things are the cardinal virtues—Wisdom, Justice, Temperance, Courage; the human are the leading personal advantages—Health, Beauty, Strength, Activity, Wealth. He requires the inculcation of self-command, and a training in endurance. The moral and religious feelings are to be guided in early youth, by the influence of Poetry and the other Fine Arts, in which, as before, a stringent censorship is to be exercised; the songs and dances are all to be publicly authorized. The ethical doctrine that the just man is happy and the unjust miserable, is to be preached; and every one prohibited from contradicting it. Of all the titles to command in society, Wisdom is the highest, although policy may require it to be conjoined with some of the others (Birth, Age, Strength, Accident, &c.). It is to be a part of the constitution to provide public exhortations, or sermons, for inculcating virtue; Plato having now passed into an opposite phase as to the value of Rhetoric, or continuous address. The family is to be allowed in its usual form, but with restraints on the age of marriage, on the choice of the parties, and on the increase of the number of the population. Sexual intercourse is to be as far as possible confined to persons legally married; those departing from this rule are, at all events, to observe secrecy. The slaves are not to be

of the same race as the masters. As regards punishment, there is a great complication, owing to the author's theory that wickedness is not properly voluntary. Much of the harm done by persons to others is unintentional or involuntary, and is to be made good by reparation. For the loss of balance or self-control, making the essence of injustice, there must be a penal and educational discipline, suited to cure the moral distemper; not for the sake of the past, which cannot be recalled, but of the future. Under cover of this theory, the punishments are abundantly severe; and the crimes include Heresy, for which there is a gradation of penalties terminating in death.

We may now summarize the Ethics of Plato, under the general scheme as follows:—

I.—The Ethical Standard, or criterion of moral Right and Wrong. This we have seen is, ultimately, the Science of Good and Evil, as determined by a Scientific or Wise man; the Idea of the Good, which only a philosopher can ascend to. Plato gave no credit to the maxims of the existing society; these were wholly unscientific.

It is obvious that this vague and indeterminate standard would settle nothing practically; no one can tell what it is. It is only of value as belonging to a very exalted and poetic conception of virtue, something that raises the imagination above common life into a sphere of transcendental existence.

II.—The Psychology of Ethics.

1. As to the Faculty of discerning Right. This is implied in the foregoing statement of the criterion. It is the Cognitive or Intellectual power. In the definite position taken up in Protagoras, it is the faculty of Measuring pleasures against one another and against pains. In other dialogues, measure

is still the important aspect of the process, although the things to be measured are not given.

2. As regards the Will. The theory that vice, if not the result of ignorance, is a form of madness, an uncontrollable fury, a mental distemper, gives a peculiar rendering of the nature of man's Will. It is a kind of Necessity, not exactly corresponding, however, with the modern doctrine of that name.

3. Disinterested Sentiment is not directly and plainly recognized by Plato. His highest virtue is self-regarding; a concern for the Health of the Soul.

III.—On the Bonum, or Summum Bonum, Plato is ascetic and self-denying. 1. We have seen that in *Philebus*, Pleasure is not good, unless united with Knowledge or Intelligence; and the greater the Intelligence, the higher the pleasure. That the highest happiness of man is the pursuit of truth or Philosophy, was common to Plato and to Aristotle.

2. Happiness is attainable only through Justice or Virtue. Justice is declared to be happiness, first, in itself, and secondly, in its consequences. Such is the importance attached to this maxim as a safeguard of Society, that, whether true or not, it is to be maintained by state authority.

3. The Psychology of Pleasure and Pain is given at length in the *Philebus*.

IV.—With regard to the scheme of Duty. In Plato, we find the first statement of the four Cardinal Virtues.

As to the Substance of the Moral Code, the references above made to the *Republic* and the *Laws* will show in what points his views differed from modern Ethics.

Benevolence was not one of the Cardinal Virtues.

His notions even of Reciprocity were rendered hazy and indistinct by his theory of Justice as an end in itself.

The inducements, means, and stimulants to virtue, in addition to penal discipline, are training, persuasion, or hortatory discourse, dialectic cognition of the Ideas, and, above all, that ideal aspiration towards the Just, the Good, around which he gathered all that was fascinating in poetry, and all the associations of religion and divinity. Plato employed his powerful genius in working up a lofty spiritual reward, an ideal intoxication, for inciting men to the self-denying virtues. He was the first and one of the greatest of preachers. His theory of Justice is suited to preaching, and not to a scientific analysis of society.

V.—The relation of Ethics to Politics is intimate, and even inseparable. The Civil Magistrate, as in Hobbes, supplies the Ethical sanction. All virtue is an affair of the state, a political institution. This, however, is qualified by the demand for an ideal state, and an ideal governor, by whom alone anything like perfect virtue can be ascertained.

VI.—The relationship with Theology is also close. That is to say, Plato was not satisfied to construct a science of good and evil, without conjoining the sentiments towards the Gods. His Theology, however, was of his own invention, and adapted to his ethical theory. It was necessary to suppose that the gods were the authors of good, in order to give countenance to virtue.

Plato was the ally of the Stoics, as against the Epicureans, and of such modern theorists as Butler, who make virtue, and not happiness, the highest end of man. With him, discipline was an end in itself, and not a means; and he endeavoured to soften its rigour by his poetical and elevated Idealism.

Although he did not preach the good of mankind, or direct beneficence, he undoubtedly prepared the way for it, by urging self-denial, which has no

issue or relevance, except either by realizing greater happiness to Self (mere exalted Prudence, approved of by all sects), or by promoting the welfare of others.

THE CYNICS AND THE CYRENAICS.

These opposing sects sprang from Sokrates, and passed, with little modification, the one into the Stoics, the other into the Epicureans. Both ANTISTHENES, the founder of the Cynics, and ARISTIPPUS, the founder of the Cyrenaics, were disciples of Sokrates.

Their doctrines chiefly referred to the Summum Bonum—the Art of Living, or of Happiness.

The CYNICS were most closely allied to Sokrates; they, in fact, carried out to the full his chosen mode of life. His favourite maxim—that the gods had no wants, and that the most godlike man was he that approached to the same state—was the Cynic Ideal. To subsist upon the narrowest means; to acquire indifference to pain, by a discipline of endurance; to despise all the ordinary pursuits of wealth and pleasure,—were Sokratic peculiarities, and were the *beau idéal* of Cynicism.

The Cynic succession of philosophers were, (1) ANTISTHENES, one of the most constant friends and companions of Sokrates; (2) DIOGENES of Sinope, the pupil of Antisthenes, and the best known type of the sect. (His disciple Krates, a Theban, was the master of Zeno, the first Stoic.) (3) STILPON of Megara, (4) MENEDEMUS of Eretria, (5) MONIMUS of Syracuse, (6) KRATES.

The two first heads of the Ethical scheme, so meagrely filled up by the ancient systems generally, are almost a total blank as regards both Cynics and Cyrenaics.

I.—As regards a Standard of right and wrong, moral good or evil, they recognized nothing but obedience to the laws and customs of society.

II.—They had no Psychology of a moral faculty, of the will, or of benevolent sentiment. The Cyrenaic Aristippus had a Psychology of Pleasure and Pain.

The Cynics, instead of discussing Will, exercised it, in one of its most prominent forms,—self-control and endurance.

Disinterested conduct was no part of their scheme, although the ascetic discipline necessarily promotes abstinence from sins against property, and from all the vices of public ambition.

III.—The proper description of both systems comes under the *Summum Bonum*, or the Art of Living.

The Cynic Ideal was the minimum of wants, the habituation to pain, together with indifference to the common enjoyments. The compensating reward was exemption from fear, anxiety, and disappointment; also, the pride of superiority to fellow-beings and of approximation to the gods. Looking at the great predominance of misery in human life, they believed the problem of living to consist in a mastery over all the forms of pain; until this was first secured, there was to be a total sacrifice of pleasure.

The Cynics were mostly, like Sokrates, men of robust health, and if they put their physical constitution to a severe test by poor living and exposure to wind and weather, they also saved it from the wear and tear of steady industry and toil. Exercise of body and of mind, with a view to strength and endurance, was enjoined; but it was the drill of the soldier rather than the drudgery of the artisan.

In the eyes of the public, the prominent feature of the Cynic was his contemptuous jeering, and sarcastic abuse of everybody around. The name (Cynic, dog-like) denotes this peculiarity. The anecdotes relating to Diogenes illustrate his coarse denunciation of men in general and their luxurious ways. He set at defiance all the conventions of courtesy and of decency; spoke his mind on everything without fear or remorse; and delighted in his antagonism to public opinion. He followed the public and obtrusive life of Sokrates, but instead of dialectic skill, his force lay in vituperation, sarcasm, and repartee. 'To Sokrates,' says Epiktetus, 'Zeus assigned the cross-examining function; to Diogenes, the magisterial and chastising function; to Zeno (the Stoic), the didactic and dogmatical.'

The Cynics had thus in full measure one of the rewards of asceticism, the pride of superiority and power. They did not profess an end apart from their own happiness; they believed and maintained that theirs was the only safe road to happiness. They agreed with the Cyrenaics as to the end; they differed as to the means.

The founders of the sect, being men of culture, set great store by education, from which, however, they excluded (as it would appear) both the Artistic and the Intellectual elements of the superior instruction of the time, namely, Music, and the Sciences of Geometry, Astronomy, &c. Plato's writings and teachings were held in low esteem. Physical training, self-denial and endurance, and literary or Rhetorical cultivation, comprise the items taught by Diogenes when he became a slave, and was made tutor to the sons of his master.

IV.—As to the Moral Code, the Cynics were dissenters from the received usages of society. They disapproved of marriage laws, and maintained the liberty of individual tastes in the intercourse of the sexes. Being free-

thinkers in religion they had no respect for any of the customs founded on religion.

V. The collateral relations of Cynical Ethics to Politics and to Theology afford no scope for additional observations. The Cynic and Cyrenaic both stood aloof from the affairs of the state, and were alike disbelievers in the gods.

The Cynics appear to have been inclined to communism among themselves, which was doubtless easy with their views as to the wants of life. It is thought not unlikely that Sokrates himself held views of communism both as to property and to wives; being in this respect also the prompter of Plato (Grant's Ethics of Aristotle, Essay ii.).

The CYRENAIC system originated with ARISTIPPUS of Cyrene, another hearer and companion of Sokrates. The temperament of Aristippus was naturally inactive, easy, and luxurious; nevertheless he set great value on mental cultivation and accomplishments. His conversations with Sokrates form one of the most interesting chapters of Xenophon's Memorabilia, and are the key to the plan of life ultimately elaborated by him. Sokrates finding out his disposition, repeats all the arguments in favour of the severe and ascetic system. He urges the necessity of strength, courage, energy, self-denial, in order to attain the post of ruler over others; which, however, Aristippus fences by saying that he has no ambition to rule; he prefers the middle course of a free man, neither ruling nor ruled over. Next, Sokrates recalls the dangers and evil contingencies of subjection, of being oppressed, unjustly treated, sold into slavery, and the consequent wretchedness to one unhardened by an adequate discipline. It is in this argument that he recites the well-known apologue called the choice of Herakles; in which, Virtue on the one hand, and Pleasure with attendant vice on the other, with their respective consequences, are set before a youth

in his opening career. The whole argument with Aristippus was purely prudential; but Aristippus was not convinced nor brought over to the Sokratic ideal. He nevertheless adopted a no less prudential and self-denying plan of his own.

Aristippus did not write an account of his system; and the particulars of his life, which would show how he acted it, are but imperfectly preserved. He was the first theorist to avow and maintain that Pleasure, and the absence of Pain, are the proper, the direct, the immediate, the sole end of living; not of course mere present pleasures and present relief from pain, but present and future taken in one great total. He would surrender present pleasure, and incur present pain, with a view to greater future good; but he did not believe in the necessity of that extreme surrender and renunciation enjoined by the Cynics. He gratified all his appetites and cravings within the limits of safety. He could sail close upon the island of Calypso without surrendering himself to the sorceress. Instead of deadening the sexual appetite he gave it scope, and yet resisted the dangerous consequences of associating with Hetaerae. In his enjoyments he was free from jealousies; thinking it no derogation to his pleasure that others had the same pleasure. Having thus a fair share of natural indulgences, he dispenses with the Cynic pride of superiority and the luxury of contemning other men. Strength of will was required for this course no less than for the Cynic life.

Aristippus put forward strongly the impossibility of realizing all the Happiness that might seem within one's reach; such were the attendant and deterring evils, that many pleasures had to be foregone by the wise man. Sometimes even the foolish person attained more pleasure than the wise; such is the lottery of life; but, as a general rule, the fact would be otherwise. The wisest could not escape the natural evils, pain and death; but envy, passionate love, and superstition, being the consequences of vain and

mistaken opinion, might be conquered by a knowledge of the real nature of Good and Evil.

As a proper appendage to such a system, Aristippus sketched a Psychology of Pleasure and Pain, which was important as a beginning, and is believed to have brought the subject into prominence. The soul comes under three conditions,—a gentle, smooth, equable motion, corresponding to Pleasure; a rough, violent motion, which is Pain; and a calm, quiescent state, indifference or Unconsciousness. More remarkable is the farther assertion that Pleasure is only *present* or *realized* consciousness; the memory of pleasures past, and the idea of pleasures to come, are not to be counted; the painful accompaniments of desire, hope, and fear, are sufficient to neutralize any enjoyment that may arise from ideal bliss. Consequently, the happiness of a life means the sum total of these moments of realized or present pleasure. He recognized pleasures of the mind, as well as of the body; sympathy with the good fortunes of friends or country gives a thrill of genuine and lively joy. Still, the pleasures and the pains of the body, and of one's own self, are more intense; witness the bodily inflictions used in punishing offenders.

The Cyrenaics denied that there is anything just, or honourable, or base, by nature; all depended on the laws and customs. These laws and customs the wise man obeys, to avoid punishment and discredit from the society where he lives; doubtless, also, from higher motives, if the political constitution, and his fellow citizens generally, can inspire him with respect.

Neither the Cynics nor the Cyrenaics made any profession of generous or disinterested impulses.

ARISTOTLE. [384-322 B.C.]

Three treatises on Ethics have come down associated with the name of Aristotle; one large work, the Nicomachean Ethics, referred to by general consent as the chief and important source of Aristotle's views; and two smaller works, the Eudemian Ethics, and the Magna Moralia, attributed by later critics to his disciples. Even of the large work, which consists of ten books, three books (V. VI. VII.), recurring in the Eudemian Ethics, are considered by Sir A. Grant, though not by other critics, to have been composed by Eudemus, the supposed author of this second treatise, and a leading disciple of Aristotle.

Like many other Aristotelian treatises, the Nicomachean Ethics is deficient in method and consistency on any view of its composition. But the profound and sagacious remarks scattered throughout give it a permanent interest, as the work of a great mind. There may be extracted from it certain leading doctrines, whose point of departure was Platonic, although greatly modified and improved by the genius and personality of Aristotle.

Our purpose will be best served by a copious abstract of the Nicomachean Ethics.

Book First discusses the Chief Good, or the Highest End of all human endeavours. Every exercise of the human powers aims at some good; all the arts of life have their several ends—medicine, ship-building, generalship. But the ends of these special arts are all subordinate to some higher end; which end is the chief good, and the subject of the highest art of all, the Political; for as Politics aims at the welfare of the state, or aggregate of individuals, it is identical with and comprehends the welfare of the individual (Chaps. I., II.).

As regards the *method* of the science, the highest exactness is not attainable; the political art studies what is just, honourable, and good; and these are matters about which the utmost discrepancy of opinion prevails. From such premises, the conclusions which we draw can only be probabilities. The man of experience and cultivation will expect nothing more. Youths, who are inexperienced in the concerns of life, and given to

follow their impulses, can hardly appreciate our reasoning, and will derive no benefit from it: but reasonable men will find the knowledge highly profitable (III.).

Resuming the main question—What is the highest practical good—the aim of the all-comprehending political science?—we find an agreement among men as to the name *happiness* [Greek: *eudaimonia*]; but great differences as to the nature of the thing. The many regard it as made up of the tangible elements—pleasures, wealth, or honour; while individuals vary in their estimate according to each man's state for the time being; the sick placing it in health, the poor in wealth, the consciously ignorant in knowledge. On the other hand, certain philosophers [in allusion to Plato] set up an absolute good,—an Idea of the Good, apart from all the particulars, yet imparting to each its property of being good (IV.).

Referring to men's lives (as a clue to their notions of the good), we find three prominent varieties; the life of pleasure or sensuality,—the political life, aspiring to honour,—and the contemplative life. The first is the life of the brutes, although countenanced by men high in power. The second is too precarious, as depending on others, and is besides only a means to an end—namely, our consciousness of our own merits; for the ambitious man seeks to be honoured for his virtue and by good judges—thus showing that he too regards virtue as the superior good. Yet neither will virtue satisfy all the conditions. The virtuous man may slumber or pass his life in inactivity, or may experience the maximum of calamity; and such a man cannot be regarded as happy. The money-lender is still less entitled, for he is an unnatural character; and money is obviously good as a means. So that there remains only the life of contemplation; respecting which more presently (V.).

To a review of the Platonic doctrine, Aristotle devotes a whole chapter. He urges against it various objections, very much of a piece with those brought against the theory of Ideas generally. If there be but one good, there should be but one science; the alleged Idea is merely a repetition of the phenomena; the recognized goods (*i.e.*, varieties of good) cannot be brought under one Idea; moreover, even granting the reality of such an Idea, it is useless for all practical purposes. What our science seeks is Good, human and attainable (VI.).

The Supreme End is what is not only chosen as an End, but is never chosen except as an End: not chosen both for itself and with a view to something ulterior. It must thus be—(1) An *end-in-itself* pursued for its own sake; (2) it must farther be *self-sufficing* leaving no outstanding wants—man's sociability being taken into account and gratified. Happiness is such an end; but we must state more clearly wherein happiness consists.

This will appear, if we examine what is the work appropriate and peculiar to man. Every artist, the sculptor, carpenter, currier (so too the eye and the hand), has his own peculiar work: and good, to him, consists in his performing that work well. Man also has his appropriate and peculiar work: not merely living—for that he has in common with vegetables; nor the life of sensible perception—for that he has in common with other animals, horses, oxen, &c. There remains the life of man as a rational being: that is, as a being possessing reason along with other mental elements, which last are controllable or modifiable by reason. This last life is the peculiar work or province of man. For our purpose, we must consider man, not merely as possessing, but as actually exercising and putting in action, these mental capacities. Moreover, when we talk generally of the work or province of an artist, we always tacitly imply a complete and excellent artist in his own craft: and so likewise when we speak of the work of a man, we mean that work as performed by a complete and competent man. Since the work of

man, therefore, consists in the active exercise of the mental capacities, conformably to reason, the supreme good of man will consist in performing this work with excellence or virtue. Herein he will obtain happiness, if we assume continuance throughout a full period of life: one day or a short time is not sufficient for happiness (VII.).

Aristotle thus lays down the outline of man's supreme Good or Happiness: which he declares to be the beginning or principle [Greek: *archae*] of his deductions, and to be obtained in the best way that the subject admits. He next proceeds to compare this outline with the various received opinions on the subject of happiness, showing that it embraces much of what has been considered essential by former philosophers: such as being 'a good of the mind,' and not a mere external good: being equivalent to 'living well and doing well,' another definition; consisting in virtue (the Cynics); in practical wisdom—[Greek: *phronaesis*] (Sokrates); in philosophy; or in all these coupled with pleasure (Plato, in the *Philebus*). Agreeing with those who insisted on virtue, Aristotle considers his own theory an improvement, by requiring virtue in act, and not simply in possession. Moreover, he contends that to the virtuous man, virtuous performance is in itself pleasurable; so that no extraneous source of pleasure is needed. Such (he says) is the judgment of the truly excellent man; which must be taken as conclusive respecting the happiness, as well as the honourable pre-eminence of the best mental exercises. Nevertheless, he admits (so far complying with the Cyrenaics) that some extraneous conditions cannot be dispensed with; the virtuous man can hardly exhibit his virtue in act, without some aid from friends and property; nor can he be happy if his person is disgusting to behold or his parentage vile (VIII.).

This last admission opens the door to those that place good fortune in the same line with happiness, and raises the question, how happiness is attained. By teaching? By habitual exercise? By divine grace? By Fortune?

If there be any gift vouchsafed by divine grace to man, it ought to be this; but whether such be the case or not, it is at any rate the most divine and best of all acquisitions. To ascribe such an acquisition as this to Fortune would be absurd. Nature, which always aims at the best, provides that it shall be attained, through a certain course of teaching and training, by all who are not physically or mentally disqualified. It thus falls within the scope of political science, whose object is to impart the best character and active habits to the citizens. It is with good reason that we never call a horse happy, for he can never reach such an attainment; nor indeed can a child be so called while yet a child, for the same reason; though in his case we may hope for the future, presuming on a full term of life, as was before postulated (IX.). But this long term allows room for extreme calamities and change in a man's lot. Are we then to say, with Solon, that no one can be called happy so long as he lives? or that the same man may often pass backwards and forwards from happiness to misery? No; this only shows the mistake of resting happiness upon so unsound a basis as external fortune. The only true basis of it is the active manifestation of mental excellence, which no ill fortune can efface from a man's mind (X.). Such a man will bear calamity, if it comes, with dignity, and can never be made thoroughly miserable. If he be moderately supplied as to external circumstances, he is to be styled happy; that is, happy as a man—as far as man can reasonably expect. Even after his decease he will be affected, yet only feebly affected, by the good or ill fortune of his surviving children. Aristotle evidently assigns little or no value to presumed posthumous happiness (XI.).

In his love of subtle distinctions, he asks, Is happiness a thing admirable in itself, or a thing praiseworthy? It is admirable in itself; for what is praiseworthy has a relative character, and is praised as conducive to some ulterior end; while the chief good must be an End in itself, for the sake of which everything else is done (XII.). [This is a defective recognition of Relativity.]

Having assumed as one of the items of his definition, that man's happiness must be in his special or characteristic work, performed with perfect excellence,—Aristotle now proceeds to settle wherein that excellence consists. This leads to a classification of the parts of the soul. The first distribution is, into Rational and Irrational; whether these two are separable in fact, or only logically separable (like concave and convex), is immaterial to the present enquiry. Of the irrational, the lowest portion is the Vegetative [Greek: phytikon], which seems most active in sleep; a state where bad men and good are on a par, and which is incapable of any human excellence. The next portion is the Appetitive [Greek: epithymaetikon], which is not thus incapable. It partakes of reason, yet it includes something conflicting with reason. These conflicting tendencies are usually modifiable by reason, and may become in the temperate man completely obedient to reason. There remains Reason—the highest and sovereign portion of the soul. Human excellence [Greek: aretae] or virtue, is either of the Appetitive part,—moral [Greek: aethikae] virtue; or of the Reason—intellectual [Greek: dianoaetika] virtue. Liberality and temperance are Moral virtues; philosophy, intelligence, and wisdom, Intellectual (XIII.).

Such is an outline of the First Book, having for its subject the Chief Good, the Supreme End of man.

Book Second embraces the consideration of points relative to the Moral Virtues; it also commences Aristotle's celebrated definition and classification of the virtues or excellencies.

Whereas intellectual excellence is chiefly generated and improved by teaching, moral excellence is a result of habit [Greek: ethos]; whence its name (Ethical). Hence we may see that moral excellence is no inherent part of our nature: if it were, it could not be reversed by habit—any more than a stone can acquire from any number of repetitions the habit of moving upward, or fire the habit of moving downward. These moral excellencies are neither a part of our nature, nor yet contrary to our nature: we are by

nature fitted to take them on, but they are brought to consummation through habit. It is not with them, as with our senses, where nature first gives us the power to see and hear, and where we afterwards exercise that power. Moral virtues are acquired only by practice. We learn to build or to play the harp, by building or playing the harp: so too we become just or courageous, by a course of just or courageous acts. This is attested by all lawgivers in their respective cities; all of them shape the characters of their respective citizens, by enforcing habitual practice. Some do it well; others ill; according to the practice, so will be the resulting character; as he that is practised in building badly, will be a bad builder in the end; and he that begins on a bad habit of playing the harp, becomes confirmed into a bad player. Hence the importance of making the young perform good actions habitually and from the beginning. The permanent ethical acquirements are generated by uniform and persistent practice (I.). [This is the earliest statement of the philosophy of *habit*.]

Everything thus turns upon practice: and Aristotle reminds us that his purpose here is, not simply to teach what virtue is, but to produce virtuous agents. How are we to know what the practice should be? It must be conformable to right reason: every one admits this, and we shall explain it further in a future book. But let us proclaim at once, that in regard to moral action, as in regard to health, no exact rules can be laid down. Amidst perpetual variability, each agent must in the last resort be guided by the circumstances of the case. Still, however, something may be done to help him. Here Aristotle proceeds to introduce the famous doctrine of the MEAN. We may err, as regards health, both by too much and by too little of exercise, food, or drink. The same holds good in regard to temperance, courage, and the other excellences (II.).

His next remark is another of his characteristic doctrines, that the *test of a formed habit of virtue, is to feel no pain*; he that feels pain in brave acts is a

coward. Whence he proceeds to illustrate the position, that moral virtue [Greek: *aethikae aretae*] has to do with pleasures and pains. A virtuous education consists in making us feel pleasure and pain at proper objects, and on proper occasions. Punishment is a discipline of pain. Some philosophers (the Cynics) have been led by this consideration to make virtue consist in apathy, or insensibility; but Aristotle would regulate, and not extirpate our sensibilities (III.).

But does it not seem a paradox to say (according to the doctrine of habit in I.), that a man becomes just, by performing just actions; since, if he performs just actions, he is already just? The answer is given by a distinction drawn in a comparison with the training in the common arts of life. That a man is a good writer or musician, we see by his writing or his music; we take no account of the state of his mind in other respects: if he knows how to do this, it is enough. But in respect to moral excellence, such knowledge is not enough: a man may do just or temperate acts, but he is not necessarily a just or temperate man, unless he does them with right intention and on their own account. This state of the internal mind, which is requisite to constitute the just and temperate man, follows upon the habitual practice of just and temperate acts, and follows upon nothing else. But most men are content to talk without any such practice. They fancy erroneously that *knowing*, without doing, will make a good man. [We have here the reaction against the Sokratic doctrine of virtue, and also the statement of the necessity of a *prosper motive*, in order to virtue.]

Aristotle now sets himself to find a definition of virtue, *per genus et differentiam*. There are three qualities in the Soul—*Passions* [Greek: *pathae*], as Desire, Anger, Fear, &c., followed by pleasure or pain; *Capacities* or *Faculties* [Greek: *dynameis*], as our capability of being angry, afraid, affected by pity, &c.; *Fixed tendencies, acquirements, or states* [Greek: *hexeis*]. To which of the three does virtue or excellence belong? It

cannot be a Passion; for passions are not in themselves good or evil, and are not accompanied with deliberate choice [Greek: *proairesis*], will, or intention. Nor is it a Faculty: for we are not praised or blamed because we *can* have such or such emotions; and moreover our faculties are innate, which virtue is not. Accordingly, virtue, or excellence, must be an acquirement [Greek: *hexis*]*—*a State (V.). This is the *genus*.

Now, as to the *differentia*, which brings us to a more specific statement of the doctrine of the *Mean*. The specific excellence of virtue is to be got at from quantity in the abstract, from which we derive the conceptions of more, less, and equal; or excess, defect, and mean; the equal being the mean between excess and defect. But in the case of moral actions, the arithmetical mean may not hold (for example, six between two and ten); it must be a mean relative to the individual; Milo must have more food than a novice in the training school. In the arts, we call a work perfect, when anything either added or taken away would spoil it. Now, virtue, which, like Nature, is better and more exact than any art, has for its subject-matter, passions and actions; all which are wrong either in defect or in excess. Virtue aims at the mean between them, or the maximum of Good: which implies a correct estimation of all the circumstances of the act,—when we ought to do it—under what conditions—towards whom—for what purpose—in what manner, &c. This is the praise-worthy mean, which virtue aspires to. We may err in many ways (for evil, as the Pythagoreans said, is of the nature of the Infinite, good of the Finite), but we can do right only in one way; so much easier is the path of error.

Combining then this *differentia* with the *genus*, as above established, the complete definition is given thus—'Virtue is an acquirement or fixed state, tending by deliberate purpose (genus), towards a mean relative to us (difference).' To which is added the following all-important qualification, 'determined by reason [Greek: *logos*], and as the *judicious man* [Greek: *ho*

Phronimos] would determine.' Such is the doctrine of the Mean, which combines the practical matter-of-fact quality of moderation, recognized by all sages, with a high and abstract conception, starting from the Pythagorean remark quoted by Aristotle, 'the Infinite, or Indefinite, is evil, the Finite or the Definite is good,' and re-appearing in Plato as 'conformity to measure' [Greek: metriotaes], by which he (Plato) proposes to discriminate between good and evil. The concluding qualification of virtue—'a rational determination, according to the ideal judicious man'—is an attempt to assign a standard or authority for what is the proper 'Mean;' an authority purely ideal or imaginary; the actual authority being always, rightly or wrongly, the society of the time.

Aristotle admits that his doctrine of Virtue being a mean, cannot have an application quite universal; because there are some acts that in their very name connote badness, which are wrong therefore, not from excess or defect, but in themselves (VI.). He next proceeds to resolve his general doctrine into particulars; enumerating the different virtues stated, each as a mean, between two extremes—Courage, Temperance, Liberality, Magnanimity, Magnificence, Meekness, Amiability or Friendliness, Truthfulness, Justice (VII.). They are described in detail in the two following books. In chap. VIII., he qualifies his doctrine of Mean and Extremes, by the remark that one Extreme may be much farther removed from the Mean than the other. Cowardice and Rashness are the extremes of Courage, but Cowardice is farthest removed from the Mean.

The concluding chapter (IX.) of the Book reflects on the great difficulty of hitting the mean in all things, and of correctly estimating all the requisite circumstances, in each particular case. He gives as practical rules:—To avoid at all events the worst extreme; to keep farthest from our natural bent; to guard against the snare of pleasure. Slight mistakes on either side are little blamed, but grave and conspicuous cases incur severe censure. Yet

how far the censure ought to go, is difficult to lay down beforehand in general terms. There is the same difficulty in regard to all particular cases, and all the facts of sense: which must be left, after all, to the judgment of Sensible Perception [Greek: aisthaesis].

Book Third takes up the consideration of the Virtues in detail, but prefaces them with a dissertation, occupying five chapters, on the Voluntary and Involuntary. Since praise and blame are bestowed only on voluntary actions,—the involuntary being pardoned, and even pitied,—it is requisite to define Voluntary and Involuntary. What is done under physical compulsion, or through ignorance, is clearly involuntary. What is done under the fear of greater evils is partly voluntary, and partly involuntary. Such actions are voluntary in the sense of being a man's own actions; involuntary in that they are not chosen on their own account; being praised or blamed according to the circumstances. There are cases where it is difficult to say which of two conflicting pressures ought to preponderate, and compulsion is an excuse often misapplied: but compulsion, in its strict sense, is not strength of motive at all; it is taking the action entirely out of our own hands. As regards Ignorance, a difference is made. Ignorance of a general rule is matter for censure; ignorance of particular circumstances may be excused. [This became the famous maxim of law,—'Ignorantia facti excusat, ignorantia juris non excusat.'] If the agent, when better informed, repents of his act committed in ignorance, he affords good proof that the act done was really involuntary. Acts done from anger or desire (which are in the agent's self) are not to be held as involuntary. (1) If they were, the actions of brutes and children would be involuntary. (2) Some of these acts are morally good and approved. (3) Obligation often attaches to these feelings. (4) What is done from desire is pleasant; the involuntary is painful. (5) Errors of passion are to be eschewed, no less than those of reason (I.).

The next point is the nature of Purpose, Determination, or Deliberate Preference [Greek: proairesis], which is in the closest kindred with moral excellence, and is even more essential, in the ethical estimate, than acts themselves. This is a part of the Voluntary; but not co-extensive therewith. For it excludes sudden and unpremeditated acts; and is not shared by irrational beings. It is distinct from desire, from anger, from wish, and from opinion; with all which it is sometimes confounded. Desire is often opposed to it; the incontinent man acts upon his desires, but without any purpose, or even against his purpose; the continent man acts upon his purpose, but against his desires. Purpose is still more distinct from anger, and is even distinct (though in a less degree) from wish [Greek: boulaesis], which is choice of the End, while Purpose is of the Means; moreover, we sometimes

wish for impossibilities, known as such, but we never purpose them. Nor is purpose identical with opinion [Greek: *doxa*], which relates to truth and falsehood, not to virtue and vice. It is among our voluntary proceedings, and includes intelligence; but is it identical with predeliberated action and its results? (II.)

To answer this query, Aristotle analyzes the process of Deliberation, as to its scope, and its mode of operation. We exclude from deliberation things Eternal, like the Kosmos, or the incommensurability of the side and the diagonal of a square; also things mutable, that are regulated by necessity, by nature, or by chance; things out of our power; also final ends of action, for we deliberate only about the *means* to ends. The deliberative process is compared to the investigation of a geometrical problem. We assume the end, and enquire by what means it can be produced; then again, what will produce the means, until we at last reach something that we ourselves can command. If, after such deliberation, we see our way to execution, we form a Purpose, or Deliberate Preference [Greek: *proairesis*]. Purpose is then definable as a deliberative appetency of things in our power (III.).

Next is started the important question as to the choice of the final *End*. Deliberation and Purpose respect means; our Wish respects the End—but what is the End that we wish? Two opinions are noticed; according to one (Plato) we are moved to the good; according to the other, to the apparent good. Both opinions are unsatisfactory; the one would make out an incorrect choice to be no choice at all; the other would take away all constancy from ends.

Aristotle settles the point by distinguishing, in this case as in others, between what bears a given character simply and absolutely, and what bears the same character relatively to this or that individual. The object of Wish, simply, truly, and absolutely, is the Good; while the object of Wish, to any

given individual, is what appears Good to him. But by the Absolute here, Aristotle explains that he means what appears good to the *virtuous* and *intelligent* man; who is declared, here as elsewhere, to be the infallible standard; while most men, misled by pleasure, choose what is not truly good. In like manner, Aristotle affirms, that those substances are truly and absolutely wholesome, which are wholesome to the healthy and well-constituted man; other substances may be wholesome to the sick or degenerate. Aristotle's Absolute is thus a Relative with its correlate chosen or imagined by himself.

He then proceeds to maintain that virtue and vice are voluntary, and in our own power. The arguments are these. (1) If it be in our power to act right, the contrary is equally in our own power; hence vice is as much voluntary as virtue. (2) Man must be admitted to be the origin of his own actions. (3) Legislators and others punish men for wickedness, and confer honour on good actions; even culpable ignorance and negligence are punished. (4) Our character itself, or our fixed acquirements, are in our power, being produced by our successive acts; men become intemperate, by acts of drunkenness. (5) Not only the defects of the mind, but the infirmities of the body also, are blamed, when arising through our own neglect and want of training. (6) Even if it should be said that all men aim at the apparent good, but cannot control their mode of conceiving [Greek: *phantasia*] the end; still each person, being by his acts the cause of his own fixed acquirements, must be to a certain extent the cause of his own conceptions. On this head, too, Aristotle repeats the clenching argument, that the supposed imbecility of conceiving would apply alike to virtue and to vice; so that if virtuous action be regarded as voluntary, vicious action must be so regarded likewise. It must be remembered that a man's fixed acquirements or habits are not in his own power, in the same sense and degree in which his separate acts are in his own power. Each act, from first to last, is alike in his power; but in regard to the habit, it is only the

initiation thereof that is thoroughly in his power; the habit, like a distemper, is taken on by imperceptible steps in advance (V.).

In the foregoing account of the Ethical questions connected with the Will, Aristotle is happily unembroiled with the modern controversy. The *mal-apropos* of 'Freedom' had not been applied to voluntary action. Accordingly, he treats the whole question from the inductive side, distinguishing the cases where people are praised or blamed for their conduct, from those where praise and blame are inapplicable as being powerless. It would have been well if the method had never been departed from; a sound Psychology would have improved the induction, but would never have introduced any question except as to the relative strength of the different feelings operating as motives to voluntary conduct.

In one part of his argument, however, where he maintains that vice must be voluntary, because its opposite, virtue, is voluntary, he is already touching on the magical island of the bad enchantress; allowing a question of fact to be swayed by the notion of factitious dignity. Virtue is assumed to be voluntary, not on the evidence of fact, but because there would be an *indignity* cast on it, to suppose otherwise. Now, this consideration, which Aristotle gives way to on various occasions, is the motive underlying the objectionable metaphor.

After the preceding digression on the Voluntary and Involuntary, Aristotle takes up the consideration of the Virtues in order, beginning with COURAGE, which was one of the received cardinal virtues, and a subject of frequent discussion. (Plato, *Laches*, *Protagoras*, *Republic*, &c.)

Courage [Greek: *andreia*], the mean between timidity and foolhardiness, has to do with evils. All evils are objects of fear; but there are some evils that even the brave man does right to fear—as disgrace. Poverty or disease he ought not to fear. Yet, he will not acquire the reputation of courage from

not fearing these, nor will he acquire it if he be exempt from fear when about to be scourged. Again, if a man be afraid of envy from others, or of insults to his children or wife, he will not for that reason be regarded as a coward. It is by being superior to the fear of great evils, that a man is extolled as courageous; and the greatest of evils is death, since it is a final close, as well of good as of evil. Hence the dangers of war are the greatest occasion of courage. But the cause must be honourable (VI.).

Thus the key to true courage is the quality or merit of the action. That man is brave, who both fears, and affronts without fear, what he ought and when he ought: who suffers and acts according to the value of the cause, and according to a right judgment of it. The opposites or extremes of courage include (1) Deficiency of fear; (2) Excess of fear, cowardice; (3) Deficiency of daring, another formula for cowardice; (4) Excess of daring, Rashness. Between these, Courage is the mean (VII.).

Aristotle enumerates five analogous forms of quasi-courage, approaching more or less to genuine courage. (1) The first, most like to the true, is political courage, which is moved to encounter danger by the Punishments and the Honours of society. The desire of honour rises to virtue, and is a noble spring of action. (2) A second kind is the effect of Experience, which dispels seeming terrors, and gives skill to meet real danger. (3) Anger, Spirit, Energy [Greek: thymos] is a species of courage, founded on physical power and excitement, but not under the guidance of high emotions. (4) The Sanguine temperament, by overrating the chances of success, gives courage. (5) Lastly, Ignorance of the danger may have the same effect as courage (VIII.).

Courage is mainly connected with pain and loss. Men are called brave for the endurance of pain, even although it bring pleasure in the end, as to the boxer who endures bruises from the hope of honour. Death is painful, and

most so to the man that by his virtue has made life valuable. Such a man is to be considered more courageous, as a soldier, than a mercenary with little to lose (IX.).

The account of Courage thus given is remarkably exhaustive; although the constituent parts might have been more carefully disentangled. A clear line should be drawn between two aspects of courage. The one is the resistance to Fear properly so called; that is, to the perturbation that exaggerates coming evil: a courageous man, in this sense, is one that possesses the true measure of impending danger, and acts according to that, and not according to an excessive measure. The other aspect of Courage, is what gives it all its nobleness as a virtue, namely, *Self-sacrifice*, or the deliberate encountering of evil, for some honourable or virtuous cause. When a man knowingly risks his life in battle for his country, he may be called courageous, but he is still better described as a heroic and devoted man.

Inasmuch as the leading form of heroic devotion, in the ancient world, was exposure of life in war, Self-sacrifice was presented under the guise of Courage, and had no independent standing as a cardinal virtue. From this circumstance, paganism is made to appear in a somewhat disadvantageous light, as regards self-denying duties.

Next in order among the excellences or virtues of the irrational department of mind is TEMPERANCE, or Moderation, [Greek: *sophrosynae*], a mean or middle state in the enjoyment of pleasure. Pleasures are mental and bodily. With the mental, as love of learning or of honour, temperance is not concerned. Nor with the bodily pleasures of muscular exercise, of hearing and of smell, but only with the animal pleasures of touch and taste: in fact, sensuality resides in touch; the pleasure of eating being a mode of contact (X.).

In the desires natural and common to men, as eating and the nuptial couch, men are given to err, and error is usually on the side of excess. But it is in the case of special tastes or preferences, that people are most frequently intemperate. Temperance does not apply to enduring pains, except those of abstinence from pleasures. The extreme of insensibility to pleasure is rarely found, and has no name. The temperate man has the feelings of pleasure and pain, but moderates his desires according to right reason (XL.). He desires what he ought, when he ought, and as he ought: correctly estimating each separate case (XII.). The question is raised, which is most voluntary, Cowardice or Intemperance? (1) Intemperance is more voluntary than Cowardice, for the one consists in choosing pleasure, while in the other there is a sort of compulsory avoidance of pain. (2) Temperance is easier to acquire as a habit than Courage. (3) In Intemperance, the particular acts are voluntary, although not the habit; in Cowardice, the first acts are involuntary, while by habit, it tends to become voluntary (XII.).

[Temperance is the virtue most suited to the formula of the Mean, although the settling of what is the mean depends after all upon a man's own judgment. Aristotle does not recognize asceticism as a thing existing. His Temperance is moderation in the sensual pleasures of eating and love.]

Book Fourth proceeds with the examination of the Virtues or Ethical Excellences.

LIBERALITY [Greek: eleutheristaes], in the matter of property, is the mean of Prodigality and Illiberality. The right uses of money are spending and giving. Liberality consists in giving willingly, from an honourable motive, to proper persons, in proper quantities, and at proper times; each individual case being measured by correct reason. If such measure be not taken, or if the gift be not made willingly, it is not liberality. The liberal man is often so free as to leave little to himself. This virtue is one more frequent in the inheritors than in the makers of fortunes. Liberality beyond one's

means is prodigality. The liberal man will receive only from proper sources and in proper quantities. Of the extremes, prodigality is more curable than illiberality. The faults of prodigality are, that it must derive supplies from improper sources; that it gives to the wrong objects, and is usually accompanied with intemperance. Illiberality is incurable: it is confirmed by age, and is more congenial to men generally than prodigality. Some of the illiberal fall short in giving—those called stingy, close-fisted, and so on; but do not desire what belongs to other people. Others are excessive in receiving from all sources; such are they that ply disreputable trades (I.).

MAGNIFICENCE [Greek: megaloprepeia] is a grander kind of Liberality; its characteristic is greatness of expenditure, with suitableness to the person, the circumstances, and the purpose. The magnificent man takes correct measure of each; he is in his way a man of Science [Greek: ho de megaloprepaes epistaemoni eoike]—II. The motive must be honourable, the outlay unstinted, and the effect artistically splendid. The service of the gods, hospitality to foreigners, public works, and gifts, are proper occasions. Magnificence especially becomes the well-born and the illustrious. The house of the magnificent man will be of suitable splendour; everything that he does will show taste and propriety. The extremes, or corresponding defects of character, are, on the one side, vulgar, tasteless profusion, and on the other, meanness or pettiness, which for some paltry saving will spoil the effect of a great outlay (II.).

MAGNANIMITY, or HIGH-MINDEDNESS [Greek: megalopsychia], loftiness of spirit, is the culmination of the virtues. It is concerned with greatness. The high-minded man is one that, being worthy, rates himself at his real worth, and neither more (which is vanity) nor less (which is littleness of mind). Now, worth has reference to external goods, of which the greatest is honour. The high-minded man must be in the highest degree honourable, for which he must be a good man; honour being the prize of

virtue. He will accept honour only from the good, and will despise dishonour, knowing it to be undeserved. In all good or bad fortune, he will behave with moderation; in not highly valuing even the highest thing of all, honour itself, he may seem to others supercilious. Wealth and fortune contribute to high-mindedness; but most of all, superior goodness; for the character cannot exist without perfect virtue. The high-minded man neither shuns nor courts danger; nor is he indisposed to risk even his life. He gives favours, but does not accept them; he is proud to the great, but affable to the lowly. He attempts only great and important matters; is open in friendship and in hatred; truthful in conduct, with an ironical reserve. He talks little, either of himself or of others; neither desiring his own praise, nor caring to utter blame. He wonders at nothing, bears no malice, is no gossip. His movements are slow, his voice deep, his diction stately (III.).

There is a nameless virtue, a mean between the two extremes of too much and too little ambition, or desire of honour; the reference being to smaller matters and to ordinary men. The fact that both extremes are made terms of reproach, shows that there is a just mean; while each extreme alternately claims to be the virtue, as against the other, since there is no term to express the mean (IV.).

MILDNESS [Greek: praotēs] is a mean state with reference to Anger, although inclining to the defective side. The exact mean, which has no current name, is that state wherein the agent is free from perturbation [Greek: atarachos], is not impelled by passion, but guided by reason; is angry when he ought, as he ought, with whom, and as long as, he ought: taking right measure of all the circumstances. Not to be angry on the proper provocation, is folly, insensibility, slavish submission. Of those given to excess in anger, some are quick, impetuous, and soon appeased; others are sulky, repressing and perpetuating their resentment. It is not easy to define the exact mean; each case must be left to individual perception (V.).

The next virtue is Good-breeding in society, a balance between surliness on the one hand, and weak assent or interested flattery on the other. It is a nameless virtue, resembling friendship without the special affection. Aristotle shows what he considers the bearing of the finished gentleman, studying to give pleasure, and yet expressing disapprobation when it would be wrong to do otherwise (VI.).

Closely allied to the foregoing is the observance of a due mean, in the matter of Boastfulness. The boastful lay claim to what they do not possess; false modesty [Greek: *eironeia*] is denying or underrating one's own merits. The balance of the two is the straightforward and truthful character; asserting just what belongs to him, neither more nor less. This is a kind of truthfulness,—distinguished from 'truth' in its more serious aspect, as discriminating between justice and injustice—and has a worth of its own; for he that is truthful in little things will be so in more important affairs (VII.).

In the playful intercourse of society, there is room for the virtue of Wit, a balance or mean between buffoonish excess, and the clownish dulness that can neither make nor enjoy a joke. Here the man of refinement must be a law to himself (VIII.).

MODESTY [Greek: *aidos*] is briefly described, without being put through the comparison with its extremes. It is more a feeling than a state, or settled habit. It is the fear of ill-report; and has the physical expression of fear under danger—the blushing and the pallor. It befits youth as the age of passion and of errors. In the old it is no virtue, as they should do nothing to be ashamed of (IX.).

Book Fifth (the first of the so-called Eudemian books), treats of Justice, the Social virtue by pre-eminence. Justice as a virtue is defined, the state of mind, or moral disposition, to do what is just. The question then is—what is the just and the unjust in action? The words seem to have more senses than one. The just may be (1) the Lawful, what is established by law; which

includes, therefore, all obedience, and all moral virtue (for every kind of conduct came under public regulation, in the legislation of Plato and Aristotle). Or (2) the just may be restricted to the fair and equitable as regards property. In both senses, however, justice concerns our behaviour to some one else: and it thus stands apart from the other virtues, as (essentially and in its first character) seeking another's good—not the good of the agent himself (I.).

The first kind of justice, which includes all virtue, called Universal Justice, being set aside, the enquiry is reduced to the Particular Justice, or Justice proper and distinctive. Of this there are two kinds, Distributive and Corrective (II.). Distributive Justice is a kind of equality or proportion in the distribution of property, honours, &c., in the State, according to the merits of each citizen; the standard of worth or merit being settled by the constitution, whether democratic, oligarchic, or aristocratic (III.). Corrective, or Reparative Justice takes no account of persons; but, looking at cases where unjust loss or gain has occurred, aims to restore the balance, by striking an arithmetical mean (IV.). The Pythagorean idea, that Justice is Retaliation, is inadequate; proportion and other circumstances must be included. Proportionate Retaliation, or Reciprocity of services,—as in the case of Commercial Exchange, measured through the instrument of money, with its definite value,—is set forth as the great bond of society. Just dealing is the mean between doing injustice and suffering injustice (V.). Justice is definitely connected with Law, and exists only between citizens of the State, and not between father and children, master and slave, between whom there is no law proper, but only a sort of relation analogous to law (VI.). Civil Justice is partly Natural, partly conventional. The natural is what has the same force everywhere, whether accepted or not; the conventional varies with institutions, acquiring all its force from adoption by law, and being in itself a matter of indifference prior to such adoption. Some persons regard all Justice as thus conventional. They say—'What exists by nature is unchangeable, and has everywhere the same power; for example, fire burns alike in Persia and here; but we see regulations of justice often varied—differing here and there.' This, however, is not exactly

the fact, though to a certain extent it is the fact. Among the gods indeed, it perhaps is not the fact at all: but among men, it is true that there exists something by nature changeable, though everything is not so. Nevertheless, there are some things existing by nature, other things not by nature. And we can plainly see, among those matters that admit of opposite arrangement, which of them belong to nature and which to law and convention; and the same distinction will fit in other cases also. Thus the right hand is by nature more powerful than the left; yet it is possible that all men may become ambidextrous. Those regulations of justice that are not by nature, but by human appointment, are not the same everywhere; nor is the political constitution everywhere the same; yet there is one political constitution only that is by nature the best everywhere (VII.).

To constitute Justice and Injustice in acts, the acts must be voluntary; there being degrees of culpability in injustice according to the intention, the premeditation, the greater or less knowledge of circumstances. The act that a person does may perhaps be unjust; but he is not, on that account, always to be regarded as an unjust man (VIII.).

Here a question arises, Can one be injured voluntarily? It seems not, for what a man consents to is not injury. Nor can a person injure himself. Injury is a relationship between two parties (IX.). Equity does not contradict, or set aside, Justice, but is a higher and finer kind of justice, coming in where the law is too rough and general.

Book Sixth treats of Intellectual Excellences, or Virtues of the Intellect. It thus follows out the large definition of virtue given at the outset, and repeated in detail as concerns each of the ethical or moral virtues successively.

According to the views most received at present, Morality is an affair of conscience and sentiment; little or nothing is said about estimating the full circumstances and consequences of each act, except that there is no time to

calculate correctly, and that the attempt to do so is generally a pretence for evading the peremptory order of virtuous sentiment, which, if faithfully obeyed, ensures virtuous action in each particular case. If these views be adopted, an investigation of our intellectual excellences would find no place in a treatise on Ethics. But the theory of Aristotle is altogether different. Though he recognizes Emotion and Intellect as inseparably implicated in the mind of Ethical agents, yet the sovereign authority that he proclaims is not Conscience or Sentiment, but Reason. The subordination of Sentiment to Reason is with him essential. It is true that Reason must be supplied with First Principles, whence to take its start; and these First Principles are here declared to be, fixed emotional states or dispositions, engendered in the mind of the agent by a succession of similar acts. But even these dispositions themselves, though not belonging to the department of Reason, are not exempt from the challenge and scrutiny of Reason; while the proper application of them in act to the complicated realities of life, is the work of Reason altogether. Such an ethical theory calls upon Aristotle to indicate, more or less fully, those intellectual excellences, whereby alone we are enabled to overcome the inherent difficulties of right ethical conduct; and he indicates them in the present Book, comparing them with those other intellectual excellences which guide our theoretical investigations, where conduct is not directly concerned.

In specifying the ethical excellences, or excellences of disposition, we explained that each of them aimed to realize a mean—and that this mean was to be determined by Right Reason. To find the mean, is thus an operation of the Intellect; and we have now to explain what the right performance of it is,—or to enter upon the Excellences of the Intellect. The soul having been divided into Irrational and Rational, the Rational must farther be divided into two parts,—the Scientific (dealing with necessary matter), the Calculative, or Deliberative (dealing with contingent matter). We must touch, upon the excellence or best condition of both of them (I).

There are three principal functions of the soul—Sensation, Reason, and Appetite or Desire. Now, Sensation (which beasts have as well as men) is not a principle of moral action. The Reason regards truth and falsehood only; it does not move to action, it is not an end in itself. Appetite or Desire, which aims at an end, introduces us to moral action. Truth and Falsehood, as regards Reason, correspond to Good and Evil as regards Appetite: Affirmation and Negation, with the first, are the analogues of Pursuit and Avoidance, with the second. In purpose, which is the principle of moral action, there is included deliberation or calculation. Reason and Appetite are thus combined: Good Purpose comprises both true affirmation and right pursuit: you may call it either an Intelligent Appetite, or an Appetitive Intelligence. Such is man, as a principle of action [hae toiautae archae anthropos].

Science has to do with the necessary and the eternal; it is teachable, but teachable always from *praecognita*, or principles, obtained by induction; from which principles, conclusions are demonstrated by syllogism (III.). Art, or Production, is to be carefully distinguished from the action or agency that belongs to man as an ethical agent, and that does not terminate in any separate assignable product. But both the one and the other deal with contingent matters only. Art deals for the most part with the same matters as are subject to the intervention of Fortune or Chance (IV.).

Prudence or Judiciousness [Greek: phronaesis], the quality of [Greek: ho phronimos], the Practical Reason, comes next. We are told what are the matters wherewith it is, and wherewith it is not, conversant. It does not deal with matters wherein there exist art, or with rules of art. It does not deal with necessary matters, nor with matters not modifiable by human agency. The prudent or judicious man is one who (like Pericles) can accurately estimate and foresee matters (apart from Science and Art) such as are good or evil for himself and other human beings. On these matters, feelings of

pleasure or pain are apt to bias the mind, by insinuating wrong aims; which they do not do in regard to the properties of a triangle and other scientific conclusions. To guard against such bias, the judicious man must be armed with the ethical excellence described above as Temperance or Moderation. Judiciousness is not an Art, admitting of better and worse; there are not good judicious men, and bad judicious men, as there are good and bad artists. Judiciousness is itself an excellence (*i.e.*, the term connotes excellence)—an excellence of the rational soul, and of that branch of the rational soul which is calculating, deliberative, not scientific (V.). Reason or Intellect [Greek: nous] is the faculty for apprehending the first principles of demonstrative science. It is among the infallible faculties of the mind, together with Judiciousness, Science, and Philosophy. Each of these terms connotes truth and accuracy (VI.). Wisdom in the arts is the privilege of the superlative artists, such as Phidias in sculpture. But there are some men wise, not in any special art, but absolutely; and this wisdom [Greek: sophia] is Philosophy. It embraces both principles of science (which Aristotle considers to come under the review of the First Philosophy) and deductions therefrom; it is [Greek: nous] and [Greek: epistaemae] in one. It is more venerable and dignified than Prudence or Judiciousness; because its objects, the Kosmos and the celestial bodies, are far more glorious than man, with whose interests alone Prudence is concerned; and also because the celestial objects are eternal and unvarying; while man and his affairs are transitory and ever fluctuating. Hence the great honour paid to Thales, Anaxagoras, and others, who speculated on theories thus magnificent and superhuman, though useless in respect to human good.

We have already said that Prudence or Judiciousness is good counsel on human interests, with a view to action. But we must also add that it comprises a knowledge not of universals merely, but also of particulars; and experienced men, much conversant with particulars, are often better qualified for action than inexperienced men of science (VII.). Prudence is

the same in its intellectual basis as the political science or art—yet looked at in a different aspect. Both of them are practical and consultative, respecting matters of human good and evil; but prudence, in the stricter sense of the word, concerns more especially the individual self; still, the welfare of the individual is perhaps inseparable from household and state concerns. Prudence farther implies a large experience; whence boys, who can become good mathematicians, cannot have practical judgment or prudence. In consultation, we are liable to error both in regard to universals, and in regard to particulars; it is the business of prudence, as well as of the political science, to guard against both. That prudence is not identical with Science, is plain enough; for Science is the intermediate process between the first principles and the last conclusions; whereas prudence consists chiefly in seizing these last, which are the applications of reasoning, and represent the particular acts to be done. Prudence is the counterpart of Reason [Greek: Nous] or Intellect, but at the opposite extremity of the mental process. For Intellect [Greek: Nous] apprehends the extreme Universals,—the first principles,—themselves not deducible, but from which deduction starts; while Prudence fastens on the extreme particulars, which are not known by Science, but by sensible Perception. We mean here by sensible Perception, not what is peculiar to any of the five senses, but what is common to them all—whereby we perceive that the triangle before us is a geometrical ultimum, and that it is the final subject of application for all the properties previously demonstrated to belong to triangles generally. The mind will stop here in the downward march towards practical application, as it stopped at first principles in the upward march. Prudence becomes, however, confounded with sensible perception, when we reach this stage. [The statement here given involves Aristotle's distinction of the proper and the common Sensibles; a shadowing out of the muscular element in sensation] (VIII.).

Good counsel [Greek: euboulia] is distinguished from various other qualities. It is, in substance, choosing right means to a good end; the end being determined by the great faculty—Prudence or Judiciousness (IX.). Sagacity [Greek: synesis] is a just intellectual measure in regard to the business of life, individual and social; critical ability in appreciating and interpreting the phenomena of experience. It is distinguished from Prudence in this respect—that Prudence carries inferences into Practice (X.). Considerateness [Greek: gnomae] is another intellectual virtue, with a practical bearing. It is that virtue whereby we discern the proper occasions for indulgent construction, softening the rigour of logical consistency. It is the source of equitable decisions.

The different intellectual excellences just named—Considerateness, Sagacity, Prudence [Greek: phronaesis], and Intellect [Greek: Nous], seem all to bear on the same result, and are for the most part predicable of the same individuals. All of them are concerned with the ultimate applications of principle to practice, and with the actual moments for decision and action. Indeed, Intellect [Greek: Nous] deals with the extremes at both ends of the scale: with the highest and lowest terms. In theoretical science, it apprehends and sanctions the major propositions, the first and highest *principia* of demonstrations: in practical dealings, it estimates the minor propositions of the syllogism, the possibilities of the situation, and the ultimate action required. All these are the *principia* from whence arises the determining motive: for the universal is always derived from particulars; these we must know through sensible perception, which is in this case the same thing as intellect [Greek: Nous]. Intellect is in fact both the beginning and the end: it cognizes both the first grounds of demonstration and the last applications of the results of demonstration. A man cannot acquire science by nature, or without teaching: but he may acquire Intellect and Sagacity by nature, simply through, long life and abundant experience. The affirmations and opinions of old men deserve attention, hardly less than demonstrations:

they have acquired an eye from experience, and can thus see the practical principles (though they may not be able to lay out their reasons logically) (XI.).

But an objector may ask—Of what use are Philosophy and Prudence? He may take such grounds as these. (1) Philosophy has no practical aim at all; nor does it consider the means of happiness? (2) Prudence, though bearing on practice, is merely knowledge, and does not ensure right action. (3) Even granting the knowledge to be of value as direction, it might be obtained, like medical knowledge, from a professional adviser. (4) If philosophy is better than prudence, why does prudence control philosophy? We have to answer these doubts. The first is answered by asserting the independent value of philosophy and prudence, as perfections of our nature, and as sources of happiness in themselves. The second and third doubts are set at rest, by affirming prudence to have no existence apart from virtue. Without a virtuous aim, there is no such thing as Prudence: there is nothing but cleverness degenerating into cunning; while virtue without virtuous prudence is nothing better than a mere instinct, liable to be misguided in every way (XII.).

There is one more difficulty to be cleared up respecting virtue. All our dispositions; and therefore all our ethical excellences, come to us in a certain sense by nature; that is, we have from the moment of birth a certain aptitude for becoming temperate, courageous, just, &c. But these natural aptitudes or possessions [Greek: *physikai hexeis*] are something altogether distinct from the ethical excellences proper, though capable of being matured into them, if intellect and prudence be superadded. Sokrates was mistaken in resolving all the virtues into prudence; but he was right in saying that none of them can exist without prudence. The virtues ought to be defined as, not merely ethical dispositions *according* to right reason, but ethical dispositions *along with* right reason or prudence (*i.e.*, prudence is an

ever present co-efficient). It is thus abundantly evident that none but a prudent man can be good, and none but a good man can be prudent. The virtues are separable from each other, so far as the natural aptitudes are concerned: a man may have greater facility for acquiring one than another. But so far as regards the finished acquirements of excellence, in virtue of which a man is called *good*—no such separation is possible. All of them alike need the companionship of Prudence (XIII.).

Book Seventh has, two Parts. Part first discusses the grades of moral strength and moral weakness. Part second is a short dissertation on Pleasure, superseded by the superior handling of the subject in the Tenth Book.

With reference to moral power, in self-restraint, six grades are specified. (1) God-like virtue, or reason impelling as well as directing. (2) The highest human virtue, expressed by Temperance [Greek: *sophrosynae*]*—*appetite and passion perfectly harmonized with reason. (3) Continence [Greek: *egkrateia*] or the mastery of reason, after a struggle. (4) Incontinence, the mastery of appetite or passion, but not without a struggle. (5) Vice, reason perverted so as to harmonize entirely with appetite or passion. (6) Bestiality, naked appetite or passion, without reason. Certain prevalent opinions are enumerated, which are to form the subject of the discussions following—(1) Continence and endurance are morally good. (2) The Continent man sticks to his opinion. (3) The Incontinent err knowingly. (4) Temperance and Continence are the same. (5) Wise and clever men may be Incontinent. (6) Incontinence applies to other things than Pleasure, as anger, honour, and gain (I.).

The third point (the Incontinent sin knowingly) is first mooted. Sokrates held the contrary; he made vice and ignorance convertible. Others think that the knowledge possessed by the incontinent is mere opinion, or a vague and weak conviction. It is objected to No. 4, that continence implies evil desires to be controlled; while temperance means the character fully harmonized.

As to No. 2, Continence must often be bad, if it consists in sticking to an opinion (II.).

The third point, the only question of real interest or difficulty, is resumed at greater length. The distinction between *knowledge* and *opinion* (the higher and the lower kinds of knowledge) does not settle the question, for opinion may be as *strong* as knowledge. The real point is, what is meant by *having knowledge*? A man's knowledge may be in abeyance, as it is when he is asleep or intoxicated. Thus, we may have in the mind two knowledges (like two separate syllogisms), one leading to continence, the other to incontinence; the first is not drawn out, like the syllogism wanting a minor; hence it may be said to be not present to the mind; so that, in a certain sense, Sokrates was right in denying that actual and present knowledge could be overborne. Vice is a form of oblivion (III.).

The next question is, what is the object-matter of incontinence; whether there is any man incontinent simply and absolutely (without any specification of wherein), or whether all incontinent men are so in regard to this or that particular matter? (No. 6). The answer is, that it applies directly to the bodily appetites and pleasures, which are necessary up to a certain point (the sphere of Temperance), and then he that commits unreasonable excess above this point is called Incontinent simply. But if he commits excess in regard to pleasures, which, though not necessary, are natural and, up to a certain point, reasonable—such as victory, wealth, honour—we designate him as incontinent, yet with a specification of the particular matter (IV.).

The modes of Bestiality, as cannibalism and unnatural passion, are ascribed to morbid depravity of nature or of habits, analogous to disease or madness (V.).

Incontinence in anger is not so bad as Incontinence in lust, because anger (1) has more semblance of reason, (2) is more a matter of constitution, (3) has less of deliberate purpose—while lust is crafty, (4) arises under pain; and not from wantonness (VI.).

Persons below the average in resisting *pleasures* are incontinent; those below the average in resisting *pains* are soft or effeminate. The mass of men incline to both weaknesses. He that deliberately pursues excessive pleasures, or other pleasures in an excessive way, is said to be abandoned. The intemperate are worse than the incontinent. Sport, in its excess, is effeminacy, as being relaxation from toil. There are two kinds of incontinence: the one proceeding from precipitancy, where a man acts without deliberating at all; the other from feebleness,—where he deliberates, but where the result of deliberation is too weak to countervail his appetite (VII.). Intemperance or profligacy is more vicious, and less curable than Incontinence. The profligate man is one who has in him no principle (*archae*) of good or of right reason, and who does wrong without afterwards repenting of it; the incontinent man has the good principle in him, but it is overcome when he does wrong, and he afterwards repents (VIII.). Here, again, Aristotle denies that sticking to one's opinions is, *per se*, continence. The opinion may be wrong; in that case, if a man sticks to it, prompted by mere self-assertion and love of victory, it is a species of incontinence. One of the virtues of the continent man is to be open to persuasion, and to desert one's resolutions for a noble end (IX.). Incontinence is like sleep or drunkenness as opposed to wakeful knowledge. The incontinent man is like a state having good laws, but not acting on them. The incontinence of passion is more curable than that of weakness; what proceeds from habit more than what is natural (X.).

The Eighth and Ninth Books contain the treatise on Friendship.

The subject deserves a place in an Ethical treatise, because of its connexion with virtue and with happiness. Several questions have been debated concerning Friendship,—Is it based on likeness or unlikeness? Can bad men be friends? Is there but one species of Friendship, or more than one? (I.) Some progress towards a solution of these questions may be made by considering what are the objects of liking; these are the good, the pleasant, the useful. By the good is not meant the absolute good of Plato, but the apparent good. Inanimate things must be excluded, as wanting reciprocation (II.). The varieties of friendship follow these three modes of the likeable. The friendships for the useful and the pleasant, are not disinterested, but self-seeking; they are therefore accidental and transitory; they do not involve intimate and frequent association. Friendship for the good, and between the virtuous, is alone perfect; it is formed slowly, and has the requisites of permanence. It occurs rarely (III.). As regards the useful and the pleasant, the bad may be friends. It may happen that two persons are mutually pleasant to each other, as lover and beloved; while this lasts, there is friendship. It is only as respects the good, that there exists a permanent liking for the person. Such friendship is of an absolute nature; the others are accidental (IV.). Friendship is in full exercise only during actual intercourse; it may exist potentially at a distance; but in long absence, there is danger of its being dissolved. Friendship is a settled state or habit, while fondness is a mere passion, which does not imply our wishing to do good to the object of it, as friendship does (V.). The perfect kind of friendship, from its intensity, cannot be exercised towards more than a small number. In regard to the useful and the pleasant, on the other hand, there may be friendship with many; as the friendship towards tradesmen and between the young. The happy desire pleasant friends. Men in power have two classes of friends; one for the useful, the other for the pleasant. Both qualities are found in the good man; but he will not be the friend of a superior, unless he be surpassed (by that superior) in virtue also. In all the

kinds of friendship now specified there is equality (VI.). There are friendships where one party is superior, as father and son, older and younger, husband and wife, governor and governed. In such cases there should be a proportionably greater love on the part of the inferior. When the love on each side is proportioned to the merit of the party beloved, then we have a certain species of equality, which is an ingredient in friendship. But equality in matters of friendship, is not quite the same as equality in matters of justice. In matters of justice, equality proportioned to merit stands first—equality between man and man (no account being taken of comparative merit) stands only second. In friendship, the case is the reverse; the perfection of friendship is equal love between the friends towards each other; to have greater love on one side, by reason of and proportioned to superior merit, is friendship only of the second grade. This will be evident if we reflect that extreme inequality renders friendship impossible—as between private men and kings or gods. Hence the friend can scarcely wish for his friend the maximum of good, to become a god; such extreme elevation would terminate the friendship. Nor will he wish his friend to possess all the good; for every one wishes most for good to self (VII.). The essence of friendship is to love rather than to be loved, as seen in mothers; but the generality of persons desire rather to be loved, which is akin to being honoured (although honour is partly sought as a sign of future favours). By means of love, as already said, unequal friendships may be equalized. Friendship with the good, is based on equality and similarity, neither party ever desiring base services. Friendships for the useful are based on the contrariety of fulness and defect, as poor and rich, ignorant and knowing (VIII.). Friendship is an incident of political society; men associating together for common ends, become friends. Political justice becomes more binding when men are related by friendship. The state itself is a community for the sake of advantage; the expedient to all is the just. In the large society of the state, there are many inferior societies for business,

and for pleasure: friendship starts up in all (IX.). There are three forms of Civil Government, with a characteristic declension or perversion of each:— Monarchy passing into Despotism; Aristocracy into Oligarchy; Timocracy (based on wealth) into Democracy; parent and child typifies the first; husband and wife the second; brothers the third (X.). The monarchical or paternal type has superiority on one side, and demands honour as well as love on the other. In aristocracy, the relation is one of merit, and the greater love is given to the better. In timocracy, and among brothers, there is equality; and hence the most frequent friendships. There is no friendship towards a slave, as a slave, for, as such he is a mere animate tool (XL.). In the relations of the family, friendship varies with the different situations. Parents love their children as a part of themselves, and from the first; children grow to love their parents. Brothers are affected by their community of origin, as well as by common education and habits of intimacy. Husband and wife come together by a natural bond, and as mutual helps; their friendship contains the useful and the pleasant, and, with virtue, the good. Their offspring strengthens the bond (XII.). The friendships that give rise to complaints are confined to the Useful. Such friendships involve a legal element of strict and measured reciprocity [mere trade], and a moral or unwritten understanding, which is properly friendship. Each party is apt to give less and expect more than he gets; and the rule must be for each to reciprocate liberally and fully, in such manner and kind as they are able (XIII.). In unequal friendships, between a superior and inferior, the inferior has the greater share of material assistance, the superior should receive the greater honour (XIV.).

Book Ninth proceeds without any real break. It may not be always easy to fix the return to be made for services received. Protagoras, the sophist, left it to his pupils to settle the amount of fee that he should receive. When there is no agreement, we must render what is in our power, for example, to the gods and to our parents (I.). Cases may arise of conflicting obligation; as, shall we prefer a friend to a deserving man? shall a person robbed reciprocate to robbers? and others. [We have here the germs of Casuistry.] (II.) As to the termination of Friendship; in the case of the useful and the pleasant, the connexion ceases with the motives. In the case of the good, it may happen that one party counterfeits the good, but is really acting the useful or the

pleasant; or one party may turn out wicked, and the only question is, how far hopes of his improvement shall be entertained. Again, one may continue the same, while the other makes large advances in mental training; how far shall present disparity operate against old associations? (III.). There is a sort of illustrative parallelism between the feelings and acts of friendship, and the feelings and acts of self-love, or of a good man to himself. The virtuous man wishes what is good for himself, especially for his highest part—the intellect or thinking part; he desires to pass his life in the company of his own thoughts; he sympathizes with his own sorrows. On the other hand, the bad choose the pleasant, although it be hurtful; they fly from themselves; their own thoughts are unpleasant companions; they are full of repentance (IV.). Good-will is different from friendship; it is a sudden impulse of feeling towards some distinguished or likeable quality, as in an antagonist. It has not the test of longing in absence. It may be the prelude to friendship (V.). Unanimity, or agreement of opinion, is a part of friendship. Not as regards mere speculation, as about the heavenly bodies; but in practical matters, where interests are at stake, such as the politics of the day. This unanimity cannot occur in the bad, from their selfish and grasping disposition (VI.).

The position is next examined—that the love felt by benefactors is stronger than the love felt by those benefitted. It is not a sufficient explanation to say, the benefactor is a creditor, who wishes the prosperity of his debtor. Benefactors are like workmen, who love their own work, and the exercise of their own powers. They also have the feeling of nobleness on their side; while the recipient has the less lovable idea of profit. Finally, activity is more akin to love than reciprocity (VII.). Another question raised for discussion is—'Ought a man to love himself most, or another?' On the one hand, selfishness is usually condemned as the feature of bad men; on the other hand, the feelings towards self are made the standard of the feelings towards friends. The solution is given thus. There is a lower self (predominant with most men) that gratifies the appetites, seeking wealth, power, &c. With the select few, there is a higher self that seeks the honourable, the noble, intellectual excellence, at any cost of pleasure, wealth, honour, &c. These noble-minded men procure for themselves the greater good by sacrificing the less: and their self-sacrifice is thus a mode of self. It is the duty of the good man to love himself: for his noble life is profitable, both to himself, and to others; but the bad man ought not to love himself. [Self-sacrifice, formerly brought under Courage, is here depicted from another point of view] (VIII.).

By way of bringing out the advantages of friendship, it is next asked, Does the happy man need friends? To this, it is answered, (1) That happiness, being the sum of all human good, must suppose the possession of the greatest of external goods, which is friendship. (2) The happy man will require friends as recipients, of his overflow of kindness. (3) He cannot be expected either to be solitary, or to live with strangers. (4) The highest play of existence is to see the acts of another in harmony with self. (5) Sympathy supports and prolongs the glow of one's own emotions. (6) A friend confirms us in the practice of virtue. (7) The sense of existence in ourselves is enlarged by the consciousness of another's existence (IX.). The number of friends is again considered, and the same barriers stated—the impossibility of sharing among many the highest kind of affection, or of keeping up close and harmonious intimacy. The most renowned friendships are between pairs (X.). As to whether friends are most needed in adversity or in prosperity—in the one, friendship is more necessary, in the other more glorious (XI.). The essential support and manifestation of friendship is Intercourse. Whatever people's tastes are, they desire the society of others in exercising them (XII.).

Book Tenth discusses Pleasure, and lays down as the highest and perfect pleasure, the exercise of the Intellect in Philosophy.

Pleasure is deserving of consideration, from its close intimacy with the constitution of our race; on which account, in our training of youth, we steer them by pleasure and pain; and it is of the first importance that they should feel pleasure in what they ought, and displeasure in what they ought, as the groundwork (or *principium*) of good ethical dispositions. Such a topic can never be left unnoticed, especially when we look at the great difference of opinion thereupon. Some affirm pleasure to be the chief good [Eudoxus]. Others call it altogether vile and worthless [party of Speusippus]. Of these last, some perhaps really think so; but the rest are actuated by the necessity

of checking men's too great proneness to it, and disparage it on that account. This policy Aristotle strongly censures, and contends for the superior efficacy of truth (I.).

The arguments urged by Eudoxus as proving pleasure to be the chief good, are, (1) That all beings seek pleasure; (2) and avoid its opposite, pain; (3) that they seek pleasure as an end-in-itself, and not as a means to any farther end; (4) that pleasure, added to any other good, such as justice or temperance, increases the amount of good; which could not be the case, unless pleasure were itself good. Yet this last argument (Aristotle urges) proves pleasure to be *a* good, but not to be *the* Good; indeed, Plato urged the same argument, to show that pleasure could *not* be The Good: since The Good (the Chief Good) must be something that does not admit of being enhanced or made more good. The objection of Speusippus,—that irrational creatures are not to be admitted as witnesses,—Aristotle disallows, seeing that rational and irrational agree on the point; and the thing that seems to all, must be true. Another objection, That the opposite of pain is not pleasure, but a neutral state—is set aside as contradicted by the fact of human desire and aversion, the two opposite states of feeling (II.).

The arguments of the Platonists, to prove that pleasure is not good, are next examined. (1) Pleasure, they say, is not a quality; but neither (replies Aristotle) are the exercises or actual manifestations of virtue or happiness. (2) Pleasure is not definite, but unlimited, or admitting of degrees, while The Good is a something definite, and does not admit of degrees. But if these reasoners speak about the pure pleasures, they might take objection on similar grounds against virtue and justice also; for these too admit of degrees, and one man is more virtuous than another. And if they speak of the mixed pleasures (alloyed with pain), their reasoning will not apply to the unmixed. Good health is acknowledged to be a good, and to be a definite something; yet there are nevertheless some men more healthy, some

less. (3) The Good is perfect or complete; but objectors urge that no motion or generation is complete, and pleasure is in one of these two categories. This last assertion Aristotle denies. Pleasure is *not* a motion; for the attribute of velocity, greater or less, which is essential to all motion, does not attach to pleasure. A man may be quick in becoming pleased, or in becoming angry; but in the act of being pleased or angry, he can neither be quick nor slow. Nor is it true that pleasure is a generation. In all generation, there is something assignable out of which generation takes place (not any one thing out of any other), and into which it reverts by destruction. If pleasure be a generation, pain must be the destruction of what is generated; but this is not correct, for pain does not re-establish the state antecedent to the pleasure. Accordingly, it is not true that pleasure is a generation. Some talk of pain as a want of something required by nature, and of pleasure as a filling up of that want. But these are corporeal, not mental facts, and are applicable only to eating and drinking; not applicable to many other pleasures, such as those of sight, hearing, or learning. (4) There are some disgraceful pleasures. Aristotle replies that these are not absolutely and properly pleasures, but only to the depraved man; just as things are not yellow, which appear so to men in a jaundice. Pleasures differ from each other in species: there are good pleasures, *i.e.*, those arising from good sources; and bad pleasures, *i.e.*, from bad sources. The pleasure *per se* is always desirable; but not when it comes from objectionable acts. The pleasures of each man will vary according to his character; none but a musical man can enjoy the pleasures of music. No one would consent to remain a child for life, even though he were to have his fill of childish pleasure.

Aristotle sums up the result thus. Pleasure is not The Good. Not every mode of pleasure is to be chosen. Some pleasures, distinguished from the rest specifically or according to their sources, are to be chosen *per se* (III.).

He then attempts to define pleasure. It is something perfect and complete in itself, at each successive moment of time; hence it is not motion, which is at every moment incomplete. Pleasure is like the act of vision, or a point, or a monad, always complete in itself. It accompanies every variety of sensible perception, intelligence, and theorizing contemplation. In each of these faculties, the act is more perfect, according as the subjective element is most perfect, and the object most grand and dignified. When the act is most perfect, the pleasure accompanying it is also the most perfect; and this pleasure puts the finishing consummation to the act. The pleasure is not a pre-existing acquirement now brought into exercise, but an accessory end implicated with the act, like the fresh look which belongs to the organism just matured. It is a sure adjunct, so long as subject and object are in good condition. But continuity of pleasure, as well as of the other exercises, is impossible. Life is itself an exercise much diversified, and each man follows the diversity that is suitable to his own inclination—music, study, &c. Each has its accessory and consummating mode of pleasure; and to say that all men desire pleasure, is the same as saying that all men desire life. It is no real question to ask—Do we choose life for the sake of pleasure, or pleasure for the sake of life? The truth is, that the two are implicated and inseparable (IV.).

As our acts or exercises differ from each other specifically, so also the pleasures that are accessory to them differ specifically. Exercises intellectual differ from exercises perceptive, and under each head there are varieties differing from each other. The pleasures accessory and consummating to each, are diversified accordingly. Each pleasure contributes to invigorate and intensify the particular exercise that it is attached to; the geometer who studies his science with pleasure becomes more acute and successful in prosecuting it. On the other hand, the pleasures attached to one exercise impede the mind in regard to other exercises; thus men fond of the flute cannot listen to a speaker with

attention, if any one is playing the flute near them. What we delight in doing, we are more likely to do well; what we feel pain in doing, we are not likely to do well. And thus each variety of exercise is alike impeded by the pains attached to itself, and by the pleasures attached to other varieties.

Among these exercises or acts, some are morally good, others morally bad; the desires of the good are also praise-worthy, the desires of the bad are blameable; but if so, much more are the pleasures attached to the good exercises, good pleasures—and the pleasures attached to the bad exercises, bad pleasures. For the pleasures attached to an exercise are more intimately identified with that exercise than the desire of it can be. The pleasure of the exercise, and the exercise itself, are indeed so closely identified one with the other, that to many they appear the same. Sight, hearing, and smell, differ in purity from touch and taste; and the pleasures attached to each differ in like manner. The pleasures of intellect differ from those of sense, as these two exercises differ from one another. Every animal has its own peculiar pleasures, as it has also its own peculiar manifestation and exercises. Among the human race, the same things give pleasure to one individual and pain to another. The things that appear sweet to the strong and healthy man, do not appear sweet to one suffering from fever, or weakly. Now, amidst this discrepancy, what *appears* to the virtuous and intelligent man, really *is*. His pleasures are the true and real pleasures. Excellence, and the good man *quâtenus* good, are to be taken as the standard. If what he abhors appears pleasurable to some persons, we must not be surprised, since there are many depravations of individuals, in one way or another; but these things are not pleasures really, they are only pleasures to these depraved mortals (V.).

So far the theory of Pleasure. Aristotle now goes back to his starting point—the nature of the Good, and Happiness. He re-states his positions: That Happiness is an exercise or actuality [Greek: *energeia*], and not an acquirement or state (*hexis*), That it belongs to such exercises as are worthy of choice for their own sake, and not to such as are worthy of choice for the sake of something else; That it is perfect and self-sufficing, seeking nothing beyond itself, and leaving no wants unsupplied. Hence he had concluded that it consisted in acting according to virtue; for the honourable and good are chosen for their own sake. But amusements are also sought for their own sake; Are these also to be called happiness? No. It is true that they are much pursued by those whom the vulgar envy—men of wealth and despots—who patronize and reward the practitioners of amusement. But this proves nothing, for we cannot adopt the choice of these despots, who have little virtue or intellect, and have never known the taste of refined and liberal pleasure. Children and mature men, bad men and virtuous, have each their different pleasures; the virtuous and intelligent man finds a life of excellence and the pleasures attached thereunto most worthy of his choice, and such a man (Aristotle has declared more than once) is our standard. It would indeed be childish to treat amusements as the main end of life; they are the relaxation of the virtuous man, who derives from them fresh vigour for the prosecution of the serious business of life, which he cannot prosecute continuously. The serious exercises of life are better than the comic, because they proceed from the better part of man. The slave may enjoy bodily pleasures to the full, but a slave is not called happy (VI.).

We have thus shown that Happiness consists in exercise or actual living according to excellence; naturally, therefore, according to the highest excellence, or the excellence of the best part of man. This best part is the Intellect (*Nous*), our most divine and commanding element; in its exercise, which is theoretical or speculative, having respect to matters honourable,

divine, and most worthy of study. Such philosophical exercise, besides being the highest function of our nature, is at the same time more susceptible than any mode of active effort, of being prosecuted for a long continuance. It affords the purest and most lasting pleasure; it approaches most nearly to being self-sufficing, since it postulates little more than the necessities of life, and is even independent of society, though better *with* society. Perfect happiness would thus be the exercise of the theorizing intellect, continued through a full period of life. But this is more than we can expect. Still, we ought to make every effort to live according to this best element of our nature; for, though small in bulk, it stands exalted above the rest in power and dignity, and, being the sovereign element in man, is really The Man himself (VII.).

Next, yet only second, come the other branches of excellence: the active social life of a good citizen. Exercises according to this branch of virtue are the natural business of man, for it is bound up with our whole nature, including body as well as mind, our appetites, and our passions, whereas the happiness of intellect is separate. Active social virtue postulates conditions of society and external aids in considerable measure; but the life of intellect requires only the minimum of these, and is even impeded by much of them.

That perfect happiness is to be found in the philosophical life only, will appear farther when we recollect that the gods are blest and happy in the highest degree, and that this is the only mode of life suitable to them. With the gods there can be no scope for active social virtues; for in what way can they be just, courageous, or temperate? Neither virtuous practice nor constructive art can be predicated of the gods; what then remains, since we all assume them to live, and therefore to be in act or exercise of some kind; for no one believes them to live in a state of sleep, like Endymion. There remains nothing except philosophical contemplation. This, then, must be the life of the gods, the most blest of all; and that mode of human life which

approaches nearest to it will be the happiest. No other animal can take part in this, and therefore none can be happy. In so far as the gods pay attention to human affairs, they are likely to take pleasure in the philosopher, who is most allied to themselves. A moderate supply of good health, food, and social position, must undoubtedly be ensured to the philosopher; for, without these, human nature will not suffice for the business of contemplation. But he will demand nothing more than a moderate supply, and when thus equipped, he will approach nearer to happiness than any one else. Aristotle declares this confidently, citing Solon, Anaxagoras, and other sages, as having said much the same before him (VIII.).

In the concluding chapter, Aristotle gives the transition from Ethics to Politics. Treatises on virtue may inspire a few liberal minds; but, for the mass of men, laws, institutions, and education are necessary. The young ought to be trained, not merely by paternal guidance directing in the earliest years their love and hatred, but also by a scheme of public education, prescribed and enforced by authority throughout the city. Right conduct will thus be rendered easier by habit; but still, throughout life, the mature citizen must continue under the discipline of law, which has force adequate to correction, and, being impersonal, does not excite aversion and hatred. Hence the need for a system of good public training. Nowhere is this now established and enforced; hardly anywhere, except in Sparta, is it even attempted. Amid such public neglect, it becomes the duty of an individual to contribute what he can to the improvement of those that he is concerned in, and for that purpose to acquire the capacities qualifying him for becoming a lawgiver. Private admonition will compensate to a certain extent for the neglect of public interference, and in particular cases may be even more discriminating. But how are such capacities to be acquired? Not from the Sophists, whose method is too empirical; nor from practical politicians, for they seem to have no power of imparting their skill. Perhaps

it would be useful to make a collection of existing laws and constitutions. Aristotle concludes with sketching the plan of his own work on Politics.

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The Aristotelian doctrines are generally summed up in such points as these:—The theory of Good; Pleasure; the theory of Virtue; the doctrine of the Will, distinguishing voluntary from involuntary; Virtue a Habit; the doctrine of the MEAN; the distinction between the Moral Virtues and the Intellectual Virtues; Justice, distributive, and commutative; Friendship; the Contemplative Life.

The following are the indications of his views, according to the six leading subjects of Ethics.

I. and II.—It is characteristic of Aristotle (as is fully stated in Appendix B.) to make the judgment of the wisest and most cultivated minds, the standard of appeal in moral questions. He lays down certain general principles, such as the doctrine of the Mean, but in the application of these (which is everything), he trusts to the most experienced and skilled advisers that the community can furnish.

III.—On the theory of Happiness, or the Summum Bonum, it is needless to repeat the abstract of the tenth book.

IV.—In laying down the Moral Code, he was encumbered with the too wide view of Virtue; but made an advance in distinguishing virtue proper from excellence in general.

V.—He made Society tutelary to the individual in an excessive degree. He had no clear conception of the province of authority or law; and did not

separate the morality of obligation from the morality of reward and nobleness.

VI.—His exclusion of Theology from morality was total.

THE STOICS.

The Stoics were one of the four sects of philosophy, recognized and conspicuous at Athens during the three centuries preceding the Christian era, and during the century or more following. Among these four sects, the most marked antithesis of ethical dogma was between the Stoics and the Epicureans. The Stoical system dates from about 300 B.C.; it was derived from the system of the Cynics.

The founder of the system was ZENO, from Citium in Cyprus (he lived from 340—260 B.C.), who derived his first impulse from Krates the Cynic. He opened his school in a building or porch, called the *Stoa Poecile* ('Painted Portico') at Athens, whence the origin of the name of the sect. Zeno had for his disciple CLEANTHES, from Assos in the Troad (300—220 B.C.), whose *Hymn to Jupiter* is the only fragment of any length that has come down to us from the early Stoics, and is a remarkable production, setting forth the unity of God, his omnipotence, and his moral government. CHRYSIPPUS, from Soli in Cilicia (290—207 B.C.), followed Cleanthes, and, in his voluminous writings, both defended and modified the Stoical creed. These three represent the *first* period of the system. The *second* period (200—50 B.C.) embraces its general promulgation, and its introduction to the Romans. Chrysippus was succeeded by ZENO of Sidon, and DIOGENES of Babylon; then followed ANTIPATER, of Tarsus, who taught PANAETIUS of Rhodes (d. 112 B.C.), who, again, taught POSIDONIUS of Apamea, in Syria. (Two philosophers are mentioned from the native province of St. Paul, besides Chrysippus—ATHEKODOEUS, from Cana in Cilicia; and ARCHEDEMUS, from Tarsus, the apostle's

birthplace. It is remarked by Sir A. Grant, that almost all the first Stoics were of Asiatic birth; and the system itself is undeniably more akin to the oriental mind than to the Greek.) Posidonius was acquainted with Marius and Pompey, and gave lessons to Cicero, but the moral treatise of Cicero, *De Officiis*, is derived from a work of Panaetius. The *third* period of Stoicism is Roman. In this period, we have Cato the Younger, who invited to his house the philosopher Athenodorus; and, under the Empire, the three Stoic philosophers, whose writings have come down to us—SENECA (6 B.C.-65 A.D.), EPICTETUS (60-140 A.D.), who began life as a slave, and the Emperor MARCUS AURELIUS ANTONINUS (121-180 A.D.). Stoicism prevailed widely in the Roman world, although not to the exclusion of Epicurean views.

The leading Stoical doctrines are given in certain phrases or expressions, as 'Life according to Nature' (although this phrase belongs also to the Epicureans), the ideal 'Wise Man,' 'Apathy,' or equanimity of mind (also an Epicurean ideal), the power of the 'Will,' the worship of 'Duty,' the constant 'Advance' in virtue, &c. But perspicuity will be best gained by considering the *Moral* system under four heads—the Theology; the Psychology or theory of mind; the theory of the Good or human happiness; and the scheme of Virtue or Duty.

I.—The THEOLOGICAL doctrines of the Stoics comprehended their system of the Universe, and of man's position in it. They held that the Universe is governed by one good and wise God, together with inferior or subordinate deities. God exercises a moral government; under it the good are happy, while misfortunes happen to the wicked. According to Epictetus, God is the father of men; Antoninus exults in the beautiful arrangement of all things. The earlier Stoics, Zeno and Chrysippus, entertained high reverence for the divination, prophecy, and omens that were generally current in the ancient world. They considered that these were the methods

whereby the gods were graciously pleased to make known beforehand revelations of their foreordained purposes. (Herein lay one among the marked points of contrast between Stoics and Epicureans.) They held this foreordination even to the length of fatalism, and made the same replies, as have been given in modern times, to the difficulty of reconciling it with the existence of evil, and with the apparent condition of the better and the worse individuals among mankind. They offered explanations such as the following: (1) God is the author of all things except wickedness; (2) the very nature of good supposes its contrast evil, and the two are inseparable, like light and dark, (which may be called the argument from Relativity); (3) in the enormous extent of the Universe, some things must be neglected; (4) when evil happens to the good, it is not as a punishment, but as connected with a different dispensation; (5) parts of the world may be presided over by evil demons; (6) what we call evil may not be evil.

Like most other ancient schools, the Stoics held God to be corporeal like man:—Body is the only substance; nothing incorporeal could act on what is corporeal; the First Cause of all, God or Zeus, is the primeval fire, emanating from which is the soul of man in the form of a warm ether.

It is for human beings to recognize the Universe as governed by universal Law, and not only to raise their minds to the comprehension of it, but to enter into the views of the administering Zeus or Fate, who must regard all interests equally; we are to be, as it were, in harmony with him, to merge self in universal Order, to think only of that and its welfare. As two is greater than one, the interests of the whole world are infinitely greater than the interests of any single being, and no one should be satisfied with a regard to anything less than the whole. By this elevation of view, we are necessarily raised far above the consideration of the petty events befalling ourselves. The grand effort of human reason is thus to rise to the abstraction or totality of entire Nature; 'no ethical subject,' says Chrysippus, 'could be

rightly approached except from the pre-consideration of entire Nature, and the ordering of the whole.'

As to Immortality, the Stoics precluded themselves, by holding the theory of the *absorption* of the individual soul at death into the divine essence; but, on the other hand, their doctrine of advance and aspiration is what has in all times been the main natural argument for the immortality of the soul. For the most part, they kept themselves undecided as to this doctrine, giving it as an alternative, reasoning as to our conduct on either supposition, and submitting to the pleasure of God in this as in all other things.

In arguing for the existence of Divine power and government, they employed what has been called the argument from Design, which is as old as Sokrates. Man is conscious that he is in himself an intellectual or spiritual power, from which, by analogy, he is led to believe that a greater power pervades the universe, as intellect pervades the human system.

II.—In the PSYCHOLOGY of the Stoics, two questions, are of interest, their theory of Pleasure and Pain, and their views upon the Freedom of the Will.

1. *The theory of Pleasure and Pain.* The Stoics agreed with the Peripatetics (anterior to Epicurus, not specially against *him*) that the first principle of nature is (not pleasure or relief from pain, but) *self-preservation* or *self-love*; in other words, the natural appetite or tendency of all creatures is, to preserve their existing condition with its inherent capacities, and to keep clear of destruction or disablement. This appetite (they said) manifests itself in little children before any pleasure or pain is felt, and is moreover a fundamental postulate, pre-supposed in all desires of particular pleasures, as well as in all aversions to particular pains. We begin by loving our own vitality; and we come, by association, to love what promotes or strengthens our vitality; we hate destruction or disablement, and come (by secondary

association) to hate whatever produces that effect.[8] The doctrine here laid down associated, and brought under one view, what was common to man, not merely with the animal, but also with the vegetable world; a plant was declared to have an impulse or tendency to maintain itself, even without feeling pain or pleasure. Aristotle (in the tenth Book of the Ethics) says, that he will not determine whether we love life for the sake of pleasure, or pleasure for the sake of life; for he affirms the two to be essentially yoked together and inseparable; pleasure is the consummation of our vital manifestations. The Peripatetics, after him, put pleasure down to a lower level, as derivative and accidental; the Stoics went farther in the same direction—possibly from antithesis against the growing school of Epicurus.

The primary *officium* (in a larger sense than our word Duty) of man is (they said) to keep himself in the state of nature; the second or derivative *officium* is to keep to such things as are *according to nature*, and to avert those that are *contrary to nature*; our gradually increasing experience enabled us to discriminate the two. The youth learns, as he grows up, to value bodily accomplishments, mental cognitions and judgments, good conduct towards those around him,—as powerful aids towards keeping up the state of nature. When his experience is so far enlarged as to make him aware of the order and harmony of nature and human society, and to impress upon him the comprehension of this great *ideal*, his emotions as well as his reason become absorbed by it. He recognizes this as the only true Bonum or Honestum, to which all other desirable things are referable,—as the only thing desirable for itself and in its own nature. He drops or dismisses all those *prima naturae* that he had begun by desiring. He no longer considers any of them as worthy of being desired in itself, or for its own sake.

While therefore (according to Peripatetics as well as Stoics) the love of self and of preserving one's own vitality and activity, is the primary

element, intuitive and connate, to which all rational preference (*officium*) was at first referred,—they thought it not the less true, that in process of time, by experience, association, and reflection, there grows up in the mind a grand acquired sentiment or notion, a new and later light, which extinguishes and puts out of sight the early beginning. It was important to distinguish the feeble and obscure elements from the powerful and brilliant aftergrowth; which indeed was fully realized only in chosen minds, and in them, hardly before old age. This idea, when once formed in the mind, was *The Good*—the only thing worthy of desire for its own sake. The Stoics called it the only Good, being sufficient in itself for happiness; other things being not good, nor necessary to happiness, but simply preferable or advantageous when they could be had: the Peripatetics recognized it as the first and greatest good, but said also that it was not sufficient in itself; there were two other inferior varieties of good, of which something must be had as complementary (what the Stoics called *praeposita* or *sumenda*). Thus the Stoics said, about the origin of the Idea of Bonum or Honestum, much the same as what Aristotle says about ethical virtue. It is not implanted in us by nature; but we have at birth certain initial tendencies and capacities, which, if aided by association and training, enable us (and that not in all cases) to acquire it.

2. *The Freedom of the Will.* A distinction was taken by Epictetus and other Stoics between things in our power and things not in our power. The things in our power are our opinions and notions about objects, and all our affections, desires, and aversions; the things not in our power are our bodies, wealth, honour, rank, authority, &c., and their opposites. The practical application is this: wealth and high rank may not be in our power, but we have the power to form an *idea* of these—namely, that they are unimportant, whence the want of them will not grieve us. A still more pointed application is to death, whose force is entirely in the idea.

With this distinction between things in our power and things not in our power, we may connect the arguments between the Stoics and their opponents as to what is now called the Freedom of the Will. But we must first begin by distinguishing the two questions. By things *in our power*, the Stoics meant, things that we could do or acquire, *if we willed*: by things *not in our power*, they meant, things that we could not do or acquire if we willed. In both cases, the volition was assumed as a fact: the question, what determined it—or whether it was non-determined, *i.e.* self-determining—was not raised in the abovementioned antithesis. But it was raised in other discussions between the Stoic theorist Chrysippus, and various opponents. These opponents denied that volition was determined by motives, and cited the cases of equal conflicting motives (what is known as the ass of Buridan) as proving that the soul includes in itself, and exerts, a special supervenient power of deciding action in one way or the other: a power not determined by any causal antecedent, but self-originating, and belonging to the class of agency that Aristotle recognizes under the denomination of automatic, spontaneous (or essentially irregular and unpredictable). Chrysippus replied by denying not only the reality of this supervenient force said to be inherent in the soul, but also the reality of all that Aristotle called automatic or spontaneous agency generally. Chrysippus said that every movement was determined by antecedent motives; that, in cases of equal conflict, the exact equality did not long continue, because some new but slight motive slipped in unperceived and turned the scale on one side or the other. (See Plutarch *De Stoicorum Repugnantiis*, c. 23, p. 1045.) Here, we see, the question now known as the Freedom of the Will is discussed: and Chrysippus declares against it, affirming that volition is always determined by motives.

But we also see that, while declaring this opinion, Chrysippus does not employ the terms Necessity or Freedom of the Will: neither did his opponents, so far as we can see: they had a different and less misleading phrase. By Freedom, Chrysippus and the Stoics meant the freedom of doing

what a man willed, if he willed it. A man is free, as to the thing that is in his power, when he wills it: he is not free, as to what is not in his power, under the same supposition. The Stoics laid great stress on this distinction. They pointed out how much it is really in a man's power to transform or discipline his own mind: in the way of controlling or suppressing some emotions, generating or encouraging others, forming new intellectual associations, &c., how much a man could do in these ways, *if he willed it*, and if he went through the lessons, habits of conduct, meditations, suitable to produce such an effect. The Stoics strove to create in a man's mind the volitions appropriate for such mental discipline, by depicting the beneficial consequences resulting from it, and the misfortune and shame inevitable, if the mind were not so disciplined. Their purpose was to strengthen the governing reason of his mind, and to enthrone it as a fixed habit and character, which would control by counter suggestions the impulse arising at each special moment—particularly all disturbing terrors or allurements. This, in their view, is a *free mind*; not one wherein volition is independent of all motive, but one wherein the susceptibility to different motives is tempered by an ascendant reason, so as to give predominance to the better motive against the worse. One of the strongest motives that they endeavoured to enforce, was the prudence and dignity of bringing our volitions into harmony with the schemes of Providence: which (they said) were always arranged with a view to the happiness of the kosmos on the whole. The bad man, whose volitions conflict with these schemes, is always baulked of his expectations, and brought at last against his will to see things carried by an overruling force, with aggravated pain and humiliation to himself: while the good man, who resigns himself to them from the first, always escapes with less pain, and often without any at all. *Ducunt volentem fata, nolentem trahunt.*

We have thus seen that in regard to the doctrine called in modern times the Freedom of the Will (*i.e.*, that volitions are self-originating and

unpredictable), the Stoic theorists not only denied it, but framed all their Ethics upon the assumption of the contrary. This same assumption of the contrary, indeed, was made also by Sokrates, Plato, Aristotle, and Epicurus: in short, by all the ethical teachers of antiquity. All of them believed that volitions depended on causes: that under the ordinary conditions of men's minds, the causes that volitions generally depended upon are often misleading and sometimes ruinous: but that by proper stimulation from without and meditation within, the rational causes of volition might be made to overrule the impulsive. Plato, Aristotle, Epicurus, not less than the Stoics, wished to create new fixed habits and a new type of character. They differed, indeed, on the question what the proper type of character was: but each of them aimed at the same general end—a new type of character, regulating the grades of susceptibility to different motives. And the purpose of all and each of these moralists precludes the theory of free-will—*i.e.*, the theory that our volitions are self-originating and unpredictable.

III.—We must consider next the Stoical theory of Happiness, or rather of the *Good*, which with them was proclaimed to be the sole, indispensable, and self-sufficing condition of Happiness. They declared that Pleasure was no part of Good, and Pain no part of Evil; therefore, that even relief from pain was not necessary to Good or Happiness. This, however, if followed out consistently, would dispense with all morality and all human endeavour. Accordingly, the Stoics were obliged to let in some pleasures as an object of pursuit, and some pains as an object of avoidance, though not under the title of Good and Evil, but with the inferior name of *Sumenda* and *Rejicienda*.^[9] Substantially, therefore, they held that pains are an evil, but, by a proper discipline, may be triumphed over. They disallowed the direct and ostensible pursuit of pleasure as an end (the point of view of Epicurus), but allured their followers partly by promising them the victory over pain, and partly by certain enjoyments of an elevated cast that grew out of their plan of life.

Pain of every kind, whether from the casualties of existence, or from, the severity of the Stoical virtues, was to be met by a discipline of endurance, a hardening process, which, if persisted in, would succeed in reducing the mind to a state of *Apathy* or indifference. A great many reflections were suggested in aid of this education. The influence of exercise and repetition in adapting the system to any new function, was illustrated by the Olympian combatants, and by the Lacedaemonian youth, who endured scourging without complaint. Great stress was laid on the instability of pleasure, and the constant liability to accidents; whence we should always be anticipating and adapting ourselves to the worst that could happen, so as never to be in a state where anything could ruffle the mind. It was pointed out how much might still be made of the worst circumstances—poverty, banishment, public odium, sickness, old age—and every consideration was advanced that could 'arm the obdurate breast with stubborn patience, as with triple steel.' It has often been remarked that such a discipline of endurance was peculiarly suited to the unsettled condition of the world at the time, when any man, in addition to the ordinary evils of life, might in a moment be sent into exile, or sold into slavery.

Next to the discipline of endurance, we must rank the complacent sentiment of *Pride*, which the Stoic might justly feel in his conquest of himself, and in his lofty independence and superiority to the casualties of life.[10] The pride of the Cynic, the Stoic's predecessor, was prominent and offensive, showing itself in scurrility and contempt towards everybody else; the Stoical pride was a refinement upon this, but was still a grateful sentiment of superiority, which helped to make up for the surrender of indulgences. It was usual to bestow the most extravagant laudation on the 'Wise Man,' and every Stoic could take this home to the extent that he considered himself as approaching that great ideal.

The last and most elevated form of Stoical happiness was the satisfaction of contemplating the Universe and God. Epictetus says, that we can accommodate ourselves cheerfully to the providence that rules the world, if we possess two things—the power of seeing all that happens in the proper relation to its own purpose—and a grateful disposition. The work of Antoninus is full of studies of Nature in the devout spirit of 'passing from Nature up to Nature's God;' he is never weary of expressing his thorough contentment with the course of natural events, and his sense of the beauties and fitness of everything. Old age has its grace, and death is the becoming termination. This high strain of exulting contemplation reconciled him to that complete submission to whatever might befall, which was the essential feature of the 'Life according to Nature,' as he conceived it.

IV.—The Stoical theory of Virtue is implicated in the ideas of the Good, now described.

The fountain of all virtue is manifestly the life according to nature; as being the life of subordination of self to more general interests—to family, country, mankind, the whole universe. If a man is prepared to consider himself absolutely nothing in comparison with the universal interest, and to regard it as the sole end of life, he has embraced an ideal of virtue of the loftiest order. Accordingly, the Stoics were the first to preach what is called 'Cosmopolitanism;' for although, in their reference to the good of the whole, they confounded together sentient life and inanimate objects—rocks, plants, &c., solicitude for which was misspent labour—yet they were thus enabled to reach the conception of the universal kindship of mankind, and could not but include in their regards the brute creation. They said: 'There is no difference between the Greeks and Barbarians; the world is our city.' Seneca urges kindness to slaves, for 'are they not men like ourselves, breathing the same air, living and dying like ourselves?'

The Epicureans declined, as much as possible, interference in public affairs, but the Stoic philosophers urged men to the duties of active citizenship. Chrysippus even said that the life of philosophical contemplation (such as Aristotle preferred, and accounted godlike) was to be placed on the same level with the life of pleasure; though Plutarch observes that neither Chrysippus nor Zeno ever meddled personally with any public duty; both of them passed their lives in lecturing and writing. The truth is that both of them were foreigners residing at Athens; and at a time when Athens was dependent on foreign princes. Accordingly, neither Zeno nor Chrysippus had any sphere of political action open to them; they were, in this respect, like Epictetus afterwards—but in a position quite different from Seneca, the preceptor of Nero, who might hope to influence the great imperial power of Rome, and from Marcus Antoninus, who held that imperial power in his own hands.

Marcus Antoninus—not only a powerful Emperor, but also the most gentle and amiable man of his day—talks of active beneficence both as a duty and a satisfaction. But in the creed of the Stoics generally, active Beneficence did not occupy a prominent place. They adopted the four Cardinal Virtues—Wisdom, or the Knowledge of Good and Evil; Justice; Fortitude; Temperance—as part of their plan of the virtuous life, the life according to Nature. Justice, as the social virtue, was placed above all the rest. But the Stoics were not strenuous in requiring more than Justice, for the benefit of others beside the agent. They even reckoned compassion for the sufferings of others as a weakness, analogous to envy for the good fortune of others.

The Stoic recognized the gods (or Universal Nature, equivalent expressions in his creed) as managing the affairs of the world, with a view to producing as much happiness as was attainable on the whole. Towards this end the gods did not want any positive assistance from him; but it was

his duty and his strongest interest, to resign himself to their plans, and to abstain from all conduct tending to frustrate them. Such refractory tendencies were perpetually suggested to him by the unreasonable appetites, emotions, fears, antipathies, &c., of daily life; all claiming satisfaction at the expense of future mischief to himself and others. To countervail these misleading forces, by means of a fixed rational character built up through meditation and philosophical teaching, was the grand purpose of the Stoic ethical creed. The emotional or appetitive self was to be starved or curbed, and retained only as an appendage to the rational self; an idea proclaimed before in general terms by Plato, but carried out into a system by the Stoics, and to a great extent even by the Epicureans.

The Stoic was taught to reflect how much that *appears* to be desirable, terror-striking, provocative, &c., is not really so, but is made to appear so by false and curable associations. And while he thus discouraged those self-regarding emotions that placed him in hostility with others, he learnt to respect the self of another man as well as his own. Epictetus advises to deal mildly with a man that hurts us either by word or deed; and advises it upon the following very remarkable ground. 'Recollect that in what he says or does, he follows his own sense of propriety, not yours. He must do what appears to him right, not what appears to you; if he judges wrongly, it is he that is hurt, for he is the person deceived. Always repeat to yourself, in such a case: The man has acted on his own opinion.'

The reason here given by Epictetus is an instance, memorable in ethical theory, of respect for individual dissenting conviction, even in an extreme case; and it must be taken in conjunction with his other doctrine, that damage thus done to us unjustly is really little or no damage, except so far as we ourselves give pungency to it by our irrational susceptibilities and associations. We see that the Stoic submerges, as much as he can, the pre-eminence of his own individual self, and contemplates himself from the

point of view of another, only as one among many. But he does not erect the happiness of others into a direct object of his own positive pursuit, beyond the reciprocities of family, citizenship, and common humanity. The Stoic theorists agreed with Epicurus in inculcating the reciprocities of justice between all fellow-citizens; and they even went farther than he did, by extending the sphere of such duties beyond the limits of city, so as to comprehend all mankind. But as to the reciprocities of individual friendship, Epicurus went beyond the Stoics, by the amount of self-sacrifice and devotion that he enjoined for the benefit of a friend.

There is also in the Stoical system a recognition of duties to God, and of morality as based on piety. Not only are we all brethren, but also the 'children of one Father.'

The extraordinary strain put upon human nature by the full Stoic *ideal* of submerging self in the larger interests of being, led to various compromises. The rigid following out of the ideal issued in one of the *paradoxes*, namely.—That all the actions of the wise man are equally perfect, and that, short of the standard of perfection, all faults and vices are equal; that, for example, the man that killed a cock, without good reason, was as guilty as he that killed his father. This has a meaning only when we draw a line between spirituality and morality, and treat the last as worthless in comparison of the first. The later Stoics, however, in their exhortations to special branches of duty, gave a positive value to practical virtue, irrespective of the *ideal*.

The idea of Duty was of Stoical origin, fostered and developed by the Roman spirit and legislation. The early Stoics had two different words,—one for the 'suitable' [Greek: *kathaekon*], or incomplete propriety, admitting of degrees, and below the point of rectitude, and another for the 'right' [Greek: *katorthoma*], or complete rectitude of action, which none could achieve except the wise man. It is a significant circumstance that the

'suitable' is the lineal ancestor of our word 'duty' (through the Latin *officium*).

It was a great point with the Stoic to be conscious of 'advance' or improvement.[11] By self-examination, he kept himself constantly acquainted with his moral state, and it was both his duty and his satisfaction to be approaching to the ideal of the perfect man.

It is very illustrative of the unguarded points and contradictions of Stoicism, that contentment and apathy were not to permit grief even for the loss of friends. Seneca, on one occasion, admits that he was betrayed by human weakness on this point. On strict Stoical principles, we ought to treat the afflictions and the death of others with the same frigid indifference as our own; for why should a man feel for a second person *more* than he ought to feel for himself, as a mere unit in the infinitude of the Universe? This is the contradiction inseparable from any system that begins by abjuring pleasure, and relief or protection from pain, as the ends of life. Even granting that we regard pleasure and relief from pain as of no importance in our own case, yet if we apply the same measure to others we are bereft of all motives to benevolence; and virtue, instead of being set on a loftier pinnacle, is left without any foundation.

EPICURUS. [311—270 B.C.]

Epicurus was born 341 B.C. in the island of Samos. At the age of eighteen, he repaired to Athens, where he is supposed to have enjoyed the teaching of Xenocrates or Theophrastus. In 306 B.C., he opened a school in a garden in Athens, whence his followers have sometimes been called the 'philosophers of the garden.' His life was simple, chaste, and temperate. Of the 300 works he is said to have written, nothing has come down to us except three letters, giving a summary of his views for the use of his friends, and a number of detached sayings, preserved by Diogenes Laertius

and others. Moreover, some fragments of his work on Nature have been found at Herculaneum. The additional sources of our knowledge of Epicurus are the works of his opponents, Cicero, Seneca, Plutarch, and of his follower Lucretius. Our information from Epicurean writers respecting the doctrines of their sect is much less copious than what we possess from Stoic writers in regard to Stoic opinions. We have no Epicurean writer on Philosophy except Inicretius; whereas respecting the Stoical creed under the Roman Empire, the important writings of Seneca, Epictetus, and Marcus Antoninus, afford most valuable evidence.

To Epicurus succeeded, in the leadership of his school, Hermachus, Polystratus, Dionysius, Basilides, and others, ten in number, down to the age of Augustus. Among Roman Epicureans, Lucretius (95—51 B.C.) is the most important, his poem (*De Rerum Natura*), being the completest account of the system that exists. Other distinguished followers were Horace, Atticus, and Lacian. In modern times, Pierre Gassendi (1592—1655) revived the doctrines of Epicurus, and in 1647 published his '*Syntagma Philosophiae Epicuri*,' and a *Life of Epicurus*. The reputation of Gassendi, in his life time, rested chiefly upon his physical theories; but his influence was much felt as a Christian upholder of Epicureanism. Gassendi was at one time in orders as a Roman Catholic, and professor of theology and philosophy. He established an Epicurean school in France, among the disciples of which were, Moliere, Saint Evremond, Count de Grammont, the Duke of Rochefoncalt, Fontenelle, and Voltaire.

The standard of Virtue and Vice is referred by Epicurus to pleasure and pain. Pain is the only evil, Pleasure is the only good. Virtue is no end in itself, to be sought: Vice is no end in itself, to be avoided. The motive for cultivating Virtue and banishing Vice arises from the consequences of each, as the means of multiplying pleasures and averting or lessening pains. But to the attainment of this purpose, the complete supremacy of Reason is

indispensable; in order that we may take a right comparative measure of the varieties of pleasure and pain, and pursue the course that promises the least amount of suffering.[12]

In all ethical theories that make happiness the supreme object of pursuit, the position of virtue depends entirely upon the theory of what constitutes happiness. Now, Epicurus (herein differing from the Stoics, as well as Aristotle), did not recognize Happiness as anything but freedom from pain and enjoyment of pleasure. It is essential, however, to understand, how Epicurus conceived pleasure and pain, and what is the Epicurean scale of pleasures and pains, graduated as objects of reasonable desire or aversion? It is a great error to suppose that, in making pleasure the standard of virtue, Epicurus had in view that elaborate and studied gratification of the sensual appetites that we associate with the word *Epicurean*. Epicurus declares —'When we say that pleasure is the end of life, we do not mean the pleasures of the debauchee or the sensualist, as some from ignorance or from malignity represent, but freedom of the body from pain, and of the soul from anxiety. For it is not continuous drinkings and revellings, nor the society of women, nor rare viands, and other luxuries of the table, that constitute a pleasant life, but sober contemplation, such as searches out the grounds of choice and avoidance, and banishes those chimeras that harass the mind.

Freedom from pain is thus made the primary element of happiness; a one-sided view, respected in the doctrine of Locke, that it is not the idea of future good, but the present greatest uneasiness that most strongly affects the will. A neutral state of feeling is necessarily imperilled by a greedy pursuit of pleasures; hence the *dictum*, to be content with little is a great good; because little is most easily obtained. The regulation of the desires is therefore of high moment. According to Epicurus, desires fall into three grades. Some are *natural* and *necessary*, such as desire of drink, food, or

life, and are easily gratified. But when the uneasiness of a want is removed, the bodily pleasures admit of no farther increase; anything additional only *varies* the pleasure. Hence the luxuries which go beyond the relief of our wants are thoroughly superfluous; and the desires arising from them (forming the *second* grade) though *natural*, are *not necessary*. A *third* class of desires is neither natural nor necessary, but begotten of vain opinion; such as the thirst for civic honours, or for power over others; those desires are the most difficult to gratify, and even if gratified, entail upon us trouble, anxiety, and peril. [This account of the desires, following up the advice—If you wish to be rich, study not to increase your goods, but to diminish your desires—is to a certain extent wise and even indispensable; yet not adapted to all temperaments. To those that enjoy pleasure very highly, and are not sensitive in an equal degree to pain, such a negative conception of happiness would be imperfect.] Epicurus did not, however, deprecate positive pleasure. If it could be reached without pain, and did not result in pain, it was a pure good; and, even if it could not be had without pain, the question was still open, whether it might not be well worth the price. But in estimating the worth of pleasure, the absence of any accompanying pain should weigh heavily in the balance. At this point, the Epicurean theory connects itself most intimately with the conditions of virtue; for virtue is more concerned with averting mischief and suffering, than with multiplying positive enjoyments.

Bodily feeling, in the Epicurean psychology, is prior in order of time to the mental element; the former was primordial, while the latter was derivative from it by repeated processes of memory and association. But though such was the order of sequence and generation, yet when we compare the two as constituents of happiness to the formed man, the mental element much outweighed the bodily, both as pain and as pleasure. Bodily pain or pleasure exists only in the present; when not felt, it is nothing. But mental feelings involve memory and hope—embrace the past as well as the

future—endure for a long time, and may be recalled or put out of sight, to a great degree, at our discretion.

This last point is one of the most remarkable features of the Epicurean mental discipline. Epicurus deprecated the general habit of mankind in always hankering after some new satisfaction to come; always discontented with the present, and oblivious of past comforts as if they had never been. These past comforts ought to be treasured up by memory and reflection, so that they might become as it were matter for rumination, and might serve, in trying moments, even to counterbalance extreme physical suffering. The health of Epicurus himself was very bad during the closing years of his life. There remains a fragment of his last letter, to an intimate friend and companion, Idomeneus—'I write this to you on the last day of my life, which, in spite of the severest internal bodily pains, is still a happy day, because I set against them in the balance all the mental pleasure felt in the recollection of my past conversations with you. Take care of the children left by Metrodorus, in a manner worthy of your demeanour from boyhood towards me and towards philosophy.' Bodily pain might thus be alleviated, when it occurred; it might be greatly lessened in occurrence, by prudent and moderate habits; lastly, even at the worst, if violent, it never lasted long; if not violent, it might be patiently borne, and was at any rate terminated, or terminable at pleasure, by death.

In the view of Epicurus, the chief miseries of life arose, not from bodily pains, but partly from delusions of hope, and exaggerated aspirations for wealth, honours, power, &c., in all which the objects appeared most seductive from a distance, inciting man to lawless violence and treachery, while in the reality they were always disappointments, and generally something worse; partly, and still more, from the delusions of fear. Of this last sort, were the two greatest torments of human existence—fear of Death, and of eternal suffering after death, as announced by prophets and poets,

and Fear of the Gods. Epicurus, who did not believe in the continued existence of the soul separate from the body, declared that there could never be any rational ground for fearing death, since it was simply a permanent extinction of consciousness.[13] Death was nothing to us (he said); when death comes, we are no more, either to suffer or to enjoy. Yet it was the groundless fear of this nothing that poisoned all the tranquillity of life, and held men imprisoned even when existence was a torment. Whoever had surmounted that fear was armed at once against cruel tyranny and against all the gravest misfortunes. Next, the fear of the gods was not less delusive, and hardly less tormenting, than the fear of death. It was a capital error (Epicurus declared) to suppose that the gods employed themselves as agents in working or superintending the march of the Cosmos; or in conferring favour on some men, and administering chastisement to others. The vulgar religious tales, which represented them in this character, were untrue and insulting as regards the gods themselves, and pregnant with perversion and misery as regards the hopes and fears of mankind. Epicurus believed sincerely in the gods; revered them as beings at once perfectly happy, immortal, and unchangeable; and took delight in the public religious festivals and ceremonies. But it was inconsistent with these attributes, and repulsive to his feelings of reverence, to conceive them as agents. The idea of agency is derived from human experience; we, as agents, act with a view to supply some want, to fulfil some obligation, to acquire some pleasure, to accomplish some object desired but not yet attained—in short, to fill up one or other of the many gaps in our imperfect happiness; the gods already *have* all that agents strive to get, and more than agents ever do get; their condition is one not of agency, but of tranquil, self-sustaining, fruition. Accordingly, Epicurus thought (as Aristotle[14] had thought before him) that the perfect, eternal, and imperturbable well-being and felicity of the gods excluded the supposition of their being agents. He looked upon them as types of that unmolested safety and unalloyed satisfaction which was

what he understood by pleasure or happiness—as objects of reverential envy, whose sympathy he was likely to obtain by assimilating his own temper and condition to theirs, as far as human circumstances allowed.

These theological views were placed by Epicurus in the foreground of his ethical philosophy, as the only means of dispelling those fears of the gods that the current fables instilled into every one, and that did so much to destroy human comfort and security. He proclaimed that beings in immortal felicity neither suffered vexation in themselves nor caused vexation to others—neither showed anger nor favour to particular persons. The doctrine that they were the working managers in the affairs of the Cosmos, celestial and terrestrial, human and extra-human, he not only repudiated as incompatible with their attributes, but declared to be impious, considering the disorder, sufferings, and violence, everywhere visible. He disallowed all prophecy, divination, and oracular inspiration, by which the public around him believed that the gods were perpetually communicating special revelations to individuals, and for which Sokrates had felt so peculiarly thankful.[15]

It is remarkable that Stoics and Epicureans, in spite of their marked opposition in dogma or theory, agreed so far in practical results, that both declared these two modes of uneasiness (fear of the gods and fear of death) to be the great torments of human existence, and both strove to remove or counterbalance them.

So far, the teaching of Epicurus appears confined to the separate happiness of each individual, as dependent upon his own prudence, sobriety, and correct views of Nature. But this is not the whole of the Epicurean Ethics. The system also considered each man as in companionship with others; The precepts were shaped accordingly, first as to Justice, next as to Friendship. In both these, the foundation whereon

Epicurus built was Reciprocity: not pure sacrifice to others, but partnership with others, beneficial to all. He kept the ideas of self and of others inseparably knit together in one complex association: he did not expel or degrade either, in order to give exclusive ascendancy to the other. The dictate of Natural Justice was that no man should hurt another: each was bound to abstain from doing harm to others; each, on this condition, was entitled to count on security and relief from the fear that others would do harm to him. Such double aspect, or reciprocity, was essential to social companionship: those that could not, or would not, accept this covenant, were unfit for society. If a man does not behave justly towards others, he cannot expect that they will behave justly towards him; to live a life of injustice, and expect that others will not find it out, is idle. The unjust man cannot enjoy a moment of security. Epicurus laid it down explicitly, that just and righteous dealing was the indispensable condition to every one's comfort, and was the best means of attaining it.

The reciprocity of Justice was valid towards all the world; the reciprocity of friendship went much farther; it involved indefinite and active beneficence, but could reach only to a select few. Epicurus insisted emphatically on the value of friendship, as a means of happiness to both the persons so united. He declared that a good friend was another self, and that friends ought to be prepared, in case of need, to die for each other. Yet he declined to recommend an established community of goods among the members of his fraternity, as prevailed in the Pythagorean brotherhood: for such an institution (he said) implied mistrust. He recommended efforts to please and to serve, and a forwardness to give, for the purpose of gaining and benefiting a friend, and he even declared that there was more pleasure in conferring favours than in receiving them; but he was no less strenuous in inculcating an intelligent gratitude on the receiver. No one except a wise man (he said) knew how to return a favour properly.[16]

Virtue and happiness, in the theory of Epicurus, were thus inseparable. A man could not be happy until he had surmounted the fear of death and the fear of gods instilled by the current fables, which disturbed all tranquillity of mind; until he had banished those factitious desires that pushed him into contention for wealth, power, or celebrity; nor unless he behaved with justice to all, and with active devoted friendship towards a few. Such a mental condition, which he thought it was in every man's power to acquire by appropriate teaching and companionship, constituted virtue; and was the sure as well as the only precursor of genuine happiness. A mind thus undisturbed and purified was sufficient to itself. The mere satisfaction of the wants of life, and the conversation of friends, became then felt pleasures; if more could be had without preponderant mischief, so much the better; but Nature, disburthened of her corruptions and prejudices, required no more to be happy. This at least was as much as the conditions of humanity admitted: a tranquil, undisturbed, innocuous, non-competitive fruition, which approached most nearly to the perfect happiness of the Gods.[17]

The Epicurean theory of virtue is the type of all those that make an enlightened self-interest the basis of right and wrong. The four cardinal virtues were explained from the Epicurean point of view. *Prudence* was the supreme rule of conduct. It was a calculation and balancing of pleasures and pains. Its object was a judicious selection of pleasures to be sought. It teaches men to forego idle wishes, and to despise idle fears. *Temperance* is the management of sensual pleasures. It seeks to avoid excess, so as on the whole to extract as much pleasure as our bodily organs are capable of affording. *Fortitude* is a virtue, because it overcomes fear and pain. It consists in facing danger or enduring pain, to avoid greater possible evils. *Justice* is of artificial origin. It consists in a tacit agreement among mankind to abstain from injuring one another. The security that every man has in his person and property, is the great consideration urging to abstinence from

injuring others. But is it not possible to commit injustice with safety? The answer was, 'Injustice is not an evil in itself, but becomes so from the fear that haunts the injurer of not being able to escape the appointed avengers of such acts.'

The Physics of Epicurus were borrowed in the main from the atomic theory of Democritus, but were modified by him in a manner subservient and contributory to his ethical scheme. To that scheme it was essential that those celestial, atmospheric, or terrestrial phenomena that the public around him ascribed to the agency and purposes of the gods, should be understood as being produced by physical causes. An eclipse, an earthquake, a storm, a shipwreck, unusual rain or drought, a good or a bad harvest—and not merely these, but many other occurrences far smaller and more unimportant, as we may see by the eighteenth chapter of the Characters of Theophrastus—were then regarded as visitations of the gods, requiring to be interpreted by recognized prophets, and to be appeased by ceremonial expiations. When once a man became convinced that all these phenomena proceeded from physical agencies, a host of terrors and anxieties would disappear from the mind; and this Epicurus asserted to be the beneficent effect and real recommendation of physical philosophy. He took little or no thought for scientific curiosity as a motive *per se*, which both Democritus and Aristotle put so much in the foreground.

Epicurus adopted the atomistic scheme of Democritus, but with some important variations. He conceived that the atoms all moved with equal velocity in the downward direction of gravity. But it occurred to him that upon this hypothesis there could never occur any collisions or combinations of the atoms—nothing but continued and unchangeable parallel lines. Accordingly, he modified it by saying that the line of descent was not exactly rectilinear, but that each atom deflected a little from the straight line, and each in its own direction and degree; so that it became possible to

assume collisions, resiliences, adhesions, combinations, among them, as it had been possible under the variety of original movements ascribed to them by Democritus. The opponents of Epicurus derided this auxiliary hypothesis; they affirmed that he invented the individual deflection of each atom, without assigning any cause, and only because he was perplexed by the mystery of man's *free-will*. But Epicurus was not more open to attack on this ground than other physical philosophers. Most of them (except perhaps the most consistent of the Stoic fatalists) believed that some among the phenomena of the universe occurred in regular and predictable sequence, while others were essentially irregular and unpredictable; each philosopher devised his hypothesis, and recognized some fundamental principle, to explain the first class of phenomena as well as the second. Plato admitted an invincible Erratic necessity; Aristotle introduced Chance and Spontaneity; Democritus multiplied indefinitely the varieties of atomic movements. The hypothetical deflexion alleged by Epicurus was his way, not more unwarranted than the others, of providing a fundamental principle for the unpredictable phenomena of the universe. Among these are the mental (including the volitional) manifestations of men and animals; but there are many others besides; and there is no ground for believing that the mystery of free-will was peculiarly present to his mind. The movements of a man or animal are not exclusively subject to gravitation and other general laws; they are partly governed by mental impulses and by forces of the organism, intrinsic and peculiar to himself, unseen and unfelt by others. For these, in common with many other untraceable phenomena in the material world, Epicurus provides a principle in the supplementary hypothesis of deflexion. He rejected the fatalism contained in the theories of some of the Stoics, and admitted a limited range of empire to chance, or irregularity. But he maintained that the will, far from being among the phenomena essentially irregular, is under the influence of motives; for no man can insist more strenuously than he does (see the Letter to Menoecens) on the

complete power of philosophy,—if the student could be made to feel its necessity and desire the attainment of it, so as to meditate and engrain within himself sound views about the gods, death, and human life generally,—to mould our volitions and character in a manner conformable to the exigencies of virtue and happiness.

When we read the explanations given by Epicurus and Lucretius of what the Epicurean theory really was, and compare them with the numerous attacks made upon it by opponents, we cannot but remark that the title or formula of the theory was ill chosen, and was really a misnomer. What Epicurus meant by Pleasure was, not what most people meant by it, but something very different—a tranquil and comfortable state of mind and body; much the same as what Democritus had expressed before him by the phrase [Greek: *euthymia*]. This last phrase would have expressed what Epicurus aimed at, neither more nor less. It would at least have preserved his theory from much misplaced sarcasm and aggressive rhetoric.

THE NEO-PLATONISTS.

PLOTINUS (A.D. 205—70), PORPHYRY, &c.

Constructed with reference to the broken-down state of ancient society, and seeking its highest aim in a regeneration of humanity, the philosophical system of Neo-Platonism was throughout ethical or ethico-religious in spirit; yet its ethics admits of no great development according to the usual topics. A pervading ethical character is not incompatible with the absence of a regular ethical scheme; and there was this peculiarity in the system, that its end, though professedly moral, was to be attained by means of an intellectual regimen. In setting up its ideal of human effort, it was least of all careful about prescribing a definite course of external conduct.

The more strictly ethical views of PLOTINUS, the chief representative of the school, are found mainly in the first of the six Enneads into which Porphyry collected his master's essays. But as they presuppose the cosmological and psychological doctrines, their place in the works, as now arranged, is to be regarded as arbitrary. The soul having fallen from its original condition, and, in consequence and as a penalty, having become united with a material body, the one true aim recognized for human action is, to rise above the debasing connection with matter, and again to lead the old spiritual life. For those that have sunk so far as to be content with the world of sense, wisdom consists in pursuing pleasure as good, and shunning pain as evil: but the others can partake of a better life, in different degrees. The first step in reformation is to practise virtue in the affairs of life, which means to subject Sense and the lower desires to Reason. This is done in the fourfold form of the common cardinal virtues, called *political* by Plotinus, to mark the sphere of action where they can be exerted, and is the virtue of a class of men capable of a certain elevation, though ignorant of all the rest that lies above them. A second step is made through the means of the [Greek: katharseis] or *purifying* virtues; where it is sought to root out, instead of merely moderating, the sensual affections. If the soul is thus altogether freed from the dominion of sense, it becomes at once able to follow its natural bent towards good, and enters into a permanent state of calm. This is virtue in its true meaning—becoming like to the Deity, all that went before being merely a preparation. The pure and perfect life of the soul may still be described as a field whereon the four virtues are exercised, but they now assume a far higher meaning than as political virtues, having relation solely to the contemplative life of the Nous.

Happiness is unknown to Plotinus as distinct from perfection, and perfection in the sense of having subdued all material cravings (except as regards the bare necessities of life), and entered upon the undisturbed life of contemplation. If this recalls, at least in name, the Aristotelian ideal, there

are points added that appear to be echoes of Stoicism. Rapt in the contemplation of eternal verities, the purified soul is indifferent to external circumstances: pain and suffering are unheeded, and the just man can feel happy even in the bull of Phalaris. But in one important respect the Neo-Platonic teaching is at variance with Stoical doctrine. Though its first and last precept is to rid the soul from the bondage of matter, it warns against the attempt to sever body and soul by suicide. By no forcible separation, which would be followed by a new junction, but only by prolonged internal effort is the soul so set free from the world of sense, as to be able to have a vision of its ancient home while still in the body, and to return to it at death. Small, therefore, as is the consideration bestowed by Neo-Platonism on the affairs of practical life, it has no disposition to shirk the burden of them.

One other peculiar aim, the highest of all, is proposed to the soul in the Alexandrian philosophy. It is peculiar, because to be understood only in connexion with the metaphysics and cosmology of the system. In the theory of Emanation, the primordial One or Good emits the Nous wherein the Ideas are immanent; the Nous, in turn, sends forth the Soul, and the Soul, Matter or nature; the gradation applying to man as well as to the Universe. Now, to each of these principles, there is a corresponding subjective state in the inner life of man. The life of sense answers to nature or the material body; the virtue that is founded upon free-will and reason, to the soul; the contemplative life, as the result of complete purification from sense, to the Nous or Sphere of Ideas; finally, to the One or Good, supreme in the scale of existence, corresponds the state of Love, or, in its highest form, *Ecstasy*. This peculiar elevation is something far above the highest intellectual contemplation, and is not reached by thought. It is not even a mere intuition of, but a real union or contact with, the Good. To attain it, there must be a complete withdrawal into self from the external world, and then the subject must wait quietly till perchance the state comes on. It is one of ineffable bliss, but, from the nature of man, transitory and rare.

SCHOLASTIC ETHICS.

ABAEWARD (1079-1142) has a special treatise on the subject of Ethics, entitled *Scito te ipsum*. As the name implies, it lays chief stress upon the Subjective element in morality, and, in this aspect, is considered to supply the idea that underlies a very large portion of modern ethical speculation. By nature a notoriously independent thinker, Abaelard claimed for philosophy the right of discussing ethical questions and fixing a natural moral law, though he allowed a corrective in the Christian scheme. Having this position with reference to the church, he was also much less under the yoke of philosophical authority than his successors, from living at a time when Aristotle was not yet supreme. Yet, with Aristotle, he assigns the attainment of the highest good as the aim of all human effort, Ethics showing the way; and, with the schoolmen generally, pronounces the highest good to be God. If the highest good in itself is God, the highest human good is love to God. This is attained by way of virtue, which is a good Will consolidated into a habit. On the influence of habit on action his view is Aristotelian. His own specialty lies in his judging actions solely with reference to the intention (*intentio*) of the agent, and this intention with reference to conscience (*conscientia*). All actions, he says, are in themselves indifferent, and not to be called good or evil except from the intention of the doer. *Peccatum*, is properly only the action that is done with evil intent; and where this is present, where the mental consent (*consensus*) is clearly established, there is *peccatum*, though the action remains unexecuted. When the *consensus* is absent, as in original sin, there is only *vitium*; hence, a life without *peccata* is not impossible to men in the exercise of their freedom, however difficult it may be.

The supremacy assigned by him to the subjective element of conscience appears in such phrases as, there is no sin except against conscience; also in the opinion he pronounces, that, though in the case of a mistaken moral

conviction, an action is not to be called good, yet it is not so bad as an action objectively right but done against conscience. Thus, without allowing that conscientious persecutors of Christians act rightly, he is not afraid, in the application of his principle, to say that they would act still more wrongly if through not listening to their conscience, they spared their victims. But this means only that by following conscience we avoid sinning; for virtue in the full sense, it is necessary that the conscience should have judged rightly. By what standard, however, this is to be ascertained, he nowhere clearly says. *Contemptus Dei*, given by him as the real and only thing that constitutes an action bad, is merely another subjective description.

ST. BERNARD of Clairvaux (1091-1153), the strenuous opponent of Abaelard, and the great upholder of mysticism against rationalism in the early scholastic period when the two were not yet reconciled, gave utterance, in the course of his mystical effusions, to some special views of love and disinterestedness.

There are two degrees of Christian virtue, Humility and Charity or Love. When men look into themselves, and behold the meanness that is found there, the fitting state of mind is, first, humility; but soon the sense of their very weakness begets in them charity and compassion towards others, while the sense also of a certain human dignity raises within them feelings of love towards the author of their being. The treatise *De Amore Dei* sets forth the nature of this love, which is the highest exercise of human powers. Its fundamental characteristic is its disinterestedness. It has its reward, but from meriting, not from seeking. It is purely voluntary, and, as a free sentiment, necessarily unbought; it has God for its single object, and would not be love to God, if he were loved for the sake of something else.

He distinguishes various degrees of love. There is, first, a natural love of self for the sake of self. Next, a motion of love towards God amid earthly misfortunes, which also is not disinterested. The third degree is different, being love to God for his own sake, and to our neighbour for God's sake. But the highest grade of all is not reached, until men come to love even themselves only by relation to God; at this point, with the disappearance of all special and interested affection, the mystic goal is attained.

JOHN of SALISBURY (d. 1180) is the last name to be cited in the early scholastic period. He professed to be a practical philosopher, to be more concerned about the uses of knowledge than about knowledge itself, and to subordinate everything to some purpose; by way of protest against the theoretic hair-splitting and verbal subtleties of his predecessors. Even more than in Ethics, he found in Politics his proper sphere. He was the staunchest upholder of the Papal Supremacy, which, after long struggles, was about to be established at its greatest height, before presiding at the opening of the most brilliant period of scholasticism.

In the *Policraticus* especially, but also in his other works, the foundations and provisions of his moral system are found. He has no distinction to draw in Ethics between theology and philosophy, but uses Scripture and observation alike, though Scripture always in the final appeal. Of philosophizing, the one final aim, as also of existence, is Happiness; the question, of questions, how it is to be attained. Happiness is not pleasure, nor possession, nor honour, but consists in following the path of virtue. Virtue is to be understood from the constitution of human nature. In man, there is a lower and a higher faculty of Desire; or, otherwise expressed, there are the various affections that have their roots in sense and centre in self-love or the desire of self-preservation, and there is also a natural love of justice implanted from the beginning. In proportion as the *appetitus justi*, which consists in will, gains upon the *appetitus commodi*, men become

more worthy of a larger happiness. Self-love rules in man, so long as he is in the natural state of sin; if, amid great conflict and by divine help, the higher affection gains the upper hand, the state of true virtue, which is identical with the theoretic state of belief, and also of pure love to God and man, is reached.

By the middle of the thirteenth century, the schoolmen had before them the whole works of Aristotle, obtained from Arabian and other sources. Whereas, previous to this time, they had comprehended nearly all the subjects of Philosophy under the one name of Dialectics or Logic, always reserving, however, Ethics to Theology, they were now made aware of the ancient division of the sciences, and of what had been accomplished in each. The effect, both in respect of form and of subject-matter, was soon apparent in such compilations or more independent works as they were able to produce after their commentaries on the Aristotelian text. But in Ethics, the nature of the subject demanded of men in their position a less entire submission to the doctrines of the pagan philosopher; and here accordingly they clung to the traditional theological treatment. If they were commenting on the Ethics of Aristotle, the Bible was at hand to supply his omissions; if they were setting up a complete moral system, they took little more than the ground-work from him, the rest being Christian ideas and precepts, or fragments borrowed from Platonism and other Greek systems, nearly allied in spirit to their own faith.

This is especially true, as will be seen, of Thomas Aquinas. His predecessors can be disposed of in a few words. ALEXANDER of HALES (d. 1245) was almost purely theological. BONAVENTURA (1221-74) in his double character of rigid Franciscan and mystic, was led far beyond the Aristotelian Ethics. The mean between excess and defect is a very good rule for the affairs of life, but the true Christian is bound besides to works of supererogation: first of all, to take on the condition of poverty; while the

state of mystic contemplation remains as a still higher goal for the few. ALBERT THE GREAT (1193-1280), the most learned and complete commentator of Aristotle that had yet appeared, divide the whole subject of Ethics into *Monastica*, *Oeconomica*, and *Politica*. In this division, which is plainly suggested by the Aristotelian division of Politics in the large sense, the term *Monastica* not inaptly expresses the reference that Ethics has to the conduct of men as individuals. Albert, however, in commenting on the Nicomachean Ethics, adds exceedingly little to the results of his author beyond the incorporation of a few Scriptural ideas. To the cardinal virtues he appends the *virtutes adjunctae*, Faith, Hope, and Charity, and again in his compendious work, *Summa Theologiae*, distinguishes them as *infusae*, the cardinal being considered as *acquisitae*.

Besides his commentaries on the Aristotelian works (the Ethics included) and many other writings, THOMAS AQUINAS (1226-74) left two large works, the *Summa philosophica* and the famous *Summa Theologiae*. Notwithstanding the prominence assigned to theological questions, the first is a regular philosophical work; the second, though containing the exposition of philosophical opinions, is a theological textbook. Now, as it is in the Summary for theological purposes that the whole practical philosophy of Aquinas is contained, it is to be inferred that he regarded the subject of Ethics as not on the same level with other departments of philosophy. Moreover, even when he is not appealing to Scripture, he is seen to display what is for him a most unusual tendency to desert Aristotle, at the really critical moments, for Plato or Plotinus, or any other authority of a more theological cast.

In the (unfinished) *Summa Theologiae*, the Ethical views and cognate questions occupy the two sections of the second part—the so-called *prima* and *secunda secundae*. He begins, in the Aristotelian fashion, by seeking an ultimate end of human action, and finds it in the attainment of the highest

good or happiness. But as no created thing can answer to the idea of the highest good, it must be placed in God. God, however, as the highest good, can only be the object, in the search after human happiness, for happiness in itself is a state of the mind or act of the soul. The question then arises, "what sort of act?" Does it fall under the Will or under the Intelligence? The answer is, Not under the will, because happiness is neither desire nor pleasure, but *consecutio*, that is, a possessing. Desire precedes *consecutio*, and pleasure follows upon it; but the act of getting possession, in which lies happiness, is distinct from both. This is illustrated by the case of the miser having his happiness in the mere possession of money; and the position is essentially the same as Butler's, in regard to our appetites and desires, that they blindly seek their objects with no regard to pleasure. Thomas concludes that the *consecutio*, or happiness, is an act of the intelligence; what pleasure there is being a mere accidental accompaniment.

Distinguishing between two phases of the intellect—the theoretic and the practical—in the one of which it is an end to itself, but in the other subordinated to an external aim, he places true happiness in acts of the self-sufficing theoretic intelligence. In this life, however, such a constant exercise of the intellect is not possible, and accordingly what happiness there is, must be found, in great measure, in the exercise of the practical intellect, directing and governing the lower desires and passions. This twofold conception of happiness is Aristotelian, even as expressed by Thomas under the distinction of perfect and imperfect happiness; but when he goes on to associate perfect happiness with the future life only, to found an argument for a future life from the desire of a happiness more perfect than can be found here, and to make the pure contemplation, in which consists highest bliss, a vision of the divine essence face to face, a direct cognition of Deity far surpassing demonstrative knowledge or mortal faith—he is more theologian than philosopher, or if a philosopher, more Platonist than Aristotelian.

The condition of perfect happiness being a theoretic or intellectual state, the *visio*, and not the *delectatio*, is consistently given as its central fact; and when he proceeds to consider the other questions of Ethics, the same superiority is steadily ascribed to the intellectual function. It is because we *know* a thing to be good that we wish it, and knowing it, we cannot help wishing. Conscience, as the name implies, is allied to knowledge. Reason gives the law to will.

After a long disquisition about the passions and the whole appetitive side of human nature, over which Reason is called to rule, he is brought to the subject of virtue. He is Aristotelian enough to describe virtue as *habitus*—a disposition or quality (like health) whereby a subject is more or less well disposed with reference to itself or something else; and he takes account of the acquisition of good moral habits (*virtutes acquisitae*) by practice. But with this he couples, or tends to substitute for it, the definition of Augustin that virtue is a good quality of mind, *quam Deus in nobis sine nobis operatur*, as a ground for *virtutes infusae*, conferred as gifts upon man, or rather on certain men, by free grace from on high. He wavers greatly at this stage, and in this respect his attitude is characteristic for all the schoolmen.

So again in passing from the general question of Virtue to the virtues, he puts several of the systems under contribution, as if not prepared to leave the guidance of Aristotle, but feeling at the same time the necessity of bridging over the distance between his position and Christian requirements. Understanding Aristotle to make a co-ordinate division of virtues into Moral and Intellectual, he gives reasons for such a step. Though virtue, he says, is not so much the perfecting of the operation of our faculties, as their employment by the will for good ends, it may be used in the first sense, and thus the intellectual virtues will be the habits of intelligence that procure the truest knowledge. The well-known division of the cardinal virtues is his next theme; and it is established as complete and satisfactory by a twofold

deduction. But a still higher and more congenial view is immediately afterwards adopted from Plotinus. This is the Neo-Platonic description of the four virtues as *politicae*, *purgatoriae*, and *purgati animi*, according to the scale of elevation reached by the soul in its efforts to mount above sense. They are called by Thomas also *exemplares*, when regarded at once as the essence of the Deity, and as the models of human perfections.

This mystical division, not unsupported by philosophical authority, smooths the way for his account of the highest or *theological* virtues. These bear upon the vision of Deity, which was recognized above as the highest good of humanity, and form an order apart. They have God for their object, are altogether inspired by God (hence called *infusae*), and are taught by revelation. Given in connection with the natural faculties of intellect and will, they are exhibited in the attainment of the supernatural order of things. With intellect goes *Faith*, as it were the intellect applied to things not intelligible; with Will go Hope and Charity or Love: Hope being the Will exercised upon things not naturally desired, and Love the union of Will with what is not naturally brought near to us.

Aquinas then passes to politics, or at least the discussion of the political ideas of law, right, &c.

Coming now to *modern* thinkers, we begin with

THOMAS HOBBS. [1588-1679.]

The circumstances of Hobbes's life, so powerful in determining the nature of his opinions, had an equally marked effect on the order and number of expositions that he gave to the psychological and political parts of his system. His ethical doctrines, in as far as they can be dissociated from, his politics, may be studied in no less than three distinct forms; either in the

first part of the Leviathan (1651); or in the De Cive (1647), taken along-with the *De Homine* (1658); or in the Treatise of Human Nature (1650, but written ten years earlier), coupled with the De Corpore Politico (also 1650). But the same result, or with only unimportant variations, being obtained from all, we need not here go beyond the first-mentioned.

In the first part of the Leviathan, then, bearing the title *Of Man*, and designed to consider Man as at once the *matter* and *artificer* of the Commonwealth or State, Hobbes is led, after discussing Sense, Imagination, Train of Imaginations, Speech, Reason and Science, to take up, in chapter sixth, the Passions, or, as he calls them, the Interior beginnings of voluntary motions. Motions, he says, are either vital and animal, or voluntary. Vital motions, *e.g.*, circulation, nutrition, &c., need no help of imagination; on the other hand, voluntary motions, as going and speaking—since they depend on a precedent thought of whither, which way, and what—have in the imagination their first beginning. But imagination is only the relics of sense, and sense, as Hobbes always declares, is motion in the human organs communicated by objects without; consequently, visible voluntary motions begin in invisible internal motions, whose nature is expressed by the word *Endeavour*. When the endeavour is towards something causing it, there is Appetite or Desire; endeavour 'fromward something' is Aversion. These very words, and the corresponding terms in Greek, imply an actual, not—as the schoolmen absurdly think—a metaphorical motion. Passing from the main question, he describes Love and Hate as Desire and Aversion when the object is present. Of appetites, some are born with us, others proceed from experience, being of particular things. Where we neither desire nor hate, we condemn [he means, disregard]. Appetites and aversions vary in the same person, and much more in different persons.

Then follows his definition of *good*,—the object of any man's appetite or desire, as evil is the object of his hate and aversion. Good and evil are always merely relative, either to the person of a man, or in a commonwealth to the representative person, or to an arbitrator if chosen to settle a dispute. Good in the promise is *pulchrum*, for which there is no exact English term; good in the effect, as the end desired, is *delightful*; good as the means, is *useful* or *profitable*. There is the same variety of evil.

His next topic is Pleasure. As sense is, in *reality*, motion, but, in '*apparence*,' light or sound or odour; so appetite, in reality a motion or endeavour effected in the heart by the action of objects through the organs of sense, is, in '*apparence*,' delight or trouble of mind. The emotion, whose *apparence* (*i.e.*, subjective side) is pleasure or delight, seems to be a corroboration of vital motion; the contrary, in the case of molestation. Pleasure is, therefore, the sense of good; displeasure, the sense of evil. The one accompanies, in greater or less degree, all desire and love; the other, all aversion and hatred. Pleasures are either of *sense*; or of the *mind*, when arising—from the expectation that proceeds from the foresight of the ends or consequence of things, irrespective of their pleasing the senses or not. For these mental pleasures, there is the general name *joy*. There is a corresponding division of displeasure into *pain* and *grief*.

All the other passions, he now proceeds to show, are these *simple* passions—appetite, desire, love, aversion, hate, joy, and grief, diversified in name for divers considerations. Incidental remarks of ethical importance are these. *Covetousness*, the desire of riches, is a name signifying blame, because men contending for them are displeased with others attaining them; the desire itself, however, is to be blamed or allowed, according to the means whereby the riches are sought. *Curiosity* is a lust of the mind, that by a perseverance of delight in the continual generation of knowledge, exceedeth the short vehemence of any carnal pleasure. *Pity* is grief for the

calamity of another, arising from the imagination of the like calamity befalling one's self; the best men have, therefore, least pity for calamity arising from great wickedness. *Contempt*, or little sense of the calamity of others, proceeds from security of one's own fortune; 'for that any man should take pleasure in other men's great harms, without other end of his own, I do not conceive it possible.'

Having explained the various passions, he then gives his theory of the Will. He supposes a *liberty* in man of doing or omitting, according to appetite or aversion. But to this liberty an end is put in the state of *deliberation* wherein there is kept up a constant succession of alternating desires and aversions, hopes and fears, regarding one and the same thing. One of two results follows. Either the thing is judged impossible, or it is done; and this, according as aversion or appetite triumphs at the last. Now, the last aversion, followed by omission, or the last appetite, followed by action, is the act of *Willing*. Will is, therefore, the last appetite (taken to include aversion) in deliberating. So-called Will, that has been forborne, was *inclination* merely; but the last inclination with consequent action (or omission) is Will, or voluntary action.

After mentioning the forms of speech where the several passions and appetites are naturally expressed, and remarking that the truest signs of passion are in the countenance, motions of the body, actions, and ends or aims otherwise known to belong to a man,—he returns to the question of good and evil. It is *apparent* good and evil, come at by the best possible foresight of all the consequences of action, that excite the appetites and aversions in deliberation. *Felicity* he defines continual success in obtaining the things from time to time desired; perpetual tranquillity of mind being impossible in this life, which is but motion, and cannot be without desire and fear any more than without sense. The happiness of the future life is at present unknown.

Men, he says at the close, *praise* the goodness, and *magnify* the greatness, of a thing; the Greeks had also the word [Greek: makarismos], to express an opinion of a man's felicity.

In Chapter VII., Of the Ends of Discourse, he is led to remark on the meaning of *Conscience*, in connection-with the word *Conscious*. Two or more men, he says, are conscious of a thing when they know it together (*con-scire*.) Hence arises the proper meaning of conscience; and the evil of speaking against one's conscience, in this sense, is to be allowed. Two other meanings are metaphorical: when it is put for a man's knowledge of his own secret facts and thoughts; and when men give their own new opinions, however absurd, the revered name of conscience, as if they would have it seem unlawful to change or speak against them. [Hobbes is not concerned to foster the moral independence of individuals.]

He begins Chapter VIII. by defining Virtue as something that is valued for eminence, and that consists in comparison, but proceeds to consider only the intellectual virtues—all that is summed up in the term of a *good wit*—and their opposites. Farther on, he refers difference of wits—discretion, prudence, craft, &c.—to difference in the passions, and this to difference in constitution of body and of education. The passions chiefly concerned are the desires of power, riches, knowledge, honour, but all may be reduced to the single desire of power.

In Chapter IX. is given his Scheme of Sciences. The relation in his mind between Ethics and Politics is here seen. Science or Philosophy is divided into Natural or Civil, according as it is knowledge of consequences from the accidents of natural bodies or of politic bodies. Ethics is one of the ultimate divisions of Natural Philosophy, dealing with consequences from the *passions* of men; and because the passions are *qualities* of bodies, it falls more immediately under the head of Physics. Politics is the whole of the

second main division, and deals with consequences from the institution of commonwealths (1) to the rights and duties of the Sovereign, and (2) to the duty and right of the Subject.

Ethics, accordingly, in Hobbes's eyes, is part of the science of man (as a natural body), and it is always treated as such. But subjecting, as he does, so much of the action of the individual to the action of the state, he necessarily includes in his Politics many questions that usually fall to Ethics. Hence arises the necessity of studying for his Ethics also part of the civil Philosophy; though it happens that, in the Leviathan, this requisite part is incorporated with the Section containing the Science of Man.

Chapter X. is on Power, Worth, Dignity, Honour, and Worthiness. A man's *power* being his present means to obtain some future apparent good, he enumerates all the sources of original and acquired power. The *worth* of a man is what would be given for the use of his power; it is, therefore, never absolute, but dependent on the need and judgment of another. *Dignity* is the value set on a man by the state. *Honour* and *dishonour* are the manifestation of value. He goes through all the signs of honour and dishonour. *Honourable* is any possession, action, or quality that is the sign of power. Where there is the opinion of power, the justice or injustice of an action does not affect the honour. He clearly means a universally accepted opinion of power, and cites the characters of the pagan deities. So, too, before times of civil order, it was held no dishonour to be a pirate, and even still, duels, though unlawful, are honourable, and will be till there be honour ordained for them that refuse. Farther on, he distinguishes *Worthiness*, (1) from worth, and (2) from merit, or the possession of a particular ability or desert, which, as will be seen, presupposes a right to a thing, founded on a promise.

Chapter XI. bears the title, Of the difference of Manners; by manners being meant, not decency of behaviour and points of the 'small morals,' but the qualities of mankind that concern their living together in peace and unity. Felicity of life, as before, he pronounces to be a continual progress of desire, there being no *finis ultimus* nor *summum bonum*. The aim of all men is, therefore, not only to enjoy once and for an instant, but to assure for over the way of future desire. Men differ in their way of doing so, from diversity of passion and their different degrees of knowledge. One thing he notes as common to all, a restless and perpetual desire of power after power, because the present power of living well depends on the acquisition of more. Competition inclines to contention and war. The desire of ease, on the other hand, and fear of death or wounds, dispose to civil obedience. So also does desire of knowledge, implying, as it does, desire of leisure. Desire of praise and desire of fame after death dispose to laudable actions; in such fame, there is a present delight from foresight of it, and of benefit redounding to posterity; for pleasure to the sense is also pleasure in the imagination. Unrequitable benefits from an equal engender secret hatred, but from a superior, love; the cheerful acceptance, called *gratitude*, requiting the giver with honour. Requiteable benefits, even from equals or inferiors, dispose to love; for hence arises emulation in benefiting—'the most noble and profitable contention possible, wherein the victor is pleased with his victory, and the other

revenged by confessing it.' He passes under review other dispositions, such as fear of oppression, vain-glory, ambition, pusillanimity, frugality, &c., with reference to the course of conduct they prompt to. Then he comes to a favourite subject, the mistaken courses whereinto men fall that are ignorant of natural causes and the proper signification of words. The effect of ignorance of the causes of right, equity, law, and justice, is to make custom and example the rule of actions, as with children, or to induce the setting of custom against reason, and reason against custom, whereby the doctrine of right and wrong is perpetually disputed, both by the pen, and by the sword. Again, taking up ignorance of the laws of nature, he is led on to the subject of natural Religion, and devotes also the whole of Chapter XII. to Religion and kindred topics.

In Chapter XIII., he deals with the natural condition of Mankind, as concerning their Felicity and Misery. All men, he says, are by nature equal. Differences there are in the faculties of body and mind, but, when all is taken together, not great enough to establish a steady superiority of one over another. Besides even more than in strength, men are equal in *prudence*, which is but experience that comes to all. People indeed generally believe that others are not so wise as themselves, but 'there is not ordinarily a greater sign of equal distribution of anything than that every person is contented with his share.'

Of this equality of ability, the consequence is that two men desiring the exclusive possession of the same thing, whether for their own conservation or for delectation, will become enemies and seek to destroy each other. In such a case, it will be natural for any man to seek to secure himself by anticipating others in the use of force or wiles; and, because some will not be content with merely securing themselves, others, who would be content, will be driven to take the offensive for mere self-conservation. Moreover, men will be displeased at being valued by others less highly than by themselves, and will use force to extort respect.

Thus, he finds three principal causes of quarrel in the nature of man—*competition*, *diffidence* (distrust), and *glory*, making men invade for gain, for safety, and for reputation. Men will accordingly, in the absence of any power to keep them in awe, be in a constant state of war; by which is

meant, not actual fighting, but the known disposition thereto, and no assurance to the contrary.

He proceeds to draw a very dismal picture of the results of this state of enmity of man against man—no industry, no agriculture, no arts, no society, and so forth, but only fear and danger of violent death, and life solitary, poor, nasty, brutish, and short. To those that doubt the truth of such an 'inference made from the passions,' and desire the confirmation of experience, he cites the wearing of arms and locking of doors, &c., as actions that accuse mankind as much as any words of his. Besides, it is not really to accuse man's nature; for the desires and passions are in themselves no sin, nor the actions proceeding from them, until a law is made against them. He seeks further evidence of an original condition of war, in the actual state of American savages, with no government at all, but only a concord of small families, depending on natural lust; also in the known horrors of a civil war, when there is no common power to fear: and, finally, in the constant hostile attitude of different governments.

In the state of natural war, the notions of right and wrong, justice and injustice, have no place, there being no law; and there is no law, because there is no common power. Force and fraud are in war the two cardinal virtues. Justice is no faculty of body and mind like sense and passion, but only a quality relating to men in society. Then adding a last touch to the description of the state of nature,—by saying of property, that 'only that is every man's that he can get, and for so long as he can keep it,'—he opens up, at the close of the chapter, a new prospect by allowing a possibility to come out of so evil a condition. The possibility consists partly in the passions that incline to peace—viz., fear of death, desire of things necessary to commodious living, and hope by industry to obtain them; partly in reason, which suggests convenient articles of peace and agreement, otherwise called the Laws of Nature.

The first and second Natural Laws, and the subject of contracts, take up Chap. XIV. First comes a definition of *Jus Naturale* or Right of Nature—the liberty each man has of using his own power, as he will himself, for the preservation of his own nature or life. Liberty properly means the absence of external impediments; now a man may externally be hindered from doing all he would, but not from using what power is left him, according to his best reason and judgment. A Law of Nature, *lex naturalis* is defined, a general rule, found out by reason, forbidding a man to do what directly or indirectly is destructive of his life, or to omit what he thinks may best preserve it. Right and Law, though generally confounded, are exactly opposed, Right being liberty, and Law obligation.

In the natural state of war, every man, being governed by his own reason, has a right to everything, even to another's body. But because thus no man's life is secure, he finds the First and fundamental law of nature, or general rule of reason, to be *to seek peace and follow it, if possible*: failing which, we may defend ourselves by all the means we can. Here the law being 'to endeavour peace,' from this follows the Second law, that a man be willing, when others are so too, as far forth as for peace and self-defence he shall think it necessary, to *lay down this right to all things*; and be contented with so much liberty against other men as he would allow other men against himself. This is the same as the Gospel precept, Do to others, &c.

Laying down one's right to anything is divesting one's self of the liberty of hindering another in the exercise of his own original right to the same. The right is *renounced*, when a man cares not for whose benefit; *transferred*, when intended to benefit some certain person or persons. In either case the man is *obliged* or *bound* not to hinder those, in whose favour the right is abandoned, from the benefit of it; it is his *duty* not to make void his own voluntary act, and if he does, it is *injustice* or *injury*, because he acts now *sine Jure*. Such conduct Hobbes likens to an intellectual absurdity

or self-contradiction. Voluntary signs to be employed in abandoning a right, are words and actions, separately or together; but in all bonds, the strength comes not from their own nature, but from the fear of evil resulting from their rupture.

He concludes that not all rights are alienable, for the reason that the abandonment, being a voluntary act, must have for its object some good to the person that abandons his right. A man, for instance, cannot lay down the right to defend his life; to use words or other signs for that purpose, would be to despoil himself of the end—security of life and person—for which those signs were intended.

Contract is the mutual transferring of right, and with this idea he connects a great deal. First, he distinguishes transference of right to a thing, and transference of the thing itself. A contract fulfilled by one party, but left on trust to be fulfilled by the other, is called the *Covenant* of this other, (a distinction he afterwards drops), and leaves room for the keeping or violation of faith. To contract he opposes *gift*, *free-gift*, or *grace*, where there is no mutual transference of right, but one party transfers in the hope of gaining friendship or service from another, or the reputation of charity and magnanimity, or deliverance from the merited pain of compassion, or reward in heaven.

There follow remarks on signs of contract, as either express or by inference, and a distinction between free-gift as made by words of the present or past, and contract as made by words past, present, or future; wherefore, in contracts like buying and selling, a promise amounts to a covenant, and is obligatory.

The idea of *Merit* is thus explained. Of two contracting parties, the one that has first performed merits what he is to receive by the other's performance, or has it as *due*. Even the person that wins a prize, offered by

free-gift to many, merits it. But, whereas, in contract, I merit by virtue of my own power and the other contractor's need, in the case of the gift, I merit only by the benignity of the giver, and to the extent that, when he has given it, it shall be mine rather than another's. This distinction he believes to coincide with the scholastic separation of *meritum congrui* and *meritum condigni*.

He adds many more particulars in regard to covenants made on mutual trust. They are void in the state of nature, upon any reasonable suspicion; but when there is a common power to compel observance, and thus no more room for fear, they are valid. Even when fear makes them invalid it must have arisen after they were made, else it should have kept them from being made. Transference of a right implies transference, as far as may be, of the means to its enjoyment. With beasts there is no covenant, because no proper mutual understanding. With God also none, except through special revelation, or with his lieutenant in his name. Anything vowed contrary to the law of nature is vowed in vain; if the thing vowed is commanded by the law of nature, the law, not the vow, binds. Covenants are of things possible and future. Men are freed from them by performance, or forgiveness, which is restitution of liberty. He pronounces covenants extorted by fear to be binding alike in the state of mere nature and in commonwealths, if once entered into. A former covenant makes void a later. Any covenant not to defend one's self from force by force is always void; as said above, there is no transference possible of right to defend one's self from death, wounds, imprisonment, &c. So no man is obliged to accuse himself, or generally to give testimony where from the nature of the case it may be presumed to be corrupted. Accusation upon torture is not to be reputed as testimony. At the close he remarks upon oaths. He finds in human nature two imaginable helps to strengthen the force of words, otherwise too weak to insure the performance of covenants. One of these—*pride* in appearing not to need to break one's word, he supposes too rare to be presumed upon. The other,

fear, has reference either to power of spirits invisible, or of men. In the state of nature, it is the first kind of fear—a man's religion—that keeps him to his promises. An oath is therefore swearing to perform by the God a man fears. But to the obligation itself it adds nothing.

Of the other Laws of Nature, treated in Chap. XV., the third, *that men perform their covenants made*, opens up the discussion of *Justice*. Till rights have been transferred and covenants made there is no justice or injustice; injustice is no other than the non-performance of covenants. Further, justice (and also property) begins only where a regular coercive power is constituted, because otherwise there is cause for fear, and fear, as has been seen, makes covenants invalid. Even the scholastic definition of justice recognizes as much; for there can be no constant will of giving to every man his own, when, as in the state of nature, there is no *own*. He argues at length against the idea that justice, *i.e.*, the keeping of covenants, is contrary to reason; repelling three different arguments. (1) He demonstrates that it cannot be reasonable to break or keep covenants according to benefit supposed to be gained in each case, because this would be a subversion of the principles whereon society is founded, and must end by depriving the individual of its benefits, whereby he would be left perfectly helpless. (2) He considers it frivolous to talk of securing the happiness of heaven by any kind of injustice, when there is but one possible way of attaining it, *viz.*, the keeping of covenants. (3) He warns men (he means his contemporaries) against resorting to the mode of injustice known as rebellion to gain sovereignty, from the hopelessness of gaining it and the uncertainty of keeping it. Hence he concludes that justice is a rule of reason, the keeping of covenants being the surest way to preserve our life, and therefore a law of nature. He rejects the notion that laws of nature are to be supposed conducive, not to the preservation of life on earth, but to the attainment of eternal felicity; whereto such breach of covenant as rebellion may sometimes be supposed a means. For that, the knowledge of the future life

is too uncertain. Finally, he consistently holds that faith is to be kept with heretics and with all that it has once been pledged to.

He goes on to distinguish between justice of men or manners, and justice of actions; whereby in the one case men are *just* or *righteous*, and in the other, *guiltless*. After making the common observation that single inconsistent acts do not destroy a character for justice or injustice, he has this: 'That which gives to human actions the relish of justice, is a certain nobleness or gallantness of courage rarely found, by which a man scorns to be beholden for the contentment of his life to fraud, or breach of promise.' Then he shows the difference between injustice, injury, and damage; asserts that nothing done to a man with his consent can be injury; and, rejecting the common mode of distinguishing between *commutative* and *distributive* justice, calls the first the justice of a contractor, and the other an improper name for just distribution, or the justice of an arbitrator, *i.e.*, the act of defining what is just—equivalent to equity, which is itself a law of nature.

The rest of the laws follow in swift succession. The 4th recommends *Gratitude*, which depends on antecedent grace instead of covenant. Free-gift being voluntary, *i.e.*, done with intention of good to one's self, there will be an end to benevolence and mutual help, unless gratitude is given as compensation.

The 5th enjoins *Complaisance*; a disposition in men not to seek superfluities that to others are necessities. Such men are *sociable*.

The 6th enjoins *Pardon* upon repentance, with a view (like the last) to peace.

The 7th enjoins that punishment is to be only for correction of the offender and direction of others; *i.e.*, for profit and example, not for 'glorying in the hurt of another, tending to no end.' Against *Cruelty*.

The 8th is against *Contumely*, as provocative of dispeace.

The 9th is against *Pride*, and enjoins the acknowledgment of the equality of all men by nature. He is here very sarcastic against Aristotle, and asserts, in opposition to him, that all inequality of men arises from consent.

The 10th is, in like manner, against *Arrogance*, and in favour of *Modesty*. Men, in entering into peace, are to reserve no rights but such as they are willing shall be reserved by others.

The 11th enjoins *Equity*; the disposition, in a man trusted to judge, to distribute equally to each man what in reason belongs to him. Partiality 'deters men from the use of judges and arbitrators,' and is a cause of war.

The 12th enjoins the common, or the proportionable, use of things that cannot be distributed.

The 13th enjoins the resort to *lot*, when separate or common enjoyment is not possible; the 14th provides also for *natural* lot, meaning first possession or primogeniture.

The 15th demands safe conduct for mediators.

The 16th requires that parties at controversy shall submit their right to *arbitration*.

The 17th forbids a man to be his own judge; the 18th, any interested person to be judge.

The 19th requires a resort to witnesses in a matter of fact, as between two contending parties.

This list of the laws of nature is only slightly varied in the other works. He enumerates none but those that concern the doctrine of Civil Society, passing-over things like Intemperance, that are also forbidden by the law of nature because destructive of particular men. All the laws are summed up in the one expression: Do not that to another, which thou wouldest not have done to thyself.

The laws of nature he regards as always binding *in foro interno*, to the extent of its being desired they should take place; but *in foro externo*, only when there is security. As binding *in foro interno*, they can be broken even by an act according with them, if the purpose of it was against them. They are immutable and eternal; 'injustice, ingratitude, &c., can never be made lawful,' for war cannot preserve life, nor peace destroy it. Their fulfilment is easy, as requiring only an unfeigned and constant endeavour.

Of these laws the science is true moral philosophy, *i.e.*, the science of good and evil in the society of mankind. Good and evil vary much from man to man, and even in the same man; but while private appetite is the measure of good and evil in the condition of nature, all allow that peace is good, and that justice, gratitude, &c., as the way or means to peace, are also good, that is to say, *moral virtues*. The true moral philosophy, in regarding them as laws of nature, places their goodness in their being the means of peaceable, comfortable, and sociable living; not, as is commonly done, in a mediocrity of passions, 'as if not the cause, but the degree of daring, made fortitude.'

His last remark is, that these dictates of reason are improperly called laws, because 'law, properly, is the word of him that by right hath command over others.' But when considered not as mere conclusions or theorems concerning the means of conservation and defence, but as delivered in the

word of God, that by right commands all, then they are properly called laws.

Chapter XVI., closing the whole first part of the Leviathan, is of Persons, Authors, and Things Personated. The definitions and distinctions contained in it add nothing of direct ethical importance to the foregoing, though needed for the discussion of 'Commonwealth,' to which he passes. The chief points under this second great head are taken into the summary.

The views of Hobbes can be only inadequately summarized.

I.—The Standard, to men living in society, is the Law of the State. This is Self-interest or individual Utility, masked as regard for Established Order; for, as he holds, under any kind of government there is more Security and Commodity of life than in the State of Nature. In the Natural Condition, Self-interest, of course, is the Standard; but not without responsibility to God, in case it is not sought, as far as other men will allow, by the practice of the dictates of Reason or laws of Nature.

II.—His Psychology of Ethics is to be studied in the detail. Whether in the natural or in the social state, the Moral Faculty, to correspond with the Standard, is the general power of Reason, comprehending the aims of the Individual or Society, and attending to the laws of Nature or the laws of the State, in the one case or in the other respectively.

On the question of the Will, his views have been given at length.

Disinterested Sentiment is, in origin, self-regarding; for, pitying others, we imagine the like calamity befalling ourselves. In one place, he seems to say, that the Sentiment of Power is also involved. It is the great defect of his system that he takes so little account of the Social affections, whether natural or acquired.

III.—His Theory of Happiness, or the Summum Bonum, would follow from his analysis of the Feelings and Will. But Felicity being a continual

progress in desire, and consisting less in present enjoyment than in *assuring* the way of future desire, the chief element in it is the Sense of Power.

IV.—A Moral Code is minutely detailed under the name of Laws of Nature, in force in the Natural State under Divine Sanction. It inculcates all the common virtues, and makes little or no departure from the usually received maxims.

V.—The relation of Ethics to Politics is the closest imaginable. Not even Society, as commonly understood, but only the established civil authority, is the source of rules of conduct. In the *civil* (which to Hobbes is the only meaning of the *social*) state, the laws of nature are superseded, by being supposed taken up into, the laws of the Sovereign Power.

VI.—As regards Religion, he affirms the coincidence of his reasoned deduction of the laws of Nature with the precepts of Revelation. He makes a mild use of the sanctions of a Future Life to enforce the laws of Nature, and to give additional support to the commands of the sovereign that take the place of these in the social state.

Among the numberless replies, called forth by the bold speculations of Hobbes, were some works of independent ethical importance; in particular, the treatises of Cumberland, Cudworth, and Clarke. Cumberland stands by himself; Cudworth and Clarke, agreeing in some respects, are commonly called the *Rational* moralists, along with Wollaston and Price (who fall to be noticed later).

RICHARD CUMBERLAND. [1632-1718.]

Cumberland's Latin work, *De Legibus Naturae, disquisitio philosophica contra Hobbium instituta*, appeared in 1672. The book is important as a distinctly philosophical disquisition, but its extraordinarily discursive

character renders impossible anything like analysis. His chief points will be presented in a fuller summary than usual.

I.—The STANDARD of Moral Good is given in the laws of Nature, which may all be summed up in one great Law—*Benevolence to all rational agents* or the endeavour to the utmost of our power to promote the common good of all. His theory is hardly to be distinguished from the Greatest Happiness principle; unless it might be represented as putting forward still more prominently the search for Individual Happiness, with a fixed assumption that this is best secured through the promotion of the general good. No action, he declares, can be called 'morally good that does not in its own nature contribute somewhat to the happiness of men.' The speciality of his view is his professing not to make an induction as regards the character of actions from the observation of their effects, but to deduce the propriety of (benevolent) actions from, the consideration of the character and position of rational agents in nature. Rules of conduct, all directed to the promotion of the Happiness of rational agents, may thus be found in the form of propositions impressed upon the mind by the Nature of Things; and these are then interpreted to be laws of Nature (summed up in the one great Law), promulgated by God with the natural effects of actions as Sanctions of Reward and Punishment to enforce them.

II.—His Psychology of Ethics may be reduced to the following heads.

1. The Faculty is the Reason, apprehending the exact Nature of Things, and determining accordingly the modes of action that are best suited to promote the happiness of rational agents.

2. Of the Faculty, under the name of *Conscience*, he gives this description: 'The mind is conscious to itself of all its own actions, and both can, and often does, observe what counsels produced them; it naturally sits a judge upon its own actions, and thence procures to itself either tranquillity

and joy, or anxiety and sorrow.' The principal design of his whole book is to show 'how this power of the mind, either by itself, or excited by external objects, forms certain universal practical propositions, which give us a more distinct idea of the happiness of mankind, and pronounces by what actions of ours, in all variety of circumstances, that happiness may most effectually be obtained.' [Conscience is thus only Reason, or the knowing faculty in general, as specially concerned about actions in their effect upon happiness; it rarely takes the place of the more general term.]

3. He expressly leaves aside the supposition that we have *innate ideas* of the laws of Nature whereby conduct is to be guided, or of the matters that they are conversant about. He has not, he says, been so happy as to learn the laws of Nature by so short a way, and thinks it ill-advised to build the doctrine of natural religion and morality upon a hypothesis that has been rejected by the generality of philosophers, as well heathen as Christian, and can never be proved against the Epicureans, with whom lies his chief controversy. Yet he declines to oppose the doctrine of innate ideas, because it looks with a friendly eye upon piety and morality; and perhaps it may be the case, that such ideas are *both* born with us and afterwards impressed upon us from without.

4. Will, he defines as 'the consent of the mind with the judgment of the understanding, concerning things agreeing among themselves.' Although, therefore, he supposes that nothing but Good and Evil can determine the will, and that the will is even *necessarily* determined to seek the one and flee the other, he escapes the conclusion that the will is moved only by private good, by accepting the implication of private with common good as the fixed judgment of the understanding or right reason.

5. He argues against the resolution of all Benevolence into self-seeking, and thus claims for man a principle of disinterested action. But what he is

far more concerned to prove is, that benevolence of all to all accords best with the whole frame of nature, stands forth with perfect evidence, upon a rational apprehension of the universe, as the great Law of Nature, and is the most effectual means of promoting the happiness of individuals, viz., through the happiness of all.

III.—Happiness is given as connected with the most full and constant exercise of all our powers, about the best and greatest objects and effects that are adequate and proportional to them; as consisting in the enlargement or perfection of the faculties of any one thing or several. Here, and in his protest against Hobbes's taking affection and desire, instead of Reason, as the measure of the goodness of things, may be seen in what way he passes from the conception of Individual, to the notion of Common Good, as the end of action. Reason affirms the common good to be more essentially connected with the perfection of man than any pursuit of private advantage. Still there is no disposition in him to sacrifice private to the common good: he declares that no man is called on to promote the common good beyond his ability, and attaches no meaning to the general good beyond the special good of *all* the particular rational agents in their respective places, from God (to whom he ventures to ascribe a Tranquillity, Joy, or Complacency) downwards. The happiness of men he considers as *Internal*, arising *immediately* from the vigorous exercise of the faculties about their proper and noblest objects; and *External*, the *mediate* advantages procurable from God and men by a course of benevolent action.

IV.—His Moral Code is arrived at by a somewhat elaborate deduction from the great Law of Nature enjoining Benevolence or Promotion of the Common Good of all rational beings.

This Common Good comprehends the Honour of God, and the Good or Happiness of Men, as Nations, Families, and Individuals.

The actions that promote this Common Good, are Acts either of the understanding, or of the will and affections, or of the body as determined by the will. From this he finds that *Prudence* (including Constancy of Mind and Moderation) is enjoined in the Understanding, and, in the Will, *Universal Benevolence* (making, with Prudence, *Equity*), *Government of the Passions*, and the Special Laws of Nature—*Innocence*, *Self-denial*, *Gratitude*, &c.

This he gets from the consideration of what is contained in the general Law of Nature. But the obligation to the various moral virtues does not appear, until he has shown that the Law of Nature, for procuring the Common Happiness of all, suggests a natural law of *Universal Justice*, commanding to make and preserve a *division* of Rights, *i.e.*, giving to particular persons Property or Dominion over things and persons necessary to their Happiness. There are thus Rights of God (to Honour, Glory, &c.) and Rights of Men (to have those advantages continued to them whereby they may preserve and perfect themselves, and be useful to all others).

For the same reason that *Rights* of particular persons are fixed and preserved, *viz.*, that the common good of all should be promoted by every one,—two *Obligations* are laid upon all.

(1) Of GIVING: We are to contribute to others such a share of the things committed to our trust, as may not destroy the part that is necessary to our own happiness. Hence are obligatory the virtues (*a*) in regard to Gifts, *Liberality*, *Generosity*, *Compassion*, &c.; (*b*) in regard to Common Conversation or Intercourse, *Gravity and Courteousness*, *Veracity*, *Faith*, *Urbanity*, &c.

(2) Of RECEIVING: We are to reserve to ourselves such use of our own, as may be most advantageous to, or at least consistent with, the good of others. Hence the obligation or the virtues pertaining to the various

branches of a limited Self-Love, (a) with regard to our *essential parts*, viz., Mind and Body—*Temperance* in the natural desires concerned in the preservation of the individual and the species; (b) with regard to *goods of fortune*—*Modesty, Humility, and Magnanimity*.

V.—He connects Politics with Ethics, by finding, in the establishment of civil government, a more effectual means of promoting the common happiness according to the Law of Nature, than in any equal division of things. But the Law of Nature, he declares, being before the civil laws, and containing the ground of their obligation, can never be superseded by these. Practically, however, the difference between him and Hobbes comes to very little; he recognizes no kind of earthly check upon the action of the civil power.

VI.—With reference to Religion, he professes to abstain entirely from theological questions, and does abstain from mixing up the doctrines of Revelation. But he attaches a distinctly divine authority to his moral rules, and supplements earthly by supernatural sanctions.

RALPH CUDWORTH. [1617-88.]

Cudworth's *Treatise concerning Eternal and Immutable Morality*, did not appear until 1731, more than forty years after his death. Having in a former work ('Intellectual system of the Universe') contended against the 'Atheistical Fate' of Epicurus and others, he here attacks the 'Theologick Fate' (the arbitrarily omnipotent Deity) of Hobbes, charging him with reviving exploded opinions of Protagoras and the ancient Greeks, that take away the essential and eternal discrimination of moral good and evil, of just and unjust.

After piling up, out of the store of his classical and scholastic erudition, a great mass of testimony regarding all who had ever founded distinctions of

Right and Wrong upon mere arbitrary disposition, whether of God or the State of men in general, he shadows forth his own view. Moral Good and Evil, Just and Unjust, Honest and Dishonest (if they be not mere names without any signification, or names for nothing else but *Willed* or *Commanded*, but have a reality in respect of the persons obliged to do and to avoid them), cannot possibly be arbitrary things, made by Will without nature; because it is universally true that Things are what they are not by Will, but by nature. As it is the nature of a triangle to have three angles equal to two right angles, so it is the nature of 'good things' to have the nature of goodness, and things just the nature of justice; and Omnipotence is no more able to make a thing good without the fixed nature of goodness, than to make a triangular body without the properties of a triangle, or two things like or equal, without the natures of Likeness and Equality. The Will of God is the supreme *efficient* cause of all things, but not the *formal* cause of anything besides itself. Nor is this to be understood as at all derogating from God's perfection; to make natural justice and right independent of his will is merely to set his Wisdom, which is a rule or measure, above his Will, which is something indeterminate, but essentially regulable and measureable; and if it be the case that above even his wisdom, and determining it in turn, stands his Infinite Goodness, the greatest perfection of his will must lie in its being thus twice determined.

By far the largest part of Cudworth's treatise consists of a general metaphysical argument to establish the independence of the mind's faculty of Knowledge, with reference to Sense and Experience. In Sense, according to the doctrine of the old 'Atomical philosophy' (of Democritus, Protagoras, &c.—but he thinks it must be referred back to Moses himself!), he sees nothing but *fancies* excited in us by local motions in the organs, taken on from 'the motion of particles' that constitute 'the whole world.' All the more, therefore, must there exist a superior power of Intellection and Knowledge of a different nature from sense, a power not terminating in mere seeming

and appearance only, but in the reality of things, and reaching to the comprehension of what really and absolutely is; whose objects are the immutable and eternal essences and natures of things, and their unchangeable relations to one another. These *Rationes* or Verities of things are *intelligible*. only; are all comprehended in the eternal mind or intellect of the Deity, and from Him derived to our 'particular intellects.' They are neither arbitrary nor phantastical—neither alterable by Will nor changeable by Opinion.

Such eternal and immutable Verities, then, the moral distinctions of Good and Evil are, in the pauses of the general argument, declared to be. They, 'as they must have some certain natures which are the actions or souls of men,' are unalterable by Will or Opinion. 'Modifications of Mind and Intellect,' they are as much more real and substantial things than Hard, Soft, Hot, and Cold, modifications of mere senseless matter—and even so, on the principles of the atomical philosophy, dependent on the soul for their existence—as Mind itself stands prior in the order of nature to Matter. In the mind they are as 'anticipations of morality' springing up, not indeed 'from certain rules or propositions arbitrarily printed on the soul as on a book,' but from some more inward and vital Principle in intellectual beings, as such whereby these have within themselves a natural determination to do some things and to avoid others.

The only other ethical determinations made by Cudworth may thus be summarized:—Things called *naturally* Good and Due are such as *the intellectual nature* obliges to immediately, absolutely, and perpetually, and upon no condition of any voluntary action done or omitted intervening; things *positively* Good and Due are such as are in themselves indifferent, but the intellectual nature obliges to them accidentally or hypothetically, upon condition, in the case of a command, of some voluntary act of another person invested with lawful authority, or of one's self, in the case of a

specific promise. In a positive command (as of the civil ruler), what *obliges* is only the intellectual nature of him that is commanded, in that he recognizes the lawful authority of him that commands, and so far determines and modifies his general duty of obedience as to do an action immaterial in itself for the sake of the formality of yielding obedience to lawfully constituted authority. So, in like manner, a specific promise, in itself immaterial and not enjoined by natural justice, is to be kept for the sake of the formality of keeping faith, which *is* enjoined.

Cudworth's work, in which these are nearly all the ethical allusions, gives no scope for a summary under the various topics.

I.—Specially excluding any such External *Standard* of moral Good as the arbitrary Will, either of God or the Sovereign, he views it as a simple ultimate natural quality of actions or dispositions, as included among the verities of things, by the side of which the phenomena of Sense are unreal.

II.—The general Intellectual Faculty cognizes the moral verities, which it contains within itself and brings rather than finds.

III.—He does not touch upon Happiness; probably he would lean to asceticism. He sets up no moral code.

IV.—Obligation to the Positive Civil Laws in matters indifferent follows from the intellectual recognition of the established relation between ruler and subject.

V.—Morality is not dependent upon the Deity in any other sense than the whole frame of things is.

SAMUEL CLARKE. [1675-1729.]

Clarke put together his two series of Boyle Lectures (preached 1704 and 1705) as 'A Discourse, concerning the Being and Attributes of God, the Obligations of Natural Religion and the Truth and Certainty of the Christian Revelation,' in answer to Hobbes, Spinoza, &c. The burden of the ethical discussion falls under the head of the Obligations of Natural Religion, in the second series.

He enounces this all-comprehensive proposition: 'The same necessary and eternal different Relations that different Things bear one to another, and the same consequent Fitness or Unfitness of the application of different things or different relations one to another, with regard to which the will of God always and necessarily does determine itself to choose to act only what is agreeable to Justice, Equity, Goodness, and Truth, in order to the welfare of the whole universe—ought likewise constantly to determine the Wills of all subordinate rational beings, to govern all their actions by the same rules, for the good of the public, in their respective stations. That is, these eternal and necessary differences of things make it fit and reasonable for creatures so to act; they cause it to be their duty, or lay an obligation on them so to do; even separate from the consideration of these Rules being the positive Will or Command of God, and also antecedent to any respect or regard, expectation or apprehension of any particular private and personal Advantage or Disadvantage, Reward or Punishment, either present or future, annexed either by natural consequence, or by positive appointment, to the practising or neglecting of these rules. In the explication of this, nearly his whole system is contained.

His first concern is to impress the fact that there are necessary and eternal differences of ail things, and implied or consequent relations (proportions or disproportions) existing amongst them; and to bring under this general head the special case of differences of Persons (e.g., God and Man, Man and Fellow-man), for the sake of the implication that to different persons there

belong peculiar *Fitnesses* and *Unfitnesses* of circumstances; or, which is the same thing, that there arises necessarily amongst them a suitableness or unsuitableness of certain manners of Behaviour. The counter-proposition that he contends against is, that the relations among persons depend upon *positive constitution* of some kind, instead of being founded unchangeably in *the nature and reason of things*.

Next he shows how, in the rational or intellectual recognition of naturally existent relations amongst things (he always means persons chiefly), there is contained an obligation. When God, in his Omniscience and absolute freedom from error, is found determining his Will always according to this eternal reason of things, it is very unreasonable and blameworthy in the intelligent creatures whom he has made so far like himself, not to govern their actions by the same eternal rule of Reason, but to suffer themselves to depart from it through negligent *misunderstanding* or wilful *passion*. Herein lies obligation: a man *ought* to act according to the Law of Reason, because he can as little refrain from *assenting* to the reasonableness and fitness of guiding his actions by it, as refuse his assent to a geometrical demonstration when he understands the terms. The original obligation of all is the eternal Reason of Things; the sanction of Rewards and Punishments (though 'truly the most effectual means of keeping creatures in their duty') is only a secondary and additional obligation. Proof of his position he finds in men's judgment of their own actions, better still in their judgments of others' actions, best of all in their judgment of injuries inflicted on themselves. Nor does any objection hold from the ignorance of savages in matters of morality: they are equally ignorant of the plainest mathematical truths; the need of instruction does not take away the necessary difference of moral Good and Evil, any more than it takes away the necessary proportions of numbers. He, then, instead of deducing all our several duties as he might, contents himself with mentioning the three great branches of them, (*a*) Duties in respect of *God*, consisting of sentiments and acts (Veneration,

Love, Worship, &c.) called forth by the consideration of his attributes, and having a character of Fitness far beyond any that is visible in applying *equal* geometrical figures to one another, (b) Duties in respect of our *Fellow-creatures*: (1) Justice and Equity, the doing as we would be done by. Iniquity is the very same in Action, as Falsity or Contradiction in Theory; what makes the one *absurd* makes the other *unreasonable*; 'it would be impossible for men not to be as much (!) ashamed of *doing Iniquity*, as they are of *believing Contradictions*;' (2) *Universal Love or Benevolence*, the promoting the welfare or happiness of all, which is obligatory on various grounds: the Good being the fit and reasonable, the greatest Good is the *most* fit and reasonable; by this God's action is determined, and so ought ours; no Duty affords a more ample pleasure; besides having a 'certain natural affection' for those most closely connected with us, we desire to multiply affinities, which means to found society, for the sake of the more comfortable life that mutual good offices bring. [This is a very confused deduction of an *obligation*.] (c) Duties in respect to our *Selves*, viz., *self-preservation, temperance, contentment, &c.*; for not being authors of our being, we have no just power or authority to take it away directly, or, by abuse of our faculties, indirectly.

After expatiating in a rhetorical strain on the eternal, universal, and absolutely unchangeable character of the law of Nature or Right Reason, he specifies the sense wherein the eternal moral obligations are independent of the will of God himself; it comes to this, that, although God makes all things and the relations between them, nothing is holy and good because he commands it, but he commands it because it is holy and good. Finally, he expounds the relation of Reward and Punishment to the law of Nature; the obligation of it is before and distinct from these; but, while full of admiration for the Stoical idea of the self-sufficiency of virtue, he is constrained to add that 'men never will generally, and indeed 'tis not very reasonably to be expected they should, part with all the comforts of life, and

even life itself, without any expectation of a future recompense.' The 'manifold absurdities' of Hobbes being first exposed, he accordingly returns, in pursuance of the theological argument of his Lectures, to show that the eternal moral obligations, founded on the natural differences of things, are at the same time the express will and command of God to all rational creatures, and must necessarily and certainly be attended with Rewards and Punishments in a future state.

The summary of Clarke's views might stand thus:—

I.—The STANDARD is a certain Fitness of action between persons, implicated in their nature as much as any fixed proportions between numbers or other relation among things. Except in such an expression as this, moral good admits of no kind of external reference.

II.—There is very little Psychology involved. The Faculty is the Reason; its action a case of mere intellectual apprehension. The element of Feeling is nearly excluded. Disinterested sentiment is so minor a point as to call forth only the passing allusion to 'a certain natural affection.'

III.—Happiness is not considered except in a vague reference to good public and private as involved with Fit and Unfit action.

IV.—His account of Duties is remarkable only for the consistency of his attempt to find parallels for each amongst intellectual relations. The climax intended in the assimilation of Injustice to Contradictions is a very anti-climax; if people were only '*as much*' ashamed of doing injustice as of believing contradictions, the moral order of the world would be poorly provided for.

V.—The relation of Ethics to Politics is hardly touched. Society is born of the desire to multiply affinities through mutual interchange of good offices.

VI.—His Ethical disquisition is only part of a Theological argument; and this helps to explain his assertion of the Independence as well as of the Insufficiency of Morality. The final outcome of the discussion is that Morality needs the support of Revelation. But, to get from this an argument for the truth of Revelation, it is necessary that morality should have an independent foundation in the nature of things, apart from any direct divine appointment.

WILLIAM WOLLASTON (1659-1724), author of the 'Religion of Nature Delineated,' is usually put into the same class of moralists with Clarke. With him, a *bad* action (whether of commission or omission) contains the denial of a true proposition. Truth can be denied by actions as well as by words. Thus, the violation of a contract is the denial by an action that the contract has been concluded. Robbing a traveller is the denial that what you take from him is his. An action that denies one or more true propositions cannot be good, and is necessarily bad. A *good* action is one whose omission would be bad or whose contrary is bad, in the above sense. An *indifferent* action is one that can be omitted or done without contradicting any truth. Reason, the judge of what is true and false, is the only faculty concerned; but, at the same time, Wollaston makes large reference to the subject of Happiness, finding it to consist in an excess of pleasures as compared with pains. He holds that his doctrine is in conformity with all the facts. It affirms a progressive morality, that keeps pace with and depend upon the progress of Science. It can explain *errors* in morals as distinct from vice. An error is the affirmation by an action of a false proposition, thought to be true; the action is bad, but the agent is innocent.

JOHN LOCKE. [1632-1704.]

Locke did not apply himself to the consecutive evolution of an Ethical theory; whence his views, although on the whole sufficiently unmistakeable, are not always reconcileable with one another.

In Book I. of the 'Essay on the Understanding' he devotes himself to the refutation of Innate Ideas, whether Speculative or Practical. Chap. III. is on the alleged Innate Practical Principles, or rules of Right and Wrong. The objections urged against these Principles have scarcely been added to, and have never been answered. We shall endeavour to indicate the heads of the reasoning.

1. The Innate Practical Principles are for the most part not self-evident; they are, in this respect, not on an equal footing with the Speculative Principles whose innate origin is also disputed. They require reasoning and explanation in order to be understood. Many men are ignorant of them, while others assent to them slowly, if they do assent to them; all which is at variance with their being innate.

2. There is no Practical Principle universally received among mankind. All that can be said of Justice is that *most men* agree to recognize it. It is vain to allege of confederacies of thieves, that they keep faith with one another; for this keeping of faith is merely for their own convenience. We cannot call that a sense of Justice which merely binds a man to a certain number of his fellow-criminals, in order the more effectually to plunder and kill honest men. Instead of Justice, it is the essential condition of success in Injustice.

If it be said in reply, that these men tacitly assent in their minds to what their practice contradicts, Locke answers, first, that men's actions must be held as the best interpreters of their thoughts; and if many men's practices, and some men's open professions, have been opposed to these principles, we cannot conclude them to be Innate. Secondly, It is difficult for us to

assent to Innate Practical Principles, ending only in contemplation. Such principles either influence our conduct, or they are nothing. There is no mistake as to the Innate principles of the desire of happiness, and aversion to misery; these do not stop short in tacit assent, but urge every man's conduct every hour of his life. If there were anything corresponding to these in the sense of Right and Wrong, we should have no dispute about them.

3. There is no Moral rule, that may not have a reason demanded for it; which ought not to be the case with any innate principle. That we should do as we would be done by, is the foundation of all morality, and yet, if proposed to any one for the first time, might not such an one, without absurdity, ask a reason why? But this would imply that there is some deeper principle for it to repose upon, capable of being assigned as its motive; that it is not ultimate, and therefore not innate. That men should observe compacts is a great and undeniable rule, yet, in this, a Christian would give as reason the command of God; a Hobbist would say that the public requires it, and would punish for disobeying it; and an old heathen philosopher would have urged that it was opposed to human virtue and perfection.

Bound up with this consideration, is the circumstance that moral rules differ among men, according to their views of happiness. The existence of God, and our obedience to him, are manifest in many ways, and are the true ground of morality, seeing that only God can call to account every offender; yet, from the union of virtue and public happiness, all men have recommended the practice of what is for their own obvious advantage. There is quite enough in this self-interest to cause moral rules to be enforced by men that care neither for the supreme Lawgiver, nor for the Hell ordained by him to punish transgressors.

After all, these great principles of morality are more commended than practised. As to Conscience checking us in these breaches, making them fewer than they would otherwise be, men may arrive at such a conscience, or self-restraining sentiment, in other ways than by an innate endowment. Some men may come to assent to moral rules from a knowledge of their value as means to ends. Others may take up the same view as a part of their education. However the persuasion is come by, it will serve as a conscience; which conscience is nothing else than our own opinion of the rectitude or pravity of our actions.

How could men with serenity and confidence transgress rules stamped upon their inmost soul? Look at the practices of nations civilized and uncivilized; at the robberies, murders, rapes of an army sacking a town; at the legalized usages of nations, the destruction of infants and of aged parents for personal convenience; cannibalism; the most monstrous forms of unchastity; the fashionable murder named Duelling. Where are the innate principles of Justice, Piety, Gratitude, Equity, Chastity?

If we read History, and cast our glance over the world, we shall scarcely find any rule of Morality (excepting such as are necessary to hold society together, and these too with great limitations) but what is somewhere or other set aside, and an opposite established, by whole societies of men. Men may break a law without disowning it; but it is inconceivable that a whole nation should publicly reject and renounce what every one of them, certainly and infallibly, knows to be a law. Whatever practical principle is innate, must be known to every one to be just and good. The generally allowed breach of any rule anywhere must be held to prove that it is not innate. If there be any rule having a fair claim to be imprinted by nature, it is the rule that Parents should preserve and cherish their children. If such a principle be innate, it must be found regulating practice everywhere; or, at the lowest, it must be known and assented to. But it is very far from having

been uniformly practised, even among enlightened nations. And as to its being an innate truth, known to all men, that also is untrue. Indeed, the terms of it are not intelligible without other knowledge. The statement, 'it is the duty of parents to preserve their children,' cannot be understood without a Law; a Law requires a Lawmaker, and Reward or Punishment. And as punishment does not always follow in this life, nothing less than a recognition of Divine Law will suffice; in other words, there must be intuitions of God, Law, Obligation, Punishment, and a Future Life: every one of which may be, and is, deemed to be innate.

It is incredible that men, if all these things were stamped on their minds, could deliberately offend against them; still more, that rulers should silently connive at such transgressions.

4. The supporters of innate principles are unable to point out distinctly what they are.[18] Yet, if these were imprinted on the mind, there could be no more doubt about them than about the number of our fingers. We well know that, if men of different sects were to write out their respective lists, they would set down exactly such as suited their several schools or churches.

There is, Locke remarks, a ready, but not very material, answer to his objections, namely, that the innate principles may, by Education and Custom, be darkened and worn out of men's minds. But this takes away at once the argument from universal consent, and leaves nothing but what each party thinks should pass for universal consent, namely, their own private persuasion: a method whereby a set of men presuming themselves to be the only masters of right reason, put aside the votes and opinions of the rest of mankind. Thus, notwithstanding the innate light, we are as much in the dark as if it did not exist; a rule that will warp any way is not to be distinguished amidst its contraries. If these rules are so liable to vary,

through adventitious notions, we should find them clearest in children and in persons wholly illiterate. He grants that there are many opinions, received by men of different countries, educations, and tempers, and held as unquestionable first principles; but then the absurdity of some, and the mutual contradiction of others, make it impossible that they should be all true. Yet it will often happen that these men will sooner part with their lives, than suffer the truth of their opinions to be questioned.

We can see from our experience how the belief in principles grows up. Doctrines, with no better original than the superstition of a nurse, or the authority of an old woman, may in course of time, and by the concurrence of neighbours, grow up to the dignity of first truths in Religion and in Morality. Persons matured under those influences, and, looking into their own minds, find nothing anterior to the opinions taught them before they kept a record of themselves; they, therefore, without scruple, conclude that those propositions whose origin they cannot trace are the impress of God and nature upon their minds. Such a result is unavoidable in the circumstances of the bulk of mankind, who require some foundation of principles to rest upon, and have no means of obtaining them but on trust from others. *Custom is it greater power than Nature*, and, while we are yet young, seldom fails to make us worship as divine what she has inured us to; nor is it to be wondered at, that, when we come to mature life, and are engrossed with quite different matters, we are indisposed to sit down and examine all our received tenets, to find ourselves in the wrong, to run counter to the opinions of our country or party, and to be branded with such epithets as whimsical, sceptical, Atheist. It is inevitable that we should take up at first borrowed principles; and unless we have all the faculties and the means of searching into their foundations, we naturally go on to the end as we have begun.

In the following chapter (IV.), he argues the general question of Innate Ideas in the case of the Idea of God.

In Book II., Chap. XXI., Locke discusses the freedom of the will, with some allusions to the nature of happiness and the causes of wrong conduct. Happiness is the utmost pleasure we are capable of, misery the utmost pain; pleasure and pain define Good and Evil. In practice, we are chiefly occupied in getting rid of troubles; absent good does not much move us. All uneasiness being removed, a moderate portion of good contents us; and some few degrees of pleasure in a succession of ordinary enjoyments are enough to make happiness. [Epicurus, and others among the ancients, said as much.]

Men have wrong desires, and do wrong acts, but it is from wrong judgments. They never mistake a present pleasure or pain; they always act correctly upon that. They are the victims of deceitful appearances; they make wrong judgments in comparing present with future pains, such is the weakness of the mind's constitution in this department. Our wrong judgments proceed partly from ignorance and partly from inadvertence, and our preference of vice to virtue is accounted for by these wrong judgments.

Chap. XXVIII. discusses Moral Relations. Good and Evil are nothing but Pleasure and Pain, and what causes them. Moral Good or Evil is the conformity or unconformity of our voluntary actions to some Law, entailing upon us good or evil by the will and power of the Law-giver, to which good and evil we apply the names Reward and Punishment.

There are three sorts of Moral Rules: 1st, The Divine Law, whether promulgated by the Light of Nature or by Revelation, and enforced by rewards and punishments in a future life. This law, when ascertained, is the touchstone of moral rectitude. 2nd, The Civil Law, or the Law of the State, supported by the penalties of the civil judge. 3rd, The Law of Opinion or

Reputation. Even after resigning, to public authority, the disposal of the public force, men still retain the power of privately approving or disapproving actions, according to their views of virtue and vice. The being commended or dispraised by our fellows may thus be called the sanction of Reputation, a power often surpassing in efficacy both the other sanctions.

Morality is the reference of all actions to one or other of these three Laws. Instead of applying innate notions of good and evil, the mind, having been taught the several rules enjoined by these authorities, compares any given action with these rules, and pronounces accordingly. A rule is an aggregate of simple Ideas; so is an action; and the conformity required is the ordering of the action so that the simple ideas belonging to it may correspond to those required by the law. Thus, all Moral Notions may be reduced to the simple ideas gained by the two leading sources—Sensation and Reflection. Murder is an aggregate of simple ideas, traceable in the detail to these sources.

The summary of Locke's views is as follows:—

I.—With reference to the Standard of Morality, we have these two great positions—

First, That the production of pleasure and pain to sentient beings is the ultimate foundation of moral good and evil.

Secondly, That morality is a system of Law, enacted by one or other of three different authorities.

II.—In the Psychology of Ethics, Locke, by implication, holds—

First, That there is no innate moral sentiment; that our moral ideas are the generalities of moral actions. That our faculties of moral discernment are—

(1) those that discern the pleasures and pains of mankind; and (2), those that comprehend and interpret the laws of God, the Nation, and Public Opinion. And (3) he counts that the largest share in the formation of our Moral Sentiments is due to Education and Custom.

[We have seen his views on Free-will, p. 413.]

As regards the nature of Disinterested Action, he pronounces no definite opinion. He makes few attempts to analyze the emotional and active part of our nature.

III.—His *Summum Bonum* is stated generally as the procuring of Pleasure and the avoiding of Pain.

IV.—He has no peculiar views on the Moral Code, or on the enforcements of Morality.

V.—The connexion of Ethics with Politics is, in him, the assimilating of Morality to Law.

VI.—With reference to Theology, he considers that, by the exercise of the Reason, we may discover the existence and attributes of God, and our duties to him; his ascertained will is the highest moral rule, the true touchstone of Moral Rectitude.

JOSEPH BUTLER. [1692-1752.]

Butler's Ethical System may be found—First, in a short Dissertation on Virtue, appended to the *Analogy*; secondly, and chiefly, in his first three Sermons, entitled 'Human Nature;' thirdly, in other Sermons, as (V.) on Compassion, and (XL) on Benevolence. Various illustrations of Ethical doctrine are interspersed through the *Analogy*, as in Part I., Chap. 2, entitled 'the government of God by rewards and punishments.'

The Dissertation on Virtue is intended to vindicate, in man, the existence of a moral nature, apart from both Prudence and Benevolence.

A moral government supposes a moral nature in man, or a power of distinguishing right from wrong. All men and all systems agree as to the fact of moral perceptions.

As characteristics of these moral perceptions, it is to be noted—First, they refer to voluntary actions. Secondly, they are accompanied with the feelings of good or of ill desert, which good or ill desert is irrespective of the good of society. Thirdly, the perception of ill desert has regard to the capacities of the agent. Fourthly, Prudence, or regard to ourselves, is a fair subject of moral approbation, and imprudence of the contrary. Our own self-interest seems to require strengthening by other men's manifested pleasure and displeasure. Still, this position is by no means indisputable, and the author is willing to give up the words 'virtue' and 'vice,' as applicable to prudence and folly; and to contend merely that our moral faculty is not indifferent to this class of actions. Fifthly, Virtue is not wholly resolvable into Benevolence (that is, the general good, or Utility[19]). This is shown by the fact that our approbation is not in proportion to the amount of happiness flowing from an action [he means *immediately* flowing, which does not decide the question]. We disapprove of falsehood, injustice, and unprovoked violence, even although more happiness would result from them than from the contrary. Moreover, we are not always judges of the whole consequences of acting. Undoubtedly, however, benevolence is our duty, if there be no moral principle to oppose it.

The title 'Human Nature,' given to Butler's chief Ethical exposition, indicates that he does not take an *a priori* view of the foundations of Ethics, like Cudworth and Clarke, but makes them repose on the constitution of the human mind.

In Sermon first, he lays out the different parts of our Emotional and Active nature, including Benevolence, Self-love, Conscience. The recognition of these three as distinct, and mutually irresolvable, is the Psychological basis of his Ethics.[20]

The existence of pure or disinterested Benevolence is proved by such facts, as Friendship, Compassion, Parental and Filial affections, Benevolent impulses to mankind generally. But although the object of benevolence is the public good, and of self-love private good, yet the two ultimately coincide. [This questionable assertion must trammel any proof that the author can give of our possessing purely disinterested impulses.]

In a long note, he impugns the theory of Hobbes that Benevolent affection and its pleasures are merely a form of the love of Power. He maintains, and with reason, that the love of power manifests its consequences quite as much in cruelty as in benevolence.

The second argument, to show that Benevolence is a fact of our constitution, involves the greatest peculiarity of Butler's Psychology, although he was not the first to announce it. The scheme of the human feelings comprehends, in addition to Benevolence and Self-Love, a number of passions and affections tending to the same ends as these (some to the good of our fellows, others to our own good); while in following them we are not conscious of seeking those ends, but some different ends. Such are our various Appetites and Passions. Thus, hunger promotes our private well-being, but in obeying its dictates we are not thinking of that object, but of the procuring of *food*. Curiosity promotes both public and private good, but its direct and immediate object is *knowledge*.

This refined distinction appears first in Aquinas; there is in it a palpable confusion of ideas. If we regard the final impulse of hunger, it is not toward the food, but towards the appeasing of a pain and the gaining of a pleasure,

which are certainly identical with self, being the definition of self in the last resort. We associate the food with the gratification of these demands, and hence food becomes an end to us—one of the *associated* or *intermediate* ends. So the desire of knowledge is the desire of the pleasure, or of the relief from pain, accruing from knowledge; while, as in the case of food, knowledge is to a great degree only an instrument, and therefore an intermediate and associated end. So the desire of esteem is the desire of a pleasure, or else of the instrument of pleasure.

In short, Butler tries, without effect, to evade the general principles of the will—our being moved exclusively by pleasure and pain. Abundant reference has been already made to the circumstances that modify in appearance, or in reality, the operation of this principle. The distinction between self-love and the particular appetites, passions, and affections, is mainly the distinction between a great aggregate of the reason (the total interests of our being) and the separate items that make it up.

The distinction is intended to prepare the way for the setting forth of Conscience,[21] which is called a 'principle of reflection in men, whereby they distinguish between, approve and disapprove, their own actions.' This principle has for its result the good of society; still, in following it, we are not conscious of aiming at the good of society. A father has an affection for his children; this is one thing. He has also a principle of reflection, that urges him with added force and with more steady persistency than any affection, which principle must therefore be different from mere affection.

Butler's analysis of the human feelings is thus: I.—Benevolence and Self-love. II.—The particular Appetites, Passions, and Affections, operating in the same direction as Benevolence and Self-love, but without intending it. III.—Conscience, of which the same is to be said.

His reply to the objection,—against our being made for Benevolence,—founded on our mischievous propensities, is, that in the same way there are tendencies mischievous to ourselves, and yet no one denies us the possession of self-love. He remarks farther that these evil tendencies are the abuse of such as are right; ungovernable passion, reckless pursuit of our own good, and not pure malevolence, are the causes of injustice and the other vices.

In short, we are made for pursuing both our own good and the good of others; but present gratifications and passing inclinations interfere alike with both objects.

Sermons II., III., are meant to establish, from our moral nature, the Supremacy of Conscience.

Our moral duties may be deduced from the scheme of our nature, which shows the design of the Deity. There may be some difficulties attending the deduction, owing to the want of uniformity in the human constitution. Still, the broad feelings of the mind, and the purpose of them, can no more be mistaken than the existence and the purpose of the eyes. It can be made quite apparent that the single principle called conscience is intended to rule all the rest.

But, as Conscience is only one part of our nature, there being two other parts, namely, (1) Benevolence and Self-love, and (2) the particular Appetites and Passions, why are they not all equally natural, and all equally to be followed?

This leads to an inquiry into the meanings of the word Nature.

First, Nature may mean any prompting whatever; anger and affection are equally natural, as being equally part of us.

Secondly, it may mean our strongest passion, what most frequently prevails with us and shows our individual characters. In this sense, vice may be natural.

But, thirdly, we may reclaim against those two meanings, and that on the authority both of the Apostle Paul and of the ancient sages, and declare that the proper meaning of following nature is following Conscience, or that superior principle in every man which bears testimony to its own supremacy. It is by this faculty, natural to a man, that he is a moral agent, a law to himself.

Men may act according to their strongest principle, and yet violate their nature, as when a man, urged by present gratification, incurs certain ruin. The violation of nature, in this instance, may be expressed as *disproportion*.

There is thus a difference in *kind* between passions; self-love is superior to temporary appetite.

Passion or Appetite means a tendency towards certain objects with no regard to any other objects. Reflection or Conscience steps in to protect the interests that these would lead us to sacrifice. Surely, therefore, this would be enough to constitute superiority. Any other passion taking the lead is a case of usurpation.

We can hardly form a notion of Conscience without this idea of superiority. Had it might, as it has right, it would govern the world.

Were there no such supremacy, all actions would be on an equal footing. Impiety, profaneness, and blasphemy would be as suitable as reverence; parricide would justify itself by the right of the strongest.

Hence human nature is made up of a number of propensities in union with this ruling principle; and as, in civil government, the constitution is infringed by strength prevailing over authority, so the nature of man is violated when the lower faculties triumph over conscience. Man has a rule of right within, if he will honestly attend to it. Out of this arrangement, also, springs Obligation; the law of conscience is the law of our nature. It carries its authority with it; it is the guide assigned by the Author of our nature.

He then replies to the question, 'Why should we be concerned about anything out of or beyond ourselves?' Supposing we do possess in our nature a regard to the well-being of others, why may we not set that aside as being in our way to our own good.

The answer is, We cannot obtain our own good without having regard to others, and undergoing the restraints prescribed by morality. There is seldom any inconsistency between our duty and our interest. Self-love, in the present world, coincides with virtue. If there are any exceptions, all will be set right in the final distribution of things. Conscience and self-love, if we understand our true happiness, always lead us the same way.

Such is a brief outline of the celebrated 'Three Sermons on Human Nature.' The radical defect of the whole scheme lies in its Psychological basis. Because we have, as mature human beings, in civilized society, a principle of action called Conscience, which we recognize as distinct from Self-love and Benevolence, as well as from the Appetites and Passions, Butler would make us believe that this is, from the first, a distinct principle of our nature. The proper reply is to analyze Conscience; showing at the same time, from its very great discrepancies in different minds, that it is a growth, or product, corresponding to the education and the circumstances of each, although of course involving the common elements of the mind.

In his Sermons on Compassion (V., VI.), he treats this as one of the Affections in his second group of the Feelings (Appetites, Passions, and Affections); vindicates its existence against Hobbes, who treated it as an indirect mode of self-regard; and shows its importance in human life, as an adjunct to Rational Benevolence and Conscience.

In discussing Benevolence (Sermon XII.) Butler's object is to show that it is not ultimately at variance with Self-love. In the introductory observations, he adverts to the historical fact, that vice and folly take different turns in different ages, and that the peculiarity of his own age is 'to profess a contracted spirit, and greater regards to self-interest' than formerly. He accommodates his preaching of virtue to this characteristic of his time, and promises that *there shall be all possible concessions made to the favourite passion.*

His mode of arguing is still the same as in the sermons on Human Nature. Self-love does not comprehend our whole being; it is only one principle among many. It is characterized by a *subjective* end, the *feeling* of happiness; but we have other ends of the objective kind, the ends of our appetites, passions, and affections—food, injury to another, good to another, &c. The total happiness of our being includes all our ends. Self-love attends only to one interest, and if we are too engrossed with that, we may sacrifice other interests, and narrow the sphere of our happiness. A certain disengagement of mind is necessary to enjoyment, and the intensity of pursuit interferes with this. [This is a true remark, but misapplied; external pursuit may be so intense as nearly to do away with subjective consciousness, and therefore with pleasure; but this applies more to *objective* ends,—wealth, the interest of others—than to self-love, which is in its nature subjective.]

Now, what applies to the Appetites and Affections applies to Benevolence; it is a distinct motive or urgency, and should have its scope like every other propensity, in order to happiness.

Such is his reasoning, grounded on his peculiar Psychology. He then adduces the ordinary arguments to show, that seeking the good of others is a positive gratification in itself, and fraught with pleasure in its consequences.

In summary, Butler's views stand thus:—

I.—His Standard of Right and Wrong is the subjective Faculty, called by him Reflection, or Conscience. He assumes such an amount of uniformity in human beings, in regard to this Faculty, as to settle all questions that arise.

II.—His Psychological scheme is the threefold division of the mind already brought out; Conscience being one division, and a distinct and primitive element of our constitution.

He has no Psychology of the Will; nor does he anywhere inquire into the problem of Liberty and Necessity.

He maintains the existence of Disinterested Benevolence, by saying that Disinterested action, as opposed to direct self-regard, is a much wider fact of our mental system, than the regard to the welfare of others. We have seen that this is a mere stroke of ingenuity, and owes its plausible appearance to his making our associated ends the primary ends of our being.

III.—With regard to the Summum Bonum, or the theory of Happiness, he holds that men cannot be happy by the pursuit of mere self; but must give way to their benevolent impulses as well, all under the guidance of conscience. In short, virtue is happiness, even in this world; and, if there be

any exception to the rule, it will be rectified in another world. This is in fact the Platonic view. Men are not to pursue happiness; that would be to fall into the narrow rut of self-love, and would be a failure; they are to pursue virtue, including the good of others, and the greatest happiness will ensue to each.

It is a remarkable indication of the spirit of Butler's age, or of his estimate of it, that he would never venture to require of any one a single act of uncompensated self-sacrifice.

IV.—The substance of the Moral Code of Butler is in no respect peculiar to him. He gives no classification of our duties. His means and inducements to virtue have just been remarked upon.

V.—The relationship of Ethics to Politics and to Theology needs no remark.

FRANCIS HUTCHESON. [1694-1747.]

Hutcheson's views are to be found in his 'Inquiry into the Ideas of Beauty and Virtue,' his 'Treatise on the Passions,' and his posthumous work, 'A System of Moral Philosophy.' The last-mentioned, as the completest exposition of his Ethics, Speculative and Practical, is followed here.

There are three books; the first treating of Human Nature and Happiness; the second, of Laws of Nature and Duties, previous to Civil Government and other adventitious states; the third, of Civil Polity.

In Book I., Chap. I., Hutcheson states that the aim of Moral Philosophy is to point out the course of action that will best promote the highest happiness and perfection of men, by the light of human nature and to the exclusion of revelation; thus to indicate the rules of conduct that make up the Law of

Nature. Happiness, the end of this art, being the state of the mind arising from its several grateful perceptions or modifications, the natural course of the inquiry is to consider the various human powers, perceptions, and actions, and then to compare them so as to find what really constitutes happiness, and how it may be attained. The principles that first display themselves in childhood are the external senses, with some small powers of spontaneous motion, introducing to the mind perceptions of pleasure and pain, which becoming forthwith the object of desire and aversion, are our first notions of natural good and evil. Next to Ideas of Sensation, we acquire Concomitant ideas of Sensation from two or more senses together—number, extension, &c. Ideas of consciousness or reflection, which is another natural power of perception, complete the list of the materials of knowledge; to which, when the powers of judging and reasoning are added, all the main acts of the understanding are given. There are still, however, some finer perceptions, that may be left over until the will is disposed of.

Under the head of Will, he notes first the facts of Desire and Aversion, being new motions of the soul, distinct from, though arising out of, sensations, perceptions, and judgments. To these it is common to add Joy and Sorrow, arising in connexion with desire, though they partake more of sensations than of volitions. Acts of the will are *selfish* or *benevolent*, according as one's own good, or (as often really in fact happens) the good of others is pursued. Two *calm* natural determinations of the will are to be conceded; the one an invariable constant impulse towards one's own highest perfection and happiness; the other towards the universal happiness of others, when the whole system of beings is regarded without prejudice, and in the absence of the notion that their happiness interferes with our own. There are also *turbulent* passions and appetites, whose end is their simple gratification; whereupon the violence and uneasiness cease. Some are selfish—hunger, lust, power, fame; some benevolent—pity, gratitude, parental affection, &c.; others may be of either kind—anger, envy, &c. In

none of them is there any reference in the mind to the greatest happiness of self or others; and that they stand so often in real opposition to the calm motions, is sufficient proof of their distinct character, *e.g.*, the opposition of lust and calm regard for one's highest interest.

In Chapter II., he takes up some finer powers of perception, and some other natural determinations of the will. Bound up with seeing and hearing are certain other powers of perception or senses—Beauty, Imitation, Harmony, Design, summed up by Addison under the name of Imagination, and all natural sources of pleasure. The two grateful perceptions of Novelty and Grandeur may be added to the list of natural determinations or senses of pleasure. To attempt to reduce the natural sense of Beauty to the discernment of real or apparent usefulness is hopeless. The next sense of the soul noted is the Sympathetic, in its two Phases of Pity or Compassion and Congratulation. This is fellow-feeling on apprehending the state of others, and proneness to relieve, without any thought of our own advantage, as seen in children. Pity is stronger than congratulation, because, whether for ourselves or others, the desire to repel evil is stronger than to pursue good. Sympathy extends to all the affections and passions; it greatly subserves the grand determination of the soul towards universal happiness.

Other finer senses have actions of men for their objects, there being a general determination of the soul to exercise all its active powers,—a universal impulse to action, bodily and intellectual. In all such action there is real pleasure, but the grand source of human happiness is the power of perceiving the *moral* notions of actions and characters. This, the *Moral Sense*, falls to be fully discussed later. Distinct from our moral sense is the *Sense of Honour or Shame*, when we are praised or condemned by others. The *Sense of Decency or Dignity*, when the mind perceives excellence of bodily and mental powers in ourselves or others, is also natural, and distinct from the moral sense. Some would allow a natural Sense of the Ridiculous

in objects or events. There follow some remarks on the tendency to associate perceptions. In addition also to the natural propensity towards action, there is a tendency in repeated action to become Habit, whereby our powers are greatly increased. Habit and Customs can raise, however, no new ideas beyond the sentiments naturally excited by the original actions.

Sexual desire, wisely postponed by nature beyond the earliest years, does not, in man, end in mere sensual pleasure, but involves a natural liking of beauty as an indication of temper and manners, whereupon grow up esteem and love. Mankind have a universal desire of *offspring*, and love for their young; also an affection, though weaker, for all blood-relations. They have, further, a natural impulse to *society* with their fellows, as an immediate principle, and are not driven to associate only by indigence. All the other principles already mentioned, having little or no exercise in solitude, would bring them together, even without family ties. Patriotism and love of country are acquired in the midst of social order.

Natural Religion inevitably springs up in the best minds at sight of the benevolent order of the world, and is soon diffused among all. The principles now enumerated will be found, though in varying proportions, among all men not plainly monstrous by accident, &c.

Chapter III. treats of the Ultimate Determinations of the Will and Benevolent Affections. The question now is to find some order and subordination among the powers that have been cited, and to discover the ultimate ends of action, about which there is no reasoning. He notices various systems that make calm self-love the one leading principle of action, and specially the system that, allowing the existence of particular disinterested affections, puts the self-satisfaction felt in yielding to the generous sentiments above all other kinds of enjoyments. But, he asks, is there not also a *calm determination* towards the good of others, without reference to private interest of any kind? In the case of particular desires, which all necessarily involve an uneasy sensation until they are gratified, it is no proof of their being selfish that their gratification gives the joy of success and stops uneasiness. On the other hand, to desire the welfare of others in the interest of ourselves is not benevolence nor virtue. What we have to seek are benevolent affections terminating ultimately in the good of others, and constituted by nature (either alone, or mayhap corroborated by some views of interest) 'the immediate cause of moral approbation.' Now, anything to be had from men could not raise within us such affections, or make us careful about anything beyond external deportment. Nor could rewards

from God, or the wish for self-approbation, create such affections, although, on the supposition of their existence, these may well help to foster them. It is benevolent *dispositions* that we morally approve; but dispositions are not to be raised by will. Moreover, they are often found where there has been least thought of cultivating them; and, sometimes, in the form of parental affection, gratitude, &c., they are followed so little for the sake of honour and reward, that though their absence is condemned, they are themselves hardly accounted virtuous at all. He then rebuts the idea that generous affections are selfish, because by *sympathy* we make the pleasures and pains of others our own. Sympathy is a real fact, but has regard only to the distress or suffering beheld or imagined in others, whereas generous affection is varied toward different characters. Sympathy can never explain the immediate ardour of our good-will towards the morally excellent character, or the eagerness of a dying man for the prosperity of his children and friends. Having thus accepted the existence of purely disinterested affections, and divided them as before into calm and turbulent, he puts the question, Whether is the selfish or benevolent principle to yield in case of opposition? And although it appears that, as a fact, the universal happiness is preferred to the individual in the order of the world by the Deity, this is nothing, unless by some determination of the soul we are made to comply with the Divine intentions. If by the desire of reward, it is selfishness still; if by the desire, following upon the sight, of moral excellence, then there must necessarily exist as its object some determination of the will involving supreme moral excellence, otherwise there will be no way of deciding between particular affections. This leads on to the consideration of the Moral Faculty.

But, in the beginning of Chapter IV., he first rejects one by one these various accounts of the reason of our approbation of moral conduct:—pleasure by sympathy; pleasure through the moral sense; notion of advantage to the agent, or to the approver, and this direct or imagined; tendency to procure honour; conformity to law, to truth, fitness, congruity, &c.; also education, association, &c. He then asserts a natural and immediate determination in man to approve certain affections and actions consequent on them; or a natural sense of immediate excellence in them, not referred to any other quality perceivable by our other senses, or by reasoning. It is a sense not dependent on bodily organs, but a settled determination of the soul. It is a sense, in like manner as, with every one of our powers—voice, designing, motion, reasoning, there is bound up a taste, sense, or relish, discerning and recommending their proper exercise; but superior to all these, because the power of moral action is superior. It can be trained like any other sense—hearing, harmony, &c.—so as to be brought to approve finer objects, for instance the general happiness rather than mere motions of pity. That it is meant to control and regulate all the other powers

is matter of immediate consciousness; we must ever prefer moral good to the good apprehended by the other perceptive powers. For while every other good is lessened by the sacrifices made to gain it, moral good is thereby increased and relished the more. The *objects* of moral approbation are primarily affections of the will, but, all experience shows, only such as tend to the happiness of others, and the moral perfection of the mind possessing them. There are, however, many degrees of approbation; and, when we put aside qualities that approve themselves merely to the sense of decency or dignity, and also the calm desire of private good, which is indifferent, being neither virtuous nor vicious, the gradation of qualities morally approved may be given thus: (1) Dignified abilities (pursuit of sciences, &c.), showing a taste above sensuality and selfishness. (2) Qualities immediately connected with virtuous affections—candour, veracity, fortitude, sense of honour. (3) The kind affections themselves, and the more as they are fixed rather than passionate, and extensive rather than narrow; highest of all in the form of universal good-will to all. (4) The disposition to desire and love moral excellence, whether observed in ourselves or others—in short, true piety towards God. He goes on to give a similar scale of moral turpitude. Again, putting aside the indifferent qualities, and also those that merely make people despicable and prove them insensible, he cites—(1) the gratification of a narrow kind of affection when the public good might have been served. (2) Acts detrimental to the public, done under fear of personal ill, or great temptation. (3) Sudden angry passions (especially when grown into habits) causing injury. (4) Injury caused by selfish and sensual passions. (5) Deliberate injury springing from calm selfishness. (6) Impiety towards the Deity, as known to be good. The worst conceivable disposition, a fixed, unprovoked original malice is hardly found among men. In the end of the chapter, he re-asserts the supremacy of the moral faculty, and of the principle of pure benevolence that it involves. The inconsistency of the principles of self-love

and benevolence when it arises, is reduced in favour of the second by the intervention of the moral sense, which does not hold out future rewards and pleasures of self-approbation, but decides for the generous part by 'an immediate undefinable perception.' So at least, if human nature were properly cultivated, although it is true that in common life men are wont to follow their particular affections, generous and selfish, without thought of extensive benevolence or calm self-love; and it is found necessary to counterbalance the advantage that the selfish principles gain in early life, by propping up the moral faculty with considerations of the surest mode of attaining the highest private happiness, and with views of the moral administration of the world by the Deity.

But before passing to these subjects, he devotes Chapter V. to the confirmation of the doctrine of the Moral Sense, and first from the Sense of Honour. This, the grateful sensation when we are morally approved and praised, with the reverse when we are censured, he argues in his usual manner, involves no thought of private interest. However the facts may stand, it is always under the impression of actions being moral or immoral, that the sense of honour works. In defence of the doctrine of a moral sense, against the argument from the varying morality of different nations, he says it would only prove the sense not uniform, as the palate is not uniform in all men. But the moral sense is really more uniform. For, in every nation, it is the benevolent actions and affections that are approved, and wherever there is an error of fact, it is the reason, not the moral sense, that is at fault. There are no cases of nations where moral approval is restricted to the pursuit of private interest. The chief causes of variety of moral approbation are three: (1) Different notions of happiness and the means of promoting it, whereby much that is peculiar in national customs, &c., is explained, without reflecting upon the moral sense. (2) The larger or more confined field on which men consider the tendencies of their actions—sect, party, country, &c. (3) Different opinions about the divine commands, which are allowed

to over-ride the moral sense. The moral sense does not imply innate complex ideas of the several actions and their tendencies, which must be discovered by observation and reasoning; it is concerned only about inward affections and dispositions, of which the effects may be very various. In closing this part of his subject, he considers that all that is needed for the formation of morals, has been given, because from the moral faculty and benevolent affection all the special laws of nature can be deduced. But because the moral faculty and benevolence have difficulty in making way against the selfish principles so early rooted in man, it is needful to strengthen these foundations of morality by the consideration of the nature of the highest happiness.

With Chapter VI. accordingly he enters on the discussion of Happiness, forming the second half of his first book. The supreme happiness of any being is the full enjoyment of all the gratifications its nature desires or is capable of; but, in case of their being inconsistent, the constant gratification of the higher, intenser, and more durable pleasures is to be preferred.

In Chapter VII., he therefore directly compares the various kinds of enjoyment and misery, in order to know what of the first must be surrendered, and what of the second endured, in aiming at highest attainable happiness. Pleasures the same in kind are preferable, according as they are more intense and enduring; of a different kind, as they are more enduring and dignified, a fact decided at once by our immediate sense of dignity or worth. In the great diversity of tastes regarding pleasures, he supposes the ultimate decision as to the value of pleasures to rest with the possessors of finer perceptive powers, but adds, that good men are the best judges, because possessed of fuller experience than the vicious, whose tastes, senses, and appetites have lost their natural vigour through one-sided indulgence. He then goes through the various pleasures, depreciating the pleasures of the palate on the positive side, and sexual pleasure as transitory

and enslaving when pursued for itself; the sensual enjoyments are, notwithstanding, quite proper within due limits, and then, perhaps, are at their highest. The pleasures of the *imagination*, knowledge, &c., differ from the last in not being preceded by an uneasy sensation to be removed, and are clearly more dignified and endurable, being the proper exercise of the soul when it is not moved by the affections of social virtue, or the offices of rational piety. The *sympathetic* pleasures are very extensive, very intense, and may be of very long duration; they are superior to all the foregoing, if there is a hearty affection, and are at their height along with the feeling of universal good will. *Moral* Enjoyments, from the consciousness of good affections and actions, when by close reflexion we have attained just notions of virtue and merit, rank highest of all, as well in dignity as in duration. The pleasures of *honour*, when our conduct is approved, are also among the highest, and when, as commonly happens, they are conjoined with the last two classes, it is the height of human bliss. The pleasures of *mirth*, such as they are, fall in best with virtue, and so, too, the pleasures of *wealth* and *power*, in themselves unsatisfying. Anger, malice, revenge, &c., are not without their uses, and give momentary pleasure as removing an uneasiness from the subject of them; but they are not to be compared with the sympathetic feelings, because their effects cannot long be regarded with satisfaction. His general conclusion is, that as the highest personal satisfaction is had in the most benevolent dispositions, the same course of conduct is recommended alike by the two great determinations of our nature, towards our own good and the good of others. He then compares the several sorts of pain, which, he says, are not necessarily in the proportion of the corresponding pleasures. Allowing the great misery of bodily pain, he yet argues that, at the worst, it is not to be compared for a moment to the pain of the worst wrong-doing. The imagination, great as are its pleasures, cannot cause much pain. The sympathetic and moral pains of remorse and infamy are the worst of all.

In Chapter VIII. the various Tempers and Characters are compared in point of happiness or misery. Even the private affections, in due moderation, promote the general good; but that system is the best possible where, along with this, the generous affections also promote private good. No natural affection is absolutely evil; the evil of excess in narrow generous affection lies in the want of proportion; in calm extensive good-will there can be no excess. The social and moral enjoyments, and those of honour, being the highest, the affections and actions that procure them are the chief means of happiness; amid human mischances, however, they need support from a trust in Providence. The unkind affections and passions (anger, &c.) are uneasy even when innocent, and never were intended to become permanent dispositions. The narrow kind of affections are all that can be expected from the majority of men, and are very good, if only they are not the occasion of unjust partiality to some, or, worse, ill-grounded aversion to others. The rest of the chapter is taken up in painting the misery of the selfish passions when in excess—love of life, sensual pleasure, desire of power, glory, and ease. He has still one 'object of affection to every rational mind' that he must deal with before he is done with considering the question of highest happiness. This is the Deity, or the Mind that presides in the Universe.

Chapter IX., at great length, discusses the first part of the subject—the framing of primary ideas regarding the Divine Nature. He proves the existence of an original mind from design, &c., in the world; he then finds this mind to be benevolent, on occasion of which he has to deal with the great question of Evil, giving reasons for its existence, discovering its uses, narrowing its range as compared with good, and finally reducing it by the consideration and proof of immortality; he ends by setting forth the other attributes of God—providence, holiness, justice, &c.

In Chapter X., he considers the Affections, Duty, and Worship to be exercised towards God. The moral sense quite specially enjoins worship of the Deity, internal and external; internal by love and trust and gratitude, &c., external by prayer, praise, &c. [He seems to ascribe to prayer nothing

beyond a subjective efficacy.] In the acknowledgment of God is highest happiness, and the highest exercise of the moral faculty.

In Chapter XI., he closes the whole book with remarks on the Supreme Happiness of our Nature, which he makes to consist in the perfect exercise of the nobler virtues, especially love and resignation to God, and of all the inferior virtues consistent with the superior; also in external prosperity, so far as virtue allows. The moral sense, and the truest regard for our own interest, thus recommend the same course as the calm, generous determination; and this makes up the supreme cardinal virtue of Justice, which includes even our duties to God. Temperance in regard to sensual enjoyments, Fortitude as against evils, and Prudence, or Consideration, in regard to everything that solicits our desires, are the other virtues; all subservient to Justice. In no station of life are men shut out from the enjoyment of the supreme good.

Book II. is a deduction of the more special laws of nature and duties of life, so far as they follow from the course of life shown above to be recommended by God and nature as most lovely and most advantageous; all adventitious states or relations among men aside. The three first chapters are of a general nature.

In Chapter I., he reviews the circumstances that increase the moral good or evil of actions. Virtue being primarily an affair of the will or affections, there can be no imputation of virtue or vice in action, unless a man is free and able to act; the necessity and impossibility, as grounds of non-imputation, must, however, have been in no way brought about by the agent himself. In like manner, he considers what effects and consequents of his actions are imputable to the agent; remarking, by the way, that the want of a proper degree of good affections and of solicitude for the public good is morally evil. He then discusses the bearing of ignorance and error, vincible and invincible, and specially the case wherein an erroneous conscience extenuates. The difficulty of such cases, he says, are due to ambiguity,

wherefore he distinguishes three meanings of Conscience that are found, (1) the moral faculty, (2) the judgment of the understanding about the springs and effects of actions, upon which the moral sense approves or condemns them, (3) our judgments concerning actions compared with the *law* (moral maxims, divine laws, &c.).

In Chapter II., he lays down general rules of judging about the morality of actions from the affections exciting to them or opposing them; and first as to the degree of virtue or vice when the ability varies; in other words, morality as dependent on the *strength* of the affections. Next, and at greater length, morality as dependent on the *kind* of the affections.

Here he attempts to fix, in the first place, the degree of benevolence, as opposed to private interest, that is necessary to render men virtuous, or even innocent, in accordance with his principle that there is implanted in us a very high standard of necessary goodness, requiring us to do a public benefit, when clear, however burdensome or hurtful the act may be to ourselves; in the second place, the proportion that should be kept between the narrower and the more extensive generous affections, where he does not forget to allow that, in general, a great part of human virtue must necessarily lie within the narrow range. Then he gives a number of special rules for appreciating conduct, advising, *for the very sake of the good to others that will result therefrom*, that men should foster their benevolence by the thought of the advantage accruing to themselves here and hereafter from their virtuous actions; and closes with the consideration of the cases wherein actions can be imputed to other than the agents.

In Chapter III., he enters into the general notion of Rights and Laws, and their divisions. From *right* use of such affection or actions as are approved by the moral faculty from their relation to the general good, or the good of particular persons consistently with the general good, he distinguishes the

right of a man to do, possess, demand, &c., which exists when his doing, possessing, &c. tend to the good of society, or to his own, consistent with the rights of others and the general good, and when obstructing him would have the contrary tendency. He proceeds to argue, on utilitarian principles, that the rights that seem to attend every natural desire are perfectly valid when not against the public interest, but never valid when they are against it.

Chapter IV. contains a discussion upon the state of Nature, maintaining that it is not a state of anarchy or war, but full of rights and obligations. He points out that independent states in their relation to one another are subject to no common authority, and so are in a state of nature. Rights belong (1) to individuals, (2) to societies, (3) to mankind at large. They are also natural, or adventitious, and again perfect or imperfect.

Chapter V. Natural rights are antecedent to society, such as the right to life, to liberty, to private judgment, to marriage, &c. They are of two kinds—perfect and imperfect.

Chapter VI. Adventitious rights are divided into Real and Personal (a distinction chiefly of legal value.) He also examines into the nature and foundation of private property.

Chapter VII. treats of the Acquisition of property, Hutcheson, as is usual with moralists, taking the *occupatio* of the Roman Law as a basis of ownership. Property involves the right of (1) use, (2) exclusive use, (3) alienation.

Chapter VIII. Rights drawn from property are such as mortgages, servitudes, &c., being rights of what may be called partial or imperfect ownership.

Chapter IX. discusses the subject of contracts, with the general conditions required for a valid contract.

Chapter X. Of Veracity. Like most writers on morals, Hutcheson breaks in upon the strict rule of veracity by various necessary, but ill-defined, exceptions. Expressions of courtesy and etiquette are exempted, so also artifices in war, answers extorted by unjust violence, and some cases of peculiar necessity, as when a man tells a lie to save thousands of lives.

Chapter XI. Oaths and Vows.

Chapter XII. belongs rather to Political Economy. Its subject is the values of goods in commerce, and the nature of coin.

Chapter XIII. enumerates the various classes of contracts, following the Roman Law, taking up *Mandatum, Depositum, Letting to Hire, Sale, &c.*

Chapter XIV. adds the Roman *quasi-contracts*.

Chapter XV. Rights arising from injuries or wrongs (*torts*). He condemns duelling, but admits that, where it is established, a man may, in some cases, be justified in sending or accepting a challenge.

Chapter XVI. Rights belonging to society as against the individual. The perfect rights of society are such as the following:—(1) To prevent suicide; (2) To require the producing and rearing of offspring, at least so far as to tax and discourage bachelors; (3) To compel men, though not without compensation, to divulge useful inventions; (4) To compel to some industry, &c.

Chapter XVII. takes up some cases where the ordinary rights of property or person are set aside by some overbearing necessity.

Chapter XVIII. The way of deciding controversies in a state of nature by arbitration.

Book III.—Civil Polity, embracing Domestic and Civil Rights.

Chapter I. *Marriage*. Hutcheson considers that Marriage should be a perpetual union upon equal terms, 'and not such a one wherein the one party stipulates to himself a right of governing in all domestic affairs, and the other promises subjection.' He would allow divorce for adultery, desertion, or implacable enmity on either side. Upon defect of children, some sort of concubinage would be preferable to divorce, but leaving to the woman the option of divorce with compensation. He notices the misrepresentations regarding Plato's scheme of a community of wives; 'Never was there in any plan less provision made for sensual gratification.'

Chapter II. The Rights and Duties of Parents and Children.

Chapter III. The Rights and Duties of Masters and Servants.

Chapter IV. discusses the Motives to constitute Civil Government. If men were perfectly wise and upright, there would be no need for government. Man is naturally sociable and political [Greek: *xon politikon*].

Chapter V. shows that the natural method of constituting civil government is by consent or social compact.

Chapter VI. The Forms of Government, with their respective advantages and disadvantages.

Chapter VII. How far the Rights of Governors extend. Their lives are more sacred than the lives of private persons; but they may nevertheless be lawfully resisted, and, in certain cases, put to death.

Chapter VIII. The ways of acquiring supreme Power. That government has most divine right that is best adapted to the public good: a divine right of succession to civil offices is ridiculous.

Chapter IX. takes up the sphere of civil law. (1) To enforce the laws of nature; (2) To appoint the form &c., of contracts and dispositions, with a view to prevent fraud; (3) To require men to follow the most prudent methods of agriculture, manufactures, and commerce; (4) To prescribe rules in matters morally indifferent, where uniformity is advantageous. Opinions should be tolerated; all except Atheism, and the denial of moral obligation.

Chapter X. The Laws of Peace and War, belonging now to the subject of International Law.

Chapter XI. (concluding the work) discusses some cases connected with the duration of the 'Politick Union.'

This bare indication of topics will suffice to give an idea of the working out of Hutcheson's system. For summary:—I.—The Standard, according to Hutcheson, is identical with the Moral Faculty. It is the Sense of unique excellence in certain affections and in the actions consequent upon them. The object of approval is, in the main, benevolence.

II.—His division of the feelings is into calm and turbulent, each of these being again divided into self-regarding and benevolent. He affirms the existence of pure Disinterestedness, a *calm* regard for the most extended well-being. There are also *turbulent* passions of a benevolent kind, whose end is their simple gratification. Hutcheson has thus a higher and lower grade of Benevolence; the higher would correspond to the disinterestedness that arises from the operation of *fixed ideas*, the lower to those affections that are generated in us by pleasing objects.

He has no discussion on the freedom of the will, contenting himself with mere voluntariness as an element in moral approbation or censure.

III.—The Summum Bonum is fully discussed. He places the pleasures of sympathy and moral goodness (also of piety) in the highest rank, the passive sensations in the lowest. Instead of making morality, like health, a neutral state (though an indispensable condition of happiness), he ascribes to it the highest positive gratification.

IV.—In proceeding upon Rights, instead of Duties, as a basis of classification, Hutcheson is following in the wake of the jurisconsults, rather than of the moralists. When he enters into the details of moral duties, he throws aside his 'moral sense,' and draws his rules, most of them from Roman Law, the rest chiefly from manifest convenience.

V. and VI.—Hutcheson's relation to Politics and Theology requires no comment.

BERNARD DE MANDEVILLE. [1670-1733.]

MANDEVILLE was author of 'The Fable of the Bees; or, Private Vices, Public Benefits' (1714). This work is a satire upon artificial society, having for its chief aim to expose the hollowness of the so-called dignity of human nature. Dugald Stewart considered it a recommendation to any theory of the mind that it exalted our conceptions of human nature. Shaftesbury's views were entitled to this advantage; but, observes Mandeville, 'the ideas he had formed of the goodness and excellency of our nature, were as romantic and chimerical, as they are beautiful and amiable.' Mandeville examined not what human nature *ought to be*, but what it really *is*. In contrast, therefore, to the moralists that distinguish between a higher and a lower in our nature, attributing to the higher everything good and noble, while the lower ought to be persecuted and despised, Mandeville declares the fancied higher parts to be the region of vanity and imposture, while the renowned deeds of men, and the greatness of kingdoms, really arise from the passions usually

reckoned base and sensual. As his views are scattered through numerous dissertations, it will be best to summarize them under a few heads.

1. *Virtue and Vice*. Morality is not natural to man; it is the invention of wise men, who have endeavoured to infuse the belief, that it is best for everybody to prefer the public interest to their own. As, however, they could bestow no *real* recompense for the thwarting of self-interest, they contrived an *imaginary* one—honour. Upon this they proceeded to divide men into two classes, the one abject and base, incapable of self-denial; the other noble, because they suppressed their passions, and acted for the public welfare. Man was thus won to virtue, not by force, but by flattery.

In regard to praiseworthiness, Shaftesbury, according to Mandeville, was the first to affirm that virtue could exist without self-denial. This was opposed to the prevailing opinion, and to the view taken up and criticised by Mandeville. His own belief was different. 'It is not in feeling the passions, or in being affected with the frailties of nature, that vice consists; but in indulging and obeying the call of them, contrary to the dictates of reason.'

2. *Self-love*. 'It is an admirable saying of a worthy divine, that though many discoveries have been made in the world of self-love, there is yet abundance of *terra incognita* left behind.' There is nothing so sincere upon earth as the love that creatures bear to themselves. 'Man centres everything in himself, and neither loves nor hates, but for his own sake.' Nay, more, we are naturally regardless of the effect of our conduct upon others; we have no innate love for our fellows. The highest virtue is not without reward; it has a satisfaction of its own, the pleasure of contemplating one's own worth. But is there no genuine self-denial? Mandeville answers by a distinction: mortifying one passion to gratify another is very common, but this not self-

denial; self-inflicted pain without any recompense—where is that to be found?

'Charity is that virtue by which part of that sincere love we have for ourselves is transferred pure and unmixed to others (not friends or relatives), whom we have no obligation to, nor hope or expect anything from.' The counterfeit of true charity is *pity* or *compassion*, which is a fellow-feeling for the sufferings of others. Pity is as much a frailty of our nature as anger, pride, or fear. The weakest minds (*e.g.*, women and children) have generally the greatest share of it. It is excited through the eye or the ear; when the suffering does not strike our senses, the feeling is weak, and hardly more than an imitation of pity. Pity, since it seeks rather our own relief from a painful sight, than the good of others, must be curbed and controlled in order to produce any benefit to society.

Mandeville draws a nice distinction between self-love, and, what he calls, *self-liking*. 'To increase the care in creatures to preserve themselves, Nature has given them an instinct, by which *every individual values itself above its real worth*.' The more mettlesome and spirited animals (*e.g.*, horses) are endowed with this instinct. In us, it is accompanied with an apprehension that we do overvalue ourselves; hence our susceptibility to the confirmatory good opinion of others. But if each were to display openly his own feeling of superiority, quarrels would inevitably arise. The grand discovery whereby the ill consequences of this passion are avoided is *politeness*. 'Good manners consists in flattering the pride of others, and concealing our own.' The first step is to conceal our good opinion of ourselves; the next is more impudent, namely, to pretend that we value others more highly than ourselves. But it takes a long time to come to that pitch; the Romans were almost masters of the world before they learned politeness.

3. *Pride, Vanity, Honour*. Pride is of great consequence in Mandeville's system. 'The moral virtues are the political offspring which flattery begot upon pride.' Man is naturally innocent, timid, and stupid; destitute of strong passions or appetites, he would remain in his primitive barbarism were it not for pride. Yet all moralists condemn pride, as a vain notion of our own superiority. It is a subtle passion, not easy to trace. It is often seen in the humility of the humble, and the shamelessness of the shameless. It simulates charity; 'pride and vanity have built more hospitals than all the virtues together.' It is the chief ingredient in the chastity of women, and in the courage of men. Less cynical moralists than Mandeville have looked with suspicion on posthumous fame; 'so silly a creature is man, as that, intoxicated with the fumes of vanity, he can feast on the thought of the praises that shall be paid his memory in future ages, with so much ecstasy as to neglect his present life, nay court and covet death, if he but imagines that it will add to the glory he had acquired before.' But the most notable institution of pride is the love of honour. Honour is a 'chimera,' having no reality in nature, but a mere invention of moralists and politicians, to keep men close to their engagements, whatever they be. In some families it is hereditary, like the gout; but, luckily, the vulgar are destitute of it. In the time of chivalry, honour was a very troublesome affair; but in the beginning of the 17th century, it was melted over again, and brought to a new standard; 'they put in the same weight of courage, half the quantity of honesty, and a very little justice, but not a scrap of any other virtue.' The worst thing about it is duelling; but there are more suicides than duels, so that at any rate men do not hate others more than themselves. After a half-satirical apology for duelling, he concludes with one insurmountable objection; duelling is wholly repugnant to religion, adding with the muffled scepticism characteristic of the 18th century, 'how to reconcile them must be left to wiser heads than mine.'

4. *Private vices, public benefits.* Mandeville ventures to compare society to a bowl of punch. Avarice is the souring, and prodigality the sweetening of it. The water is the ignorance and folly of the insipid multitude, while honour and the noble qualities of man represent the brandy. To each of these ingredients we may object in turn, but experience teaches that, when judiciously mixed, they make an excellent liquor. It is not the good, but the evil qualities of men, that lead to worldly greatness. Without luxury we should have no trade. This doctrine is illustrated at great length, and has been better remembered than anything else in the book; but it may be dismissed with two remarks. (1) It embodies an error in political economy, namely, that it is spending and not saving that gives employment to the poor. If Mandeville's aim had been less critical, and had he been less delighted with his famous paradox, we may infer from the acuteness of his reasoning on the subject, that he would have anticipated the true doctrine of political economy, as he saw through the fallacy of the mercantile theory. (2) He employs the term, luxury, with great latitude, as including whatever is not a bare necessary of existence. According to the fashionable doctrine of his day, all luxury was called an evil and a vice; and in this sense, doubtless, vice is essential to the existence of a great nation.

5. *The origin of society.* Mandeville's remarks on this subject are the best he has written, and come nearest to the accredited views of the present day. He denies that we have any natural affection for one another, or any natural aversion or hatred. Each seeks his own happiness, and conflict arises from the opposition of men's desires. To make a society out of the raw material of uncivilized men, is a work of great difficulty, requiring the concurrence of many favourable accidents, and a long period of time. For the qualities developed among civilized men no more belong to them in a savage state, than the properties of wine exist in the grape. Society begins with *families*. In the beginning, the old savage has a great wish to rule his children, but has no capacity for government. He is inconstant and violent in his desires,

and incapable of any steady conduct. What at first keeps men together is not so much reverence for the father, as the common danger from wild beasts. The traditions of antiquity are full of the prowess of heroes in killing dragons and monsters. The second step to society is the danger men are in from one another. To protect themselves, several families would be compelled to accept the leadership of the strongest. The leaders, seeing the mischiefs of dissension, would employ all their art to extirpate that evil. Thus they would forbid killing one another, stealing one another's wives, &c. The third and last step is the invention of letters; this is essential to the growth of society, and to the corresponding, expansion of law.[22]

I.—Mandeville's object being chiefly *negative* and *dialectical*, he has left little of positive ethical theory. Virtue he regards as *de facto* an arbitrary institution of society; what it ought to be, he hardly says, but the tendency of his writings is to make the good of the whole to be preferred to private interest.

II.—He denies the existence of a moral sense and of disinterestedness. The motive to observe moral rules is pride and vanity fomented by politicians. He does not regard virtue as an independent end, even by association, but considers that pride in its naked form is the ever present incentive to good conduct.

V.—The connexion of virtue with society is already fully indicated.

In France, the name of HELVETIUS (author of *De l'esprit*, *De l'homme*, &c., 1715-71) is identified with a serious (in contrast to Mandeville), and perfectly consistent, attempt to reduce all morality to direct Self-interest. Though he adopted this ultimate interpretation of the facts, Helvetius was by no means the 'low and loose moralist' that he has been described to be; and, in particular, his own practice displayed a rare benevolence.

DAVID HUME. [1711-1776.]

The Ethical views of Hume are contained in '*An Enquiry concerning the Principles of Morals*.'

In an Introductory Section (I.) he treats of the GENERAL PRINCIPLES OF MORALS.

After describing those that profess to deny the reality of the distinction of Right and Wrong, as disingenuous disputants, useless to reason with,—he states the great problem of Morals to be, whether the foundation is REASON or SENTIMENT; whether our knowledge of moral distinctions is attained by a chain of argument and induction, or by an immediate feeling or finer internal sense.

Specious arguments may be urged on both sides. On the side of Reason, it may be contended, that the justice and injustice of actions are often a subject of argument and controversy like the sciences; whereas if they appealed at once to a sense, they would be as unsusceptible of truth or falsehood as the harmony of verse, the tenderness of passion, or the brilliancy of wit.

In reply, the supporters of Sentiment may urge that the character of virtue is to be *amiable*, and of vice to be *odious*, which are not intellectual distinctions. The end of moral distinctions is to influence the feelings and determine the will, which no mere assent of the understanding can do. Extinguish our *feelings* towards virtue and vice, and morality would cease to have any influence on our lives.

The arguments on both sides have so much force in them, that we may reasonably suspect that Reason and Sentiment both concur in our moral

determinations. The final sentence upon actions, whereby we pronounce them praiseworthy or blameable, may depend on the feelings; while a process of the understanding may be requisite to make nice distinctions, examine complicated relations, and ascertain matters of fact.

It is not the author's intention, however, to pursue the subject in the form of adjudicating between these two principles, but to follow what he deems a simpler method—to analyze that complication of mental qualities, called PERSONAL MERIT: to ascertain the attributes or qualities that render a man an object of esteem and affection, or of hatred and contempt. This is a question of fact, and not of abstract science; and should be determined, as similar questions are, in the modern physics, by following the experimental method, and drawing general maxims from a comparison of particular instances.

Section II. is OF BENEVOLENCE.

His first remark on Benevolence is, that it is identified in all countries with the highest merits that human nature is capable of attaining to.

This prepares the way for the farther observation, that in setting forth the praises of a humane, beneficent man, the one circumstance that never fails to be insisted on is the happiness to society arising through his good offices. Like the sun, an inferior minister of providence, he cheers, invigorates, and sustains the surrounding world. May we not therefore conclude that the UTILITY resulting from social virtues, forms, at least, a *part* of their merit, and is one source of the approbation paid to them. He illustrates this by a number of interesting examples, and defers the enquiry—*how large* a part of the social virtues depend on utility, and for what reason we are so much affected by it.

Section III. is on JUSTICE. That Justice is useful to society, and thence derives *part* of its merit, would be superfluous to prove. That public utility is the *sole* origin of Justice, and that the beneficial consequences are the *sole* foundation of its merit, may seem more questionable, but can in the author's opinion be maintained.

He puts the supposition, that the human race were provided with such abundance of all external things, that without industry, care, or anxiety, every person found every want fully satisfied; and remarks, that while every other social virtue (the affections, &c.) might flourish, yet, as property would be absent, mine and thine unknown, Justice would be useless, an idle ceremonial, and could never come into the catalogue of the virtues. In point of fact, where any agent, as air, water, or land, is so abundant as to supply everybody, questions of justice do not arise on that particular subject.

Suppose again that in our present necessitous condition, the mind of every man were so enlarged and so replete with generosity that each should feel as much for his fellows as for himself—the *beau idéal* of communism—in this case Justice would be in abeyance, and its ends answered by Benevolence. This state is actually realized in well-cultivated families; and communism has been attempted and maintained for a time in the ardour of new enthusiasms.

Reverse the above suppositions, and imagine a society in such want that the utmost care is unable to prevent the greater number from perishing, and all from the extremes of misery, as in a shipwreck or a siege; in such circumstances, justice is suspended in favour of self-preservation; the possibility of good order is at an end, and Justice, the means, is discarded as useless. Or, again, suppose a virtuous man to fall into a society of ruffians on the road to swift destruction; his sense of justice would be of no avail, and consequently he would arm himself with the first weapon he could seize, consulting self-preservation alone. The ordinary punishment of criminals is, as regards them, a suspension of justice for the benefit of society. A state of war is the remission of justice between the parties as of

no use or application. A civilized nation at war with barbarians must discard even the small relics of justice retained in war with other civilized nations. Thus the rules of equity and justice depend on the condition that men are placed in, and are limited by their UTILITY in each separate state of things. The common state of society is a medium between the extreme suppositions now made: we have our self-partialities, but have learnt the value of equity; we have few enjoyments by nature, but a considerable number by industry. Hence we have the ideas of Property; to these Justice is essential, and it thus derives its moral obligation.

The poetic fictions of the Golden Age, and the philosophic fictions of a State of Nature, equally adopt the same fundamental assumption; in the one, justice was unnecessary, in the other, it was inadmissible. So, if there were a race of creatures so completely servile as never to contest any privilege with us, nor resent any infliction, which is very much our position with the lower animals, justice would have no place in our dealings with them. Or, suppose once more, that each person possessed within himself every faculty for existence, and were isolated from every other; so solitary a being would be as incapable of justice as of speech. The sphere of this duty begins with society; and extends as society extends, and as it contributes to the well-being of the individual members of society.

The author next examines the *particular laws* embodying justice and determining property. He supposes a creature, having reason, but unskilled in human nature, to deliberate with himself how to distribute property. His most obvious thought would be to give the largest possessions to the most virtuous, so as to give the power of doing good where there was the most inclination. But so unpracticable is this design, that although sometimes conceived, it is never executed; the civil magistrate knows that it would be utterly destructive of human society; sublime as may be the ideal justice that it supposes, he sets it aside on the calculation of its bad consequences.

Seeing also that, with nature's liberality, were all her gifts equally distributed, every one would have so good a share that no one would have a title to complain; and seeing, farther, that this is the only type of perfect equality or ideal justice—there is no good ground for falling short of it but the knowledge that the attempt would be pernicious to society. The writers on the Law of Nature, whatever principles they begin with, must assign as the ultimate reason of law the necessities and convenience of mankind. Uninstructed nature could never make the distinction between *mine* and *yours*; it is a purely artificial product of society. Even when this distinction is established, and justice requires it to be adhered to, yet we do not scruple in extraordinary cases to violate justice in an individual case for the safety of the people at large.

When the interests of society require a rule of justice, but do not indicate any rule in particular, the resort is to some *analogy* with a rule already established on grounds of the general interest.

For determining what is a man's property, there may be many statutes, customs, precedents, analogies, some constant and inflexible, some variable and arbitrary, but all professedly terminating in the interests of human society. But for this, the laws of property would be undistinguishable from the wildest superstitions.

Such a reference, instead of weakening the obligations of justice, strengthens them. What stronger foundations can there be for any duty than that, without it, human nature could not subsist; and that, according as it is observed, the degrees of human happiness go on increasing?

Either Justice is evidently founded on Utility, or our regard for it is a simple instinct like hunger, resentment, or self-preservation. But on this last supposition, property, the subject-matter, must be also discerned by an

instinct; no such instinct, however, can be affirmed. Indeed, no single instinct would suffice for the number of considerations entering into a fact so complex. To define Inheritance and Contract, a hundred volumes of laws are not enough; how then can nature embrace such complications in the simplicity of an instinct. For it is not laws alone that we must have, but authorized interpreters. Have we original ideas of prætors, and chancellors, and juries?

Instincts are uniform in their operation; birds of a species build their nests alike. The laws of states are uniform to about the same extent as houses, which must have a roof and walls, windows and chimneys, because the end in view demands certain essentials; but beyond these, there is every conceivable diversity.

It is true that, by education and custom, we blame injustice without thinking of its ultimate consequences. So universal are the rules of justice, from the universality of its end, that we approve of it mechanically. Still, we have often to recur to the final end, and to ask, What must become of the world if such practices prevail? How could society subsist under such disorders?

Thus, then, Hume considers that, by an inductive determination, on the strict Newtonian basis, he has proved that the SOLE foundation of our regard to justice is the support and welfare of society: and since no moral excellence is more esteemed, we must have some strong disposition in favour of general usefulness. Such a disposition must be a part of the humane virtues, as it is the SOLE source of the moral approbation of fidelity, justice, veracity, and integrity.

Section IV. relates to POLITICAL SOCIETY, and is intended to show that Government, Allegiance, and the Laws of each State, are justified solely by Utility.

If men had *sagacity* to perceive, and *strength of mind* to follow out, distant and general interests, there had been no such thing as government. In other words, if government were totally useless, it would not be. The duty of Allegiance would be no duty, but for the advantage of it, in preserving peace and order among mankind.

[Hume is here supposing that men enter into society on equal terms; he makes no allowance for the exercise of the right of the stronger in making compulsory social unions. This, however, does not affect his reasoning as to the source of our approbation of social duty, which is not usually extended to tyranny.]

When political societies hold intercourse with one another, certain regulations are made, termed Laws of Nations, which have no other end than the advantage of those concerned.

The virtue of Chastity is subservient to the utility of rearing the young, which requires the combination of both parents; and that combination reposes on marital fidelity. Without such a utility, the virtue would never have been thought of. The reason why chastity is extended to cases where child-bearing does not enter, is that *general rules* are often carried beyond their original occasion, especially in matters of taste and sentiment.

The prohibition of marriage between near relations, and the turpitude of incest, have in view the preserving of purity of manners among persons much together.

The laws of good manners are a kind of lesser morality, for the better securing of our pleasures in society.

Even robbers and pirates must have their laws. Immoral gallantries, where authorized, are governed by a set of rules. Societies for play have

laws for the conduct of the game. War has its laws as well as peace. The fights of boxers, wrestlers, and such like, are subject to rules. For all such cases, the common interest and utility begets a standard of right and wrong in those concerned.

Section V. proceeds to argue WHY UTILITY PLEASES. However powerful education may be in forming men's sentiments, there must, in such a matter as morality, be some deep natural distinction to work upon. Now, there are only two natural sentiments that Utility can appeal to: (1) Self-Interest, and (2) Generosity, or the interests of others.

The deduction of morals from Self-Love is obvious, and no doubt explains much. An appeal to experience, however, shows its defects. We praise virtuous actions in remote ages and countries, where our own interests are out of the question. Even when we have a private interest in some virtuous action, our praise avoids that part of it, and prefers to fasten on what we are not interested in. When we hear of the details of a generous action, we are moved by it, before we know when or where it took place. Nor will the force of imagination account for the feeling in those cases; if we have an eye solely to our own *real* interest, it is not conceivable how we can be moved by a mere imaginary interest.

But another view may be taken. Some have maintained that the public interest is our own interest, and is therefore promoted by our self-love. The reply is that the two are often opposed to each other, and still we approve of the preference of the public interest. We are, therefore, driven to adopt a more public affection, and to admit that the interests of society, *on their own, account*, are not indifferent to us.

Have we any difficulty to comprehend the force of humanity or benevolence? Or to conceive that the very aspect of happiness, joy, prosperity, gives pleasure; while pain, suffering, sorrow, communicate uneasiness? Here we have an unmistakeable, powerful, universal sentiment of human nature to build upon.

The author gives an expanded illustration of the workings of Benevolence or Sympathy, which well deserves to be read for its merits of execution. We must here content ourselves with stating that it is on this principle of disinterested action, belonging to our nature, that he founds the chief part of our sentiment of Moral Approbation.

Section VI. takes into the account QUALITIES USEFUL TO OURSELVES. We praise in individuals the qualities useful to themselves, and are pleased with the happiness flowing to individuals by their own conduct. This can be no selfish motive on our part. For example, DISCRETION, so necessary to the accomplishing of any useful enterprise, is commended; that measured union of enterprise and caution found in great commanders, is a subject of highest admiration; and why? For the usefulness, or the success that it brings. What need is there to display the praises of INDUSTRY, or of FRUGALITY, virtues useful to the possessor in the first instance? Then the qualities of HONESTY, FIDELITY, and TRUTH, are praised, in the first place, for their tendency to the good of society; and, being established on that foundation, they are also approved as advantageous to the individual's own self. A part of our blame of UNCHASTITY in a woman is attached to its imprudence with reference to the opinion regarding it. STRENGTH OF MIND being to resist present care, and to maintain the search of distant profit and enjoyment, is another quality of great value to the possessor. The distinction between the *Fool* and the *Wise* man illustrates the same position. In our approbation of all such qualities, it is evident that the happiness and misery of others are not indifferent spectacles to us: the one, like sunshine, or the prospect of well-cultivated plains, imparts joy and satisfaction; the other, like a lowering cloud or a barren landscape, throws a damp over the spirits.

He next considers the influence of bodily endowments and the goods of fortune as bearing upon the general question.

Even in animals, one great source of *beauty* is the suitability of their structure to their manner of life. In times when bodily strength in men was more essential to a warrior than now, it was held in so much more esteem. Impotence in both sexes, and barrenness in women, are generally contemned, for the loss of human pleasure attending them.

As regards fortune, how can we account for the regard paid to the rich and powerful, but from the reflexion to the mind of prosperity, happiness, ease, plenty, authority, and the gratification of every appetite. Rank and family, although they may be detached from wealth and power, had originally a reference to these.

In Section VII., Hume treats of QUALITIES IMMEDIATELY AGREEABLE TO OURSELVES. Under this head, he dilates on the influence of CHEERFULNESS, as a social quality: on GREATNESS OF MIND, or Dignity of Character; on COURAGE; on TRANQUILLITY, or equanimity of mind, in the midst of pain, sorrow, and adverse fortune; on BENEVOLENCE in the aspect of an agreeable spectacle; and lastly, on DELICACY of Taste, as a merit. As manifested to a beholder, all these qualities are engaging and admirable, on account of the immediate pleasure that they communicate to the person possessed of them. They are farther testimonies to the existence of social sympathy, and to the connexion of that with our sentiment of approbation towards actions or persons.

Section VIII. brings forward the QUALITIES IMMEDIATELY AGREEABLE TO OTHERS. These are GOOD MANNERS or POLITENESS; the WIT or INGENUITY that enlivens social intercourse; MODESTY, as opposed to impudence, arrogance, and vanity; CLEANLINESS, and GRACEFUL MANNER; all which are obviously valued for the pleasures they communicate to people generally. Section IX. is the CONCLUSION. Whatever may have been maintained in systems of philosophy, he contends that in common life the habitual motives of panegyric or censure are of the kind described by him. He will not enter into the question as to the relative shares of benevolence and self-love in the human constitution. Let the generous sentiments be ever so weak, they still direct a preference of what is serviceable to what is pernicious; and on these preferences a moral distinction is founded. In the notion of morals, two things are implied; a sentiment common to all mankind, and a sentiment whose objects comprehend all mankind; and these two requisites belong to the sentiment of humanity or benevolence.

Another spring of our constitution, that brings a great addition of force to moral sentiment, is Love of Fame. The pursuit of a character, name, and reputation in the world, leads to a habit of surveying our own actions, begets a reverence for self as well as others, and is thus the guardian of every virtue. Humanity and Love of Reputation combine to form the highest type of morality yet conceived.

The nature of moral *approbation* being thus solved, there remains the nature of *obligation*; by which the author means to enquire, if a man having a view to his own welfare, will not find his best account in the practice of

every moral virtue. He dwells upon the many advantages of social virtue, of benevolence and friendship, humanity and kindness, of truth and honesty; but confesses that the rule that 'honesty is the best policy' is liable to many exceptions. He makes us acquainted with his own theory of Happiness. How little is requisite to supply the *necessities* of nature? and what comparison is there between, on the one hand, the cheap pleasures of conversation, society, study, even health, and, on the other, the common beauties of nature, with self-approbation; and the feverish, empty amusements of luxury and expense?

Thus ends the main treatise; but the author adds, in an Appendix, four additional dissertations.

The first takes up the question started at the outset, but postponed, how far our moral approbation is a matter of *reason*, and how far of *sentiment*. His handling of this topic is luminous and decisive.

If the utility of actions be a foundation of our approval of them, *reason* must have a share, for no other faculty can trace the results of actions in their bearings upon human happiness. In Justice especially, there are often numerous and complicated considerations; such as to occupy the deliberations of politicians and the debates of lawyers.

On the other hand, reason is insufficient of itself to constitute the feeling of moral approbation or disapprobation. Reason shows the means to an end; but if we are otherwise indifferent to the end, the reasonings fall inoperative on the mind. Here then a *sentiment* must display itself, a delight in the happiness of men, and a repugnance to what causes them misery. Reason teaches the consequences of actions; Humanity or Benevolence is roused to make a distinction in favour of such as are beneficial.

He adduces a number of illustrations to show that reason alone is insufficient to make a moral sentiment. He bids us examine Ingratitude, for instance; good offices bestowed on one side, ill-will on the other. Reason might say, whether a certain action, say the gift of money, or an act of patronage, was for the good of the party receiving it, and whether the circumstances of the gift indicated a good intention on the part of the giver; it might also say, whether the actions of the person obliged were intentionally or consciously hurtful or wanting in esteem to the person obliging. But when all this is made out by reason, there remains the sentiment of abhorrence, whose foundations must be in the emotional part of our nature, in our delight in manifested goodness, and our abhorrence of the opposite.

He refers to Beauty or Taste as a parallel case, where there may be an operation of the intellect to compute proportions, but where the elegance or beauty must arise in the region of feeling. Thus, while *reason* conveys the knowledge of truth and falsehood, *sentiment* or emotion must give beauty and deformity, vice and virtue.

Appendix No. II. is a discussion of SELF-LOVE. The author adverts first to the position that benevolence is a mere pretence, a cheat, a gloss of self-love, and dismisses it with a burst of indignation. He next considers the less offensive view, that all benevolence and generosity are resolvable in the last resort into self-love. He does not attribute to the holders of this opinion any laxity in their own practice of virtue, as compared with other men. Epicurus and his followers were no strangers to probity; Atticus and Horace were men of generous dispositions; Hobbes and Locke were irreproachable in their lives. These men all allowed that friendship exists without hypocrisy; but considered that, by a sort of mental chemistry, it might be made out self-love, twisted and moulded by a particular turn of the imagination. But, says Hume, as some men have not the turn of imagination, and others have,

this alone is quite enough to make the widest difference of human characters, and to stamp one man as virtuous and humane, and another vicious and meanly interested. The analysis in no way sets aside the reality of moral distinctions. The question is, therefore, purely speculative.

As a speculation, it is open to these objections. (1) Being contrary to the unprejudiced notions of mankind, it demands some very powerful aid from philosophy. On the face of things, the selfish passions and the benevolent passions are widely distinguished, and no hypothesis has ever yet so far overcome the disparity as to show that the one could grow out of the other; we may discern in the attempts that love of *simplicity*, which has done so much harm to philosophy.

The Animals are susceptible of kindness; shall we then attribute to them, too, a refinement of self-interest? Again, what interest can a fond mother have in view who loses her health in attendance on a sick child, and languishes and dies of grief when relieved from the slavery of that attendance?

(2) But farther, the real simplicity lies on the side of independent and disinterested benevolence. There are bodily appetites that carry us to their objects before sensual enjoyment; hunger and thirst have eating and drinking for their end; the gratification follows, and becomes a secondary desire. [A very questionable analysis.] So there are mental passions, as fame, power, vengeance, that urge us to act, in the first instance; and when the end is attained, the pleasure follows. Now, as vengeance may be so pursued as to make us neglect ease, interest, and safety, why may we not allow to humanity and friendship the same privileges? [This is Butler, improved in the statement.]

Appendix III. gives some farther considerations with regard to JUSTICE. The point of the discussion is to show that Justice differs from Generosity

or Beneficence in a regard to distant consequences, and to General Rules. The theme is handled in the author's usual happy style, but contains nothing special to him. He omits to state what is also a prime attribute of Justice, its being indispensable to the very existence of society, which cannot be said of generosity apart from its contributing to justice.

Appendix IV. is on some VERBAL DISPUTES. He remarks that, neither in English nor in any other modern tongue, is the boundary fixed between virtues and talents, vices and defects; that praise is given to natural endowments, as well as to voluntary exertions. The epithets *intellectual* and *moral* do not precisely divide the virtues; neither does the contrast of *head* and *heart*; many virtuous qualities partake of both ingredients. So the sentiment of *conscious worth*, or of its opposite, is affected by what is not in our power, as well as by what is; by the goodness or badness of our memory, as well as by continence or dissoluteness of conduct. Without endowments of the understanding, the best intentions will not procure esteem.

The ancient moralists included in the virtues what are obviously natural endowments. Prudence, according to Cicero, involved sagacity or powers of judgment. In Aristotle, we find, among the virtues, Courage, Temperance, Magnanimity, Modesty, Prudence, and manly Openness, as well as Justice and Friendship. Epictetus puts people on their guard against humanity and compassion. In general, the difference of voluntary and involuntary was little regarded in ancient ethics. This is changed in modern times, by the alliance of Ethics with Theology. The divine has put all morality on the footing of the civil law, and guarded it by the same sanctions of reward and punishment; and consequently must make the distinction of voluntary and involuntary fundamental.

Hume also composed a dialogue, to illustrate, in his light and easy style, the great variety, amounting almost to opposition, of men's moral sentiments in different ages. This may seem adverse to his principle of Utility, as it is to the doctrine of an Intuitive Sense of Right and Wrong. He allows, however, for the different ways that people may view Utility, seeing that the consequences of acting are often difficult to estimate, and people may agree in an end without agreeing in the means. Still, he pays too little attention to the sentimental likings and dislikings that frequently overbear the sense of Utility; scarcely recognizing it, except in one passage, where he dwells on the superstitions that mingle with a regard to the consequences of actions in determining right.

We shall now repeat the leading points of Hume's system, in the usual order.

I.—The Standard of Right and Wrong is Utility, or a reference to the Happiness of mankind. This is the ground, as well as the motive, of moral approbation.

II.—As to the nature of the Moral Faculty, he contends that it is a compound of Reason, and Humane or Generous Sentiment.

He does not introduce the subject of Free-will into Morals.

He contends strongly for the existence of Disinterested Sentiment, or Benevolence; but scarcely recognizes it as leading to absolute and uncompensated self-sacrifice. He does not seem to see that as far as the approbation of benevolent actions is concerned, we are anything but disinterested parties. The good done by one man is done to some others; and the recipients are moved by their self-love to encourage beneficence. The regard to our own benefactor makes all benefactors interesting.

III.—He says little directly bearing on the constituents of Human Happiness; but that little is all in favour of simplicity of life and cheap pleasures. He does not reflect that the pleasures singled out by him are far from cheap; 'agreeable conversation, society, study, health, and the beauties of nature,' although not demanding extraordinary wealth, cannot be secured without a larger share of worldly means than has ever fallen to the mass of men in any community.

IV.—As to the substance of the Moral Code, he makes no innovations. He talks somewhat more lightly of the evils of Unchastity than is customary; but regards the prevailing restraints as borne out by Utility.

The inducements to virtue are, in his view, our humane sentiments, on the one hand, and our self-love, or prudence, on the other; the two classes of motives conspiring to promote both our own good and the good of mankind.

V.—The connexion of Ethics with Politics is not specially brought out. The political virtues are moral virtues. He does not dwell upon the sanctions of morality, so as to distinguish the legal sanction from the popular sanction. He draws no line between Duty and Merit.

VI.—He recognizes no relationship between Ethics and Theology. The principle of Benevolence in the human mind is, he thinks, an adequate source of moral approbation and disapprobation; and he takes no note of what even sceptics (Gibbon, for example) often dwell upon, the aid of the Theological sanction in enforcing duties imperfectly felt by the natural and unprompted sentiments of the mind.

RICHARD PRICE. (1723-1791.)

Price's work is entitled, 'A Review of the principal questions in Morals; particularly those respecting the Origin of our Ideas of Virtue, its Nature, Relation to the Deity, Obligation, Subject-matter, and Sanctions.' In the third edition, he added an Appendix on 'the Being and Attributes of the Deity.'

The book is divided into ten chapters.

Chapter I. is on the origin of our Ideas of Right and Wrong. The actions of moral agents, he says, give rise in us to three different perceptions: 1st, Right and Wrong; 2nd, Beauty and Deformity; 3rd, Good or Ill Desert. It is the first of these perceptions that he proposes mainly to consider.

He commences by quoting Hutcheson's doctrine of a Moral Sense, which he describes as an *implanted* and *arbitrary* principle, imparting a relish or disrelish for actions, like the sensibilities of the various senses. On this doctrine, he remarks, the Creator might have annexed the same sentiments to the opposite actions. Other schemes of morality, such as Self-love, Positive Laws and Compacts, the Will of the Deity, he dismisses as not meeting the true question.

The question, as conceived by him, is, 'What is the power within us that perceives the distinctions of Right and Wrong?' The answer is, The UNDERSTANDING.

To establish this position, he enters into an enquiry into the distinct provinces of Sense and of Understanding in the origin of our ideas. It is plain, he says, that what judges concerning the perceptions of the senses, and contradicts their decisions, cannot itself be sense, but must be some nobler faculty. Likewise, the power that views and compares the objects of all the senses cannot be sense. Sense is a mere capacity of being passively impressed; it presents *particular* forms to the mind, and is incapable of discovering general truths. It is the understanding that perceives order or

proportion; variety and regularity; design, connexion, art, and power; aptitudes, dependence, correspondence, and adjustment of parts to a whole or to an end. He goes over our leading ideas in detail, to show that mere sense cannot furnish them. Thus, Solidity, or Impenetrability, needs an exertion of reason; we must compare instances to know that two atoms of matter cannot occupy the same space. *Vis Inerticæ* is a perception of the reason. So Substance, Duration, Space, Necessary Existence, Power, and Causation involve the understanding. Likewise, that all Abstract Ideas whatsoever require the understanding is superfluously proved. The author wonders, therefore, that his position in this matter should not have been sooner arrived at.

The tracing of Agreement and of Disagreement, which are functions of the Understanding, is really the source of simple ideas. Thus, Equality is a simple idea originating in this source; so are Proportion, Identity and Diversity, Existence, Cause and Effect, Power, Possibility and Impossibility; and (as he means ultimately to show) Right and Wrong.

Although the author's exposition is not very lucid, his main conclusion is a sound one. Sense, in its narrowest acceptation, gives particular impressions and experiences of Colour, Sound, Touch, Taste, Odour, &c. The Intellectual functions of Discrimination and Agreement are necessary as a supplement to Sense, to recognize these impressions as differing and agreeing, as Equal or Unequal; Proportionate or Disproportionate; Harmonious or Discordant. And farther, every abstract or general notion,—colours in the abstract, sweetness, pungency, &c.—supposes these, powers of the understanding in addition to the recipiency of the senses.

To apply this to Right and Wrong, the author begins by affirming [what goes a good way towards begging the question] that right and wrong are simple ideas, and therefore the result of an *immediate* power of perception

in the human mind. Beneficence and Cruelty are indefinable, and therefore ultimate. There must be some actions that are in the last resort an end in themselves. This being assumed, the author contends that the power of immediately perceiving these ultimate ideas is the Understanding. Shaftesbury had contended that, because the perception of right and wrong was immediate, therefore it must reside in a special Sense. The conclusion, thinks Price, was, to say the least of it, hasty; for it does not follow that every immediate perception should reside in a special sensibility or sense. He puts it to each one's experience whether, in conceiving Gratitude or Beneficence to be right, one feels a sensation merely, or performs an act of understanding. 'Would not a Being purely intelligent, having happiness within his reach, approve of securing it for himself? Would he not think this right; and would it not be right? When we contemplate the happiness of a species, or of a world, and pronounce on the actions of reasonable beings which promote it, that they are *right*, is this judging erroneously? Or is it no determination of the judgment at all, but a species of mental taste [as Shaftesbury and Hutcheson supposed]? [As against a moral sense, this reasoning may be effective; but it obviously assumes an end of desire,—happiness for self, or for others—and yet does not allow to that end any share in making up the sense of right and wrong.] Every one, the author goes on to say, must desire happiness for himself; and our rational nature thenceforth must approve of the actions for promoting happiness, and disapprove of the contrary actions. Surely the understanding has some share in the revulsion that we feel when any one brings upon himself, or upon others, calamity and ruin. A being flattered with hopes of bliss and then plunged into torments would complain *justly*; he would consider that violence had been done to a perception of the human *understanding*.

He next brings out a metaphysical difficulty in applying right and wrong to actions, on the supposition that they are mere effects of sensation. All sensations, as such, are modes of consciousness, or feelings, of a sentient

being, and must be of a nature different from their causes. Colour is in the mind, not an attribute of the object; but right and wrong are qualities of actions, of objects, and therefore must be ideas, not sensations. Then, again, there can be nothing true or untrue in a sensation; all sensations are alike just; while the moral rectitude of an action is something absolute and unvarying. Lastly, all actions have a nature, or character; something truly belonging to them, and truly affirmable of them. If actions have no character, then they are all indifferent; but this no one can affirm; we all strongly believe the contrary. Actions are not indifferent. They are good or bad, better or worse. And if so, they are declared such by an act of *judgment*, a function of the understanding.

The author, considering his thesis established, deduces from it the corollary, that morality is *eternal and immutable*. As an object of the Understanding, it has an invariable essence. No will, not even Omnipotence, can make *things* other than they are. Right and wrong, as far as they express the real characters of actions, must immutably and necessarily belong to the actions. By action, is of course understood not a bare external effect, but an effect taken along with its principle or rule, the motives or reasons of the being that performs it. The matter of an action being the same, its morality reposes upon the end or motive of the agent. Nothing can be obligatory in us that was not so from eternity. The will of God could not make a thing right that was not right in its own nature.

The author closes his first chapter with a criticism of the doctrine of Protagoras—that man is the measure of all things—interpreting it as another phase of the view that he is combating.

Although this chapter is but a small part of the work, it completes the author's demonstration of his ethical theory.

Chapter II. is on 'our Ideas of the Beauty and Deformity of Actions.' By these are meant our pleasurable and painful sentiments, arising from the consideration of moral right and wrong, expressed by calling some actions amiable, and others odious, shocking, vile. Although, in this aspect of actions, it would seem that the reference to a sense is the suitable explanation, he still contends for the intervention of the Understanding. The character of the Deity must appear more amiable the better it is *known* and *understood*. A reasonable being, without any special sensibilities, but knowing what order and happiness are, would receive pleasure from the contemplation of a universe where order prevailed, and pain from a prospect of the contrary. To *behold* virtue is to admire her; to *perceive* vice is to be moved to condemnation. There must always be a consideration of the circumstances of an action, and this involves intellectual discernment.

The author now qualifies his doctrine by the remark, that to some superior beings the intellectual discernment may explain the whole of the appearances, but inferior natures, such as the human, are aided by *instinctive determinations*. Our appetites and passions are too strong for reason by itself, especially in early years. Hence he is disposed to conclude that 'in contemplating the actions of moral agents, we have both a *perception of the understanding* and a *feeling of the heart*;' but that this feeling of the heart, while partly instinctive, is mainly a sense of congruity and incongruity in actions. The author therefore allows something to innate sense, but differs from Shaftesbury, who makes the whole a matter of intuitive determination.

Chapter III. relates to the origin of our Desires and Affections, by which he means more especially Self-love and Benevolence. His position here is that Self-love is the essence of a Sensible being, Benevolence the essential of an Intelligent being. By the very nature of our sensitive constitution, we cannot but choose happiness for self; and it is only an act of intellectual consistency to extend the same measure to others. The same qualification, however, is made as to the insufficiency of a mere intellectual impulse in this matter, without constitutional tendencies. These constitutional tendencies the author considers as made up of our Appetites and Passions, while our Affections are founded on our rational nature. Then follow a few observations in confirmation of Butler's views as to the disinterested nature of our affections.

Chapter IV. is on our Ideas of good and ill Desert. These are only a variety of our ideas of right and wrong, being the feelings excited towards the moral Agent. Our reason determines, with regard to a virtuous agent, that he ought to be the better for his virtue. The ground of such determination, however, is not solely that virtuous conduct promotes the happiness of mankind, and vice detracts from it; this counts for much, but not for all. Virtue is in itself rewardable; vice is of essential demerit. Our understanding recognizes the absolute and eternal rectitude, the intrinsic fitness of the procedure in both aspects.

Chapter V. is entitled 'Of the Reference of Morality to the Divine Nature; the Rectitude of our Faculties; and the Grounds of Belief.' The author means to reply to the objection that his system, in setting up a criterion independent of God, is derogatory to the Divine nature. He urges that there must be attributes of the Deity, independent of his will; as his Existence, Immensity, Power, Wisdom; that Mind supposes Truth apart from itself; that without moral distinctions there could be no Moral Attributes in the Deity. Certain things are inherent in his Nature, and not dependent on his will. There is a limit to the universe itself; two infinities of space or of duration are not possible. The necessary goodness of the divine nature is a part of necessary truth. Thus, morality, although not asserted to depend on the will of the Deity, is still resolvable into his nature. In all this, Price avowedly follows Cudworth.

He then starts another difficulty. May not our faculties be mistaken, or be so constituted as to deceive us? To which he gives the reply, made familiar to us by Hamilton, that the doubt is suicidal; the faculty that doubts being itself under the same imputation. Nay, more, a being cannot be made such as to be imposed on by falsehood; what is false is nothing. As to the cases of actual mistake, these refer to matters attended with some difficulty; and it does not follow that we must be mistaken in cases that are clear.

He concludes with a statement of the ultimate grounds of our belief. These are, (1) Consciousness or Feeling, as in regard to our own existence, our sensations, passions, &c.; (2) Intuition, comprising self-evident truths; and (3) Deduction, or Argumentation. He discusses under these the existence of a material world, and affirms that we have an Intuition that it is *possible*.

Chapter VI. considers Fitness and Moral Obligation, and other prevailing forms of expression regarding morality. Fitness and Unfitness denote Congruity or Incongruity, and are necessarily a perception of the Understanding.

The term Obligation is more perplexing. Still, it is but another name for *Rightness*. What is Right is, by that very fact, obligatory. Obligation, therefore, cannot be the creature of law, for law may command what is morally wrong. The will of God enforced by rewards and punishments cannot make right; it would only determine what is *prudent*. Rewards and punishments do not make obligation, but suppose it. Rectitude is a LAW,

the authoritative guide of a rational being. It is Supreme, universal, unalterable, and indispensable. Self-valid and self-originated, it stands on immovable foundations. Being the one authority in nature, it is, in short, the Divine authority. Even the obligations of religion are but branches of universal rectitude. The Sovereign Authority is not the mere result of his Almighty Power, but of this conjoined with his necessary perfections and infinite excellence.

He does not admit that obligation implies an obliger.

He takes notice of the objection that certain actions may be right, and yet we are not bound to perform them; such are acts of generosity and kindness. But his answer throws no farther light on his main doctrine.

In noticing the theories of other writers in the same vein, as Wollaston, he takes occasion to remark that, together with the perception of conformity or fitness, there is a simple immediate perception urging us to act according to that fitness, for which no farther reason can be assigned. When we compare innocence and eternal misery, we are struck with the idea of unsuitableness, and are inspired in consequence with intense repugnance.

Chapter VII. discusses the Heads or Divisions of Virtue; under which he enquires first what are virtuous actions; secondly, what is the true principle or motive of a virtuous agent; and thirdly, the estimate of the degrees of virtue.

He first quotes Butler to show that all virtue is not summed up in Benevolence; repeating that there is an intrinsic rectitude in keeping faith; and giving the usual arguments against Utility, grounded on the supposed crimes that might be committed on this plea. He is equally opposed to those that would deny disinterested benevolence, or would resolve beneficence into veracity. He urges against Hutcheson, that, these being independent and distinct virtues, a distinct sense would be necessary to each; in other words, we should, for the whole of virtue, need a plurality of moral senses.

His classification of Virtue comprehends (1) Duty to God, which he dilates upon at some length. (2) Duty to Ourselves, wherein he maintains that our sense of self-interest is not enough for us. (3) Beneficence, the Good of others. (4) Gratitude. (5) Veracity, which he inculcates with great earnestness, adverting especially to impartiality and honesty in our enquiries after truth. (6) Justice, which he treats in its application to the Rights of Property. He considers that the difficulties in practice arise partly from the conflict of the different heads, and partly from the different modes of applying the same principles; which he gives as an answer to the objection from the great differences of men's moral sentiments and practices. He allows, besides, that custom, education, and example, may blind and deprave our intellectual and moral powers; but denies that the whole of our notions and sentiments could result from education. No amount of depravity is able utterly to destroy our moral discernment.

Chapter VIII. treats of Intention as an element in virtuous action. He makes a distinction between Virtue in the Abstract and Virtue in Practice, or with reference to all the circumstances of the agent. A man may do abstract wrong, through mistake, while as he acts with his best judgment and with upright intentions, he is practically right. He grounds on this a powerful appeal against every attempt at dominion over conscience. The requisites of Practical Morality are (1) Liberty, or Free-will, on which he takes the side of free-agency. (2) Intelligence, without which there can be no perception of good and evil, and no moral agency. (3) The Consciousness of Rectitude, or Righteous Intention. On this he dwells at some length. No action is properly the action of a moral agent unless designed by him. A virtuous motive is essential to virtue. On the question—Is Benevolence a virtuous motive? he replies: Not the Instinctive benevolence of the parent, but only Rational benevolence; which he allows to coincide with rectitude. Reason presiding over Self-love renders it a virtuous principle likewise. The presence of Reason in greater or less degree is the criterion of the greater or less virtue of any action.

Chapter IX. is on the different Degrees of Virtue and Vice, and the modes of estimating them; the Difficulties attending the Practice of Virtue; the use of Trials, and the essentials of a good or a bad Character. The considerations adduced are a number of perfectly well-known maxims on the practice of morality, and scarcely add anything to the elucidation of the author's Moral Theory. The concluding chapter, on Natural Religion, contains nothing original.

To sum up the views of Price:—

I.—As regards the Moral Standard, he asserts that a perception of the Reason or the Understanding,—a sense of fitness or congruity between actions and the agents, and all the circumstances attending them,—is what determines Right and Wrong.

He finds it impracticable to maintain his position without sundry qualifications, as we have seen. Virtue is naturally adapted to *please* every observing mind; vice the contrary. Right actions must be *grateful*, wrong ungrateful to us. To *behold* virtue is to *admire* her. In contemplating the actions of moral agents, we have *both* a perception of the understanding and a feeling of the heart. He thus re-admits an element of feeling, along with the intellect, in some undefined degree; contending only that *all morality* is not to be resolved into feeling or instinct. We have also noticed another singular admission, to the effect that only superior natures can discover virtue by the understanding. Reason alone, did we possess it in a high degree, would answer all the ends of the passions. Parental affection would be unnecessary, if parents were sufficiently alive to the reasons of supporting the young, and were virtuous enough to be always determined by them.

Utility, although not the *sole* ground of Justice, is yet admitted to be *one* important reason or ground of many of its maxims.

II.—The nature of the Moral Faculty, in Price's theory, is not a separate question from the standard, but the same question. His discussion takes the form of an enquiry into the Faculty:—'What is the power within us that perceives the distinctions of Right and Wrong?' The two questions are mixed up throughout, to the detriment of precision in the reasoning.

With his usual facility of making concessions to other principles, he says it is not easy to determine how far our natural sentiments may be altered by custom, education, and example: while it would be unreasonable to

conclude that all is derived from these sources. That part of our moral constitution depending on instinct is liable to be corrupted by custom and education to almost any length; but the most depraved can never sink so low as to lose all moral discernment, all ideas of just and unjust; of which he offers the singular proof that men are never wanting in resentment when they are *themselves* the objects of ill-treatment.

As regards the Psychology of Disinterested Action, he provides nothing but a repetition of Butler (Chapter III.) and a vague assertion of the absurdity of denying disinterested benevolence.

III.—On Human Happiness, he has only a few general remarks. Happiness is an object of essential and eternal value. Happiness is the *end*, and the *only* end, conceivable by us, of God's providence and government; but He pursues this end in subordination to rectitude. Virtue tends to happiness, but does not always secure it. A person that sacrifices his life rather than violate his conscience, or betray his country, gives up all possibility of any present reward, and loses the more in proportion as his virtue is more glorious.

Neither on the Moral Code, nor in the relations of Ethics to Politics and to Theology, are any further remarks on Price called for.

ADAM SMITH. [1723-90.]

The 'Theory of the Moral Sentiments' is a work of great extent and elaboration. It is divided into five Parts; each part being again divided into Sections, and these subdivided into Chapters.

PART I. is entitled, OF THE PROPRIETY OF ACTION. Section I. is, 'Of the Sense of Propriety.' Propriety is his word for Rectitude or Right.

Chapter I., entitled, 'Of Sympathy,' is a felicitous illustration of the general nature and workings of Sympathy. He calls in the experience of all mankind to attest the existence of our

sympathetic impulses. He shows through what medium sympathy operates; namely, by our placing ourselves in the situation of the other party, and imagining what we should feel in that case. He produces the most notable examples of the impressions made on us by our witnessing the actions, the pleasurable and the painful expression of others; effects extending even to fictitious representations. He then remarks that, although on some occasions, we take on simply and purely the feelings manifested in our presence,—the grief or joy of another man, yet this is far from the universal case: a display of angry passion may produce in us hostility and disgust; but this very result may be owing to our sympathy for the person likely to suffer from the anger. So our sympathy for grief or for joy is imperfect until we know the cause, and may be entirely suppressed. We take the whole situation into view, as well as the expression of the feeling. Hence we often feel for another person what that person does not feel for himself; we act out our own view of the situation, not his. We feel for the insane what they do not feel; we sympathize even with the dead.

Chapter II. is 'Of the Pleasure of Mutual Sympathy.' It contains illustrations of the delight that we experience in the sympathy of others; we being thereby strengthened in our pleasures and relieved in our miseries. He observes that we demand this sympathy more urgently for our painful emotions than for such as are pleasurable; we are especially intolerant of the omission of our friends to join in our resentments. On the other hand, we feel pleasure in the act of sympathizing, and find in that a compensation for the pain that the sight of pain gives us. Still, this pleasure may be marred if the other party's own expression of grief or of joy is beyond what we think suitable to the situation.

Chapter III. considers 'the manner of our judging of the propriety of other men's affections by their consonance with our own,' The author illustrates the obvious remark, that we approve of the passions of another, if they are such as we ourselves should feel in the same situation. We require that a man's expression and conduct should be suitable to the occasion, according to our own standard of judging, namely, our own procedure in such cases.

Chapter IV. continues the subject, and draws a distinction between two cases; the case where the objects of a feeling do not concern either ourselves or the person himself, and the case where they do concern one or other. The first case is shown in matters of taste and science, where we derive pleasure from sympathy, but yet can tolerate difference. The other case is exemplified in our personal fortunes; in these, we cannot endure any one refusing us their sympathy. Still, it is to be noted that the sympathizer does not fully attain the level of the sufferer; hence the sufferer, aware of this, and desiring the satisfaction of a full accord with his friend, tones down his own vehemence till it can be fully met by the other; which very circumstance is eventually for his own good, and adds to, rather than detracts from, the tranquillizing influence of a friendly presence. We sober down our feelings still more before casual acquaintance and strangers; and hence the greater equality of temper in the man of the world than in the recluse.

Chapter V. makes an application of these remarks to explain the difference between the Amiable and the Respectable Virtues. The soft, the gentle, and the amiable qualities are manifested when, as sympathizers, we enter fully into the expressed sentiments of another; the great, the awful and respectable virtues of self-denial, are shown when the principal person concerned brings down his own case to the level that the most ordinary sympathy can easily attain to. The one is the virtue of giving much, the other of expecting little.

Section II. is '*Of the Degrees of the different passions which are consistent with propriety.*' Under this head he reviews the leading passions, remarks how far, and why, we can sympathize with each.

Chapter I. is on the Passions having their origin in the body. We can sympathize with hunger to a certain limited extent, and in certain circumstances; but we can rarely tolerate any very prominent expression of it. The same limitations apply to the passion of the sexes. We partly sympathize with bodily pain, but not with the violent expression of it. These feelings are in marked contrast to the passions seated in the imagination: wherein our appetite for sympathy is complete; disappointed love or ambition, loss of friends or of dignity, are suitable to representation in art. On the same principle, we can sympathize with danger; as regards our power of conceiving, we are on a level with the sufferer. From our inability to enter into bodily pain, we the more admire the man that can bear it with firmness.

Chapter II. is on certain Passions depending on a peculiar turn of the Imagination. Under this he exemplifies chiefly the situation of two lovers, with whose passion, in its intensity, a third person cannot sympathize, although one may enter into the hopes of happiness, and into the dangers and calamities often flowing from it.

Chapter III. is on the Unsocial Passions. These necessarily divide our sympathy between him that feels them and him that is their object. Resentment is especially hard to sympathize with. We may ourselves resent wrong done to another, but the less so that the sufferer strongly resents it. Moreover, there is in the passion itself an element of the disagreeable and repulsive; its manifestation is naturally distasteful. It may be useful and even necessary, but so is a prison, which is not on that account a pleasant object. In order to make its gratification agreeable, there must be many well known conditions and qualifications attending it.

Chapter IV. gives the contrast of the Social Passions. It is with the humane, the benevolent sentiments, that our sympathy is unrestricted and complete. Even in their excess, they never inspire aversion.

Chapter V. is on the Selfish Passions. He supposes these, in regard to sympathy, to hold a middle place between the social and the unsocial. We sympathize with small joys and with great sorrows; and not with great joys (which dispense with our aid, if they do not excite our envy) or with small troubles.

Section III. considers *the effects of prosperity and adversity upon the judgments of mankind regarding propriety of action.*

Chapter I. puts forward the proposition that our sympathy with sorrow, although more lively than our sympathy with joy, falls short of the intensity of feeling in the person concerned. It is agreeable to sympathize with joy, and we do so with the heart; the painfulness of entering into grief and misery holds us back. Hence, as he remarked before, the magnanimity and nobleness of the man that represses his woes, and does not exact our compassionate participation.

Chapter II. inquires into the origin of Ambition, and of the distinction of Ranks. Proceeding upon the principle just enounced, that mankind sympathize with joy rather than with sorrow, the author composes an exceedingly eloquent homily on the worship paid to rank and greatness.

Chapter III., in continuation of the same theme, illustrates the corruption of our moral sentiments, arising from this worship of the great. 'We frequently see the respectful attentions of the world more strongly directed towards the rich and the great, than towards the wise and the virtuous.' 'The external graces, the frivolous accomplishments of that impertinent and foolish thing called a man of fashion, are commonly more admired than the solid and masculine virtues of a warrior, a statesman, a philosopher, or a legislator.'

PART II. is OF MERIT AND DEMERIT; OR OF THE OBJECTS OF REWARD AND PUNISHMENT. It consists of three Sections.

Section I. is, Of the Sense of Merit and Demerit.

Chapter I. maintains that whatever appears to be the proper object of gratitude, appears to deserve reward; and that whatever appears to be the proper object of resentment, appears to deserve punishment. The author distinguishes between gratitude and mere love or liking; and, obversely, between resentment and hatred. Love makes us pleased to see any one promoted; but gratitude urges us to be ourselves the instrument of their promotion.

Chapter II. determines the proper objects of Gratitude and Resentment, these being also the proper objects of Reward and Punishment respectively. 'These, as well as all the other passions of human nature, seem proper, and are approved of, *when the heart of every impartial spectator entirely sympathizes with them*, when every indifferent by-stander entirely enters into, and goes along with them.' In short, a good moral decision is obtained by the unanimous vote of all impartial persons.

This view is in accordance with the course taken by the mind in the two contrasting situations. In sympathizing with the joy of a prosperous person, we approve of his complacent and grateful sentiment towards the author of his prosperity; we make his gratitude our own: in sympathizing with sorrow, we enter into, and approve of, the natural resentment towards the agent causing it.

Chapter III. remarks that where we do not approve of the conduct of the person conferring the benefit, we have little sympathy with the gratitude of the receiver; we do not care to enter into the gratitude of the favourites of profligate monarchs.

Chapter IV. supposes the case of our approving strongly the conduct and the motives of a benefactor, in which case we sympathize to a corresponding degree with the gratitude of the receiver.

Chapter V. sums up the analysis of the Sense of Merit and of Demerit thus:—The sense of Merit is a compound sentiment, made up of two distinct emotions; a direct sympathy with the sentiments of the agent (constituting the propriety of the action), and an indirect sympathy with the gratitude of the recipient. The sense of Demerit includes a direct antipathy to the sentiments of the agent, and an indirect sympathy with the resentment of the sufferer.

Section II. is Of Justice and Beneficence.

Chapter I. compares the two virtues. Actions of a beneficent tendency, from proper motives, seem alone to require a reward; actions of a hurtful tendency, from improper motives, seem alone to deserve punishment. It is the nature of Beneficence to be free; the mere absence of it does not expose to punishment. Of all the duties of beneficence, the one most allied to perfect obligation is gratitude; but although we talk of the debt of gratitude (we do not say the debt of *charity*), we do not punish ingratitude.

Resentment, the source of punishment, is given for defence against positive evil; we employ it not to extort benefits, but to repel injuries. Now, the injury is the violation of Justice. The sense of mankind goes along with the employment of violence to avenge the hurt done by injustice, to prevent the injury, and to restrain the offender. Beneficence, then, is the subject of reward; and the want of it is not the subject of punishment. There may be cases where a beneficent act is compelled by punishment, as in obliging a father to support his family, or in punishing a man for not interfering when another is in danger; but these cases are immaterial exceptions to the broad definition. He might have added, that in cases where justice is performed under unusual difficulties, and with unusual fidelity, our disposition would be not merely to exempt from punishment, but to reward.

Chapter II. considers the sense of Justice, Remorse, and the feeling of Merit.

Every man is recommended by nature to his own care, being fitter to take care of himself than of another person. We approve, therefore, of each one seeking their own good; but then it must not be to the hurt of any other

being. The primary feeling of self-preservation would not of itself, however, be shocked at causing injury to our fellows. It is when we pass out of this point of view, and enter into the mental state of the spectator of our actions, that we feel the sense of injustice and the sting of Remorse. Though it may be true that every individual in his own breast prefers himself to mankind, yet he dares not look mankind in the face, and avow that he acts on this principle. A man is approved when he outstrips his fellows in a fair race; he is condemned when he jostles or trips up a competitor unfairly. The actor takes home to himself this feeling; a feeling known as Shame, Dread of Punishment, and Remorse.

So with the obverse. He that performs a generous action can realize the sentiments of the by-stander, and applaud himself by sympathy with the approbation of the supposed impartial judge. This is the sense of Merit.

Chapter III. gives reflections upon the utility of this constitution of our nature. Human beings are dependent upon one another for mutual assistance, and are exposed to mutual injuries. Society might exist without love or beneficence, but not without mutual abstinence from injury. Beneficence is the ornament that embellishes the building; Justice the main pillar that supports it. It is for the observance of Justice that we need that consciousness of ill-desert, and those terrors of mental punishment, growing out of our sympathy with the disapprobation of our fellows. Justice is necessary to the existence of society, and we often defend its dictates on that ground; but, without looking to such a remote and comprehensive end, we are plunged into remorse for its violation by the shorter process of referring to the censure of a supposed spectator [in other words, to the sanction of public opinion].

Section III.—Of the influence of Fortune upon the sentiments of mankind, with regard to the Merit and the Demerit of actions.

Every voluntary action consists of three parts:—(1) the Intention or motive, (2) the Mechanism, as when we lift the hand, and give a blow, and (3) the Consequences. It is, in principle, admitted by all, that only the first, the Intention, can be the subject of blame. The Mechanism is in itself indifferent. So the Consequences cannot be properly imputed to the agent, unless intended by him. On this last point, however, mankind do not always

adhere to their general maxim; when they come to particular cases, they are influenced, in their estimate of merit and demerit, by the actual consequences of the action.

Chapter I. considers the causes of this influence of Fortune. Gratitude requires, in the first instance, that some pleasure should have been conferred; Resentment pre-supposes pain. These passions require farther that the object of them should itself be susceptible of pleasure and pain; they should be human beings or animals. Thirdly, It is requisite that they should have produced the effects from a design to do so. Now, the absence of the pleasurable consequences intended by a beneficent agent leaves out one of the exciting causes of gratitude, although including another; the absence of the painful consequences of a maleficent act leaves out one of the exciting causes of resentment; hence less gratitude seems due in the one, and less resentment in the other.

Chapter II. treats of the extent of this influence of Fortune. The effects of it are, first, to diminish, in our eyes, the merit of laudable, and the demerit of blameable, actions, when they fail of their intended effects; and, secondly, to increase the feelings of merit and of demerit beyond what is due to the motives, when the actions chance to be followed by extraordinary pleasure or pain. Success enhances our estimate of all great enterprises; failure takes off the edge of our resentment of great crimes.

The author thinks (Chapter III.) that final causes can be assigned for this irregularity of Sentiments. In the first place, it would be highly dangerous to seek out and to resent mere bad intentions. In the next place, it is desirable that beneficent wishes should be put to the proof by results. And, lastly, as regards the tendency to resent evil, although unintended, it is good to a certain extent that men should be taught intense circumspection on the point of infringing one another's happiness.

PART III. is entitled **OF THE FOUNDATION OF OUR JUDGMENTS CONCERNING OUR OWN SENTIMENTS AND CONDUCT, AND OF THE SENSE OF DUTY.**

Chapter I. is 'Of the Principle of Self-approbation and of Self-disapprobation.' Having previously assigned the origin of our judgments respecting others, the author now proceeds to trace out our judgments respecting ourselves. The explanation is still the same. We approve or disapprove of our own conduct, according as we feel that the impartial spectator would approve or disapprove of it.

To a solitary human being, moral judgments would never exist. A man would no more think of the merit and demerit of his sentiments than of the

beauty or deformity of his own face. Such criticism is exercised first upon other beings; but the critic cannot help seeing that he in his turn is criticised, and he is thereby led to apply the common standard to his own actions; to divide himself as it were into two persons—the examiner or judge, and person examined into, or judged of. He knows what conduct of his will be approved of by others, and what condemned, according to the standard he himself employs upon others; his concurrence in this approbation or disapprobation is self-approbation or self-disapprobation. The happy consciousness of virtue is the consciousness of the favourable regards of other men.

Chapter II. is 'Of the love of Praise, and of Praise-worthiness; the dread of Blame, and of Blame-worthiness;' a long and important chapter. The author endeavours to trace, according to his principle of sympathy, the desire of Praise-worthiness, as well as of Praise. We approve certain conduct in others, and are thus disposed to approve the same conduct in ourselves: what we praise as judges of our fellow-men, we deem praise-worthy, and aspire to realize in our own conduct. Some men may differ from us, and may withhold that praise; we may be pained at the circumstance, but we adhere to our love of the praise-worthy, even when it does not bring the praise. When we obtain the praise we are pleased, and strengthened in our estimate; the approbation that we receive confirms our self-approbation, but does not give birth to it. In short, there are two principles at work within us. We are pleased with approbation, and pained by reproach: we are farther pleased if the approbation coincides with what we approve when we are ourselves acting as judges of other men. The two dispositions vary in their strength in individuals, confirming each other when in concert, thwarting each other when opposed. The author has painted a number of striking situations arising out of their conflict. He enquires why we are more pained by unmerited reproach, than lifted up by unmerited approbation; and assigns as the reason that the painful state is more pungent than the corresponding pleasurable state. He shows how those men whose productions are of uncertain merit, as poets, are more the slaves of approbation, than the authors of un mistakeable discoveries in science. In the extreme cases of unmerited reproach, he points out the appeal to the all-seeing Judge of the world, and to a future state rightly conceived; protesting, however, against the view that would reserve the celestial regions for monks and friars, and condemn to the infernal, all the heroes, statesmen, poets, and philosophers of former ages; all the inventors of the useful arts; the protectors, instructors, and benefactors of mankind; and all those to whom our natural sense of praise-worthiness forces us to ascribe the highest merit and most exalted virtue.

Chapter III. is 'On the influence and authority of Conscience;' another long chapter, occupied more with moral reflections of a practical kind than with the following out of the analysis of our moral sentiment. Conceding that the testimony of the supposed impartial spectator does not of itself always support a man, he yet asserts its influence to be great, and that by it alone we can see what relates to ourselves in the proper shape and dimensions. It is only in this way that we can prefer the interest of many to the interest of one; the interest of others to our own. To fortify us in this hard lesson two different schemes have been proposed; one to increase our

feelings for others, the other to diminish our feelings for ourselves. The first is prescribed by the whining and melancholy moralists, who will never allow us to be happy, because at every moment many of our fellow-beings are in misery. The second is the doctrine of the Stoics, who annihilate self-interest in favour of the vast commonwealth of nature; on that the author bestows a lengthened comment and correction, founded on his theory of regulating the manifestations of joy or grief by the light of the impartial judge. He gives his own panacea for human misery, namely, the power of nature to accommodate men to their permanent situation, and to restore tranquillity, which is the one secret of happiness.

Chapter IV. handles Self-Deceit, and the Origin and Use of General Rules. The interference of our passions is the great obstacle to our holding towards ourselves the position of an impartial spectator. From this notorious fact the author deduces an argument against a special moral faculty, or moral sense; he says that if we had such a faculty, it would surely judge our own passions, which are the most clearly laid open to it, more correctly than the passions of others.

To correct our self-partiality and self-deceit is the use of general rules. Our repeated observations on the tendency of particular acts, teach us what is fit to be done generally; and our conviction of the propriety of the general rules is a powerful motive for applying them to our own case. It is a mistake to suppose, as some have done, that rules precede experience; on the contrary, they are formed by finding from experience that all actions of a certain kind, in certain circumstances, are approved of. When established, we appeal to them as standards of judgment in right and wrong, but they are not the original judgments of mankind, nor the ultimate foundations of moral sentiment.

Chapter V. continues the subject of the authority and influence of General Rules, maintaining that they are justly regarded as laws of the Deity. The grand advantage of general rules is to give steadiness to human conduct, and to enable us to resist our temporary varieties of temper and disposition. They are thus a grand security for human duties. That the important rules of morality should be accounted laws of the Deity is a natural sentiment. Men have always ascribed to their deities their own sentiments and passions; the deities held by them in special reverence, they have endowed with their highest ideal of excellence, the love of virtue and beneficence, and the abhorrence of vice and injustice. The researches of philosophical inquiry confirmed mankind in the supposition that the moral faculties carry the badge of authority, that they were intended as the governing principles of our nature, acting as the vicegerents of the Deity. This inference is confirmed by the view that the happiness of men, and of other rational creatures, is the original design of the Author of nature, the only purpose reconcilable with the perfections we ascribe to him.

Chapter VI. is on the cases where the Sense of Duty should be the sole motive of conduct; and on those where it ought to join with other motives. Allowing the importance of religion among

human motives, he does not concur with the view that would make religious considerations the sole laudable motives of action. The sense of duty is not the only principle of our conduct; it is the ruling or governing one. It may be a question, however, on what occasions we are to proceed strictly by the sense of duty, and on what occasions give way to some other sentiment or affection. The author answers that in the actions prompted by benevolent affections, we are to follow out our sentiments as much as our sense of duty; and the contrary with the malevolent passions. As to the selfish passions, we are to follow duty in small matters, and self-interest in great. But the rules of duty predominate most in cases where they are determined with exactness, that is, in the virtue of Justice.

PART IV. OF THE EFFECT OF UTILITY UPON THE SENTIMENT OF APPROBATION.

Chapter I. is on the Beauty arising out of Utility. It is here that the author sets forth the dismal career of 'the poor man's son, whom heaven in the hour of her anger has curst with ambition,' and enforces his favourite moral lesson of contentment and tranquillity.

Chapter II. is the connexion of Utility with Moral Approbation. There are many actions possessing the kind of beauty or charm arising from utility; and hence, it may be maintained (as was done by Hume) that our whole approbation of virtue may be explained on this principle. And it may be granted that there is a coincidence between our sentiments of approbation or disapprobation, and the useful or hurtful qualities of actions. Still, the author holds that this utility or hurtfulness is not the foremost or principal source of our approbation. In the first place, he thinks it incongruous that we should have no other reason, for praising a man than for praising a chest of drawers. In the next place, he contends at length that the usefulness of a disposition of mind is seldom the first ground of our approbation. Take, for example, the qualities useful to ourselves—reason and self-command; we approve the first as just and accurate, before we are aware of its being useful; and as to self-command, we approve it quite as much for its propriety as for its utility; it is the coincidence of our opinion with the opinion of the spectator, and not an estimate of the comparative utility, that affects us. Regarding the qualities useful to others—humanity, generosity, public spirit and justice—he merely repeats his own theory that they are approved by our entering into the view of the impartial spectator. The examples cited only show that these virtues are not approved from self-interest; as when the soldier throws away his life to gain something for his sovereign. He also puts the case of a solitary human being, who might see fitness in actions, but could not feel moral approbation.

PART V. THE INFLUENCE OF CUSTOM ON THE MORAL SENTIMENTS.

The first chapter is a pleasing essay on the influence of custom and fashion on manners, dress, and in Fine Art generally. The second chapter makes the application to our moral sentiments. Although custom will never reconcile us to the conduct of a Nero or a Claudius, it will heighten or blunt the delicacy of our sentiments on right and wrong. The fashion of the times of Charles II. made dissoluteness reputable, and discountenanced regularity

of conduct. There is a customary behaviour that we expect in the old and in the young, in the clergyman and in the military man. The situations of different ages and countries develop characteristic qualities—endurance in the savage, humanity and softness in the civilized community. But these are not the extreme instances of the principle. We find particular usages, where custom has rendered lawful and blameless actions, that shock the plainest principles of right and wrong; the most notorious and universal is infanticide.

PART VI. THE CHARACTER OF VIRTUE.

Section I. is on *Prudence*, and is an elegant essay on the *beau idéal* of the prudential character. *Section II.* considers *character as affecting other people*. Chapter I. is a disquisition on the comparative priority of the objects of our regard. After self, which must ever have the first place, the members of our own family are recommended to our consideration. Remoter connexions of blood are more or less regarded according to the customs of the country; in pastoral countries clanship is manifested; in commercial countries distant relationship becomes indifferent. Official and business connexions, and the association of neighbourhood, determine friendships. Special estimation is a still preferable tie. Favours received determine and require favours in return. The distinction of ranks is so far founded in nature as to deserve our respect. Lastly, the miserable are recommended to our compassion. Next, as regards societies (Chap. II.), since our own country stands first in our regard, the author dilates on the virtues of a good citizen. Finally, although our effectual good offices may not extend beyond our country, our good-will may embrace the whole universe. This universal benevolence, however, the author thinks must repose on the belief in a benevolent and all-wise governor of the world, as realized, for example, in the meditations of Marcus Antoninus.

Section III. Of Self-command. On this topic the author produces a splendid moral essay, in which he describes the various modes of our self-estimation, and draws a contrast between pride and vanity. In so far as concerns his Ethical theory, he has still the same criterion of the virtue, the degree and mode commended by the impartial spectator.

PART VII. OF SYSTEMS OF MORAL PHILOSOPHY.

On this we need only to remark that it is an interesting and valuable contribution to the history and the criticism of the Ethical systems.[23]

The Ethical theory of Adam Smith may be thus summed up:—

I.—The Ethical Standard is the judgment of an impartial spectator or critic; and our own judgments are derived by reference to what this spectator would approve or disapprove.

Probably to no one has this ever appeared a sufficient account of Right and Wrong. It provides against one defect, the self-partiality of the agent; but gives no account whatever of the grounds of the critic's own judgment, and makes no provision against his fallibility. It may be very well on points where men's moral sentiments are tolerably unanimous, but it is valueless in all questions where there are fundamental differences of view.

II.—In the Psychology of Ethics, Smith would consider the moral Faculty as identical with the power of Sympathy, which he treats as the foundation of Benevolence. A man is a moral being in proportion as he can enter into, and realize, the feelings, sentiments, and opinions of others.

Now, as morality would never have existed but for the necessity of protecting one human being against another, the power of the mind that adopts other people's interests and views must always be of vital moment as

a spring of moral conduct; and Adam Smith has done great service in developing the workings of the sympathetic impulse.

He does not discuss Free-will. On the question of Disinterested Conduct, he gives no clear opinion. While denying that our sympathetic impulses are a refinement of self-love, he would seem to admit that they bring their own pleasure with them; so that, after all, they do not detract from our happiness. In other places, he recognizes self-sacrifice, but gives no analysis of the motives that lead to it; and seems to think, with many other moralists, that it requires a compensation in the next world.

III.—His theory of the constituents of Happiness is simple, primitive, and crude, but is given with earnest conviction. Ambition he laughs to scorn. 'What, he asks, can be added to the happiness of the man who is in health, out of debt, and has a clear conscience?' Again, 'the chief part of happiness consists in the consciousness of being beloved, hence, sudden changes of fortune seldom contribute to happiness.' But what he dwells upon most persistently, as the prime condition of happiness, is Contentment, and Tranquillity.

IV.—On the Moral Code, he has nothing peculiar. As to the means and inducements to morality, he does not avail himself of the fertility of his own principle of Sympathy. Appeals to sympathy, and the cultivation of the power of entering into the feelings of others, could easily be shown to play a high part in efficacious moral suasion.

V.—He affords little or no grounds for remarking on the connexion of Morality with Politics. Our duties as citizens are a part of Morality, and that is all.

VI.—He gives his views on the alliance of Ethics with Religion. He does not admit that we should refer to the Religious sanction on all occasions. He

assumes a benevolent and all-wise Governor of the world, who will ultimately redress all inequalities, and remedy all outstanding injustice. What this Being approves, however, is to be inferred solely from the principles of benevolence. Our regard for him is to be shown, not by frivolous observances, sacrifices, ceremonies, and vain supplications, but by just and beneficent actions. The author studiously ignores a revelation, and constructs for himself a Natural Religion, grounded on a benevolent and just administration of the universe.

In Smith's Essay, the purely scientific enquiry is overlaid by practical and hortatory dissertations, and by eloquent delineations of character and of beau-ideals of virtuous conduct. His style being thus pitched to the popular key, he never pushes home a metaphysical analysis; so that even his favourite theme, Sympathy, is not philosophically sifted to the bottom.

DAVID HARTLEY. [1705-1757.]

The 'Observations on Man' (1749) is the first systematic effort to explain the phenomena of mind by the Law of Association. It contains also a philosophical hypothesis, that mental states are produced by the *vibration* of infinitesimal particles of the nerves. This analogy, borrowed from the undulations of the hypothetical substance æther, has been censured as crude, and has been entirely superseded. But, although an imperfect analogy, it nevertheless kept constantly before the mind of Hartley the double aspect of all mental phenomena, thus preventing erroneous explanations, and often suggesting correct ones. In this respect, Aristotle and Hobbes are the only persons that can be named as equally fortunate.

The ethical remarks contained in the 'Observations,' relate only to the second head of summary, the Psychology of Ethics. We shall take, first, the account of disinterestedness, and, next, of the moral sense.

1. *Disinterestedness*. Under the name *Sympathy*, Hartley includes four kinds of feelings:—(1) Rejoicing at the happiness of others—Sociality, Good-will, Generosity, Gratitude; (2) Grieving for the misery of others—Compassion, Mercy; (3) Rejoicing at the misery of others—Anger, Jealousy, Cruelty, Malice; and (4) Grieving for the happiness of others—Emulation, Envy. All these feelings may be shown to originate in association. We select as examples of Hartley's method, Benevolence and Compassion. Benevolence is the pleasing affection that prompts us to act for the benefit of others. It is not a primitive feeling; but grows out of such circumstances as the following. Almost all the pleasures, and few, in comparison, of the pains, of children, are caused by others; who are thus, in the course of time, regarded with pleasure, independently of their usefulness to us. Many of our pleasures are enjoyed along with, and are enhanced by, the presence of others. This tends to make us more sociable. Moreover, we are taught and required to put on the appearance of good-will, and to do kindly actions, and this may beget in us the proper feelings. Finally, we must take into account the praise and rewards of benevolence, together with the reciprocity of benefits that we may justly expect. All those elements may be so mixed and blended as to produce a feeling that shall teach us to do good to others without any expectation of reward, even that most refined recompense—the pleasure arising from a beneficent act. Thus Hartley conceives that he both proves the existence of disinterested feeling, and explains the manner of its developement.

His account of *Compassion* is similar. In the young, the signs and appearances of distress excite a painful feeling, by recalling their own experience of misery. In the old, the connexion between a feeling and its adjuncts has been weakened by experience. Also, when children are brought up together, they are often annoyed by the same things, and this tends powerfully to create a fellow-feeling. Again, when their parents are ill, they are taught to cultivate pity, and are also subjected to unusual restraints. All

those things conspire to make children desire to remove the sufferings of others. Various circumstances increase the feeling of pity, as when the sufferers are beloved by us, or are morally good. It is confirmatory of this view, that the most compassionate are those whose nerves are easily irritable, or whose experience of affliction has been considerable.

2.—*The Moral Sense*. Hartley denies the existence of any moral instinct, or any moral judgments, proceeding upon the eternal relations of things. If there be such, let instances of them be produced prior to the influence of associations. Still, our moral approbation or disapprobation is disinterested, and has a factitious independence. (1) Children are taught what is right and wrong, and thus the associations connected with the idea of praise and blame are transferred to the virtues inculcated and the vices condemned. (2) Many vices and virtues, such as sensuality, intemperance, malice, and the opposites, produce *immediate* consequences of evil and good respectively. (3) The benefits, immediate or (at least) obvious, flowing from the virtues of others, kindle love towards them, and thereafter to the virtues they exhibit. (4) Another consideration is the *loveliness of virtue*, arising from the suitableness of the virtues to each other, and to the beauty, order, and perfection of the world. (5) The hopes and fears connected with a future life, strengthen the feelings connected with virtue. (6) Meditation upon God and prayer have a like effect. 'All the pleasures and pains of sensation, imagination, ambition (pride and vanity), self-interest, sympathy, and theopathy (affection towards God), as far as they are consistent with one another, with the frame of our natures, and with the course of the world, beget in us a moral sense, and lead us to the love and approbation of virtue, and to the fear, hatred, and abhorrence of vice. This moral sense, therefore, carries its own authority with it, inasmuch as it is the sum total of all the rest, and the ultimate result from them; and employs the whole force and authority of the whole nature of man against any particular part of it that

rebels against the determinations and commands of the conscience or moral judgment.'

Hartley's analysis of the moral sense is a great advance upon Hobbes and Mandeville, who make self-love the immediate constituent, instead of a remote cause, of conscience. Our moral consciousness may thus be treated as peculiar and distinguishable from other mental states, while at the same time it is denied to be unique and irresolvable.

THOMAS REID.[24] [1710-96.]

Reid's Ethical views are given in his *Essays on the Active Powers of the Mind*.

ESSAY III., entitled *THE PRINCIPLES OF ACTION*, contains (Part III.) a disquisition on the *Rational Principles of Action* as opposed to what Reid calls respectively *Mechanical Principles* (Instinct, Habit), and *Animal Principles* (Appetites, Desires, Affections).

The Rational Principles of Action are Prudence, or regard to our own good on the whole, and Duty, which, however, he does not define by the antithetical circumstance—the 'good of others.' The notion of Duty, he says, is too simple for logical definition, and can only be explained by synonymes—*what we ought* to do; what is fair and honest; what is approvable; the professed rule of men's conduct; what all men praise; the laudable in itself, though no man praise it.

Duty, he says, cannot be resolved into Interest. The language of mankind makes the two distinct. Disregard of our interest is folly; of honour, baseness. Honour is more than mere reputation, for it keeps us right when we are not seen. This principle of Honour (so-called by men of rank) is, in

vulgar phrase, honesty, probity, virtue, conscience; in philosophical language, the moral sense, the moral faculty, rectitude.

The principle is universal in men grown up to years of understanding. Such a testimony as Hume's may be held decisive on the reality of moral distinctions. The ancient world recognized it in the leading terms, *honestum* and *utile*, &c.

The abstract notion of Duty is a relation between the action and the agent. It must be voluntary, and within the power of the agent. The opinion (or intention) of the agent gives the act its moral quality.

As to the Sense of Duty, Reid pronounces at once, without hesitation, and with very little examination, in favour of an original power or faculty, in other words, a Moral Sense. Intellectual judgments are judgments of the external senses; moral judgments result from an internal moral sense. The external senses give us our intellectual first principles; the moral sense our moral first principles. He is at pains to exemplify the deductive process in morals. It is a question of moral reasoning, Ought a man to have only one wife? The reasons are, the greater good of the family, and of society in general; but no reason can be given why we should prefer greater good; it is an intuition of the moral sense.

He sums up the chapter thus:—'That, by an original power of the mind, which we call *conscience*, or the *moral faculty*, we have the conceptions of right and wrong in human conduct, of merit and demerit, of duty and moral obligation, and our other moral conceptions; and that, by the same faculty, we perceive some things in human conduct to be right, and others to be wrong; that the first principles of morals are the dictates of this faculty; and that we have the same reason to rely upon those dictates, as upon the determinations of our senses, or of our other natural faculties.' Hamilton remarks that this theory virtually founds morality on intelligence.

Moral Approbation is the affection and esteem accompanying our judgment of a right moral act. This is in all cases pleasurable, but most so, when the act is our own. So, obversely, for Moral Disapprobation.

Regarding Conscience, Reid remarks, first, that like all other powers it comes to maturity by insensible degrees, and may be a subject of culture or education. He takes no note of the difficulty of determining what is primitive and what is acquired. Secondly, Conscience is peculiar to man; it is wanting in the brutes. Thirdly, it is evidently intended to be the director of our conduct; and fourthly, it is an Active power and an Intellectual power combined.

ESSAY IV. is OF THE LIBERTY OF MORAL AGENTS, which we pass by, having noticed it elsewhere. ESSAY V. is OF MORALS.

Chapter I. professes to enumerate the axiomatic first principles of Morals. Some of these relate (A) to virtue in general: as (1) There are actions deserving of praise, and others deserving blame; (2) the involuntary is not an object of praise or blame; (3) the unavoidable is not an object of praise or blame; (4) omission may be culpable; (5) we ought to inform ourselves as to duty; (6) we should fortify ourselves against temptation. Other principles relate (B) to particular virtues: (1) We should prefer a greater good to a less; (2) we should comply with the intention of nature, apparent in our constitution; (3) no man is born for himself alone; (4) we should judge according to the rule, 'Do to others,' &c.; (5) if we believe in God, we should venerate and submit to him. A third class of principles (C) settle the preference among opposing virtues. Thus, unmerited generosity should yield to gratitude, and both to justice.

Chapter II. remarks upon the growth and peculiar advantages of Systems of Morals. Chapter III. is on Systems of Natural Jurisprudence. The four subsequent chapters of the Essay he states to have been composed in answer to the Ethical doctrines of Hume.

Chapter IV. enquires whether a moral action must proceed from a moral purpose in the agent. He decides in the affirmative, replying to certain objections, and more especially to the allegation of Hume, that justice is not a natural, but an artificial virtue. This last question is pursued at great length in Chapter V., and the author takes occasion to review the theory of Utility or Benevolence, set up by Hume as the basis of morals. He gives Hume the credit of having made an important step in advance of the Epicurean, or Selfish, system, by including the good of others, as well as our own good, in moral acts. Still, he demands why, if Utility and Virtue are identical, the same name should not express both. It is true, that virtue is both agreeable and useful in the highest degree; but that circumstance does not prevent it from having a quality of its own, not arising from its being useful and agreeable, but arising from its being virtue. The common good of society, though a pleasing object to all men, hardly ever

enters into the thoughts of the great majority; and, if a regard to it were the sole motive of justice, only a select number would ever be possessed of the virtue. The notion of justice carries inseparably along with it a notion of moral obligation; and no act can be called an act of justice unless prompted by the motive of justice.

Then, again, good music and good cookery have the merit of utility, in procuring what is agreeable both to ourselves and to society, but they have never been denominated moral virtues; so that, if Hume's system be true, they have been very unfairly treated.

Reid illustrates his positions against Hume to a length unnecessary to follow. The objections are exclusively and effectively aimed at the two unguarded points of the Utility system as propounded by Hume; namely, first, the not recognizing moral rules as established and enforced among men by the dictation of authority, which does not leave to individuals the power of reference to ultimate ends; and, secondly, the not distinguishing between obligatory, and non-obligatory, useful acts.

Reid continues the controversy, with reference to Justice, in Chapter VI., on the Nature and Obligation of a Contract; and in Chapter VII. maintains, in opposition to Hume, that Moral approbation implies a Judgment of the intellect, and is not a mere feeling, as Hume seems to think. He allows the propriety of the phrase 'Moral Sentiment,' because 'Sentiment' in English means judgment accompanied with feeling. [Hamilton dissents, and thinks that sentiment means the higher feelings.] He says, if a moral judgment be no real judgment, but only a feeling, morals have no foundation but the arbitrary structure of the mind; there are no immutable moral distinctions; and no evidence for the moral character of the Deity.

We shall find the views of Reid substantially adopted, and a little more closely and concisely argued, by Stewart.

DUGALD STEWART. [1753-1828.]

In his 'Essays on the Active Powers of the Mind,' Stewart introduces the Moral Faculty in the same way as Reid. BOOK SECOND is entitled OUR RATIONAL AND GOVERNING PRINCIPLES OF ACTION. Chapter I., on Prudence or Self-love, is unimportant for our present purpose, consisting of some desultory remarks on the connexion of happiness with steadiness of purpose, and on the meanings of the words 'self-love' and 'selfishness.'

Chapter II. is on the Moral Faculty, and is intended to show that it is an original principle of the mind. He first replies to the theory that identifies Morality with Prudence, or Self-love. His first argument is the existence in all languages of different words for *duty* and for *interest*. Secondly, The emotions arising from, the contemplation of right and wrong are different from those produced by a regard to our own happiness. Thirdly, although in most instances a sense of duty, and an enlightened regard to our own happiness, would suggest to us the same line of conduct, yet this truth is not obvious to mankind generally, who are incapable of appreciating enlarged views and remote consequences. He repeats the common remark, that we secure our happiness best by not looking to it as tho one primary end. Fourthly, moral judgments appear in children, long before they can form the general notion of happiness. His examples of this position, however, have exclusive reference to the sentiment of pity, which all moralists regard as a primitive feeling, while few admit it to be the same as the moral sense.

He then takes notice of the Association Theory of Hartley, Paley, and others, which he admits to be a great refinement of the old selfish system, and an answer to one of his arguments. He maintains, nevertheless, that the others are untouched by it, and more especially the third, referring to the amount of experience and reflection necessary to discover the tendency of virtue to promote our happiness, which is inconsistent with the early period when our moral judgments appear. [It is singular that he should not have remarked that the moral judgments of that early age, if we except what

springs from the impulses of pity, are wholly communicated by others.] He quotes Paley's reasoning against the Moral Sense, and declares that he has as completely mis-stated the issue, as if one were to contend that because we are not born with the knowledge of light and colours, therefore the sense of seeing is not an original part of the frame. [It would be easy to retort that all that Paley's case demanded was the same power of *discrimination* in moral judgments, as the power of discriminating light and dark belonging to our sense of sight.]

Chapter III. continues the subject, and examines objections. The first objection taken up is that derived from the influence of education, with which he combines the farther objection (of Locke and his followers) arising from the diversity of men's moral judgments in various nations. With regard to education, he contends that there are limits to its influence, and that however it may modify, it cannot create our judgments of right and wrong, any more than our notions of beauty and deformity. As to the historical facts relating to the diversity of moral judgments, he considers it necessary to make full allowance for three circumstances—I.—Difference of situation with regard to climate and civilization. II.—Diversity of speculative opinions, arising from difference of intellectual capacity; and, III.—The different moral import of the same action under different systems of behaviour. On the first head he explains the indifference to theft from there being little or no fixed property; he adduces the variety of sentiments respecting Usury, as having reference, to circumstances; and alludes to the differences of men's views as to political assassination. On the second head he remarks, that men may agree on *ends*, but may take different views as to means; they may agree in recognizing obedience to the Deity, but differ in their interpretations of his will. On the third point, as regards the different moral import of the same action, he suggests that Locke's instance of the killing of aged parents is merely the recognized mode of filial affection; he also quotes the exceeding variety of ceremonial observances.

Chapter IV. comments farther on the objections to the reality and immutability of moral distinctions and to the universal diffusion of the moral faculty. The reference is, in the first instance, to Locke, and then to what he terms, after Adam Smith, the licentious moralists—La Rochefoucauld and Mandeville. The replies to these writers contain nothing special to Stewart.

Chapter V. is the Analysis of our Moral Perceptions and Emotions. This is a somewhat singular phrase in an author recognizing a separate inborn faculty of Right. His analysis consists in a separation of the entire fact into three parts:—the perception of an action as right or wrong; (2) an emotion of pleasure or pain, varying according to the moral sensibility; (3) a perception of the merit or demerit of the agent. The first is of course the main question; and the author gives a long review of the history of Ethical doctrines from Hobbes downwards, interspersing reflections and criticisms, all in favour of the intuitive origin of the sense. As illustrative parallels, he adduces Personal Identity, Causation, and Equality; all which he considers to be judgments involving simple ideas, and traceable only to some primitive power of the mind. He could as easily conceive a rational being formed to believe the three angles of a triangle to be

equal to one right angle, as to believe that there would be no injustice in depriving a man of the fruits of his labours.

On the second point—the pleasure and pain accompanying right and wrong, he remarks on the one-sidedness of systems that treat the sense of right and wrong as an intellectual judgment purely (Clarke, &c.), or those that treat it as a feeling purely (Shaftesbury, Hutcheson, and Hume). His remarks on the sense of Merit and Demerit in the agent are trivial or commonplace.

Chapter VI. is 'Of Moral Obligation.' It is needless to follow him on this subject, as his views are substantially a repetition of Butler's Supremacy of Conscience. At the same time, it may be doubted whether Butler entirely and unequivocally detached this supremacy from the command of the Deity, a point peculiarly insisted on by Stewart. His words are these:—

'According to some systems, moral obligation is founded entirely on our belief that virtue is enjoined by the command of God. But how; it may be asked, does this belief impose an obligation? Only one of two answers can be given. Either that there is a moral fitness that we should conform our will to that of the Author and the Governor of the universe; or that a rational self-love should induce us, from motives of prudence, to study every means of rendering ourselves acceptable to the Almighty Arbiter of happiness and misery. On the first supposition We reason in a circle. We resolve our sense of moral obligation into our sense of religion, and the sense of religion into that of moral obligation.

'The other system, which makes virtue a mere matter of prudence, although not so obviously unsatisfactory, leads to consequences which sufficiently invalidate every argument in its favour. Among others it leads us to conclude, 1. That the disbelief of a future state absolves from all moral obligation, excepting in so far as we find virtue to be conducive to our present interest: 2. That a being independently and completely happy cannot have any moral perceptions or any moral attributes.

'But farther, the notions of reward and punishment presuppose the notions of right and wrong. They are sanctions of virtue, or additional motives to the practice of it, but they suppose the existence of some previous obligation.

'In the last place, if moral obligation be constituted by a regard to our situation in another life, how shall the existence of a future state be proved, or even rendered probable by the light of nature? or how shall we discover what conduct is acceptable to the Deity? The truth is, that the strongest presumption for such a state is deduced from our natural notions of right and wrong; of merit and demerit; and from a comparison between, these and the general course of human affairs.'

In a chapter (VII.) entitled 'certain principles co-operating with our moral powers,' he discusses (1) a regard to character, (2) Sympathy, (3) the Sense of the Ridiculous, (4) Taste. The important topic is the second, Sympathy; which, psychologically, he would appear to regard as determined by the pleasure that it gives. Under this head he introduces a criticism of the Ethical theory of Adam Smith; and, adverting to the inadequacy of the theory to distinguish the *right* from the *actual* judgments of mankind, he remarks on Smith's ingenious fiction 'of *an abstract man* within the breast;' and states that Smith laid much greater stress on this fiction in the last edition of the *Moral Sentiments* published before his death. It is not without reason that Stewart warns against grounding theories on metaphorical expressions, such as this of Smith, or the Platonic Commonwealth of the Soul.

In Book IV. of the *Active Powers*, Stewart discusses our Duties to Men,—both our fellow-creatures and ourselves. Our duties to our fellows are summed up in Benevolence, Justice, and Veracity. He devotes a chapter to each. In Chapter I., on Benevolence, he re-opens the consideration of the

Ethical systems founded on Benevolence or Utility, and argues against them; but merely repeats the common-place objections—the incompetency of individuals to judge of remote tendencies, the pretext that would be afforded for the worst conduct, and each one's consciousness that a sense of *duty* is different from enlightened benevolence.

Chapter II. is on Justice; defined as the disposition that leads a man, where his own interests or passions are concerned, to act according to the judgment he would form of another man's duty in his situation. He introduces a criticism on Adam Smith, and re-asserts the doctrine of an innate faculty, explained as the *power of forming* moral ideas, and not as the innate possession of ideas. For the most part, his exposition is didactic and desultory, with occasional discussions of a critical and scientific nature; as, for example, some remarks on Hume's theory that Justice is an artificial virtue, an account of the basis of Jurisprudence, and a few observations on the Right of Property.

In Chapter III., on Veracity, he contends that considerations of utility do not account for the whole force of our approbation of this virtue. [So might any one say that considerations of what money can purchase do not account for the whole strength of avarice].

In Chapter IV. he deals with Duties to ourselves, and occupies the chapter with a dissertation on Happiness. He first gives an account of the theories of the Stoics and the Epicureans, which connect themselves most closely with the problem of Happiness; and next advances some observations of his own on the subject.

His first remark is on the influence of the Temper, by which he means the Resentful or Irascible passion, on Happiness. As against a censorious disposition, he sets up the pleasure of the benevolent sentiments; he enjoins candour with respect to the motives of others, and a devoted attachment to truth and virtue for their intrinsic excellence; and warns us, that the causes that alienate our affections from our fellow-creatures, suggest gloomy and Hamlet-like conceptions of the order of the universe.

He next adverts to the influence of the Imagination on Happiness. On this, he has in view the addition made to our enjoyments or our sufferings by the respective predominance of hope or of fear in the mind. Allowing for constitutional bias, he recognizes, as the two great sources of a desponding imagination, Superstition and Scepticism, whose evils he descants upon at length. He also dwells on the influence of casual associations on happiness, and commends this subject to the care of educators; giving, as an example, the tendency of associations with Greece and Rome to add to the courage of the classically educated soldier.

His third position is the Influence of our Opinions on Happiness. He here quotes, from Ferguson, examples of opinions unfavourable to Happiness; such as these: 'that happiness consists in having nothing to do,' 'that anything is preferable to happiness,' 'that anything can amuse us better than our duties.' He also puts forward as a happy opinion the Stoical view, 'I am in the station that God has assigned me.' [It must be confessed, however, that these prescriptions savour of the Platonic device of inculcating opinions, not because of their truth, but because of their supposed good consequences otherwise: a proceeding scarcely compatible with an Ethical system that proclaims veracity as superior to utility. On such a system, we are prohibited from looking to anything in an opinion but its truth; we are to suffer for truth, and not to cultivate opinions because of their happy results.]

Stewart remarks finally on the influence of the Habits, on which he notices the power of the mind to accommodate itself to circumstances, and copies Paley's observations on the *setting* of the habits.

In continuation of the subject of Happiness, he presents a classification of our most important pleasures. We give the heads, there being little to detain us in the author's brief illustration of them. I.—The pleasures of Activity and Repose; II.—The pleasures of Sense; III.—The pleasures of the

Imagination; IV.—The pleasures of the Understanding; and V.—The pleasures of the Heart, or of the various benevolent affections. He would have added Taste, or Fine Art, but this is confined to a select few.

In a concluding chapter (V.), he sums up the general result of the Ethical enquiry, under the title, 'the Nature and Essence of Virtue.' No observation of any novelty occurs in this chapter. Virtue is doing our duty; the intentions of the agent are to be looked to; the enlightened discharge of our duty often demands an exercise of the Reason to adjudge between conflicting claims; there is a close relationship, not defined, between Ethics and Politics.

The views of Stewart represent, in the chief points, although not in all, the Ethical theory that has found the greatest number of supporters.

I.—The Standard is internal, or intuitive—the judgments of a Faculty, called the Moral Faculty. He does not approve of the phrase 'Moral Sense,' thinking the analogy of the senses incorrect.

II.—As regards Ethical Psychology, the first question is determined by the remarks on the Standard.

On the second question, Free-will, Stewart maintains Liberty.

On the third question, he gives, like many others, an uncertain sound. In his account of Pity, he recognizes three things, (1) a painful feeling, (2) a selfish desire to remove the cause of the uneasiness, (3) a disposition grounded on benevolent concern about the sufferer. This is at best vague. Equally so is what he states respecting the pleasures of sympathy and benevolence (Book II., Chapter VII.). There is, he says, a pleasure attached to fellow-feeling, a disposition to accommodate our minds to others, wherever there is a benevolent affection; and, in all probability, the pleasure

of sympathy is the pleasure of loving and of being beloved. No definite proposition can be gathered from such loose allegations.

III.—We have already abstracted his chapter on Happiness.

IV.—On the Moral Code, he has nothing peculiar.

V.—On the connexion with Religion, we have seen that he is strenuous in his antagonism to the doctrine of the dependence of morality on the will of God. But, like other moralists of the same class, he is careful to add:—'Although religion can with no propriety be considered as the sole foundation of morality, yet when we are convinced that God is infinitely good, and that he is the friend and protector of virtue, this belief affords the most powerful inducements to the practice of every branch of our duty.' He has (Book III.) elaborately discussed the principles of Natural Religion, but, like Adam Smith, makes no reference to the Bible, or to Christianity. He is disposed to assume the benevolence of the Deity, but considers that to affirm it positively is to go beyond our depth.

THOMAS BROWN. [1778-1820.]

Brown's Ethical discussion commences in the 73rd of his *Lectures*. He first criticises the multiplicity of expressions used in the statement of the fundamental question of morals—'What is it that constitutes the action *virtuous*?' 'What constitutes the *moral obligation* to perform certain actions?' 'What constitutes the *merit* of the agent?'—These have been considered questions essentially distinct, whereas they are the very same question. There is at bottom but one emotion in the case, the emotion of approbation, or of disapprobation, of an agent acting in a certain way.

In answer then to the question as thus simplified, 'What is the ground of moral approbation and disapprobation?' Brown answers—a simple emotion

of the mind, of which no farther explanation can be given than that we are so constituted. Thus, without using the same term, he sides with the doctrine of the Innate Moral Sense. He illustrates it by another elementary fact of the mind, involved in the conception of cause and effect on his theory of that relation—the belief that the future will resemble the past. Excepting a teleological reference to the Supreme Benevolence of the Deity, he admits no farther search into the nature of the moral sentiment.

He adduces, as another illustration, what he deems the kindred emotion of Beauty. Our feeling of beauty is not the mere perception of forms and colours, or the discovery of the uses of certain combinations of forms; it is an emotion arising from these, indeed, but distinct from them. Our feeling of moral excellence, in like manner, is not the mere perception of different actions, or the discovery of the physical good that these may produce; it is an emotion *sui generis*, superadded to them.

He adverts, in a strain of eloquent indignation, to the objection grounded on differences of men's moral judgment. There are philosophers, he exclaims, 'that can turn away from the conspiring chorus of the millions of mankind, in favour of the great truths of morals, to seek in some savage island, a few indistinct murmurs that may seem to be discordant with the total harmony of mankind.' He goes on to remark, however, that in our zeal for the immutability of moral distinctions, we may weaken the case by contending for too much; and proposes to consider the species of accordance that may be safely argued for.

He begins by purging away the realistic notion of Virtue, considered as a self-existing entity. He defines it—a term expressing the relation of certain actions to certain emotions in the minds contemplating them; its universality is merely co-extensive with these minds. He then concedes that

all mankind do not, at every moment, feel precisely the same emotions in contemplating the same actions, and sets forth the limitations as follows;—

First, In moments of violent passion, the mind is incapacitated for perceiving moral differences; we must, in such cases appeal, as it were, from Philip drunk to Philip sober.

Secondly, Still more important is the limitation arising from the complexity of many actions. Where good and evil results are so blended that we cannot easily assign the preponderance, different men may form different conclusions. Partiality of views may arise from this cause, not merely in individuals, but in whole nations. The legal permission of theft in Sparta is a case in point. Theft, as theft, and without relation to the political object of inuring a warlike people, would have been condemned in Sparta, as well as with us. [The retort of Locke is not out of place here; an innate moral sentiment that permits a fundamental virtue to be set aside on the ground of mere state convenience, is of very little value.] He then goes on to ask whether men, in approving these exceptions to morality, approve them because they are immoral? [The opponents of a moral sense do not contend for an *immoral* sense.] Suicide is not commended because it deprives society of useful members, and gives sorrow to relations and friends; the exposure of infants is not justified on the plea of adding to human suffering.

Again, the differences of cookery among nations are much wider than the differences of moral sentiment; and yet no one denies a fundamental susceptibility to sweet and bitter. It is not contended that we come into the world with a knowledge of actions, but that we have certain susceptibilities of emotion, in consequence of which, it is impossible for us, in after life, unless from counteracting circumstances, to be pleased with the contemplation of certain actions, and disgusted with certain other actions.

When the doctrine is thus stated, Paley's objection, that we should also receive from nature the notions of the actions themselves, falls to the ground. As well might we require an instinctive notion of all possible numbers, to bear out our instinctive sense of proportion.

A third limitation must be added, the influence of the principle of Association. One way that this operates is to transfer, to a whole class of actions, the feelings peculiar to certain marked individuals. Thus, in a civilized country, where property is largely possessed, and under complicated tenures, we become very sensitive to its violation, and acquire a proportionably intense sentiment of Justice. Again, association operates in modifying our approval and disapproval of actions according to their attendant circumstances; as when we extenuate misconduct in a beloved person.

The author contends that, notwithstanding these limitations, we still leave unimpaired the approbation of unmixed good as good, and the disapprobation of unmixed evil as evil. His further remarks, however, are mainly eloquent declamation on the universality of moral distinctions.

He proceeds to criticise the moral systems from Hobbes downwards. His remarks (Lecture 76) on the province of Reason in Morality, with reference to the systems of Clarke and Wollaston, contain the gist of the matter well expressed.

He next considers the theory of Utility. That Utility bears a certain relation to Virtue is unquestionable. Benevolence means good to others, and virtue is of course made up, in great part, of this. But then, if Utility is held to be the *measure* of virtue, standing in exact proportion to it, the proposition is very far from true; it is only a small portion of virtuous actions wherein the measure holds.

He does not doubt that virtuous actions do all tend, in a greater or less degree, to the advantage of the world. But he considers the question to be, whether what we have *alone in view*, in approving certain actions, be the amount of utility that they bring; whether we have no other reason for commending a man than for praising a chest of drawers.

Consider this question first from the point of view of the agent. Does the mother, in watching her sick infant, think of the good of mankind at that moment? Is the pity called forth by misery a sentiment of the general good? Look at it again from the point of view of the spectator. Is his admiration of a steam-engine, and of an heroic human action, the same sentiment? Why do we not worship the earth, the source of all our utilities? The ancient worshippers of nature always gave it a soul in the first instance.

When the supporter of Utility arbitrarily confines his principles to the actions of living beings, he concedes the point in dispute; he admits an approvableness peculiar to *living and voluntary agents*, a capacity of exciting moral emotions not commensurate with any utility. Hume says, that the sentiments of utility connected with human beings are mixed with affection, esteem, and approbation, which do not attach to the utility of inanimate things. Brown replies, that these are the very sentiments to be accounted for, the moral part of the case.

But another contrast may be made; namely, between the utility of virtue and the utility of talent or genius, which we view with very different and unequal sentiments; the inventors of the printing press do not rouse the same emotions as the charities of the Man of Ross.

Still, he contends, like the other supporters of innate moral distinctions, for a pre-established harmony between the two attributes. Utility and virtue are so intimately related, that there is perhaps no action generally felt by us as virtuous, but what is generally beneficial. But this is only discovered by

reflecting men; it never enters the mind of the unthinking multitude. Nay, more, it is only the Divine Being that can fully master this relationship, or so prescribe our duties that they shall ultimately coincide with the general happiness.

He allows that the immediate object of the *legislator* is the general good; but then his relationship is to the community as a whole, and not to any particular individual.

He admits, farther, that the good of the world at large, if not the *only* moral object, *is* a moral object, in common with the good of parents, friends, and others related to us in private life. Farther, it may be requisite for the moralist to correct our moral sentiments by requiring greater attention to public, and less to private, good; but this does not alter the nature of our moral feelings; it merely presents new objects to our *moral discrimination*. It gives an exercise to our reason in disentangling the complicated results of our actions.

He makes it also an objection to Utility, that it does not explain *why* we feel approbation of the useful, and disapprobation of the hurtful; forgetting that Benevolence is an admitted fact of our constitution, and may fairly be assigned by the moralist as the source of the moral sentiment.

His next remarks are on the Selfish Systems, his reply to which is the assertion of disinterested Affections. He distinguishes two modes of assigning self-interest as the sole motive of virtuous conduct. First, it may be said that in every so-called virtuous action, we see some good to self, near or remote. Secondly, it may be maintained that we become at last disinterested by the associations of our own interest.

He calls in question this alleged process of association. Because a man's own cane is interesting to him, it does not follow that every other man's

cane is interesting. [He here commits a mistake of fact; other men's walking canes are interesting to the interested owner of a cane. It may not follow that this interest is enough to determine self-sacrifice.]

It will be inferred that Brown contends warmly for the existence of Disinterested Affection, not merely as a present, but as a primitive, fact of our constitution. He does not always keep this distinct from the Moral Sentiment; he, in fact, mixes the two sentiments together in his language, a thing almost inevitable, but yet inconsistent with the advocacy of a distinct moral sentiment.

He includes among the Selfish Systems the Ethical Theory of Paley, which he reprobates in both its leading points—everlasting happiness as the motive, and the will of God as the rule. On the one point, this theory is liable to all the objections against a purely selfish system; and, on the other point, he makes the usual replies to the founding of morality on the absolute will of the Deity.

Brown next criticises the system of Adam Smith. Admitting that we have the sympathetic feeling that Smith proceeds upon, he questions its adequacy to constitute the moral sentiment, on the ground that it is not a perpetual accompaniment of our actions. There must be a certain *vividness* of feeling or of the display of feeling, or at least a sufficient cause of vivid feeling, to call the sympathy into action. In the numerous petty actions of life, there is an absence of any marked sympathy.

But the essential error of Smith's system is, that it assumes the very moral feelings that it is meant to explain. If there were no antecedent moral feelings, sympathy could not afford them; it is only a mirror to reflect what is already in existence. The feelings that we sympathize with, are themselves moral feelings already; if it were not so, the reflexion of them from a thousand breasts would not give them a moral nature.

Brown thinks that Adam Smith was to some extent misled by an ambiguity in the word sympathy; a word applied not merely to the participation of other men's feelings, but to the further and distinct fact of the *approbation* of those feeling's.

Although siding in the main with Shaftesbury and Hutcheson, Brown objects to their designation Moral Sense, as expressing the innate power of moral approbation. If 'Sense' be interpreted merely as susceptibility, he has nothing to say, but if it mean a primary medium of perception, like the eye or the ear, he considers it a mistake. It is, in his view, an *emotion*, like hope, jealousy, or resentment, rising up on the presentation of a certain class of objects. He farther objects to the phrase 'moral ideas,' also used by Hutcheson. The moral emotions are more akin to love and hate, than to perception or judgment.

Brown gives an exposition of Practical Ethics under the usual heads: Duties to Others, to God, to Ourselves. Duties to others he classifies thus:—I.—*Negative*, or abstinence from injuring others in Person, Property, Affections, Character or Reputation, Knowledge (veracity), Virtue, and Tranquillity; II. *Positive*, or Benevolence; and III.—Duties growing out of our *peculiar ties*—Affinity, Friendship, Good offices received, Contract, and Citizenship.

To sum up

I.—As regards the Standard, Brown contends for an Innate Sentiment.

II.—The Faculty being thus determined, along with the Standard, we have only to resume his views as to Disinterested action. For a full account of these, we have to go beyond the strictly Ethical lectures, to his analysis of the Emotions. Speaking of love, he says that it includes a desire of doing good to the person loved; that it is necessarily pleasurable because there

must be some quality in the object that gives pleasure; but it is not the mere pleasure of loving that makes us love. The qualities are delightful to love, and yet impossible not to love. He is more explicit when he comes to the consideration of Pity, recognizing the existence of sympathy, not only without liking for the object, but with positive dislike. In another place, he remarks that we desire the happiness of our fellows simply as human beings. He is opposed to the theory that would trace our disinterested affections to a selfish origin. He makes some attempt to refer to the laws of Association, the taking in of other men's emotions, but thinks that there is a reflex process besides.

Although recognizing in a vague way the existence of genuine disinterested impulses, he dilates eloquently, and often, on the deliciousness of benevolence, and of all virtuous feelings and conduct.

WILLIAM PALEY. [1743-1805].

The First Book of Paley's 'Moral and Political Philosophy' is entitled 'PRELIMINARY CONSIDERATIONS' it is in fact an unmethodical account of various fundamental points of the subject. He begins by defining Moral Philosophy as '*that science which teaches men their duty, and the reasons of it*'. The ordinary rules are defective and may mislead, unless aided by a scientific investigation. These ordinary rules are the Law of Honour, the Law of the Land, and the Scriptures.

He commences with the Law of Honour, which he views in its narrow sense, as applied to people of rank and fashion. This is of course a very limited code.

The Law of the Land also must omit many duties, properly compulsory, as piety, benevolence, &c. It must also leave unpunished many vices, as

luxury, prodigality, partiality. It must confine itself to offences strictly definable.

The Scriptures lay down general rules, which have to be applied by the exercise of reason and judgment. Moreover, they pre-suppose the principles of natural justice, and supply new sanctions and greater certainty. Accordingly, they do not dispense with a scientific view of morals.

[The correct arrangement of the common rules would have been (1) the Law of the Land, (2) the Laws of Society generally, and (3) the Scriptures. The Law of Honour is merely one application of the comprehensive agency of society in punishing men, by excommunication, for what it prohibits.]

Then follows his famous chapter on the MORAL SENSE.

It is by way of giving an effective statement of the point in dispute that he quotes the anecdote of Caius Toranius, as an extreme instance of filial ingratitude, and supposes it to be put to the wild boy caught in the woods of Hanover, with the view of ascertaining whether he would feel the sentiment of disapprobation as we do. Those that affirm an innate moral sense, must answer in the affirmative; those that deny it, in the negative.

He then recites the arguments on both sides.

For the moral sense, it is contended, that we approve examples of generosity, gratitude, fidelity, &c., on the instant, without deliberation and without being conscious of any assignable reason; and that this approbation is uniform and universal, the same sorts of conduct being approved or disapproved in all ages and countries; which circumstances point to the operation of an instinct, or a moral sense.

The answers to these allegations are—

First, The *Uniformity* spoken of is not admitted as a fact. According to the authentic accounts of historians and travellers, there is scarcely a single vice that, in some age or country of the world, has not been countenanced by public opinion. The murder of aged parents, theft, suicide, promiscuous intercourse of the sexes, and unmentionable crimes have been tolerated and approved. Among ourselves, Duelling is viewed with the most opposite sentiments; forgiveness of injuries is accounted by some people magnanimity, and by others meanness. In these, and in many other instances, moral approbation follows the fashions and institutions of the country, which institutions have themselves grown out of local circumstances, the arbitrary authority of some chieftain, or the caprice of the multitude.

Secondly, That, although, after allowing for these exceptions, it is admitted that some sorts of actions are more approved than others, the approbation being general, although not universal, yet this may be accounted for, without supposing a moral sense, thus:—

Having experienced a particular line of conduct as beneficial to ourselves, for example, telling the truth, a sentiment of approbation grows up in consequence, and this sentiment thereupon arises whenever the action is mentioned, and without our thinking of the consequences in each instance. The process is illustrated by the love of money, which is strongest in the old, who least of all think of applying it to its uses. By such means, the approval of certain actions is commenced; and being once commenced, the continuance of the feeling is accounted for by authority, by imitation, and by all the usages of good society. As soon as an entire society is possessed of an ethical view, the initiation of the new members is sure and irresistible. The efficacy of Imitation is shown in cases where there is no authority or express training employed, as in the likings and dislikings, or tastes and antipathies, in mere matters of indifference.

So much in reply to the alleged uniformity. Next come the positive objections to a Moral Instinct.

In the first place, moral rules are not absolutely and universally true; they bend to circumstances. Veracity, which is a natural duty, if there be any such, is dispensed with in case of an enemy, a thief, or a madman. The obligation of promises is released under certain circumstances.

In the next place, the Instinct must bear with it the *idea* of the actions to be approved or disapproved; but we are not born with any such ideas.

On the whole, either there exist no moral instincts, or they are undistinguishable from prejudices and habits, and are not to be trusted in moral reasonings. Aristotle held it as self-evident that barbarians are meant to be slaves; so do our modern slave-traders. This instance is one of many to show that the convenience of the parties has much to do with the rise of a moral sentiment. And every system built upon instincts is more likely to find excuses for existing opinions and practices than to reform either.

Again: supposing these Instincts to exist, what is their authority or power to punish? Is it the infliction of remorse? That may be borne with for the pleasures and profits of wickedness. If they are to be held as indications of the will of God, and therefore as presages of his intentions, that result may be arrived at by a surer road.

The next preliminary topic is HUMAN HAPPINESS.

Happiness is defined as the excess of pleasure over pain. Pleasures are to be held as differing only in *continuance*, and in *intensity*. A computation made in respect of these two properties, confirmed by the degrees of cheerfulness, tranquillity, and contentment observable among men, is to decide all questions as to human happiness.

I.—What Human Happiness does not consist in.

Not in the pleasures of Sense, in whatever profusion or variety enjoyed; in which are included sensual pleasures, active sports, and Fine Art.

1st, Because they last for a short time. [Surely they are good for the time they do last.] 2ndly, By repetition, they lose their relish. [Intermission and variety, however, are to be supposed.] 3rdly, The eagerness for high and intense delights takes away the relish from all others.

Paley professes to have observed in the votaries of pleasure a restless craving for variety, languor under enjoyment, and misery in the want of it. After all, however, these pleasures have their value, and may be too much despised as well as too much followed.

Next, happiness does not consist in the exemption from pain (?), from labour, care, business, and outward evils; such exemption leaving one a prey to morbid depression, anxiety, and hypochondria. Even a pain in moderation may be a refreshment, from giving a stimulus to pursuit.

Nor does it consist in greatness, rank, or station. The reason here is derived, as usual, from the doctrine of Relativity or Comparison, pushed beyond all just limits. The illustration of the dependence of the pleasure of superiority on comparison is in Paley's happiest style.

II.—What happiness does consist in. Allowing for the great difficulties of this vital determination, he proposes to be governed by a reference to the conditions of life where men appear most cheerful and contented.

It consists, 1st, In the exercise of the social affections. 2ndly, The exercise of our faculties, either of body or of mind, in the pursuit of some engaging end. [This includes the two items of occupation and plot-interest.]

3rdly, Upon the prudent constitution of the habits; the prudent constitution being chiefly in moderation and simplicity of life, or in demanding few stimulants; and 4thly, In Health, whose importance he values highly, but not too highly.

The consideration of these negative and positive conditions, he thinks, justifies the two conclusions: (1) That happiness is pretty equally distributed amongst the different orders of society; and (2) That in respect of this world's happiness, vice has no advantage over virtue.

The last subject of the First Book is VIRTUE. The definition of virtue is '*the doing good to mankind, in obedience to the will of God, and for the sake of everlasting happiness.*'

If this were strictly interpreted according to its form, it would mean that three things go to constitute virtue, any one of which being absent, we should not have virtue. Doing good to mankind alone is not virtue, unless coupled with a divine requirement; and this addition would not suffice, without the farther circumstance of everlasting happiness as the reward. But such is not his meaning, nor is it easy to fix the meaning. He unites the two conditions—Human Happiness and the Will of the Deity—and holds them to coincide and to explain one another. Either of the two would be a sufficient definition of virtue; and he would add, as an explanatory proposition and a guide to practice, that the one may be taken as a clue to the other. In a double criterion like this, everything depends upon the manner of working it. By running from one of the tests to another at discretion, we may evade whatever is disagreeable to us in both.

Book II., entitled MORAL OBLIGATION, is the full development of his views. Reciting various theories of moral right and wrong, he remarks, first, that they all ultimately coincide; in other words, all the theorists agree upon the same rules of duty—a remark to be received with allowances; and next, that they all leave the matter short; none provide an adequate motive or inducement. [He omits to mention the theory of the Divine Will, which is partly his own theory].

In proceeding to supply this want, he asks first 'what is meant by being obliged to do a thing;' and answers, '*a violent motive resulting from the command of another.*' The motive must be violent, or have some degree of force to overcome reluctance or opposing tendencies. It must also result from the *command* of another; not the mere offer of a gratuity by way of inducement. Such is the nature of Law; we should not obey the magistrate, unless rewards or punishments depended on our obedience; so neither should we, without the same reason, do what is right, or obey God.

He then resumes the general question, under a concrete case, 'Why am I obliged to keep my word?' The answer accords with the above explanation;—Because I am urged to do so by a violent motive (namely, the rewards and punishments of a future life), resulting from the command of God. Private happiness is the motive, the will of God the rule. [Although not brought out in the present connexion, it is implied that the will of God intends the happiness of mankind, and is to be interpreted accordingly.]

Previously, when reasoning on the means of human happiness, he declared it to be an established conclusion, that virtue leads to happiness, even in this life; now he bases his own theory on the uncertainty of that conclusion. His words are, 'They who would establish a system of morality, independent of a future state, must look out for some other idea of moral obligation, *unless they can show* that virtue conducts the possessor to certain happiness in this life, or to a much greater share of it than he could attain by a different behaviour.' He does not make the obvious remark that *human* authority, as far as it goes, is also a source of obligation; it works by the very same class of means as the divine authority.

He next proceeds to enquire into the means of determining the WILL OF GOD. There are two sources—the express declarations of Scripture, when they are to be had; and the design impressed on the world, in other words,

the light of nature. This last source requires him, on his system, to establish the Divine Benevolence; and he arrives at the conclusion that God wills and wishes the happiness of his creatures, and accordingly, that the method of coming at his will concerning any action is to enquire into the tendency of that action to promote or to diminish the general happiness.

He then discusses UTILITY, with a view of answering the objection that actions may be useful, and yet such as no man will allow to be right. This leads him to distinguish between the *particular* and the *general* consequences of actions, and to enforce the necessity of GENERAL RULES. An assassin, by knocking a rich villain on the head, may do immediate and particular good; but the liberty granted to individuals to kill whoever they should deem injurious to society, would render human life unsafe, and induce universal terror. 'Whatever is expedient is right,' but then it must be expedient on the whole, in the long run, in all its effects collateral and remote, as well as immediate and direct. When the *honestum* is opposed to the *utile*, the *honestum* means the general and remote consequences, the *utile* the particular and the near.

The concluding sections of Book II. are occupied with the consideration of RIGHT and RIGHTS. A Right is of course correlative with an Obligation. Rights are Natural or Adventitious; Alienable or Inalienable; Perfect or Imperfect. The only one of these distinctions having any Ethical application is Perfect and Imperfect. The Perfect Rights are, the Imperfect are not, enforced by Law.

Under the 'general Rights of mankind,' he has a discussion as to our right to the flesh of animals, and contends that it would be difficult to defend this right by any arguments drawn from the light of nature, and that it reposes on the text of Genesis ix. 1, 2, 3.

As regards the chief bulk of Paley's-work, it is necessary only to indicate his scheme of the Duties, and his manner of treating them.

Book III. considers RELATIVE DUTIES. There are three classes of these. First, Relative Duties that are *Determinate*, meaning all those that are strictly defined and enforced; those growing out of Promises, Contracts, Oaths, and Subscriptions to Articles of Religion. Secondly, Relative Duties that are *Indeterminate*, as Charity, in its various aspects of treatment of dependents, assistance to the needy, &c.; the checks on Anger and Revenge; Gratitude, &c. Thirdly, the Relative Duties growing out of the Sexes.

Book IV. is DUTIES TO OURSELVES, and treats of Self-defence, Drunkenness, and Suicide.

Book V. comprises DUTIES TOWARDS GOD.

Book VI. is occupied with Politics and Political Economy. It discusses the Origin of Civil Government, the Duty of Submission to Government, Liberty, the Forms of Government, the British Constitution, the Administration of Justice, &c.

The Ethical Theory of Paley may be briefly resumed thus:—

I.—The Ethical Standard with him is the conjoined reference to the Will of the Deity, and to Utility, or Human Happiness. He is unable to construct a scheme applicable to mankind generally, until they are first converted to a belief in Revelation.

II.—The Psychology implied in his system involves his most characteristic features.

1. He is unmistakeable in repudiating Innate Moral Distinctions, and on this point, and on this only, is he thoroughly at one with the Utilitarians of the present day.

2. On the Theory of Will he has no remarks. He has an utter distaste for anything metaphysical.

3. He does not discuss Disinterested Sentiment; by implication, he denies it. 'Without the expectation of a future existence,' he says, 'all reasoning

upon moral questions is vain.' He cannot, of course, leave out all reference to generosity. Under 'Pecuniary Bounty' he makes this remark—'They who rank pity amongst the original impulses of our nature, rightly contend, that when this principle prompts us to the relief of human misery, it indicates the Divine intention and our duty. Whether it be an instinct or a habit (?), it is, in fact, a property of our nature, which God appointed, &c.' This is his first argument for charity; the second is derived from the original title of mankind, granted by the Deity, to hold the earth in common; and the third is the strong injunctions of Scripture on this head. He cannot, it seems, trust human nature with a single charitable act apart from the intervention of the Deity.

III.—He has an explicit scheme of Happiness.

IV.—The Substance of his Moral Code is distinguished from, the current opinions chiefly by his well-known views on Subscription to Articles. He cannot conceive how, looking to the incurable diversity of human opinion on all matters short of demonstration, the legislature could expect the perpetual consent of a body of ten thousand men, not to one controverted proposition, but to many hundreds.

His inducements to the performance of duty are, as we should expect, a mixed reference to Public Utility and to Scripture.

In the Indeterminate Duties, where men are urged by moral considerations, to the exclusion of legal compulsion, he sometimes appeals directly to our generous sympathies, as well as to self-interest, but usually ends with the Scripture authority.

V.—The relation of Ethics to Politics is not a prominent feature in Paley. He makes moral rules repose finally, not upon human, but upon

Divine Law. Hence (VI.) the connexion of his system with Theology is fundamental.

JEREMY BENTHAM. [1748-1832.]

The Ethical System of Jeremy Bentham is given in his work, entitled 'An Introduction to the Principles of Morals and Legislation,' first published in 1789. In a posthumous work, entitled *Deontology*, his principles were farther illustrated, chiefly with reference to the minor morals and amiable virtues.

It is the first-named work that we shall here chiefly notice. In it, the author has principally in view Legislation; but the same common basis, Utility, serves, in his judgment, for Ethics, or Morals.

The first chapter, entitled 'THE PRINCIPLE OF UTILITY,' begins thus:—'Nature has placed mankind under the governance of two sovereign masters, *pain* and *pleasure*. It is for them alone to point out what we ought to do, as well as to determine what we shall do. On the one hand, the standard of right and wrong; on the other, the chain of causes and effects, are fastened to their throne. They govern us in all we do, in all we say, in all we think; every effort we can make to throw off our subjection will serve but to demonstrate and confirm it. In words a man may pretend to abjure their empire, but in reality he will remain subject to it all the while. The *principle of utility* recognizes this subjection, and assumes it for the foundation of that system, the object of which is to rear the fabric of felicity by the hand of reason and of law. Systems which attempt to question it, deal in sounds instead of sense, in caprice instead of reason, in darkness instead of light.'

He defines Utility in various phrases, all coming to the same thing:—the tendency of actions to promote the happiness, and to prevent the misery, of

the party under consideration, which party is usually the community where one's lot is cast. Of this principle no proof can be offered; it is the final axiom, on which alone we can found all arguments of a moral kind. He that attempts to combat it, usually assumes it, unawares. An opponent is challenged, to say—(1) if he discards it wholly; (2) if he will act without any principle, or if there is any other that he would judge by; (3) if that other be really and distinctly separate from utility; (4) if he is inclined to set up his own approbation or disapprobation as the rule; and if so, whether he will force that upon others, or allow each person to do the same; (5) in the first case, if his principle is not despotical; (6) in the second case, whether it is not anarchical; (7) supposing him to add the plea of reflection, let him say if the basis of his reflections excludes utility; (8) if he means to compound the matter, and take utility for part; and if so, for what part; (9) why he goes so far, with Utility, and no farther; (10) on what other principle a meaning can be attached to the words '*motive* and *right*'.

In Chapter II., Bentham discusses the PRINCIPLES ADVERSE TO UTILITY. He conceives two opposing grounds. The first mode of opposition is direct and constant, as exemplified in *Asceticism*. A second mode may be only occasional, as in what he terms the principle of *Sympathy and Antipathy* (Liking and Disliking).

The principle of Asceticism means the approval of an action according to its tendency to diminish happiness, or obversely. Any one reprobating in any shape, pleasure as such, is a partisan of this principle. Asceticism has been adopted, on the one hand, by certain moralists, from the spur of philosophic pride; and on the other hand, by certain religionists, under the impulse of fear. It has been much less admitted into Legislation than into Morals. It may have originated, in the first instance, with hasty speculators, looking at the pains attending certain pleasures in the long run, and pushing

the abstinence from such pleasures (justified to a certain length on prudential grounds) so far as to fall in love with pain.

The other principle, Sympathy and Antipathy, means the unreasoning approbation or disapprobation of the individual mind, where fancy, caprice, accidental liking or disliking, may mix with a regard to human happiness. This is properly the negation of a principle. What we expect to find in a principle is some *external* consideration, warranting and guiding our sentiments of approbation and disapprobation; a basis that all are agreed upon.

It is under this head that Bentham rapidly surveys and dismisses all the current theories of Right and Wrong. They consist all of them, he says, in so many contrivances for avoiding an appeal to any external standard, and for requiring us to accept the author's sentiment or opinion as a reason for itself. The dictates of this principle, however, will often unintentionally coincide with utility; for what more natural ground of hatred to a practice can there be than its mischievous tendency? The things that men suffer by, they will be disposed to hate. Still, it is not constant in its operation; for people may ascribe the suffering to the wrong cause. The principle is most liable to err on the side of severity; differences of taste and of opinion are sufficient grounds for quarrel and resentment. It will err on the side of lenity, when a mischief is remote and imperceptible.

The author reserves a distinct handling for the Theological principle; alleging that it falls under one or other of the three foregoing. The Will of God must mean his will as revealed in the sacred writings, which, as the labours of divines testify, themselves stand in need of interpretation. What is meant, in fact, is the *presumptive* will of God; that is, what is presumed to be his will on account of its conformity with another principle. We are pretty sure that what is right is conformable to his will, but then this

requires us first to know what is right. The usual mode of knowing God's pleasure (he remarks) is to observe what is our own pleasure, and pronounce that to be his.

Chapter III.—ON FOUR SANCTIONS OR SOURCES OF PAIN AND PLEASURE whereby men are stimulated to act right; they are termed, *physical, political, moral, and religious*. These are the Sanctions of Right.

The *physical* sanction includes the pleasures and pains arising in the ordinary course of nature, unmodified by the will of any human being, or of any supernatural being.

The *political* sanction is what emanates from the sovereign or supreme ruling power of the state. The punishments of the Law come under this head.

The *moral* or *popular* sanction results from the action of the community, or of the individuals that each person comes in contact with, acting without any settled or concerted rule. It corresponds to public opinion, and extends in its operation beyond the sphere of the law.

The *religious* sanction proceeds from the immediate hand of a superior invisible being, either in the present, or in a future life.

The name Punishment is applicable only to the three last. The suffering that befalls a man in the course of nature is termed a *calamity*; if it happen through imprudence on his part, it may be styled a punishment issuing from the physical sanction.

Chapter IV. is the VALUE OF A LOT OF PLEASURE OR PAIN, HOW TO BE MEASURED. A pleasure or a pain is determined to be greater or less according to (1) its *intensity*, (2) its *duration*, (3) its *certainty* or *uncertainty*, (4) its *propinquity* or *remoteness*; all which are obvious distinctions. To these are to be added (5) its *fecundity*, or the chance it has of being followed by other sensations of its own kind; that is pleasures if it be pleasure, pains if it be pain. Finally (6) its *purity*, or the chance of its being unmixed with the opposite kind; a pure pleasure has no mixture of pain. All the six properties apply to the case of an individual person; where a

plurality are concerned, a new item is present, (7) the *extent*, or the number of persons affected. These properties exhaust the meaning of the terms expressing good and evil; on the one side, happiness, convenience, advantage, benefit, emolument, profit, &c.; and, on the other, unhappiness, inconvenience, disadvantage, loss, mischief, and the like.

Next follows, in Chapter V., a classified enumeration of PLEASURES AND PAINS. In a system undertaking to base all Moral and Political action on the production of happiness, such a classification is obviously required. The author professes to have grounded it on an analysis of human nature, which analysis itself, however, as being too metaphysical, he withholds.

The simple pleasures are:—1. The pleasures of sense. 2. The pleasures of wealth. 3. The pleasures of skill. 4. The pleasures of amity. 5. The pleasures of a good name. 6. The pleasures of power. 7. The pleasures of piety. 8. The pleasures of benevolence. 9. The pleasures of malevolence. 10. The pleasures of memory. 11. The pleasures of imagination. 12. The pleasures of expectation. 13. The pleasures dependent on association. 14. The pleasures of relief.

The simple pains are:—1. The pains of privation. 2. The pains of the senses. 3. The pains of awkwardness. 4. The pains of enmity. 5. The pains of an ill name. 6. The pains of piety. 7. The pains of benevolence. 8. The pains of malevolence. 9. The pains of the memory. 10. The pains of the imagination. 11. The pains of expectation. 12. The pains dependent on association.

We need not quote his detailed subdivision and illustration of these. At the close, he marks the important difference between *self-regarding* and *extra-regarding*; the last being those of benevolence and of malevolence.

In a long chapter (VI.), he dwells on CIRCUMSTANCES INFLUENCING SENSIBILITY. They are such as the following:—1. Health. 2. Strength. 3. Hardiness. 4. Bodily imperfection. 5. Quantity and

Quality of knowledge. 6. Strength of intellectual powers. 7. Firmness of mind. 8. Steadiness of mind. 9. Bent of inclination. 10. Moral sensibility. 11. Moral biases. 12. Religious Sensibility. 13. Religious biases. 14. Sympathetic Sensibility. 15. Sympathetic biases. 16. Antipathetic sensibility. 17. Antipathetic biases. 18. Insanity. 19. Habitual occupations. 20. Pecuniary circumstances. 21. Connexions in the way of sympathy. 22. Connexions in the way of antipathy. 23. Radical frame of body. 24. Radical frame of mind. 25. Sex. 26. Age. 27. Rank. 28. Education. 29. Climate. 30. Lineage. 31. Government. 32. Religious profession.

Chapter VII. proceeds to consider HUMAN ACTIONS IN GENERAL. Right and wrong, good and evil, merit and demerit belong to actions. These have to be divided and classified with a view to the ends of the moralist and the legislator. Throughout this, and two other long chapters, he discusses, as necessary in apportioning punishment, the *act* itself, the *circumstances*, the *intention*, and the *consciousness*—or the knowledge of the tendencies of the act. He introduces many subdivisions under each head, and makes a number of remarks of importance as regards penal legislation.

In Chapter X., he regards pleasures and pains in the aspect of MOTIVES. Since every pleasure and every pain, as a part of their nature, induce actions, they are often designated with reference to that circumstance. Hunger, thirst, lust, avarice, curiosity, ambition, &c., are names of this class. There is not a complete set of such designations; hence the use of the circumlocutions, *appetite for*, *love of*, *desire of*—sweet odours, sounds, sights, ease, reputation, &c.

Of great importance is the *Order of pre-eminence among motives*. Of all the varieties of motives, Good-will, or Benevolence, taken in a general view, is that whose dictates are surest to coincide with Utility. In this, however, it is taken for granted that the benevolence is not so confined in its sphere, as to be contradicted by a more extensive, or enlarged, benevolence.

After good-will, the motive that has the best chance of coinciding with Utility is Love of Reputation. The coincidence would be perfect, if men's

likings and dislikings were governed exclusively by the principle of Utility, and not, as they often are, by the hostile principles of Asceticism, and of Sympathy and Antipathy. Love of reputation is inferior as a motive to Good-will, in not governing the secret actions. These last are affected, only as they have a chance of becoming public, or as men contract a habit of looking to public approbation in all they do.

The desire of Amity, or of close personal affections, is placed next in order, as a motive. According as we extend the number of persons whose amity we desire, this prompting approximates to the love of reputation.

After these three motives, Bentham places the Dictates of Religion, which, however, are so various in their suggestions, that he can hardly speak of them in common. Were the Being, who is the object of religion, universally supposed to be as benevolent as he is supposed to be wise and powerful, and were the notions of his benevolence as correct as the notions of his wisdom and power, the dictates of religion would correspond, in all cases, with Utility. But while men call him benevolent in words, they seldom mean that he is so in reality. They do not mean that he is benevolent as man is conceived to be benevolent; they do not mean that he is benevolent in the only sense that benevolence has a meaning. The dictates of religion are in all countries intermixed, more or less, with dictates unconformable to utility, deduced from texts, well or ill interpreted, of the writings held for sacred by each sect. These dictates, however, gradually approach nearer to utility, because the dictates of the moral sanction do so.

Such are the four Social or Tutelary Motives, the antagonists of the Dissocial and Self-regarding motives, which include the remainder of the catalogue.

Chapter XI. is on DISPOSITIONS. A man is said to be of a mischievous disposition, when he is presumed to be apt to engage rather in actions of an *apparently* pernicious tendency, than in

such as are apparently beneficial. The author lays down certain Rules for indicating Disposition. Thus, 'The strength of the temptation being given, the mischievousness of the disposition manifested by the enterprise, is as the apparent mischievousness of the act,' and others to a like effect.

Chapter XII.—OF THE CONSEQUENCES OF A MISCHIEVOUS ACT, is meant as the concluding link of the whole previous chain of causes and effects. He defines the shapes that bad consequences may assume. The mischief may be *primary*, as when sustained by a definite number of individuals; or *secondary*, by extending over a multitude of unassignable individuals. The evil in this last case may be either actual pain, or danger, which is the chance of pain. Thus, a successful robbery affects, primarily, a number of assignable persons, and secondarily, all persons in a like situation of risk.

He then proceeds to the theory of PUNISHMENT (XIII., XIV., XV.), to the classification of OFFENCES (XVI.), and to the Limits of the Penal Branch of Jurisprudence (XVII.). The two first subjects—Punishments and Offences—are interesting chiefly in regard to Legislation. They have also a bearing on Morals; inasmuch as society, in its private administration of punishments, ought, no less than the Legislator, to be guided by sound scientific principles.

As respects Punishment, he marks off (1) cases where it is *groundless*; (2) where it is *inefficacious*, as in Infancy, Insanity, Intoxication, &c.; (3) cases where it is *unprofitable*; and (4) cases where it is *needless*. It is under this last herd that he excludes from punishment the dissemination of what may be deemed pernicious principles. Punishment is needless here, because the end can be served by reply and exposure.

The first part of Chapter XVII. is entitled the 'Limits between Private Ethics and the Art of Legislation;' and a short account of it will complete the view of the author's Ethical Theory.

Ethics at large, is defined the art of directing men's actions to the production of the greatest possible quantity of happiness, on the part of those whose interest is in view, Now, these actions may be a man's own actions, in which case they are styled the *art of self-government*, or *private*

ethics. Or they may be the actions of other agents, namely, (1) Other human beings, and (2) Other Animals, whose interests Bentham considers to have been disgracefully overlooked by jurists as well as by mankind generally.

In so far as a man's happiness depends on his own conduct, he may be said to *owe a duty to himself*; the quality manifested in discharge of this branch of duty (if duty it is to be called) is PRUDENCE. In so far as he affects by his conduct the interests of those about him, he is under *a duty to others*. The happiness of others may be consulted in two ways. First, negatively, by forbearing to diminish it; this is called PROBITY. Secondly, in a positive way, by studying to increase it; which is expressed by BENEFICENCE.

But now the question occurs, how is it that under Private Ethics (or apart from legislation and religion) a man can be under a motive to consult other people's happiness? By what obligations can he be bound to *probity* and *beneficence*? A man can have no *adequate* motives for consulting any interests but his own. Still there are motives for making us consult the happiness of others, namely, the purely social motive of Sympathy or Benevolence, and the semi-social motives of Love of Amity and Love of Reputation. [He does not say here whether Sympathy is a motive grounded on the pleasure it brings, or a motive irrespective of the pleasure; although from other places we may infer that he inclines to the first view.]

Private Ethics and Legislation can have but the same end, happiness. Their means, the actions prompted, must be nearly the same. Still they are different. There is no case where a man ought not to be guided by his own, or his fellow-creatures', happiness; but there are many cases where the legislature should not compel a man to perform such actions. The reason is that the Legislature works solely by Punishment (reward is seldom applied, and is not properly an act of legislation). Now, there are cases where the

punishment of the political sanction ought not to be used; and if, in any of these cases, there is a propriety of using the punishments of private ethics (the moral or social sanction), this circumstance would indicate the line of division.

First, then, as to the cases where punishment would be *groundless*. In such cases, neither legislation nor private ethics should interfere.

Secondly. As to cases where it would be *inefficacious*, where punishment has no deterring motive power,—as in Infancy, Insanity, overwhelming danger, &c.,—the public and the private sanctions are also alike excluded.

Thirdly. It is in the cases where Legislative punishment would be *unprofitable*, that we have the great field of Private Ethics. Punishment is unprofitable in two ways. First, when the danger of detection is so small, that nothing but enormous severity, on detection, would be of avail, as in the illicit commerce of the sexes, which has generally gone unpunished by law. Secondly, when there is danger of involving the innocent with the guilty, from inability to define the crime in precise language. Hence it is that rude behaviour, treachery, and ingratitude are not punished by law; and that in countries where the voice of the people controls the hand of the legislature, there is a great dread of making *defamation*, especially of the government, an offence at law.

Private Ethics is not liable to the same difficulties as Legislation in dealing with such offences.

Of the three departments of Moral Duty—Prudence, Probity, and Beneficence—the one that least requires and admits of being enforced by legislative punishment is the first—*Prudence*. It can only be through some defect of the understanding, if people are wanting in duty to themselves. Now, although a man may know little of himself, is it certain the legislator

knows more? Would it be possible to extirpate drunkenness or fornication by legal punishment? All that can be done in this field is to subject the offences, in cases of notoriety, to a slight censure, so as to cover them with a slight shade of artificial disrepute, and thus give strength and influence to the moral sanction.

Legislators have, in general, carried their interference too far in this class of duties; and the mischief has been most conspicuous in religion. Men, it is supposed, are liable to errors of judgment; and for these it is the determination of a Being of infinite benevolence to punish them with an infinity of torments. The legislator, having by his side men perfectly enlightened, unfettered, and unbiassed, presumes that he has attained by their means the exact truth; and so, when he sees his people ready to plunge headlong into an abyss of fire, shall he not stretch forth his hand to save them?

The second class of duties—the rules of *Probity*, stand most in need of the assistance of the legislator. There are few cases where it *would* be expedient to punish a man for hurting himself, and few where it *would not* be expedient to punish a man for hurting his neighbour. As regards offences against property, private ethics presupposes legislation, which alone can determine what things are to be regarded as each man's property. If private ethics takes a different view from the legislature, it must of course act on its own views.

The third class of duties—*Beneficence*—must be abandoned to the jurisdiction of private ethics. In many cases the beneficial quality of an act depends upon the disposition of the agent, or the possession by him of the extra-regarding motives—sympathy, amity, and reputation; whereas political action can work only through the self-regarding motives. In a word these duties must be *free* or *voluntary*. Still, the limits of law on this head

might be somewhat extended; in particular, where a man's person is in danger, it might be made the duty of every one to save him from mischief, no less than to abstain from bringing it on him.

To resume the Ethics of Bentham. I.—The Standard or End of Morality is the production of Happiness, or Utility.

Bentham is thus at one in his first principle with Hume and with Paley; his peculiarity is to make it fruitful in numerous applications both to legislation and to morals. He carries out the principle with an unflinching rigour, and a logical force peculiarly his own.

II.—His Psychological Analysis is also studied and thorough-going.

He is the first person to provide a classification of pleasures and pains, as an indispensable preliminary alike to morals and to legislation. The ethical applications of these are of less importance than the legislative; they have a direct and practical bearing upon the theory of Punishment.

He lays down, as the constituents of the Moral Faculty, Good-will or Benevolence, the love of Amity, the love of Reputation, and the dictates of Religion—with a view to the Happiness of others; and Prudence—with a view to our own happiness. He gives no special account of the acquired sentiment of Obligation or Authority—the characteristic of Conscience, as distinguished from other impulses having a tendency to the good of others or of self. And yet it is the peculiarity of his system to identify morality with law; so that there is only one step to connecting conscience with our education under the different sanctions—legal and ethical.

He would of course give a large place to the Intellect or Reason in making up the Moral Faculty, seeing that the consequences of actions have

to be estimated or judged; but he would regard this as merely co-operating with our sensibilities to pleasure and pain.

The Disinterested Sentiment is not regarded by Bentham. as arising from any disposition to pure self-sacrifice. He recognizes *Pleasures* of Benevolence and *Pains* of Benevolence; thus constituting a purely interested motive for doing good to others. He describes certain pleasures of Imagination or Sympathy arising through Association—the idea of plenty, the idea of the happiness of animals, the idea of health, the idea of gratitude. Under the head of Circumstances influencing Sensibility, he adverts to Sympathetic Sensibility, as being the propensity to derive *pleasure from the happiness, and pain from the unhappiness, of other sensitive beings*. It cannot but be admitted, he says, that the only interest that a man at all times, and on all occasions, is sure to find *adequate* motives for consulting, is his own. He has no metaphysics of the Will. He uses the terms *free* and *voluntary* only with reference to spontaneous beneficence, as opposed to the compulsion of the law.

III.—As regards Happiness, or the Summum Bonum, he presents his scientific classification of Pleasures and Pains, without, however, indicating any plan of life, for attaining the one and avoiding the other in the best manner. He makes no distinction among pleasures and pains excepting what strictly concerns their value as such—intensity, duration, certainty, and nearness. He makes happiness to mean only the presence of pleasure and the absence of pain. The renunciation of pleasure for any other motive than to procure a greater pleasure, or avoid a greater pain, he, disapprovingly, terms asceticism.

IV.—It being the essence of his system to consider Ethics as a Code of Laws directed by Utility, and he being himself a law reformer on the greatest scale, we might expect from him suggestions for the improvement

of Ethics, as well as for Legislation and Jurisprudence. His inclusion of the interests of the lower animals has been mentioned. He also contends for the partly legislative and partly ethical innovation of Freedom of Divorce.

The inducements to morality are the motives assigned as working in its favour.

V.—The connexions of Ethics with Politics, the points of agreement and the points of difference of the two departments, are signified with unprecedented care and precision (Chap. XVII.)

VI.—As regards the connexions with Theology, he gives no uncertain sound. It is on this point that he stands in marked contrast to Paley, who also professes Utility as his ethical foundation.

He recognizes religion as furnishing one of the Sanctions of morality, although often perverted into the enemy of utility. He considers that the state may regard as offences any acts that tend to diminish or misapply the influence of religion as a motive to civil obedience.

While Paley makes a conjoined reference to Scripture and to Utility in ascertaining moral rules, Bentham insists on Utility alone as the final appeal. He does not doubt that if we had a clear unambiguous statement of the divine will, we should have a revelation of what is for human happiness; but he distrusts all interpretations of scripture, unless they coincide with a perfectly independent scientific investigation of the consequences of actions.

SIR JAMES MACKINTOSH. [1765-1832.]

In the 'Dissertation on the progress of Ethical Philosophy chiefly during the Seventeenth and Eighteenth Centuries,' Mackintosh advocates a distinct

Ethical theory. His views and arguments occur partly in the course of his criticism of the other moralists, and partly in his concluding General Remarks (Section VII.).

In Section I., entitled PRELIMINARY OBSERVATIONS, he remarks on the universality of the distinction between Right and Wrong. On no subject do men, in all ages, coincide on so many points as on the general rules of conduct, and the estimable qualities of character. Even the grossest deviations may be explained by ignorance of facts, by errors with respect to the consequences of actions, or by inconsistency with admitted principles. In tribes where new-born infants are exposed, the abandonment of parents is condemned; the betrayal and murder of strangers is condemned by the very rules of faith and humanity, acknowledged in the case of countrymen.

He complains that, in the enquiry as to the foundation of morals, the two distinct questions—as to the Standard and the Faculty—have seldom been fully discriminated. Thus, Paley opposes Utility to a Moral Sense, not perceiving that the two terms relate to different subjects; and Bentham repeats the mistake. It is possible to represent Utility as the *criterion* of Right, and a Moral Sense as the *faculty*. In another place, he remarks that the schoolmen failed to draw the distinction.

In Section V., entitled 'Controversies concerning the Moral Faculty and the Social Affections,' and including the Ethical theories coming between Hobbes and Butler, namely, Cumberland, Cudworth, Clarke, &c., he gives his objections to the scheme that founds moral distinctions solely on the Reason. Reason, as such, can never be a motive to action; an argument to dissuade a man from drunkenness must appeal to the pains of ill-health, poverty, and infamy, that is, to Feelings. The influence of Reason is indirect; it is merely a channel whereby the objects of desire are brought into view, so as to operate on the Will.

The abused extension of the term Reason to the moral faculties, he ascribes to the obvious importance of Reason in choosing the means of action, as well as in balancing the ends, during which operation the feelings are suspended, delayed, and poised in a way favourable to our lasting interests. Hence the antithesis of Reason and Passion.

In remarking upon Leibnitz's view of Disinterested Sentiment, and the coincidence of Virtue with Happiness, he sketches his own opinion, which is that although every virtuous *act* may not lead to the greater happiness of the agent, yet the *disposition* to virtuous acts, in its intrinsic pleasures, far outweighs all the pains of self-sacrifice that it can ever occasion. 'The whole sagacity and ingenuity of the world may be fairly challenged to point out a case in which virtuous dispositions, habits, and feelings are not conducive in the highest degree to the happiness of the individual; or to maintain that he is not the happiest, whose moral sentiments and affections are such as to prevent the possibility of any unlawful advantage being presented to his mind.'

Section VI. is entitled 'Foundations of a more Just Theory of Ethics,' and embraces a review of all the Ethical writers, from Butler downwards. The most palpable defect in Butler's scheme, is that it affords no answer to the question, 'What is the distinguishing quality of right actions?' in other words, What is the Standard? There is a vicious circle in answering that they are commanded by Conscience, for Conscience itself can be no otherwise defined than as the faculty that approves and commands right actions. Still, he gives warm commendation to Butler generally; in connexion with him he takes occasion to give some farther hints as to his own opinions. Two positions are here advanced: 1st, The moral sentiments, in their mature state, are a class of feelings with no other objects than *the dispositions to voluntary actions, and the actions flowing from these dispositions*. We approve some dispositions and actions, and disapprove others; we desire to cultivate them, and we aim at them for *something in themselves*. This position receives light from the doctrine above quoted as to the supreme happiness of virtuous dispositions. His second position is that Conscience is *an acquired principle*; which he repeats and unfolds in subsequent places.

He finds fault with Hume for ascribing Virtue to qualities of the Understanding, and considers that this is to confound admiration with moral approbation. Hume's general Ethical doctrine, that Utility is a uniform

ground of moral distinction, he says can never be impugned until some example be produced of a virtue generally pernicious, or a vice generally beneficial. But as to the theory of moral approbation, or the nature of the Faculty, he considers that Hume's doctrine of Benevolence (or, still better, Sympathy) does not account for our approbation of temperance and fortitude, nor for the *supremacy* of the Moral Faculty over all other motives.

He objects to the theory of Adam Smith, that no allowance is made in it for the transfer of our feelings, and the disappearing of the original reference from the view. Granting that our approbation began in sympathy, as Smith says, certain it is, that the adult man approves actions and dispositions as right, while he is distinctly aware that no process of sympathy intervenes between the approval and its object. He repeats, against Smith, the criticism on Hume, that the sympathies have no *imperative* character of supremacy. He further remarks that the reference, in our actions, to the point of view of the spectator, is rather an expedient for preserving our impartiality than a fundamental principle of Ethics. It nearly coincides with the Christian precept of doing unto others as we would they should do unto us,—an admirable practical maxim, but, as Leibnitz has said truly, intended only as a correction of self-partiality. Lastly, he objects to Smith, that his system renders all morality relative to the pleasure of our coinciding in feeling with others, which is merely to decide on the Faculty, without considering the Standard. Smith shrinks from Utility as a standard, or ascribes its power over our feelings to our sense of the adaptation of means to ends.

He commends Smith for grounding Benevolence on Sympathy, whereas Butler, Hutcheson, and Hume had grounded Sympathy on Benevolence.

It is in reviewing Hartley, whose distinction it was to open up the wide capabilities of the principle of Association, that Mackintosh develops at

greatest length his theory of the derived nature of Conscience.

Adverting to the usual example of the love of money, he remarks that the benevolent man might begin with an interested affection, but might end with a disinterested delight in doing good. Self-love, or the principle of permanent well-being, is gradually formed from the separate appetites, and is at last pursued without having them specially in view. So Sympathy may perhaps be the transfer, first, of our own personal feelings to other beings, and next, of their feelings to ourselves, thereby engendering the social affections. It is an ancient and obstinate error of philosophers to regard these two principles—Self-love and Sympathy—as the *source* of the impelling passions and affections, instead of being the last results of them.

The chief elementary feelings that go to constitute the moral sentiments appear to be Gratitude, Pity, Resentment, and Shame. To take the example of Gratitude. Acts of beneficence to ourselves give us pleasure; we associate this pleasure with the benefactor, so as to regard him with a feeling of complacency; and when we view other beneficent beings and acts there is awakened within us our own agreeable experience. The process is seen in the child, who contracts towards the nurse or mother all the feelings of complacency arising from repeated pleasures, and extends these by similarity to other resembling persons. As soon as complacency takes the form of *action*, it becomes (according to the author's theory, connecting conscience with will), a part of the Conscience. So much for the development of Gratitude. Next as to Pity. The likeness of the outward signs of emotion makes us transfer to others our own feelings, and thereby becomes, even more than gratitude, a source of benevolence; being one of the first motives to impart the benefits connected with affection. In our sympathy with the sufferer, we cannot but approve the actions that relieve suffering, and the dispositions that prompt them. We also enter into his Resentment, or anger towards the causes of pain, and the actions and

dispositions corresponding; and this sympathetic anger is at length detached from special cases and extended to all wrong-doers; and is the root of the most indispensable compound of our moral faculties, the 'Sense of Justice.'

To these internal growths, from Gratitude, Pity, and Resentment, must be added the education by means of well-framed penal laws, which are the lasting declaration of the moral indignation of mankind. These laws may be obeyed as mere compulsory duties; but with the generous sentiments concurring, men may rise above duty to *virtue*, and may contract that excellence of nature whence acts of beneficence flow of their own accord.

He next explains the growth of Remorse, as another element of the Moral Sense. The abhorrence that we feel for bad actions is extended to the agent; and, in spite of certain obstacles to its full manifestation, that abhorrence is prompted when the agent is self.

The theory of derivation is bound to account for the fact, recognized in the language of mankind, that the Moral Faculty is ONE. The principle of association would account for the fusion of many different sentiments into one product, wherein the component parts would cease to be discerned; but this is not enough. Why do these particular sentiments and no others coalesce in the total—Conscience. The answer is what was formerly given with reference to Butler; namely, while all other feelings relate to outward objects, the feelings brought together in conscience, contemplate exclusively *the dispositions and actions of voluntary agents*. Conscience is thus an acquired faculty, but one that is *universally and necessarily* acquired.

The derivation is farther exemplified by a comparison with the feelings of Taste. These may have an original reference to fitness—as in the beauty of a horse—but they do not attain their proper character until the consideration of fitness disappears. So far they resemble the moral faculty.

They differ from it, however, in this, that taste ends in passive contemplation or quiescent delight; conscience looks solely to the acts and dispositions of voluntary agents. This is the author's favourite way of expressing what is otherwise called the authority and supremacy of conscience.

To sum up:—the principal constituents of the moral sense are Gratitude, Sympathy (or Pity), Resentment, and Shame; the secondary and auxiliary causes are Education, Imitation, General Opinion, Laws and Government.

In criticising Paley, he illustrates forcibly the position, that Religion must pre-suppose morality.

His criticism of Bentham gives him an opportunity of remarking on the modes of carrying into effect the principle of Utility as the Standard. He repeats his favourite doctrine of the inherent pleasures of a virtuous disposition, as the grand circumstance rendering virtue profitable and vice unprofitable. He even uses the Platonic figure, and compares vice to mental distemper. It is his complaint against Bentham and the later supporters of Utility, that they have *misplaced* the application of the principle, and have encouraged the too frequent appeal to calculation in the details of conduct. Hence arise sophistical evasions of moral rules; men will slide from general to particular consequences; apply the test of utility to actions and not to *dispositions*; and, in short, take too much upon themselves in settling questions of moral right and wrong. [He might have remarked that the power of perverting the standard to individual interests is not confined to the followers of Utility.] He introduces the saying attributed to Andrew Fletcher, 'that he would lose his life to *serve* his country, but would not do a base thing to *save* it.'

He farther remarks on the tendency of Bentham and his followers to treat Ethics too *juridically*. He would probably admit that Ethics is strictly speaking a code of laws, but draws the line between it and the juridical code, by the distinction of dispositions and actions. We may have to approve the author of an injurious action, because it is well-meant; the law must nevertheless punish it. Herein Ethics has its alliance with Religion, which looks at the disposition or the heart.

He is disappointed at finding that Dugald Stewart, who made applications of the law of association and appreciated its powers, held back from, and discountenanced, the attempt of Hartley to resolve the Moral Sense, styling it 'an ingenious refinement on the Selfish system,' and representing those opposed to himself in Ethics as deriving the affections from 'self-love.' He repeats that the derivation theory affirms the disinterestedness of human actions as strongly as Butler himself; while it gets over the objection from the multiplication of original principles; and ascribes the result to the operation of a real agent.

In replying to Brown's refusal to accept the derivation of Conscience, on the ground that the process belongs to a time beyond remembrance, he affirms it to be a sufficient theory, if the supposed action *resembles* what we know to be the operation of the principle where we have direct experience of it.

His concluding Section, VII., entitled General Remarks, gives some farther explanations of his characteristic views. He takes up the principle of Utility, at the point where Brown bogged at it; quoting Brown's concession, that Utility and virtue are so related, that there is *perhaps* no action generally felt to be virtuous that is not beneficial, and that every case of benefit willingly done excites approbation. He strikes out Brown's word 'perhaps,' as making the affirmation either conjectural or useless; and

contends that the two facts,—morality and the general benefit,—being co-extensive, should be reciprocally tests of each other. He qualifies, as usual, by not allowing utility to be, on all occasions, the immediate incentive of actions. He holds, however, that the main doctrine is an essential corollary from the Divine Benevolence.

He then replies specifically to the question, 'Why is utility not to be the sole end present to the mind of the virtuous agent?' The answer is found in the limits of man's faculties. Every man is not always able, on the spur of the moment, to calculate all the consequences of our actions. But it is not to be concluded from this, that the calculation of consequences is impracticable in moral subjects. To calculate the general tendency of every sort of human action is, he contends, a possible, easy, and common operation. The general good effects of temperance, prudence, fortitude, justice, benevolence, gratitude, veracity, fidelity, domestic and patriotic affections, may be pronounced with as little error, as the best founded maxims of the ordinary business of life.

He vindicates the rules of sexual morality on the grounds of benevolence.

He then discusses the question, (on which he had charged Hume with mistake), 'Why is approbation confined to voluntary acts?' He thinks it but a partial solution to say that approbation and disapprobation are wasted on what is not in the power of the will. The full solution he considers to be found in the mode of derivation of the moral sentiment; which, accordingly, he re-discusses at some length. He produces the analogies of chemistry to show that compounds may be totally different from their elements. He insists on the fact that a derived pleasure is not the less a pleasure; it may even survive the primary pleasure. Self-love (improperly so called) is intelligible if its origin be referred to Association, but not if it be considered as prior to the appetites and passions that furnish its materials. And as the

pleasure derived from low objects may be transferred to the most pure, so Disinterestedness may originate with self, and yet become as entirely detached from that origin as if the two had never been connected.

He then repeats his doctrine, that these social or disinterested sentiments prompt the will as the means of their gratification. Hence, by a farther transfer of association, the voluntary acts share in the delight felt in the affections that determine them. We then desire to experience *beneficent volitions*, and to cultivate the dispositions to these. Such dispositions are at last desired for their own sake; and, when so desired, constitute the Moral Sense, Conscience, or the Moral Sentiment, in its consummated form. Thus, by a fourth or fifth stage of derivation from the original pleasures and pains of our constitution, we arrive at this highly complex product, called our moral nature.

Nor is this all. We must not look at the side of indignation to the wrong-doer. We are angry at those who disappoint our wish for the happiness of others; we make their resentment our own. We hence approve of the actions and dispositions for punishing such offenders; while we so far sympathize with the culprit as to disapprove of excess of punishment. Such moderated anger is the sense of Justice, and is a new element of Conscience. Of all the virtues, this is the one most *directly* aided by a conviction of general interest or utility. All laws profess it as their end. Hence the importance of good criminal laws to the moral education of mankind.

Among contributory streams to the moral faculty, he enumerates courage, energy, and decision, properly directed.

He recognizes 'duties to ourselves,' although condemning the expression as absurd. Intemperance, improvidence, timidity are morally wrong. Still, as in other cases, a man is not truly virtuous on such points, till he loves them for their own sake, and even performs them without an effort. These

prudential qualities having an influence on the will, resemble in that the other constituents of Conscience. As a final result, all those sentiments whose object is a state of the will become intimately and inseparably blended in the unity of Conscience, the arbiter and judge of human actions, the lawful authority over every motive to conduct.

In this grand coalition of the public and the private feelings, he sees a decisive illustration of the reference of moral sentiments to the Will. He farther recognizes in it a solution of the great problem of the relation of virtue to private interest. Qualities useful to ourselves are raised to the rank of virtues; and qualities useful to others are converted into pleasures. In moral reasonings, we are enabled to bring home virtuous inducements by the medium of self-interest; we can assure a man that by cultivating the disposition towards other men's happiness he gains a source of happiness to himself.

The question, Why we do not morally approve involuntary actions, is now answered. Conscience is associated exclusively with the dispositions and actions of voluntary agents. Conscience and Will are co-extensive.

A difficulty remains. 'If moral approbation involve no perception of beneficial tendency, how do we make out the coincidence of the two?' It might seem that the foundation of morals is thus made to rest on a coincidence that is mysterious and fantastic. According to the author, the conclusive answer is this. Although Conscience rarely contemplates anything so distant as the welfare of all sentient beings, yet in detail it obviously points to the production of happiness. The social affections all promote happiness. Every one must observe the tendency of justice to the welfare of society. The angry passions, as ministers of morality, remove hindrances to human welfare. The private desires have respect to our own happiness. Every element of conscience has thus some portion of happiness

for its object. All the affections contribute to the general well-being, although it is not necessary, nor would it be fit, that the agent should be distracted by the contemplation of that vast and remote object.

To sum up Mackintosh:—

I.—On the Standard, he pronounces for Utility, with certain modifications and explanations. The Utility is the remote and final justification of all actions accounted right, but not the immediate motive in the mind of the agent. [It may justly be feared, that, by placing so much stress on the delights attendant on virtuous action, he gives an opening for the admission of *sentiment* into the consideration of Utility.]

II.—In the Psychology of Ethics, he regards the Conscience as a derived or generated faculty, the result of a series of associations. He assigns the primary feelings that enter into it, and traces the different stages of the growth. The distinctive feature of Conscience is its close relation to the Will.

He does not consider the problem of Liberty and Necessity.

He makes Disinterested Sentiment a secondary or derived feeling—a stage on the road to Conscience. While maintaining strongly the disinterested character of the sentiment, he considers that it may be fully accounted for by derivation from our primitive self-regarding feelings, and denies, as against Stewart and Brown, that this gives it a selfish character.

He carries the process of associative growth a step farther, and maintains that we re-convert disinterestedness into a lofty delight—the delight in goodness for its own sake; to attain this characteristic is the highest mark of a virtuous character.

III.—His *Summum Bonum*, or Theory of Happiness, is contained in his much iterated doctrine of the deliciousness of virtuous conduct, by which he proposes to effect the reconciliation of our own good with the good of others—prudence with virtue. Virtue is 'an inward fountain of pure delight;' the pleasure of benevolence, 'if it could become lasting and intense, would convert the heart into a heaven;' they alone are happy, or truly virtuous, that do not need the motive of a regard to outward consequences.

His chief Ethical precursor in this vein is Shaftesbury; but he is easily able to produce from Theologians abundant iterations of it.

IV.—He has no special views as to the Moral Code. With reference to the inducements to virtue, he thinks he has a powerful lever in the delights that the virtuous disposition confers on its owner.

V.—His theory of the connexion of Ethics and Politics is stated in his account of Bentham, whom he charges with making morality too judicial.

VI.—The relations of Morality to Religion are a matter of frequent and special consideration in Mackintosh.

JAMES MILL. [1783-1836.]

The work of James Mill, entitled the '*Analysis of the Human Mind*,' is distinguished, in the first place, by the studied precision of its definitions of all leading terms, giving it a permanent value as a logical discipline; and in the second place, by the successful carrying out of the principle of Association in explaining the powers of the mind. The author endeavours to show that the moral feelings are a complex product or growth, of which the ultimate constituents are our pleasurable and painful sensations. We shall present a brief abstract of the course of his exposition, as given in Chapters XVII.—XXIII. of the *Analysis*.

The pleasurable and painful sensations being assumed, it is important to take notice of their Causes, both immediate and remote, by whose means they can be secured or avoided. We contract a habit of passing rapidly from every sensation to its procuring cause; and, as in the typical case of money, these causes are apt to rank higher in importance, to take a greater hold on the mind, than the sensations themselves. The mind is not much interested in attending to the sensation; that can provide for itself. The mind is deeply interested in attending to the cause.

The author next (XIX.) considers the Ideas of the pleasurable sensations, and of the causes of them. The Idea of a pain is not the same as the pain; it is a complex state, containing, no doubt, an element of pain; and the name for it is Aversion. So the name for an idea of pleasure is Desire. Now, these states extend to the causes of pains and pleasures, though in other respects indifferent; we have an aversion for a certain drug, but there is in this a transition highly illustrative of the force of the associating principle; our real aversion being to a bitter sensation, and not to the visible appearance of the drug.

Alluding (XX.) to the important difference between past and future time in our ideas of pleasure and pain, he defines Hope and Fear as the contemplation of a pleasurable or of a painful sensation, as future, but not certain.

When the immediate causes of pleasurable and painful sensations are viewed as past or future, we have a new series of states. In the past, they are called Love and Hatred, or Aversion; in the future, the idea of a pleasure, as certain in its arrival, is Joy—as probable, Hope; the idea of future pain (certain) is not marked otherwise than by the names Hatred, Aversion, Horror; the idea of the pain as probable is some form of dread.

The *remote* causes of our pleasures and pains are more interesting than the immediate causes. The reason is their wide command. Thus, Wealth, Power, and Dignity are causes of a great range of pleasures: Poverty, Impotence, and Contemptibility, of a wide range of pains. For one thing, the first are the means of procuring the services of our fellow-creatures; this fact is of the highest consequence in morals, as showing how deeply our happiness is entwined with the actions of other beings. The author illustrates at length the influence of these remote and comprehensive agencies; and as it is an influence entirely the result of association, it attests the magnitude of that power of the mind.

But our fellow-creatures are the subjects of affections, not merely as the instrumentality set in motion by Wealth, Power, and Dignity, but in their proper personality. This leads the author to the consideration of the pleasurable affections of Friendship, Kindness, Family, Country, Party, Mankind. He resolves them all into associations with our primitive pleasures. Thus, to take the example of Kindness, which will show how he deals with the disinterested affection;—The idea of a man enjoying a train of pleasures, or happiness, is felt by everybody to be a pleasurable idea; this can arise from nothing but the association of our own pleasures with the idea of his pleasures. The pleasurable association composed of the ideas of a man and of his pleasures, and the painful association composed of the idea of a man and of his pains, are both Affections included under one name Kindness; although in the second case it has the more specific name Compassion.

Under the other heads, the author's elucidation is fuller, but his principle is the same.

He next goes on (XXII.) to MOTIVES. When the idea of a Pleasure is associated with an action of our own as the cause, that peculiar state of

mind is generated, called a motive. The idea of the pleasure, without the idea of an action for gaining it, does not amount to a motive. Every pleasure may become a motive, but every motive does not end in action, because there may be counter-motives; and the strength attained by motives depends greatly on education. The facility of being acted on by motives of a particular kind is a DISPOSITION. We have, in connexion with all our leading pleasures and pains, names indicating their motive efficacy. Gluttony is both motive and disposition; so Lust and Drunkenness; with the added sense of reprobation in all the three. Friendship is a name for Affection, Motive, and Disposition.

In Chapter XXIII., the author makes the application of his principles to Ethics. The actions emanating from ourselves, combined with those emanating from our fellow-creatures, exceed all other Causes of our Pleasures and Pains. Consequently such actions are objects of intense affections or regards.

The actions whence advantages accrue are classed under the four titles, Prudence, Fortitude, Justice, Benevolence. The two first—Prudence and Fortitude [in fact, Prudence]—express acts useful to ourselves in the first instance, to others in the second instance. Justice and Benevolence express acts useful to others in the first instance, to ourselves in the second instance. We have two sets of association with all these acts, one set with them as our own, another set with them as other people's. With Prudence (and Fortitude) as our own acts, we associate good to ourselves, either in the shape of positive pleasure, or as warding off pain. Thus Labour is raised to importance by numerous associations of both classes. Farther, Prudence, involving the foresight of a train of consequences, requires a large measure of knowledge of things animate and inanimate. Courage is defined by the author, incurring the chance of Evil, that is danger, for the sake of a preponderant good; which, too, stands in need of knowledge. Now, when

the ideas of acts of Prudence and acts of Courage have been associated sufficiently often with beneficial consequences, they become pleasurable ideas, or Affections, and they have also, from the nature of the case, the character of Motives. In short, there is nothing in prudential conduct that may not be explained by a series of associations, grounded on our pleasurable and painful sensations, on the ideas of them, and on the ideas of their causes.

The real difficulty attaches to Justice and to Beneficence.

As to Justice. Men, in society, have found it essential for mutual benefit, that the powers of Individuals over the general causes of good should be fixed by certain rules, that is, Laws. Acts done in accordance with these rules are Just Acts; although, when duly considered, they are seen to include the main fact of beneficence, the good of others. To the performance of a certain class of just acts, our Fellow-creatures annex penalties; these, therefore, are determined partly by Prudence; others remain to be performed voluntarily, and for them the motive is Beneficence.

What then is the source of the motives towards Beneficence? How do the ideas of acts, having the good of our fellows for their end, become Affections and Motives? In the first place, we have associations of pleasure with all the pleasurable feelings of fellow-creatures, and hence, with such acts of ours as yield them pleasure. In the second place, those are the acts for procuring to ourselves the favourable Disposition of our Fellow-men, so that we have farther associations of the pleasures flowing from such favourable dispositions. Thus, by the union of two sets of influences—two streams of association—the Idea of our beneficent acts becomes a pleasurable idea, that is, an Affection, and, being connected with actions of ours, is also a Motive. Such is the genesis of Beneficent or Disinterested impulses.

We have next a class of associations with other men's performance of the several virtues. The Prudence and the Fortitude of others are directly beneficial to them, and indirectly beneficial to us; and with both these consequences we have necessarily agreeable associations. The Justice and the Beneficence of other men are so directly beneficial to the objects of them, that it is impossible for us not to have pleasurable associations with acts of Justice and Beneficence, first as concerns ourselves in particular, and next as concerns the acts generally. Hence, therefore, the rise of Affections and Motives in favour of these two virtues. As there is nothing so deeply interesting to me as that the acts of men, regarding myself immediately, should be acts of Justice and Beneficence, and the acts regarding themselves immediately, acts of Prudence and Fortitude; it follows that I have an interest in all such acts of my own as operate to cause those acts in others. By similar acts of our own, by the manifestation of dispositions to perform those acts, we obtain their reciprocal performance by others. There is thus a highly complex, concurring stimulus to acts of virtue,—a large aggregate of influences of association, the power at bottom being still our own pleasurable and painful sensations. We must add the ascription of Praise, an influence remarkable for its wide propagation and great efficacy over men's minds, and no less remarkable as a proof of the range of the associating principle, especially in its character of Fame, which, in the case of future fame, is a purely ideal or associated delight. Equally, if not more, striking are the illustrations from Dispraise. The associations of Disgrace, even when not sufficient to restrain the performance of acts abhorred by mankind, are able to produce the horrors of Remorse, the most intense of human sufferings. The love of praise leads by one step to the love of Praiseworthiness; the dread of blame, to the dread of Blameworthiness.

Of these various Motives, the most constant in operation, and the most in use in moral training, are Praise and Blame. It is the sensibility to Praise and Blame—the joyful feelings associated with the one, and the dread

associated with the other—that gives effect to POPULAR OPINION, or the POPULAR SANCTION, and, with reference to men generally, the MORAL SANCTION.

The other motives to virtue, namely, the association of our own acts of Justice and Beneficence, as cause, with other men's as effects, are subject to strong counteraction, for we can rarely perform such acts without sacrifice to ourselves. Still, there is in all men a certain surplus of motive from this cause, just as there is a surplus from the association of acts of ours, hostile to other men, with a return of hostility on their part.

The best names for the aggregate Affection, Motive, and Disposition in this important region of conduct, are *Moral Approbation* and *Disapprobation*. The terms Moral Sense, Sense of Right and Wrong, Love of Virtue and Hatred of Vice, are not equally appropriate. Virtue and Morality are other synonyms.

In the work entitled, 'A Fragment on Mackintosh,' there are afforded farther illustrations of the author's derivation of the Moral Sentiment, together with an exposition and defence of Utility as the standard, in which his views are substantially at one with Bentham. Two or three references will be sufficient.

In the statement of the questions in dispute in Morals, he objects to the words 'test' and 'criterion,' as expressing the standard. He considers it a mistake to designate as a 'test' what is the thing itself; the test of Morality is Morality. Properly, the thing testing is one thing; the thing tested another thing. The same objection would apply to the use of the word Standard; so that the only form of the first question of Ethics would be, What is morality? What does it consist in? [The remark is just, but somewhat hypercritical. The illustration from Chemical testing is not true in fact; the test of gold is some essential attribute of gold, as its weight. And when we

wish to determine as to a certain act, whether it is a moral act, we compare it with what we deem the essential quality of moral acts—Utility, our Moral Instinct, &c.—and the operation is not improperly called testing the act. Since, therefore, whatever we agree upon as the essence of morality, must be practically used by us as a test, criterion, or standard, there cannot be much harm in calling this essential quality the standard, although the designation is to a certain extent figurative.]

The author has some additional remarks on the derivation of our Disinterested feelings: he reiterates the position expressed in the 'Analysis,' that although we have feelings directly tending to the good of others, they are nevertheless the growth of feelings that are rooted in self. That feelings should be detached from their original root is a well known phenomenon of the mind.

His illustrations of Utility are a valuable contribution to the defence of that doctrine. He replies to most of the common objections. Mackintosh had urged that the reference to Utility would be made a dangerous pretext for allowing exceptions to common rules. Mill expounds at length (p. 246) the formation of moral rules, and retorts that there are rules expressly formed to make exceptions to other rules, as justice before generosity, charity begins at home, &c.

He animadverts with great severity on Mackintosh's doctrines, as to the delight of virtue for its own sake, and the special contact of moral feelings with the will. Allowance being made for the great difference in the way that the two writers express themselves, they are at one in maintaining Utility to be the ultimate standard, and in regarding Conscience as a derived faculty of the mind.

The author's handling of Ethics does not extend beyond the first and second topics—the STANDARD and the FACULTY. His Standard is

Utility. The Faculty is based on our Pleasures and Pains, with which there are multiplied associations. Disinterested Sentiment is a real fact, but has its origin in our own proper pleasures and pains.

Mill considers that the existing moral rules are all based on our estimate, correct or incorrect, of Utility.

JOHN AUSTIN. [1790-1859.]

Austin, in his Lectures on 'The Province of Jurisprudence determined,' has discussed the leading questions of Ethics. We give an abstract of the Ethical part.

LECTURE I. Law, in its largest meaning, and omitting metaphorical applications, embraces Laws set by God to his creatures, and Laws set by man to man. Of the laws set by man to man, some are established by *political* superiors, or by persons exercising government in nations or political societies. This is law in the usual sense of the word, forming the subject of Jurisprudence. The author terms it *Positive Law*. There is another class of laws not set by political superiors in that capacity. Yet some of these are properly termed laws, although others are only so by a close Analogy. There is no name for the laws proper, but to the others are applied such names as '*moral* rules,' 'the *moral* law,' '*general* or *public opinion*,' 'the law of *honour* or of *fashion*.' The author proposes for these laws the name *positive morality*. The laws now enumerated differ in many important respects, but agree in this—that all of them are set *by* intelligent and rational beings *to* intelligent and rational beings. There is a figurative application of the word 'law,' to the uniformities of the natural world, through which, the field of jurisprudence and morals has been deluged with muddy speculation.

Laws properly so called are *commands*. A command is the signification of a desire or wish, accompanied with the power and the purpose to inflict evil if that desire is not complied with. The person so desired is *bound* or *obliged*, or placed under a *duty*, to obey. Refusal is disobedience, or violation of duty. The evil to be inflicted is called a *sanction*, or an *enforcement of obedience*; the term *punishment* expresses one class of sanctions.

The term sanction is improperly applied to a Reward. We cannot say that an action is *commanded*, or that obedience is *constrained* or *enforced* by the offer of a reward. Again, when a reward is offered, a *right* and not an obligation is created: the imperative function passes to the party receiving the reward. In short, it is only by conditional *evil*, that duties are *sanctioned* or *enforced*.

The correct meaning of *superior* and *inferior* is determined by command and obedience.

LECTURE II. The *Divine Laws* are the known commands of the Deity, enforced by the evils that we may suffer here or hereafter for breaking them. Some of these laws are *revealed*, others *unrevealed*. Paley and others have proved that it was not the purpose of Revelation to disclose the whole of our duties; the Light of Nature is an additional source. But how are we to interpret this Light of Nature?

The various hypotheses for resolving this question may be reduced to two: (1) an Innate Sentiment, called a Moral Sense, Common Sense, Practical Reason, &c.; and (2) the Theory of Utility.

The author avows his adherence to the theory of Utility, which he connects with the Divine Benevolence in the manner of Bentham. God designs the happiness of sentient beings. Some actions forward that

purpose, others frustrate it. The first, God has enjoined; the second, He has forbidden. Knowing, therefore, the tendency of any action, we know the Divine command with respect to it.

The tendency of an action is all its consequences near and remote, certain and probable, direct and collateral. A petty theft, or the evasion of a trifling tax, may be insignificant, or even good, in the direct and immediate consequences; but before the full tendency can be weighed, we must resolve the question:—What would be the probable effect on the general happiness or good, if *similar* acts, or omissions, were general or frequent?

When the theory of Utility is correctly stated, the current objections are easily refuted. As viewed by the author, Utility is not the *fountain* or *source* of our duties; this must be commands and sanctions. But it is the *index* of the will of the law-giver, who is presumed to have for his chief end the happiness or good of mankind.

The most specious objection to Utility is the supposed necessity of going through a calculation of the consequences of every act that we have to perform, an operation often beyond our power, and likely to be abused to forward our private wishes. To this, the author replies first, that supposing utility our only index, we must make the best of it. Of course, if we were endowed with a moral sense, a special organ for ascertaining our duties, the attempt to displace that invincible consciousness, and to thrust the principle of utility into the vacant seat, would be impossible and absurd.

According to the theory of Utility, our conduct would conform to *rules* inferred from the tendencies of actions, but would not be determined by a direct resort to the principle of general utility. Utility would be the ultimate, not the immediate test. To preface each act or forbearance by a conjecture and comparison of consequences were both superfluous and mischievous:—superfluous, inasmuch as the result is already embodied in a known rule;

and mischievous, inasmuch as the process, if performed on the spur of the occasion, would probably be faulty.

With the rules are associated *sentiments*, the result of the Divine, or other, command to obey the rules. It is a gross and flagrant error to talk of *substituting* calculation for sentiment; this is to oppose the rudder to the sail. Sentiment without calculation were capricious; calculation without sentiment is inert.

There are cases where the *specific* consequences of an action are so momentous as to overbear the rule; for example, resistance to a bad government, which the author calls an *anomalous* question, to be tried not by the rule, but by a direct resort to the ultimate or presiding-principle, and by a separate calculation of good and evil. Such was the political emergency of the Commonwealth, and the American revolution. It would have been well, the author thinks, if utility had been the sole guide in both cases.

There is a second objection to Utility, more perplexing to deal with. How can we know fully and correctly all the consequences of actions? The answer is that Ethics, as a science of observation and induction, has been formed, through a long succession of ages, by many and separate contributions from many and separate discoverers. Like all other sciences, it is progressive, although unfortunately, subject to special drawbacks. The men that have enquired, or affected to enquire, into Ethics, have rarely been impartial; they have laboured under prejudices or sinister interests; and have been the advocates of foregone conclusions. There is not on this subject *a concurrence or agreement of numerous and impartial enquirers*. Indeed, many of the legal and moral rules of the most civilized communities arose in the infancy of the human mind, partly from caprices of the fancy (nearly omnipotent with barbarians), and partly from an imperfect

apprehension of general utility, the result of a narrow experience. Thus the diffusion and the advancement of ethical truth encounter great and peculiar obstacles, only to be removed by a better general education extended to the mass of the people. It is desirable that the community should be indoctrinated with sound views of property, and with the dependence of wealth, upon the true principle of population, discovered by Malthus, all which they are competent to understand.

The author refers to Paley's Moral Philosophy as an example of the perverting tendency of narrow and domineering interests in the domain of ethics. With many commendable points, there is, in that work, much ignoble truckling to the dominant and influential few, and a deal of shabby sophistry in defending abuses that the few were interested in upholding.

As a farther answer to the second objection, he remarks, that it applies to every theory of ethics that supposes our duties to be set by the Deity. Christianity itself is defective, considered as a system of rules for the guidance of human conduct.

He then turns to the alternative of a Moral Sense. This involves two assumptions.

First, Certain sentiments, or feelings of approbation or disapprobation, accompany our conceptions of certain human actions. These feelings are neither the result of our reflection on the tendencies of actions, nor the result of education; the sentiments would follow the conception, although we had neither adverted to the good or evil tendency of the actions, nor become aware of the opinions of others regarding them. This theory denies that the sentiments known to exist can be produced by education. We approve and disapprove of actions *we know not why*.

The author adapts Paley's supposition of the savage, in order to express strongly what the moral sense implies. But we will confine ourselves to his reasonings. Is there, he asks, any evidence of our being gifted with such feelings? The very putting of such a question would seem a sufficient proof that we are not so endowed. There ought to be no more doubt about them, than about hunger or thirst.

It is alleged in their favour that our judgments of rectitude and depravity are immediate and voluntary. The reply is that sentiments begotten by association are no less prompt and involuntary than our instincts. Our response to a money gain, or a money loss, is as prompt as our compliance with the primitive appetites of the system. We begin by loving knowledge as a means to ends; but, in time, the end is inseparably associated with the instrument. So a moral sentiment dictated by utility, if often exercised, would be rapid and direct in its operation.

It is farther alleged, as a proof of the innate character of the moral judgments, that the moral sentiments of all men are precisely alike. The argument may be put thus:—No opinion or sentiment resulting from observation and induction is held or felt by all mankind: Observation and induction, as applied to the same subject, lead different men to different conclusions. Now, the judgments passed internally on the rectitude or pravity of actions, or the moral sentiments, are precisely alike with all men. Therefore, our moral sentiments are not the result of our inductions of the tendencies of actions; nor were they derived from others, and impressed by authority and example. Consequently, the moral sentiments are instinctive, or ultimate and inscrutable facts.

To refute such an argument is superfluous; it is based on a groundless assertion. The moral sentiments of men have differed to infinity. With regard to a few classes of actions, the moral judgments of most, though not

of all, men have been alike. With regard to others, they have differed, through every shade or degree, from slight diversity to direct opposition.

But this is exactly what we should expect on the principle of utility. With regard to some actions, the dictates of utility are the same at all times and places, and are so obvious as hardly to admit of mistake or doubt. On the other hand, men's positions in different ages and nations are in many respects widely different; so that what was useful there and then is useless or pernicious here and now. Moreover, since human tastes are various, and human reason is fallible, men's moral sentiments often widely differ in the same positions.

He next alludes to some prevailing misconceptions in regard to utility. One is the confusion of the *test* with the *motive*. The general good is the test, or rather the index to the ultimate measure or test, the Divine commands; but it is not in all, or even in most cases, the motive or inducement.

The principle of utility does not demand that we shall always or habitually attend to the general good; although it does demand that we shall not pursue our own particular good by means that are inconsistent with that paramount object. It permits the pursuit of our own pleasures as pleasure. Even as regards the good of others, it commonly requires us to be governed by partial, rather than by general benevolence; by the narrower circle of family and friends rather than by the larger humanity that embraces mankind. It requires us to act where we act *with the utmost effect*; that is, within the sphere best known to us. The limitations to this principle, the adjustment of the selfish to the social motives, of partial sympathy to general benevolence, belong to the detail of ethics.

The second misconception of Utility is to confound it with a particular hypothesis concerning the Origin of Benevolence, commonly styled the *selfish system*. Hartley and some others having affirmed that benevolence is not an ultimate fact, but an emanation from self-love, through the

association of ideas, it has been fancied that these writers dispute the *existence* of disinterested benevolence or sympathy. Now, the selfish system, in its literal import, is flatly inconsistent with obvious facts, but this is not the system contended for by the writers in question. Still, this distortion has been laid hold of by the opponents of utility, and maintained to be a necessary part of that system; hence the supporters of utility are styled 'selfish, sordid, and cold-blooded calculators.' But, as already said, the theory of utility is not a theory of *motives*; it holds equally good whether benevolence be what it is called, or merely a provident regard to self: whether it be a simple fact, or engendered by association on self-regard. Paley mixed up Utility with self-regarding *motives*; but his theory of these is miserably shallow and defective, and amounted to a denial of genuine benevolence or sympathy.

Austin's Fifth LECTURE is devoted to a full elucidation of the meanings of Law. He had, at the outset, made the distinction between Laws properly so called, and Laws improperly so called. Of the second class, some are closely allied to Laws proper, possessing in fact their main or essential attributes; others are laws only by metaphor. Laws proper, and those closely allied to them among laws proper, are divisible into three classes. The first are the *Divine Law* or Laws. The second is named *Positive Law* or Positive Laws; and corresponds with Legislation. The third he calls *Positive Morality*, or positive moral rules; it is the same as Morals or Ethics.

Reverting to the definition of Law, he gives the following three essentials:—1. Every law is a *command*, and emanates from a *determinate* source or another. 2. Every sanction is an eventual evil *annexed to a command*. 3. Every duty supposes a *command* whereby it is created. Now, tried by these tests, the laws of God are laws proper; so are positive laws, by which are meant laws established by monarchs as supreme political

superiors, by subordinate political superiors, and by subjects, as private persons, in pursuance of legal rights.

But as regards Positive Morality, or moral rules, some have so far the essentials of an *imperative* law or rule, that they are rules set by men to men. But they are not set by men as political superiors, nor by men as private persons, in pursuance of legal rights; in this respect they differ from positive laws, they are not clothed with legal sanctions.

The most important department of positive morality includes *the laws set or imposed by general opinion*, as for example the laws of honour, and of fashion. Now these are not laws in the strict meaning of the word, because the authors are an *indeterminate* or uncertain aggregate of persons. Still, they have the closest alliance with Laws proper, seeing that being armed with a sanction, they impose a duty. The persons obnoxious to the sanction generally do or forbear the acts enjoined or forbidden; which is all that can happen under the highest type of law.

The author then refers to Locke's division of law, which, although faulty in the analysis, and inaptly expressed, tallies in the main with what he has laid down.

Of Metaphorical or figurative laws, the most usual is that suggested by the fact of *uniformity*, which is one of the ordinary consequences of a law proper. Such are the laws of nature, or the uniformities of co-existence and succession in natural phenomena.

Another metaphorical extension is to a model or pattern, because a law presents something as a guide to human conduct. In this sense, a man may set a law to himself, meaning a plan or model, and not a law in the proper sense of a command. So a *rule* of art is devoid of a sanction, and therefore of the idea of duty.

A confusion of ideas also exists as to the meaning of a sanction. Bentham styles the evils arising in the course of nature *physical* sanctions, as if the omission to guard against fire were a sin or an immorality, punished by the destruction of one's house. But although this is an evil happening to a rational being, and brought on by a voluntary act or omission, it is not the result of a law in the proper sense of the term. What is produced *naturally*, says Locke, is produced *without the intervention of a law*.

Austin is thus seen to be one of the most strenuous advocates of Utility as the Standard, and is distinguished for the lucidity of his exposition, and the force of his replies to the objections made against it.

He is also the best expounder of the relationship of Morality to Law.

WILLIAM WHEWELL. [1794-1866.]

Dr. Whewell's chief Ethical works are, 'Elements of Morality, including Polity,' and 'Lectures on the History of Moral Philosophy in England.'

We may refer for his views to either work. The following abstract is taken from the latest (4th) edition of his Elements (1864).

In the Preface he indicates the general scope of the work. Morality has its root in the Common Nature of Man; a scheme of Morality must conform to the *Common Sense* of mankind, in so far as that is consistent with itself. Now, this Common Sense of Mankind has in every age led to two seemingly opposite schemes of Morality, the one making *Virtue*, and the other making *Pleasure*, the rule of action. On the one side, men urge the claims of Rectitude, Duty, Conscience, the Moral Faculty; on the other, they declare Utility, Expediency, Interest, Enjoyment, to be the proper guides.

Both systems are liable to objections. Against the scheme of Pleasure, it is urged that we never, in fact, identify virtue as merely useful. Against the scheme of Virtue, it is maintained that virtue is a matter of opinion, and that Conscience varies in different ages, countries, and persons. It is necessary that a scheme of Morality should surmount both classes of objections; and the author therefore attempts a reconciliation of the two opposing theories.

He prepares the way by asking, whether there are any actions, or qualities of actions, universally approved; and whether there are any moral rules accepted by the Common Sense of mankind as universally valid? The reply is that there are such, as, for example, the virtues termed Veracity, Justice, Benevolence. He does not enquire *why* these are approved; he accepts the fact of the approval, and considers that here we have the basis of a Moral System, not liable to either of the opposing objections above recited.

He supposes, however, that the alleged agreement may be challenged, *first*, as not existing; and *next*, as insufficient to reason from.

1. It may be maintained that the excellence of the three virtues named is not universally assented to; departures from them being allowed both in practice and in theory. The answer is, that the principles may be admitted, although the interpretation varies. Men allow Fidelity and Kindness to be virtues, although in an early stage of moral progress they do not make the application beyond their own friends; it is only at an advanced stage that they include enemies. The Romans at first held stranger and enemy to be synonymous; but afterwards they applauded the sentiment of the poet, *homo sum*, &c. Moral principles must be what we approve of, when we speak in the name of the whole human species.

2. It may be said that such principles are too vague and loose to reason from. A verbal agreement in employing the terms *truthful*, *just*, *humane*,

does not prove a real agreement as to the actions; and the particulars must be held as explaining the generalities.

The author holds this objection to be erroneous; and the scheme of his work is intended to meet it. He proceeds as follows:—

He allows that we must fix what is meant by *right*, which carries with it the meaning of Virtue and of Duty. Now, in saying an action is right, there is this idea conveyed, namely, that we render such a *reason* for it, as shall be *paramount* to all other considerations. Right must be the *Supreme* Rule. How then are we to arrive at this rule?

The supreme rule is the authority over *all* the faculties and impulses; and is made up of the partial rules according to the separate faculties, powers, and impulses. We are to look, in the first instance, to the several faculties or departments of the mind; for, in connexion with each of these, we shall find an irresistible propriety inherent in the very nature of the faculty.

For example, man lives in the society of fellow-men; his actions derive their meaning from this position. He has the faculty of Speech, whereby his actions are connected with other men. Now, as man is under a supreme moral rule, [this the author appears to assume in the very act of proving it], there must be a rule of right as regards the use of Speech; which rule can be no other than truth and falsehood. In other words, veracity is a virtue.

Again, man, as a social being, has to divide with others the possession of the world, in other words, to possess Property; whence there must be a rule of Property, that is, each man is to have his own. Whence Justice is seen to be a virtue.

The author thinks himself at one with the common notions of mankind in pronouncing that the Faculty of Speech, the Desire of Possessions, and the

Affections, are properly regulated, not by any extraneous purposes or ends to be served by them, but by Veracity, Justice, and Humanity, respectively.

He explains his position farther, by professing to follow Butler in the doctrine that, through the mere contemplation of our human faculties and springs of action, we can discern certain relations which must exist among them by the necessity of man's moral being. Butler maintains that, by merely comparing appetite with conscience as springs of action, we see conscience is superior and ought to rule; and Whewell conceives this to be self-evident, and expresses it by stating that *the Lower parts of our nature are to be governed by the Higher*. Men being considered as social beings, capable of mutual understanding through speech, it is self-evident that their rule must include veracity. In like manner, it is self-evident from the same consideration of social relationship, that each man should abstain from violence and anger towards others, that is, *love his fellow men*.

Remarking on the plea of the utilitarian, that truth may be justified by the intolerable consequences of its habitual violation, he urges that this is no reason against its being intuitively perceived; just as the axioms of geometry, although intuitively felt, are confirmed by showing the incongruities following on their denial. He repeats the common allegation in favour of *à priori* principles generally, that no consideration of evil consequences would give the sense of *universality* of obligation attaching to the fundamental moral maxims; and endeavours to show that his favourite antithesis of *Idea* and *Fact* conciliates the internal essence and the external conditions of morality. The Idea is invariable and universal; the Fact, or outward circumstances, may vary historically and geographically. Morality must in some measure be dependent on Law, but yet there is an Idea of Justice above law.

It very naturally occurred to many readers of Whewell's scheme, that in so far as he endeavours to give any reason for the foundations of morality, he runs in a vicious circle. He proposes to establish his supreme universal rule, by showing it to be only a summing up of certain rules swaying the several portions or departments of our nature—Veracity, Justice, &c., while, in considering the obligation of these rules, he assumes that man is a moral being, which is another way of saying that he is to be under a supreme moral rule. In his latest edition, the author has replied to this charge, but so briefly as to cast no new light on his position. He only repeats that the Supreme rule of Human Action is given by the constitution and conditions of human nature. His ethical principle may be not unfairly expressed by saying, that he recognizes a certain intrinsic fitness in exercising the organ of speech according to its social uses, that is, in promoting a right understanding among men; and so with Justice, as the fitness of property, and Humanity, as the fitness of the Affections. This fitness is intuitively felt. Human happiness is admitted to be a consequence of these rules; but happiness is not a sufficient end in itself; morality is also an end in itself. Human happiness is not to be conceived or admitted, except as containing a moral element; in addition to the direct gratifications of human life, we must include the delight of virtue. [How men can be compelled to postpone their pleasurable sense of the good things of life, till they have contracted a delight in virtue for its own sake, the author does not say. It has been the great object of moralists in all ages, to impart by *education* such a state of mind as to spoil the common gratifications, if they are viciously procured; the comparatively little success of the endeavour, shows that nature has done little to favour it.]

The foregoing is an abstract of the Introduction to the 4th Edition of the Elements of Morality. We shall present the author's views respecting the other questions of Morality in the form of the usual summary.

I.—As regards the Standard, enough has been already indicated.

II.—The Psychology of the Moral Faculty is given by Whewell as part of a classification of our Active Powers, or, as he calls them, Springs of Action. These are: I.—The *Appetites* or Bodily Desires, as Hunger and Thirst, and the desires of whatever things have been found to gratify the senses. II.—The *Affections*, which are directed to persons; they fall under the two heads Love and Anger. III.—The *Mental Desires*, having for their objects certain abstractions. They are the desire of Safety, including Security and Liberty; the desire of Having, or Property; the desire of Society in all its forms—Family Society and Civil Society, under which is included the need of Mutual Understanding; the desire of Superiority; and the Desire of Knowledge. IV.—The *Moral Sentiments*. Our judgment of actions as right or wrong is accompanied by certain Affections or Sentiments, named Approbation and Disapprobation, Indignation and Esteem; these are the Moral Sentiments. V.—The *Reflex Sentiments*, namely, the desires of being Loved, of Esteem or Admiration, of our own Approval; and generally all springs of action designated by the word *self*—for example, self-love.

With regard to the Moral Sentiment, or Conscience, in particular, the author's resolution of Morality into Moral Rules, necessarily supposes an exercise of the Reason, together with the Affections above described. He expressly mentions 'the *Practical* Reason, which guides us in applying Rules to our actions, and in discerning the consequences of actions.' He does not allow Individual Conscience as an ultimate or supreme authority, but requires it to be conformed to the Supreme Moral Rules, arrived at in the manner above described.

On the subject of Disinterestedness, he maintains a modification of Paley's selfish theory. He allows that some persons are so far disinterested

as to be capable of benevolence and self-sacrifice, without any motive of reward or punishment; but 'to require that all persons should be such, would be not only to require what we certainly shall not find, but to put the requirements of our Morality in a shape in which it cannot convince men.' Accordingly, like Paley, he places the doctrine that 'to promote the happiness of others will lead to our own happiness,' exclusively on the ground of Religion. He honours the principle that 'virtue is happiness,' but prefers for mankind generally the form, 'virtue is *the way* to happiness.' In short, he places no reliance on the purely Disinterested impulses of mankind, although he admits the existence of such.

III.—He discusses the Summum Bonum, or Happiness, only with reference to his Ethical theory. The attaining of the objects of our desires yields Enjoyment or Pleasure, which cannot be the supreme end of life, being distinguished from, and opposed to, Duty. Happiness is Pleasure and Duty combined and harmonized by Wisdom. 'As moral beings, our Happiness must be found in our Moral Progress, and in the consequences of our Moral Progress; we must be happy by being virtuous.'

He complains of the moralists that reduce virtue to Happiness (in the sense of human pleasure), that they fail to provide a measure of happiness, or to resolve it into definite elements; and again urges the impossibility of calculating the whole consequences of an action upon human happiness.

IV.—With respect to the Moral Code, Whewell's arrangement is interwoven with his derivation of moral rules. He enumerates five Cardinal Virtues as the substance of morality:—BENEVOLENCE, which gives expansion to our *Love*; JUSTICE, as prescribing the measure of our *Mental Desires*; TRUTH, the law of *Speech* in connexion with its purpose; PURITY, the control of the *Bodily Appetites*; and ORDER (obedience to the Laws), which engages the *Reason* in the consideration of Rules and Laws

for defining Virtue and Vice. Thus the five leading branches of virtue have a certain parallelism to the five chief classes of motives—Bodily Appetites, Mental Desires, Love and its opposite, the need of a Mutual Understanding, and Reason.

As already seen, he considers it possible to derive every one of these virtues from the consideration of man's situation with reference to each:—*Benevolence*, or Humanity, from our social relationship; *Justice*, from the nature of Property; *Truth*, from, the employment of Language for mutual Understanding; *Purity*, from considering the lower parts of our nature (the Appetites) as governed by the higher; and *Order*, from the relation of Governor and Governed. By a self-evident, intuitive, irresistible consideration of the circumstances of the case, we are led to these several virtues in the detail, and their sum is the Supreme Rule of Life.

Not content with these five express moral principles, he considers that the Supreme Law requires, as adjuncts, two other virtues; to these he gives the names EARNESTNESS, or Zeal, and MORAL PURPOSE, meaning that everything whatsoever should be done for *moral ends*.

V.—The relation of Ethics to Politics in Whewell's system is one of intimacy, and yet of independence. The Laws of States supply the materials of human action, by defining property, &c., for the time being; to which definitions morality must correspond. On the other hand, morality supplies the Idea, or ideal, of Justice, to which the Laws of Society should progressively conform themselves. The Legislator and the Jurist must adapt their legislation to the point of view of the Moralist; and the moralist, while enjoining obedience to their dictates, should endeavour to correct the inequalities produced by laws, and should urge the improvement of Law, to make it conformable to morality. The Moral is in this way contrasted with the *Jural*, a useful word of the author's coining. He devotes a separate

Book, entitled 'Rights and Obligations,' to the foundations of Jurisprudence. He makes a five-fold division of Rights, grounded on his classification of the Springs of Human Action; Rights of *Personal Security, Property, Contract, Marriage, Government*; and justifies this division as against others proposed by jurists.

VI.—He introduces the Morality of Religion as a supplement to the Morality of Reason. The separation of the two, he remarks, 'enables us to trace the results of the moral guidance of human Reason consistently and continuously, while we still retain a due sense of the superior authority of Religion.' As regards the foundations of Natural and Revealed Religion, he adopts the line of argument most usual with English Theologians.

JAMES FREDERICK FERRIER. [1808-64.]

In his 'Lectures on Greek Philosophy' (Remains, Vol. I.), Ferrier has indicated his views on the leading Ethical controversies.

These will appear, if we select his conclusions, on the three following points:—The Moral Sense, the nature of Sympathy, and the Summum Bonum.

1. He considers that the Sophists first distinctly broached the question—What is man by nature, and what is he by convention or fashion?

'This prime question of moral philosophy, as I have called it, is no easy one to answer, for it is no easy matter to effect the discrimination out of which the answer must proceed. It is a question, perhaps, to which no complete, but only an approximate, answer can be returned. One common mistake is to ascribe more to the natural man than properly belongs to him, to ascribe to him attributes and endowments which belong only to the social and artificial man. Some writers—Hutcheson, for example, and he is

followed by many others—are of opinion that man naturally has a conscience or moral sense which discriminates between right and wrong, just as he has naturally a sense of taste, which distinguishes between sweet and bitter, and a sense of sight, which discriminates between red and blue, or a sentient organism, which distinguishes between pleasure and pain. That man has by nature, and from the first, the possibility of attaining to a conscience is not to be denied. That lie has within him by birthright something out of which conscience is developed, I firmly believe; and what this is I shall endeavour by-and-by to show when I come to speak of Sokrates and his philosophy as opposed to the doctrines of the Sophists. But that the man is furnished by nature with a conscience ready-made, just as he is furnished with a ready-made sensational apparatus, this is a doctrine in which I have no faith, and which I regard as altogether erroneous. It arises out of the disposition to attribute more to the natural man than properly belongs to him. The other error into which inquirers are apt to fall in making a discrimination between what man is by nature, and what he is by convention, is the opposite of the one just mentioned. They sometimes attribute to the natural man less than properly belongs to him. And this, I think, was the error into which the Sophists were betrayed. They fall into it inadvertently, and not with any design of embracing or promulgating erroneous opinions.'

2. With reference to SYMPATHY, he differs from Adam Smith's view, that it is a native and original affection of the heart, like hunger and thirst. Mere feeling, he contends, can never take a man out of self. It is thought that overleaps this boundary; not the *feeling* of sensation, but the *thought* of one's self and one's sensations, gives the ground and the condition of sympathy. Sympathy has self-consciousness for its foundation. Very young children have little sympathy, because in them the idea of self is but feebly developed.

3. In his chapter on the Cynic and Cyrenaic schools, he discusses at length the summum bonum, or Happiness, and, by implication, the Ethical end, or Standard. He considers that men have to keep in view *two* ends; the one the maintenance of their own nature, as rational and thinking beings; the other their happiness or pleasure. He will not allow that we are to do right at all hazards, irrespective of utility; yet he considers that there is something defective in the scheme that sets aside virtue as the good, and enthrones happiness in its place. He sums up as follows:—

'We thus see that a complete body of ethics should embrace two codes, two systems of rules, the one of which we may call the fundamental or antecedent, or under-ground ethics, as underlying the other; and the other of which we may call the upper or subsequent, or above-ground ethics, as resting on, and modified by the former. The under-ground ethics would inculcate on man the necessity of being what he truly is, namely, a creature of reason and of thought; in short, the necessity of being a man, and of preserving to himself this status. Here the end is virtue, that is, the life and health of the soul, and nothing but this. The above-ground ethics would inculcate on man the necessity of being a *happy* man.

It is not enough for man *to be*; he must, moreover, if possible, *be happy*. The fundamental ethics look merely to his being, *i.e.*, his being rational; the upper ethics look principally to his being happy, but they are bound to take care that in all his happiness he does nothing to violate his rationality, the health and virtue of the soul.'

HENRY LONGUEVILLE/MANSEL.

Mr. Mansel, in his 'Metaphysics,' has examined the question of a moral standard, and the nature of the moral faculty, accepting, with slight and unimportant modifications, the current theory of a moral sense.

1. *The Moral Faculty.* That the conceptions of right and wrong are *sui generis*, is proved (1) by the fact that in all languages there are distinct terms for 'right' and 'agreeable;' (2) by the testimony of consciousness; and (3) by the mutual inconsistencies of the antagonists of a moral sense. The moral faculty is not identical with Reason; for the understanding contributes to truth only one of its elements, namely, the concept; in addition, the concept must agree with the fact as presented in intuition. The moral sense is usually supposed to involve the perception of qualities only in so far as they are *pleasing* or *displeasing*. To this representation Mr. Mansel objects. In an act of moral consciousness two things are involved: a perception or judgment, and a sentiment or feeling. But the judgment itself may be farther divided into two parts: 'the one, an individual fact, presented now and here; the other, a general law, valid always and everywhere.' This is the distinction between *presentative* and *representative* Knowledge. In every act of consciousness there is some individual fact presented, and an operation of the understanding. 'A conscious act of pure moral sense, like a conscious act of pure physical sense, if it ever takes place at all, takes place at a time of which we have no remembrance, and of which we can give no account.' The intuitive element may be called *conscience*; the representing element is the *understanding*. On another point he differs from the ordinary theory. It is commonly said that we immediately perceive the moral character of acts, whether by ourselves or by others. But this would implicate two facts, neither of which we can be conscious of: (1) a law binding on a certain person, and (2) his conduct as agreeing or disagreeing with that law. Now, I can infer the existence of such a law only by *representing* his mind as constituted like my own. We can, in fact, immediately perceive moral qualities only in our own actions.

2. *The Moral Standard.* This is treated as a branch of Ontology, and designated the 'Real in morality,' He declares that Kant's notion of an absolute moral law, binding by its inherent power over the mind, is a mere

fiction. The difference between inclination and the moral imperative is merely a difference between lower and higher pleasure. The moral law can have no authority unless imposed by a superior, as a law emanating from a lawgiver. If man is not accountable to some higher being, there is no distinction between duty and pleasure. The standard of right and wrong is the moral *nature* (not the arbitrary *will*) of God.[25] Now, as we cannot know God—an infinite being,—so we have but a relative conception of morality. We may have lower and higher ideas of duty. Morality therefore admits of progress. But no advance in morality contradicts the *principles* previously acknowledged, however it may vary the acts whereby those principles are carried out. And each advance takes its place in the mind, not as a question to be supported by argument, but as an axiom to be intuitively admitted. Each principle appears true and irreversible so far as it goes, but it is liable to be merged in a more comprehensive formula. It is an error of philosophers to imagine that they have an absolute standard of morals, and thereupon to set out *à priori* the criterion of a possibly true revelation. Kant said that the revealed commands of God could have no religious value, unless approved by the moral reason; and Fichte held that no true revelation could contain any intimation of future rewards and punishments, or any moral rule not deducible from the principles of the practical reason. But revelation has enlightened the practical reason, as by the maxim—to love God with all thy heart, and thy neighbour as thyself—a maxim, says Mr. Mansel, that philosophy in vain toiled after, and subsequently borrowed without acknowledgment.

JOHN STUART MILL.

Mr. J.S. Mill examines the basis of Ethics in a small work entitled Utilitarianism.

After a chapter of General Remarks, he proposes (Chapter II.) to enquire, What Utilitarianism is? This creed holds that actions are right in proportion as they tend to promote happiness, wrong as they tend to produce the reverse of happiness. By happiness is intended pleasure, and the absence of pain; by unhappiness, pain, and the privation of pleasure. The things included under pleasure and pain may require farther explanation; but this does not affect the general theory. To the accusation that pleasure is a mean and grovelling object of pursuit, the answer is, that human beings are capable of pleasures that are not grovelling. It is compatible with utility to recognize some *kinds* of pleasure as more valuable than others. There are pleasures that, irrespective of amount, are held by all persons that have experienced them to be preferable to others. Few human beings would consent to become beasts, or fools, or base, in consideration of a greater allowance of pleasure. Inseparable from the estimate of pleasure is a *sense of dignity*, which determines a preference among enjoyments.

But this distinction in kind is not essential to the justification of the standard of Utility. That standard is not the agent's own greatest happiness, but the greatest amount of happiness altogether. However little the higher virtues might contribute to one's own happiness, there can be no doubt that the world in general gains by them.

Another objection to the doctrine is, that happiness is a thing unattainable, and that no one has a *right* to it. Not only can men do without happiness, but renunciation is the first condition of all nobleness of character.

In reply, the author remarks that, supposing happiness impossible, the prevention of unhappiness might still be an object, which is a mode of Utility. But the alleged impossibility of happiness is either a verbal quibble or an exaggeration. No one contends for a life of sustained rapture;

occasional moments of such, in an existence of few and transitory pains, many and various pleasures, with a predominance of the active over the passive, and moderate expectations on the whole, constitute a life worthy to be called happiness. Numbers of mankind have been satisfied with much less. There are two great factors of enjoyment—tranquillity and excitement. With the one, little pleasure will suffice; with the other, considerable pain can be endured. It does not appear impossible to secure both in alternation. The principal defect in persons of fortunate lot is to care for nobody but themselves; this curtails the excitements of life, and makes everything dwindle as the end approaches. Another circumstance rendering life unsatisfactory is the want of mental cultivation, by which men are deprived of the inexhaustible pleasures of knowledge, not merely in the shape of science, but as practice and fine art. It is not at all difficult to indicate sources of happiness; the main stress of the problem lies in the contest with the positive evils of life, the great sources of physical and of mental suffering—indigence, disease, and the unkindness, worthlessness, or premature loss of objects of affection. Poverty and Disease may be contracted in dimensions; and even vicissitudes of fortune are not wholly beyond control.

It is unquestionably possible to do without happiness. This is the lot of the greater part of mankind, and is often voluntarily chosen by the hero or the martyr. But self-sacrifice is not its own end; it must be made to earn for others immunity from sacrifice. It must be a very imperfect state of the world's arrangements that requires any one to serve the happiness of others by the absolute sacrifice of their own; yet undoubtedly while the world is in that imperfect state, the readiness to make such a sacrifice is the highest virtue that can be found in man. Nay, farther, the conscious ability to do without happiness, in such a condition of the world, is the best prospect of realizing such happiness as is attainable. Meanwhile, self-devotion belongs as much to the Utilitarian as to the Stoic or the Transcendentalist; with the

reservation that a sacrifice not tending to increase the sum of happiness is to be held as wasted. The golden rule, do as you would be done by, is the ideal perfection of utilitarian morality. The means of approaching this ideal are, first, that laws and society should endeavour to place the interest of the individual in harmony with the interest of the whole; and, secondly, that education and opinion should establish in the mind of each individual an indissoluble association between his own good and the good of the whole.

The system of Utility is objected to, on another side, as being too high for humanity; men cannot be perpetually acting with a view to the general interests of society. But this is to mistake the meaning of a standard, and to confound the rule of action with the motive. Ethics tells us what are our duties, or by what test we are to know them; but no system of ethics requires that the motive of every action should be a feeling of duty; our actions are rightly done provided only duty does not condemn them. The great majority of actions have nothing to do with the good of the world—they end with the individual; it happens to few persons, and that rarely, to be public benefactors. Private utility is in the mass of cases all that we have to attend to. As regards abstinences, indeed, it would be unworthy of an intelligent agent not to be aware that the action is one that, if practised generally, would be generally injurious, and to not feel a sense of obligation on that ground; but such an amount of regard for the general interest is required under every system of morals.

It is farther alleged against Utility, that it renders men cold and unsympathizing, chills the moral feelings towards individuals, and regards only the dry consequences of actions, without reference to the moral qualities of the agent. The author replies that Utility, like any other system, admits that a right action does not necessarily indicate a virtuous character. Still, he contends, in the long run, the best proof of a good character is good actions. If the objection means that utilitarians do not lay sufficient stress on

the beauties of character, he replies that this is the accident of persons cultivating their moral feelings more than their sympathies and artistic perceptions, and may occur under every view of the foundation of morals.

The next objection considered is that Utility is a *godless* doctrine. The answer is, that whoever believes in the perfect goodness and wisdom of God, necessarily believes that whatever he has thought fit to reveal on the subject of morals must fulfil the requirements of utility in a supreme degree.

Again, Utility is stigmatized as an immoral doctrine, by carrying out Expediency in opposition to Principle. But the Expedient in this sense means what is expedient for the agent himself, and, instead of being the same thing with the useful, is a branch of the hurtful. It would often be expedient to tell a lie, but so momentous and so widely extended are the utilities of truth, that veracity is a rule of transcendent expediency. Yet all moralists admit exceptions to it, solely on account of the manifest inexpediency of observing it on certain occasions.

The author does not omit to notice the usual charge that it is impossible to make a calculation of consequences previous to every action, which is as much as to say that no one can be under the guidance of Christianity, because there is not time, on the occasion of doing anything, to read through the Old and New Testaments. The real answer is (substantially the same as Austin's) that there has been ample time during the past duration of the species. Mankind have all that time been learning by experience the consequences of actions; on that experience they have founded both their prudence and their morality. It is an inference from the principle of utility, which regards morals as a practical art, that moral rules are improvable; but there exists under the ultimate principle a number of intermediate generalizations, applicable at once to the emergencies of human conduct.

Nobody argues that navigation is not founded on astronomy, because sailors cannot wait to calculate the Nautical Almanack.

As to the stock argument, that people will pervert utility for their private ends, Mr. Mill challenges the production of any ethical creed where this may not happen. The fault is due, not to the origin of the rules, but to the complicated nature of human affairs, and the necessity of allowing a certain latitude, under the moral responsibility of the agent, for accommodation to circumstances. And in cases of conflict, utility is a better guide than anything found in systems whose moral laws claim independent authority.

Chapter III. considers the ULTIMATE SANCTION OF THE PRINCIPLE OF UTILITY.

It is a proper question with regard to a supposed moral standard,—What is its sanction? what is the source of its obligation? wherein lies its binding force? The customary morality is consecrated by education and opinion, and seems to be obligatory *in itself*; but to present, as the source of obligation, some general principle, not surrounded by the halo of consecration, seems a paradox; the superstructure seems to stand better without such a foundation. This difficulty belongs to every attempt to reduce morality to first principles, unless it should happen that the principle chosen has as much sacredness as any of its applications.

Utility has, or might have, all the sanctions attaching to any other system of morals. Those sanctions are either External or Internal. The External are the hope of favour and the fear of displeasure (1) from our fellow-creatures, or (2) from the Ruler of the Universe, along with any sympathy or affection for them, or love and awe of Him, inclining us apart from selfish motives. There is no reason why these motives should not attach themselves to utilitarian morality.

The Internal Sanction, under every standard of duty, is of one uniform character—a feeling in our own mind; a pain, more or less intense, attendant on violation of duty, which in properly cultivated moral natures rises, in the more serious cases, into shrinking from it as an impossibility. This feeling, when disinterested, and connecting itself with the pure idea of duty, is *the essence of Conscience*; a complex phenomenon, involving associations from sympathy, from love, and still more from fear; from the recollections of childhood, and of all our past life; from self-esteem, desire of the esteem of others, and occasionally even self-abasement. This extreme complication is an obstacle to our supposing that it can attach to other objects than what are found at present to excite it. The binding force, however, is *the mass of feeling to be broken through* in order to violate our standard of right, and which, if we do violate that standard, will have to be afterwards encountered as remorse.

Thus, apart from external sanctions, the ultimate sanction, under Utility, is the same as for other standards, namely, the conscientious feelings of mankind. If there be anything innate in conscience, there is nothing more likely than that it should be a regard to the pleasures and pains of others. If so, the intuitive ethics would be the same as the utilitarian; and it is admitted on all hands that a *large* portion of morality turns upon what is due to the interests of fellow-creatures.

On the other hand, if, as the author believes, the moral feelings are not innate, they are not for that reason less natural. It is natural to man to speak, to reason, to cultivate the ground, to build cities, though these are acquired faculties. So the moral faculty, if not a part of our nature, is a natural outgrowth of it; capable, in a certain small degree, of springing up spontaneously, and of being brought to a high pitch by means of cultivation. It is also susceptible, by the use of the external sanctions and the force of

early impressions, of being cultivated in almost any direction, and of being perverted to absurdity and mischief.

The basis of natural sentiment capable of supporting the utilitarian morality is to be found in the *social feelings of mankind*. The social state is so natural, so necessary, and so habitual to man, that he can hardly conceive himself otherwise than as a member of society; and as civilization advances, this association becomes more firmly riveted. All strengthening of social ties, and all healthy growth of society, give to each individual a stronger personal interest in consulting the welfare of others. Each comes, as though instinctively, to be conscious of himself as a being that *of course* pays regard to others. There is the strongest motive in each person to manifest this sentiment, and, even if he should not feel it strongly himself, to cherish it in everybody else. The smallest germs of the feeling are thus laid hold of, and nourished by the contagion of sympathy and the influences of education; and by the powerful agency of the external sanctions there is woven around it a complete web of corroborative association. In an improving state of society, the influences are on the increase that generate in each individual a feeling of unity with all the rest; which, if perfect, would make him never think of anything for self, if they also were not included. Suppose, now, that this feeling of unity were taught as a religion, and that the whole force of education, of institutions, and of opinion, were directed to make every person grow up surrounded with the profession and the practice of it; can there be any doubt as to the sufficiency of the ultimate sanction for the Happiness morality?

Even in our present low state of advancement, the deeply-rooted conception that each individual has of himself as a social being tends to make him wish to be in harmony with his fellow-creatures. The feeling may be, in most persons, inferior in strength to the selfish feelings, and may be

altogether wanting; but to such as possess it, it has all the characters of a natural feeling, and one that they would not desire to be without.

Chapter IV. is OF WHAT SORT OF PROOF THE PRINCIPLE OF UTILITY is susceptible. Questions about ends are questions as to what things are desirable. According to the theory of Utility, happiness is desirable as an end; all other things are desirable as means. What is the proof of this doctrine?

As the proof, that the sun is visible, is that people actually see it, so the proof that happiness is desirable, is that people do actually desire it. No reason can be given why the general happiness is desirable, beyond the fact that each one desires their own happiness.

But granting that people desire happiness as *one* of their ends of conduct, do they never desire anything else? To all appearance they do; they desire virtue, and the absence of vice, no less surely than pleasure and the absence of pain. Hence the opponents of utility consider themselves entitled to infer that happiness is not the standard of moral approbation and disapprobation.

But the utilitarians do not deny that virtue is a thing to be desired. The very reverse. They maintain that it is to be desired, and that *for itself*. Although considering that what makes virtue is the tendency to promote happiness, yet they hold that the mind is not in a right state, not in a state conformable to Utility, not in the state conducive to the general happiness, unless it has adopted this essential instrumentality so warmly as to love it for its own sake. It is necessary to the carrying out of utility that certain things, originally of the nature of means, should come by association to be a part of the final end. Thus health is but a means, and yet we cherish it as strongly as we do any of the ultimate pleasures and pains. So virtue is not originally an end, but it is capable of becoming so; it is to be desired and cherished not solely as a means to happiness, but as a part of happiness.

The notorious instance of money exemplifies this operation. The same may be said of power and fame; although these are ends as well as means. We should be but ill provided with happiness, were it not for this provision of nature, whereby, things, originally indifferent, but conducive to the satisfaction of our primitive desires, become in themselves sources of pleasure, of even greater value than the primitive pleasures, both in permanency and in the extent of their occupation of our life. Virtue is originally valuable as bringing pleasure and avoiding pain; but by association it may be felt as a good in itself, and be desired as intensely as any other good; with this superiority over money, power, or fame, that it makes the individual a blessing to society, while these others may make him a curse.

With the allowance thus made for the effect of association, the author considers it proved that there is in reality nothing desired except happiness. Whatever is desired otherwise than as a means to some end beyond itself, and ultimately to happiness, is not desired for itself till it has become such. Human nature is so constituted, he thinks, that we desire nothing but what is either a part of happiness or a means of happiness; and no other proof is required that these are the only things desirable. Whether this psychological assertion be correct, must be determined by the self-consciousness and observation of the most practised observers of human nature.

It may be alleged that, although desire always tends to happiness, yet Will, as shown by actual conduct, is different from desire. We persist in a course of action long after the original desire has faded. But this is merely an instance of that familiar fact, the power of habit, and is nowise confined to the virtuous actions. Will is amenable to habit; we may will from habit what we no longer desire for itself, or desire only because we will it. But the will is the child of desire, and passes out of the dominion of its parent only to come under the sway of habit. What is the result of habit may not be

intrinsically good; we might think it better for virtue that habit did not come in, were it not that the other influences are not sufficiently to be depended on for unerring constancy, until they have acquired this farther support.

Chapter V. is ON THE CONNEXION BETWEEN JUSTICE AND UTILITY.

The strongest obstacle to the doctrine of Utility has been drawn from the Idea of Justice. The rapid perception and the powerful sentiment connected with the Just, seem to show it as generically distinct from every variety of the Expedient.

To see whether the sense of justice can be explained on grounds of Utility, the author begins by surveying in the concrete the things usually denominated just. In the first place, it is commonly considered unjust to deprive any one of their personal liberty, or property, or anything secured to them by law: in other words, it is unjust to violate any one's legal rights. Secondly, The legal rights of a man may be such as *ought* not to have belonged to him; that is, the law conferring those rights may be a bad law. When a law is bad, opinions will differ as to the justice or injustice of infringing it; some think that no law should be disobeyed by the individual citizen; others hold that it is just to resist unjust laws. It is thus admitted by all that there is such a thing as *moral right*, the refusal of which is injustice. Thirdly, it is considered just that each person should receive what he *deserves* (whether good or evil). And a person is understood to deserve good if he does right, evil if he does wrong; and in particular to deserve good in return for good, and evil in return for evil. Fourthly, it is unjust to *break faith*, to violate an engagement, or disappoint expectations knowingly and voluntarily raised. Like other obligations, this is not absolute, but may be overruled by some still stronger demand of justice on the other side. Fifthly, it is inconsistent with justice to be *partial*; to show favour or preference in matters where favour does not apply. We are expected in

certain cases to prefer our friends to strangers; but a tribunal is bound to the strictest impartiality; rewards and punishments should be administered impartially; so likewise the patronage of important public offices. Nearly allied to impartiality is the idea of *equality*. The justice of giving equal protection to the rights of all is maintained even when the rights themselves are very unequal, as in slavery and in the system of ranks or castes. There are the greatest differences as to what is equality in the distribution of the produce of labour; some thinking that all should receive alike; others that the neediest should receive most; others that the distribution should be according to labour or services.

To get a clue to the common idea running through all these meanings, the author refers to the etymology of the word, which, in most languages, points to something ordained by *law*. Even although there be many things considered just, that we do not usually enforce by law, yet in these cases it would give us pleasure if law could be brought to bear upon offenders. When we think a person bound in justice to do a thing, we should like to see him punished for not doing it; we lament the obstacles that may be in the way, and strive to make amends by a strong expression of our own opinion. The idea of legal constraint is thus the generating idea of justice throughout all its transformations.

The real turning point between morality and simple expediency is contained in the penal sanction. Duty is what we may *exact* of a person; there may be reasons why we do not exact it, but the person himself would not be entitled to complain if we did so. Expediency, on the other hand, points to things that we may wish people to do, may praise them for doing, and despise them for not doing, while we do not consider it proper to bring in the aid of punishment.

There enters farther into the idea of Justice what has been expressed by the ill-chosen phrase, 'perfect obligation,' meaning that the duty involves a moral right on the part of some definite person, as in the case of a debt; an imperfect obligation is exemplified by charity, which gives no legal claim to any one recipient. Every such right is a case of Justice, and not of Beneficence.

The Idea of Justice is thus shown to be grounded in Law; and the next question is, does the strong feeling or sentiment of Justice grow out of considerations of utility? Mr. Mill conceives that though the notion of expediency or utility does not give birth to the sentiment, it gives birth to what is *moral* in it.

The two essentials of justice are (1) the desire to punish some one, and (2) the notion or belief that harm has been done to some definite individual or individuals. Now, it appears to the author that the desire to punish is a spontaneous outgrowth of two sentiments, both natural, and, it may be, instinctive; the impulse of *self-defence*, and the feeling of *sympathy*. We naturally resent, repel, and retaliate, any harm done to ourselves and to any one that engages our sympathies. There is nothing moral in mere resentment; the moral part is the subordination of it to our social regards. We are moral beings, in proportion as we restrain our private resentment whenever it conflicts with the interests of society. All moralists agree with Kant in saying that no act is right that could not be adopted as a law by all rational beings (that is, consistently with the well-being of society).

There is in Justice a rule of conduct, and a right on the part of some one, which right ought to be enforced by society. If it is asked why society *ought* to enforce the right, there is no answer but the general utility. If that expression seem feeble and inadequate to account for the energy of retaliation inspired by injustice, the author asks us to advert to the

extraordinarily important and impressive kind of utility that is concerned. The interest involved is *security*, to every one's feelings the most vital of all interests. All other earthly benefits needed by one person are not needed by another; and many of them can, if necessary, be cheerfully foregone, or replaced by something else; but security no human being can possibly do without; on it we depend for all our immunity from evil, and for the whole value of all and every good, beyond the passing moment. Now, this most indispensable of all necessities, after physical nutriment, cannot be had unless the machinery for providing it is kept unintermittedly in active play. Our notion, therefore, of the claim we have on our fellow-creatures to join in making safe for us the very groundwork of our existence, gathers feelings around it so much more intense than those concerned in any of the more common cases of utility, that the difference in degree (as is often the case in psychology) becomes a real difference in kind. The claim assumes that character of absoluteness, that apparent infinity, and incommensurability with all other considerations, which constitute the distinction between the feeling of right and wrong, and that of ordinary expediency and in expediency.

Having presented his own analysis of the sentiment of Justice, the author proceeds to examine the *intuitive* theory. The charge is constantly brought against Utility, that it is an uncertain standard, differently interpreted by each person. The only safety, it is pretended, is found in the immutable, ineffaceable, and un mistakeable dictates of Justice, carrying their evidence in themselves, and independent of the fluctuations of opinions. But so far is this from being the fact, that there is as much difference of opinion, and as much discussion, about what is just, as about what is useful to society.

To take a few instances. On the question of Punishment, some hold it unjust to punish any one by way of example, or for any end but the good of the sufferer. Others maintain that the good of the society is the only

admissible end of punishment. Robert Owen affirms that punishment altogether is unjust, and that we should deal with crime only through education. Now, without an appeal to expediency, it is impossible to arbitrate among these conflicting views; each one has a maxim of justice on its side. Then as to the apportioning of punishments to offences. The rule that recommends itself to the primitive sentiment of justice is an eye for an eye, a tooth for a tooth; a rule formally abandoned in European countries, although not without its hold upon the popular mind. With many, the test of justice, in penal infliction, is that it should be proportioned to the offence; while others maintain that it is just to inflict only such an amount of punishment as will deter from the commission of the offence.

Besides the differences of opinion already alluded to, as to the payment of labour, how many, and irreconcilable, are the standards of justice appealed to on the matter of taxation? One opinion is, that taxes should be in proportion to pecuniary means; others think the wealthy should pay a higher proportion. In point of natural justice, a case might be made out for disregarding means, and taking the same sum from each, as the privileges are equally bestowed: yet from feelings of humanity and social expediency no one advocates that view. So that there is no mode of extricating the question but the utilitarian.

To sum up. The great distinction between, the Just and the Expedient is the distinction between the essentials of well-being—the moral rules forbidding mankind to hurt one another—and the rules that only point out the best mode of managing some department of human affairs. It is in the higher moralities of protection from harm that each individual has the greatest stake; and they are the moralities that compose the obligations of justice. It is on account of these that punishment, or retribution of evil for evil, is universally included in the idea. For the carrying out of the process of retaliation, certain maxims are necessary as instruments or as checks to

abuse; as that involuntary acts are not punishable; that no one shall be condemned unheard; that punishment should be proportioned to the offence. Impartiality, the first of judicial virtues, is necessary to the fulfilment of the other conditions of justice: while from the highest form of doing to each according to their deserts, it is the abstract standard of social and distributive justice; and is in this sense a direct emanation from the first principle of morals, the principle of the greatest Happiness. All social inequalities that have ceased to be considered as expedient, assume the character, not of simple inexpediency, but of injustice.

Besides the 'Utilitarianism,' Mr. Mill's chief Ethical dissertations are his review of Whewell's Moral Treatises (*Dissertations and Discussions*, Vol. II.), and parts of his Essay on *Liberty*. By collecting his views generally under the usual heads, we shall find a place for some points additional to what are given in the foregoing abstract.

I.—Enough has been stated as to his Ethical Standard, the Principle of Utility.

II.—We have seen his Psychological explanation of the Moral Faculty, as a growth from certain elementary feelings of the mind.

He has also discussed extensively the Freedom of the Will, maintaining the strict causation of human actions, and refuting the supposed fatalistic tendency of the doctrine.

He believes, as we have seen, in Disinterested impulses, but traces them to a purely self-regarding origin.

III.—He does not give any formal dissertation on Human Happiness, but indicates many of its important conditions, as in the remarks cited above, p. 702. In the chapter of the work on 'Liberty,' entitled Individuality, he

illustrates the great importance of special tastes, and urges the full right of each person to the indulgence of these in every case where they do not directly injure others. He reclaims against the social tyranny prevailing on such points as dress, personal habits, and eccentricities.

IV.—As regards the Moral Code, he would repeal the legal and moral rule that makes marriage irrevocable. He would also abolish all restraints on freedom of thought, and on Individuality of conduct, qualified as above stated.

He would impose two new moral restraints. He considers that every parent should be bound to provide a suitable education for his own children. Farther, for any one to bring into the world human beings without the means of supporting them, or, in an over-peopled country, to produce children in such number as to depress the reward of labour by competition, he regards as serious offences.

SAMUEL BAILEY.

Mr. Samuel Bailey devotes the last four in his Third Series of 'Letters on the Philosophy of the Human Mind,' to the subject of the Moral Sentiments, or the feelings inspired in us by human conduct. He first sets down five facts in the human constitution, in which moral phenomena originate—

1. Man is susceptible of pleasure and pain of various kinds and degrees.
2. He likes and dislikes respectively the causes of them.
3. He desires to reciprocate pleasure and pain received, when intentionally given by other sentient beings.
4. He himself expects such reciprocation from his fellows, coveting it in the one case, and shunning it in the other.

5. He feels, under certain circumstances, more or less sympathy with the pleasures and pains given to others, accompanied by a proportionate desire that those affections should be reciprocated to the givers.

These rudimentary affections, states and operations of consciousness [he is careful to note that, besides feelings, intellectual conditions and processes are involved in them] are found more or less developed in all, or nearly all the human race. In support of the limitation now made, he adduces what are given as authentic accounts of savages devoid of all gratitude and fellow-feeling; and then goes on to trace the nature and development of moral sentiment from the rudimentary powers and susceptibilities mentioned, in those that do possess them. In doing so, he follows the convenient mode of speech that takes actions for the objects that excite the susceptibilities, although, in reality, the objects are no other than human beings acting in particular ways.

The feelings he supposes to be modified in manner or degree, according as actions are (1) done by ourselves to others, or (2) done to others by others, or (3) done to others by ourselves; *i.e.*, according as we ourselves are the subjects, the spectators, or doers of them.

First, then, he considers our feelings in regard to actions done to us by others, and the more carefully, because these lie at the foundation of the rest. When a fellow-creature intentionally contributes to our pleasure, we feel the pleasure; we feel a liking to the person intentionally conferring it, and we feel an inclination to give him pleasure in return. The two last feelings—liking and inclination to reciprocate, constitute the simplest form of moral approbation; in the contrary case, dislike and resentment give the rudimentary form of moral disapprobation. It is enough to excite the feelings, that the actions are merely *thought* to be done by the person. They are moral sentiments, even although it could be supposed that there were no

other kinds of actions in the world except actions done to ourselves; but they are moral sentiments in the purely selfish form. That, for moral sentiment, mere liking and disliking must be combined with the desire to reciprocate good and evil, appears on a comparison of our different feelings towards animate and inanimate causes of pleasure and pain; there being towards inanimate objects no desire of reciprocation. To a first objection, that the violent sentiments, arising upon actions done to ourselves, should not get the temperate designation of moral approbation and disapprobation, he replies, that such extremes as the passions of gratitude and resentment must yet be identified in their origin with our cooler feelings, when we are mere spectators or actors. A second objection, that the epithet *moral* is inapplicable to sentiments involving purely personal feeling, and destitute of sympathy, he answers, by remarking that the word *moral*, in philosophy, should not eulogistically be opposed to *immoral*, but should be held as neutral, and to mean 'relating to conduct, whatever that conduct may be.' He closes the first head with the observation, that in savage life the violent desire of reciprocation is best seen; generally, however, as he gives instances to show, in the form of revenge and reciprocation of evil.

In the second place, he considers our feelings when we are spectators of actions done to others by others. These form the largest class of actions, but to us they have a meaning, for the most part at least, only as they have an analogy to actions done to ourselves. The variety of the resulting feelings, generally less intense than when we are the subjects of the actions, is illustrated first by supposing the persons affected to be those we love; in this case, the feelings are analogous to those already mentioned, and they may be even more intense than when we ourselves are personally affected. If those affected are indifferent to us, our feelings are less intense, but we are still led to feel as before, from a natural sympathy with other men's pains and pleasures—always supposing the sympathy is not (as often happens) otherwise counteracted or superseded; and also from the influence

of association, if that, too, happen not to be countervailed. Of sympathy for human beings in general, he remarks that a certain measure of civilization seems required to bring it properly out, and he cites instances to prove how much it is wanting in savages. In a third case, where the persons affected are supposed to be those we hate, we are displeased when they are made to rejoice, and pleased when they suffer, unless we are overcome by our habitual associations with good and evil actions. Such associations weigh least with rude and savage peoples, but even the most civilized nations disregard them in times of war.

He takes up, in the third place, actions done by ourselves to others. Here, when the action is beneficent, the peculiarity is that an expectation of receiving good in return from our neighbours takes the place of a desire to reciprocate; we consider ourselves the proper object of grateful thoughts, &c., on the part both of receiver and of spectators. We are affected with the gratification of a benevolent desire, with self-complacency, and with undefined hopes. When we have inflicted injury, there is the expectation of evil, and a combination of feelings summed up in the word Remorse. But Remorse, like other sentiments, may fail in the absence of cultivation of mind or under special circumstances.

Having considered the three different kinds of actions separately, he next remarks that the sentiment prevailing in each case must be liable to a reflex influence from the other cases, whereby it will be strengthened or intensified; thus we come to associate certain intensities of moral sentiment with certain kinds of action, by whomsoever or to whomsoever performed. He also notes, that in the first and third cases, as well as in the second, there is a variation of the sentiment, according as the parties affected are friends, neutrals, or enemies. Finally, a peculiar and important modification of the sentiments results from the outward manifestations of them called forth from the persons directly or indirectly affected by actions. Such are looks,

gestures, tones, words, or actions, being all efforts to gratify the natural desire of reciprocating pleasure or pain. Of these the most notable are the verbal manifestations, as they are mostly irrepressible, and can alone always be resorted to. While relieving the feelings, they can also become a most powerful, as they are often the only, instrument of reward and punishment. Their power of giving to moral sentiments greater precision, and of acting upon conduct like authoritative precepts, is seen in greatest force when they proceed from, bodies of men, whether they are regarded as signs of material consequences or not. He ends this part of the subject by defending, with Butler, the place of resentment in the moral constitution.

He proceeds to inquire how it is that not only the perfection of moral sentiment that would apportion more approbation and disapprobation according to the real tendencies of actions, is not attained, but men's moral feelings are not seldom in extreme contrariety with the real effects of human conduct. First, he finds that men, from partial views, or momentarily, or from caprice, may bestow their sentiments altogether at variance with the real consequences of actions. Next there is the difficulty, or even impossibility, of calculating all the consequences far and near; whence human conduct is liable to be appreciated on whimsical grounds or on no discernible grounds at all, and errors in moral sentiment arise, which it takes increased knowledge to get rid of. In the third place, it is a fact that our moral sentiments are to a very great extent derived from tradition, while the approbation and disapprobation may have originally been wrongly applied. The force of tradition he illustrates by supposing the case of a patriarchal family, and he cannot too strongly represent its strength in overcoming or at least struggling against natural feeling. The authoritative precept of a superior may also make actions be approved or disapproved, not because they are directly perceived or even traditionally held to be beneficial or injurious, but solely because they are commanded or prohibited. Lastly, he dwells upon the influence of superstition in perverting

moral sentiment, finding, however, that it operates most strongly in the way of creating false virtues and false vices and crimes.

These circumstances, explaining the want of conformity in our moral sentiments to the real tendencies of actions, he next employs to account for discrepancies in moral sentiment between different communities. Having given examples of such discrepancies, he supposes the case of two families, endowed with the rudimentary qualities mentioned at the beginning, but placed in different circumstances. Under the influence of dissimilar physical conditions, and owing to the dissimilar personal idiosyncracies of the families, and especially of their chiefs, there will be left few points of complete analogy between them in the first generation, and in course of time they will become two races exceedingly unlike in moral sentiment, as in other respects. He warns strongly against making moral generalizations except under analogous circumstances of knowledge and civilization. Most men have the rudimentary feelings, but there is no end to the variety of their intensity and direction. As a highest instance of discrepant moral sentiment, he cites the fact that, in our own country, a moral stigma is still attached to intellectual error by many people, and even by men of cultivation.

He now comes to the important question of the test or criterion that is to determine which of these diverse sentiments are right and which wrong, since they cannot all be right from the mere fact of their existence, or because they are felt by the subjects of them to be right, or believed to be in consonance with the injunctions of superiors, or to be held also by other people. The foregoing review of the *genesis* of moral sentiments suggests a direct and simple answer. As they arise from likings and dislikings of actions that cause, or tend to cause, pleasure and pain, the first thing is to see that the likings and dislikings are well founded. Where this does not at once appear, examination of the real effects of actions must be resorted to; and, in dubious cases, men in general, when unprejudiced, allow this to be

the natural test for applying moral approbation and disapprobation. If, indeed, the end of moral sentiment is to promote or to prevent the actions, there can be no better way of attaining that end. And, as a fact, almost all moralists virtually adopt it on occasion, though often unconsciously; the greatest happiness—principle is denounced by its opponents as a *mischievous* doctrine.

The objection that the criterion of consequences is difficult of application, and thus devoid of practical utility, he rebuts by asserting that the difficulty is not greater than in other cases. We have simply to follow effects as far as we can; and it is by its ascertainable, not by its unascertainable, consequences, that we pronounce an action, as we pronounce an article of food or a statute, to be good or bad. The main effects of most actions are already very well ascertained, and the consequences to human happiness, when unascertainable, are of no value. If the test were honestly applied, ethical discrepancies would tend gradually to disappear.

He starts another objection:—The happiness-test is good as far as it goes, but we also approve and disapprove of actions as they are just or generous, or the contrary, and with no reference to happiness or unhappiness. In answering this argument, he confines himself to the case of Justice. To be morally approved, a just action must in itself be peculiarly pleasant or agreeable, irrespective of its other effects, which are left out: for on no theory can pleasantness or agreeableness be dissociated from moral approbation. Now, as Happiness is but a general appellation for all the agreeable affections of our nature, and unable to exist except in the shape of some agreeable emotion or combinations of agreeable emotions; the just action that is morally commendable, as giving naturally and directly a peculiar kind of pleasure independent of any other consequences, only produces one species of those pleasant states of mind that are ranged under

the genus happiness. The test of justice therefore coincides with the happiness-test. But he does not mean that we are actually affected thus, in doing just actions, nor refuse to accept justice as a criterion of actions; only in the one case he maintains that, whatever association may have effected, the just act must originally have been approved for the sake of its consequences, and, in the other, that justice is a criterion, because proved over and over again to be a most beneficial principle.

After remarking that the Moral Sentiments of praise and blame may enter into accidental connection with, other feelings of a distinct character, like pity, wonder, &c., he criticises the use of the word *Utility* in Morals. He avoids the term as objectionable, because the *useful* in common language does not mean what is directly productive of happiness, but only what is instrumental in its production, and in most cases customarily or recurrently instrumental. A blanket is of continual utility to a poor wretch through a severe winter, but the benevolent act of the donor is not termed useful, because it confers the benefit and ceases. Utility is too narrow to comprehend all the actions that deserve approbation. We want an uncompounded substantive expressing the two attributes of *conferring* and *conducting to* happiness; as a descriptive phrase, *producing* happiness is as succinct as any. The term useful is, besides, associated with the notion of what is serviceable in the affairs and objects of common life, whence the philosophical doctrine that erects utility as its banner is apt to be deemed, by the unthinking, low, mean, and derogatory to human nature and aspirations, although its real import is wholly free from such a reproach. Notwithstanding, therefore, the convenience of the term, and because the associations connected with it are not easily eradicated, whilst most of the trite objections to the true doctrine of morals turn upon its narrow meanings, he thinks it should be as much as possible disused.

Mr. Bailey ends by remarking of the common question, whether our moral sentiments have their origin in Reason, or in a separate power called the Moral Sense, that in his view of man's sensitive and intellectual nature it is easily settled. He recognizes the feelings that have been enumerated, and, in connexion with them, intellectual processes of discerning and inferring; for which, if the Moral Sense and Reason are meant as anything more than unnecessary general expressions, they are merely fictitious entities. So, too, Conscience, whether as identified with the moral sense, or put for sensibility in regard to the moral qualities of one's own mind, is a mere personification of certain mental states. The summary of Bailey's doctrine falls within the two first heads.

I.—The Standard is the production of Happiness. [It should be remarked, however, that happiness is a wider aim than morality; although all virtue tends to produce happiness, very much that produces happiness is not virtue.]

II.—The Moral Faculty, while involving processes of discernment and inference, is mainly composed of certain sentiments, the chief being Reciprocity and Sympathy. [These are undoubtedly the largest ingredients in a mature, self-acting conscience; and the way that they contribute to the production of moral sentiment deserved to be, as it has been, well handled. The great omission in Mr. Bailey's account is the absence of the element of *authority*, which is the main instrument in imparting to us the sense of obligation.]

HERBERT SPENCER.

Mr. Spencer's ethical doctrines are, as yet, nowhere fully expressed. They form part of the more general doctrine of Evolution which he is engaged in working out; and they are at present to be gathered only from scattered

passages. It is true that, in his first work, *Social Statics* he presented what he then regarded as a tolerably complete view of one division of Morals. But without abandoning this view, he now regards it as inadequate—more especially in respect of its basis.

Mr. Spencer's conception of Morality as a science, is conveyed in the following passages in a letter written by him to Mr. Mill; repudiating the title anti-utilitarian, which Mr. Mill had applied to him:—

'The note in question greatly startled me by implicitly classing me with Anti-utilitarians. I have never regarded myself as an Anti-utilitarian. My dissent from the doctrine of Utility as commonly understood, concerns not the object to be reached by men, but the method of reaching it. While I admit that happiness is the ultimate end to be contemplated, I do not admit that it should be the proximate end. The Expediency-Philosophy having concluded that happiness is a thing to be achieved, assumes that Morality has no other business than empirically to generalize the results of conduct, and to supply for the guidance of conduct nothing more than its empirical generalizations.

But the view for which I contend is, that Morality properly so called—the science of right conduct—has for its object to determine *how* and *why* certain modes of conduct are detrimental, and certain other modes beneficial. These good and bad results cannot be accidental, but must be necessary consequences of the constitution of things; and I conceive it to be the business of Moral Science to deduce, from the laws of life and the conditions of existence, what kinds of action necessarily tend to produce happiness, and what kinds to produce unhappiness. Having done this, its deductions are to be recognized as laws of conduct; and are to be conformed to irrespective of a direct estimation of happiness or misery.

'Perhaps an analogy will most clearly show my meaning. During its early stages, planetary Astronomy consisted of nothing more than accumulated observations respecting the positions and motions of the sun and planets; from which accumulated observations it came by and by to be empirically predicted, with an approach to truth, that certain of the heavenly bodies would have certain positions at certain times. But the modern science of planetary Astronomy consists of deductions from the law of gravitation—deductions showing why the celestial bodies *necessarily* occupy certain places at certain times. Now, the kind of relation which thus exists between ancient and modern Astronomy, is analogous to the kind of relation which, I conceive, exists between the Expediency-Morality, and Moral Science properly so-called. And the objection which I have to the current Utilitarianism, is, that it recognizes no more developed form of morality—does not see that it has reached but the initial stage of Moral Science.

'To make my position fully understood, it seems needful to add that, corresponding to the fundamental propositions of a developed Moral Science, there have been, and still are, developing in the race, certain fundamental moral intuitions; and that, though these moral intuitions are the results of accumulated experiences of Utility, gradually organized and inherited, they have come to be quite independent of conscious experience. Just in the same way that I believe the intuition of space, possessed by any living individual, to have arisen from organized and consolidated experiences of all antecedent individuals who bequeathed to him their slowly-developed nervous organizations—just as I believe that this intuition, requiring only to be made definite and complete by personal experiences, has practically become a form of thought, apparently quite independent of experience; so do I believe that the experiences of utility organised and consolidated through all past generations of the human race, have been producing corresponding nervous modifications, which, by continued transmission and accumulation, have become in us certain

faculties of moral intuition—certain emotions responding to right and wrong conduct, which have no apparent basis in the individual experiences of utility. I also hold that just as the space-intuition responds to the exact demonstrations of Geometry, and has its rough conclusions interpreted and verified by them; so will moral intuitions respond to the demonstrations of Moral Science, and will have their rough conclusions interpreted and verified by them.'

The relations between the Expediency-Morality, and Moral Science, conceived by Mr. Spencer to be, the one transitional, and the other ultimate, are further explained in the following passage from his essay on 'Prison-Ethics':—

'Progressing civilization, which is of necessity a succession of compromises between old and new, requires a perpetual re-adjustment of the compromise between the ideal and the practicable in social arrangements: to which end both elements of the compromise must be kept in view. If it is true that pure rectitude prescribes a system of things far too good for men as they are; it is not less true that mere expediency does not of itself tend to establish a system of things any better than that which exists. While absolute morality owes to expediency the checks which prevent it from rushing into utopian absurdities; expediency is indebted to absolute morality for all stimulus to improvement. Granted that we are chiefly interested in ascertaining what is *relatively right*; it still follows that we must first consider what is *absolutely right*; since the one conception presupposes the other. That is to say, though we must ever aim to do what is best for the present times, yet we must ever bear in mind what is abstractedly best; so that the changes we make may be *towards* it, and not *away* from it.'

By the word *absolute* as thus applied, Mr. Spencer does not mean to imply a right and wrong existing apart from Humanity and its relations. Agreeing with Utilitarians in the belief that happiness is the end, and that the conduct called moral is simply the best means of attaining it, he of course does not assert that there is a morality which is absolute in the sense of being true out of relation to human existence. By absolute morality as distinguished from relative, he here means the mode of conduct which, under the conditions arising from social union, must be pursued to achieve the greatest welfare of each and all. He holds, that the laws of Life, physiologically considered, being fixed, it necessarily follows that when a number of individuals have to live in social union, which necessarily involves fixity of conditions in the shape of mutual interferences and limitations, there result certain fixed principles by which conduct must be restricted, before the greatest sum of happiness can be achieved. These principles constitute what Mr. Spencer distinguishes as absolute Morality; and the absolutely moral man is the man who conforms to these principles, not by external coercion nor self-coercion, but who acts them out spontaneously.

To be fully understood, this conception must be taken along with the general theory of Evolution. Mr. Spencer argues that all things whatever are inevitably tending towards equilibrium; and that consequently the progress of mankind cannot cease until there is equilibrium between the human constitution and the conditions of human existence. Or, as he argues in *First Principles* (Second Edition, p. 512), 'The adaptation of man's nature to the conditions of his existence cannot cease until the internal forces which we know as feelings are in equilibrium with the external forces they encounter. And the establishment of this equilibrium, is the arrival at a state of human nature and social organization, such that the individual has no desires but those which may be satisfied without exceeding his proper sphere of action, while society maintains no restraints but those which the individual

voluntarily respects. The progressive extension of the liberty of citizens, and the reciprocal removal of political restrictions, are the steps by which we advance towards this state. And the ultimate abolition of all limits to the freedom of each, save those imposed by the like freedom of all, must, result from the complete equilibration between man's desires and the conduct necessitated by surrounding conditions.'

The conduct proper to such a state, which Mr. Spencer thus conceives to be the subject-matter of Moral Science, truly so-called, he proposes, in the Prospectus to his *System of Philosophy*, to treat under the following heads.

PERSONAL MORALS.—The principles of private conduct—physical, intellectual, moral, and religious—that follow from the conditions to complete individual life; or, what is the same thing, those modes of private action which must result from the eventual equilibration of internal desires and external needs.

JUSTICE.—The mutual limitation of men's actions necessitated by their co-existence as units of a society—limitations, the perfect observance of which constitutes that state of equilibrium forming the goal of political progress.

NEGATIVE BENEFICENCE.—Those secondary limitations, similarly necessitated, which, though less important and not cognizable by law, are yet requisite to prevent mutual destruction of happiness in various indirect ways: in other words—those minor self-restraints dictated by what may be called passive sympathy.

POSITIVE BENEFICENCE.—Comprehending all modes of conduct, dictated by active sympathy, which imply pleasure in giving pleasure—modes of conduct that social adaptation has induced and must render ever

more general; and which, in becoming universal, must fill to the full the possible measure of human happiness.

* * * * *

This completes the long succession of British moralists during the three last centuries. It has been possible, and even necessary, to present them thus in an unbroken line, because the insular movement in ethical philosophy has been hardly, if at all, affected by anything done abroad. In the earlier part of the modern period, little of any kind was done in ethics by the great continental thinkers. Descartes has only a few allusions to the subject; the 'Ethica' of Spinoza is chiefly a work of speculative philosophy; Leibnitz has no systematic treatment of moral questions. The case is very different; in the new German philosophy since the time of Kant; besides Kant himself, Fichte, Hegel, Schleiermacher, and many later and contemporary thinkers having devoted a large amount of attention to practical philosophy. But unless it be Kant—and he not to any great extent—none of these has influenced the later attempts at ethical speculation amongst ourselves: nor, again with the exception of Kant, are we as yet in a position properly to deal with them. One reason, for proceeding to expound the ethical system of the founder of the later German philosophy, without regard to his successors, lies in the fact that he stood, on the practical side, in as definite a relation to the English moralists of last century, as, in his speculative philosophy, to Locke and Hume.

IMMANUEL, KANT. [1724-1804.]

The ethical writings of Kant, in the order of their appearance, are—*Foundation for the Metaphysic of Morals* (1785); *Critique of the Practical Reason* (1788); *Metaphysic of Morals* (1797, in two parts—(1) *Doctrine of Right* or Jurisprudence, (2) *Doctrine of Virtue* or Ethics proper). The third work contains the details of his system; the general theory is presented in

the two others. Of these we select for analysis the earlier, containing, as it does, in less artificial form, an ampler discussion of the fundamental questions of morals; but towards the end it must be supplemented, in regard to certain characteristic doctrines, from the second, in some respects more developed, work.[26]

In the introduction to the *Metaphysic of Morals*, Kant distinguishes between the empirical and the rational mode of treating Ethics. He announces his intention to depart from the common plan of mixing up the two together, and to attempt for once to set forth the *pure* moral philosophy that is implied even in the vulgar ideas of duty and moral law. Because a moral law means an absolute necessity laid on all rational beings whatever, its foundation is to be sought, not in human nature or circumstances, but *à priori* in the conception of pure reason. The most universal precept founded on mere experience is only a practical rule, and never a moral law. A purely rational moral philosophy, or *Metaphysic of Morals*, will serve the double end of meeting a speculative requirement, and of furnishing the only true norm of practice. It investigates the idea and principles of a potentially pure Will, instead of the acts and conditions of human volition as known from psychology. Not a complete *Metaphysic of Morals*, however, (which would be a *Critique of the pure Practical Reason*), but merely a foundation for such will be given. The supreme principle of morality is to be established, apart from detailed application. First, common notions will be analyzed in order to get at this highest principle; and then, when the principle has been sought out, they will be returned upon by way of synthesis.

In the first of the three main sections of the work, he makes the passage from Common Rational Knowledge of Morals to Philosophical. Nothing in the world, he begins, can without qualification be called good, except *Will*. Qualities of temperament, like courage, &c., gifts of fortune, like wealth

and power, are good only with reference to a good will. As to a good will, when it is really such, the circumstance that it can, or cannot, be executed does not matter; its value is independent of the utility or fruitlessness of it.

This idea of the absolute worth of mere Will, though it is allowed even by the vulgar understanding, he seeks to establish beyond dispute, by an argument from the natural *subjection* of Will to Reason. In a being well-organized, if Conservation or Happiness were the grand aim, such subjection would be a great mistake. When Instinct could do the work far better and more surely, Reason should have been deprived of all practical function. Discontent, in fact, rather than happiness comes of pursuit of mere enjoyment by rational calculation; and to make light of the part contributed by Reason to happiness, is really to make out that it exists for a nobler purpose. But now, since Reason *is* a practical faculty and governs the will, its function can only be to produce a Will good in itself. Such a Will, if not the only good, is certainly the highest; and happiness, unattainable by Reason as a primary aim, and subject in this life altogether to much limitation, is to be sought only in the contentment that arises from the attainment by Reason of its true aim, at the sacrifice often of many a natural inclination.

He proceeds to develop this conception of a Will in itself good and estimable, by dealing with the commonly received ideas of Duty. Leaving aside profitable actions that are plain violations of duty, and also actions conformed to duty, but, while not prompted directly by nature, done from some special inclination—in which case it is easy to distinguish whether the action is done from duty or from self-interest; he considers those more difficult cases where the same action is at once duty, and prompted by direct natural inclination. In all such, whether it be duty of self-preservation, of benevolence, of securing one's own happiness (this last a duty, because discontent and the pressure of care may easily lead to the transgression of

other duties), he lays it down that the action is not allowed to have true moral value, unless done in the abeyance or absence of the natural inclination prompting to it. A second position is, that the moral value of an action done from duty lies not in the intention of it, but in the maxim that determines it; not in the object, but in the *principle of Volition*. That is to say, in action done out of regard to duty, the will must be determined by its *formal à priori* principle, not being determined by any *material à posteriori* motive. A third position follows then from the other two; Duty is the necessity of an action out of respect for Law. Towards an object there may be inclination, and this inclination may be matter for approval or liking; but it is Law only—the ground and not the effect of Volition, bearing down inclination rather than serving it—that can inspire *Respect*. When inclination and motives are both excluded, nothing remains to determine Will, except Law objectively; and, subjectively, pure respect for a law of practice—*i.e.*, the maxim to follow such a law, even at the sacrifice of every inclination. The conception of Law-in-itself alone determining the will, is, then, the surpassing good that is called moral, which exists already in a man before his action has any result. Conformity to Law in general, all special motive to follow any single law being excluded, remains as the one principle of Volition: I am never to act otherwise, than so as to be able also to wish that my maxim (*i.e.*, my subjective principle of volition) should become a universal law. This is what he finds implied in the common notions of Duty.

Having illustrated at length this reading, in regard to the duty of keeping a promise, he contrasts, at the close of the section, the all but infallibility of common human reason in practice with its helplessness in speculation. Notwithstanding, it finds itself unable to settle the contending claims of Reason and Inclination, and so is driven to devise a practical philosophy, owing to the rise of a 'Natural Dialectic' or tendency to refine upon the strict laws of duty in order to make them more pleasant. But, as in the speculative

region, the Dialectic cannot be properly got rid of without a complete Critique of Reason.

In Section II. the passage is made from the popular moral philosophy thus arising to the metaphysic of morals. He denies that the notion of duty that has been taken above from common sense is empirical. It is proved not to be such from the very assertions of philosophers that men always act from more or less refined self-love; assertions that are founded upon the difficulty of proving that acts most apparently conformed to duty are really such. The fact is, no act *can* be proved by experience to be absolutely moral, *i.e.*, done solely from regard to duty, to the exclusion of all inclination; and therefore to concede that morality and duty are ideas to be had from experience, is the surest way to get rid of them altogether. Duty, and respect for its law, are not to be preserved at all, unless Reason is allowed to lay *absolute* injunctions on the will, whatever experience says of their non-execution. How, indeed, is experience to disclose a moral law, that, in applying to all rational beings as well as men, and to men only as rational, must originate *à priori* in pure (practical) Reason? Instead of yielding the principles of morality, empirical examples of moral conduct have rather to be judged by these.

All supreme principles of morality, that are genuine, must rest on pure Reason solely; and the mistake of the popular practical philosophies in vogue, one and all—whether advancing as their principle a special determination of human nature, or Perfection, or Happiness, or Moral Feeling, or Fear of God, or a little of this and a little of that—is that there has been no previous consideration whether the principles of morality are to be sought for in our empirical knowledge of human nature at all. Such consideration would have shown them to be altogether *à priori*, and would have appeared as a *pure* practical philosophy or metaphysic of morals (upon the completion of which any popularizing might have waited), kept free

from admixture of Anthropology, Theology, Physics, Hyperphysics, &c., and setting forth the conception of Duty as purely rational, without the confusion of empirical motives. To a metaphysic of this kind, Kant is now to ascend from the popular philosophy, with its stock-in-trade of single instances, following out the practical faculty of Reason from the general rules determining it, to the point where the conception of Duty emerges.

While things in nature work according to laws, rational beings alone can act according to a conceived idea of laws, *i.e.*, to principles. This is to have a Will, or, what is the same, Practical Reason, reason being required in deducing actions from laws. If the Will follows Reason exactly and without fail, actions objectively necessary are necessary also subjectively; if, through subjective conditions (inclinations, &c.), the Will does not follow Reason inevitably, objectively necessary actions become subjectively contingent, and towards the objective laws the attitude of the will is no longer unfailing choice, but *constraint*. A constraining objective principle mentally represented, is a *command*; its formula is called *Imperative*, for which the expression is *Ought*. A will perfectly good—*i.e.*, subjectively determined to follow the objective laws of good as soon as conceived—knows no Ought. Imperatives are only for an imperfect, such as is the human, will. *Hypothetical* Imperatives represent the practical necessity of an action as a means to an end, being *problematical* or *assertory* principles, according as the end is possible or real. *Categorical* Imperatives represent an action as objectively necessary for itself, and count as *apodeictical* principles.

To the endless number of possible aims of human action correspond as many Imperatives, directing merely how they are to be attained, without any question of their value; these are Imperatives of *Fitness*. To one real aim, existing necessarily for all rational beings, *viz.*, Happiness, corresponds the Imperative of *Prudence* (in the narrow sense), being

assertory while hypothetical. The categorical Imperative, enjoining a mode of action for itself, and concerned about the form and principle of it, not its nature and result, is the Imperative of *Morality*. These various kinds of Imperatives, as influencing the will, may be distinguished as *Rules* (of fitness), *Counsels* (of prudence), *Commands* or *Laws* (of morality); also as *technical*, *pragmatical*, *moral*.

Now, as to the question of the possibility of these different Imperatives—how they can be supposed able to influence or act upon the Will—there is in the first case no difficulty; in wishing an end it is necessarily implied that we wish the indispensable means, when this is in our power. In like manner, the Imperatives of Prudence are also *analytical* in character (*i.e.*, given by implication), if only it were possible to have a definite idea of the end sought, viz., happiness. But, in fact, with the elements of happiness to be got from experience at the same time that the idea requires an absolute whole, or maximum, of satisfaction now and at every future moment, no finite being can know precisely what he wants, or what may be the effect of any of his wishes. Action, on fixed principles, with a view to happiness, is, therefore, not possible; and one can only follow empirical directions, about Diet, Frugality, Politeness, &c., seen on the whole to promote it. Although, however, there is no certainty of causing happiness, and the Imperatives with reference thereto are mere counsels, they retain their character of analytical propositions, and their action on the will is not less possible than in the former case.

To prove the possibility of the Imperative of morality is more difficult. As categorical, it presupposes nothing else to rest its necessity upon; while by way of experience, it can never be made out to be more than a prudential precept—*i.e.*, a pragmatic or hypothetic principle. Its possibility must therefore be established *à priori*. But the difficulty will then appear no

matter of wonder, when it is remembered (from the Critique of Pure Reason) how hard it is to establish synthetic propositions *à priori*.

The question of the possibility, however, meanwhile postponed, the mere conception of a categorical Imperative is found to yield the one formula that can express it, from its not being dependent, like a hypothetical Imperative, on any external condition. Besides the Law (or objective principle of conduct), the only thing implied in the Imperative being the necessity laid upon the *Maxim* (or subjective principle) to conform to the law—a law limited by no condition; there is nothing for the maxim to be conformed to but the universality of a law in general, and it is the conformity alone that properly constitutes the Imperative necessary. The Imperative is thus single, and runs: *Act according to that maxim only which you can wish at the same time to become a universal law*. Or, since universality of law as determining effects is what we understand by nature: *Act as if the maxim of your action ought by your will to become the universal law of nature*.

Taking cases of duties according to the common divisions of duties to ourselves and to others, perfect and imperfect, he proceeds to show that they may be all deduced from the single Imperative; the question of the *reality* of duty, which is the same as the establishment of the possibility of the Imperative as a synthetic practical proposition *à priori*, at present altogether apart. Suppose a man tempted to commit suicide, with the view of bettering his evil condition; but it is contradictory that the very principle of self-conservation should lead to self-destruction, and such a maxim of conduct cannot therefore become a universal law of nature. Next, the case of a man borrowing without meaning to repay, has only to be turned into a universal law, and the thing becomes impossible; nobody would lend. Again, to neglect a talent that is generally useful for mere ease and self-gratification, can indeed be supposed a universal practice, but can never be wished to be. Finally, to refuse help to others universally might not ruin the

race, but can be wished by no one that knows how soon he must himself need assistance. Now, the rule was, that a maxim of conduct should be *wished* to become the universal law. In the last two cases, it cannot be wished; in the others, the maxim cannot even be conceived in universal form. Thus, two grades of duty, one admitting of merit, the other so strict as to be irremissible, are established on the general principle. The principle is moreover confirmed in the case of transgression of duty: the transgressor by no means wishes to have his act turned into a general rule, but only seeks special and temporary exemption from a law allowed by himself to be universal.

Notwithstanding this force and ease of application, a categorical Imperative has not yet been proved *à priori* actually existent; and it was allowed that it could not be proved empirically, elements of inclination, interest, &c., being inconsistent with morality. The real question is this: Is it a necessary law that all rational beings should act on maxims that they can wish, to become universal laws? If so, this must be bound up with the very notion of the will of a rational being; the relation of the will to itself being to be determined *à priori* by pure Reason. The Will is considered as a power of self-determination to act according to certain laws as represented to the mind, existing only in rational beings. And, if the objective ground of self-determination, or *End*, is supplied by mere Reason, it must be the same for all rational beings. *Ends* may be divided into *Subjective*, resting upon individual *Impulses* or subjective grounds of desire; and *Objective*, depending on *Motives* or objective grounds of Volition valid for all rational beings. The principles of action are, in the one case, *Material*, and, in the other, *Formal*, *i.e.*, abstracted from all subjective ends. Material ends, as relative, beget only hypothetical Imperatives. But, supposed some thing, the presence of which in itself has an absolute value, and which, as End-in-itself, can be a ground of fixed laws; there, and there only, can be the ground of a possible categorical Imperative, or Law of Practice.

Now, such an End-in-self (not a thing with merely conditional value,—a means to be used arbitrarily) is Man and every rational being, as *Person*. There is no other objective end with absolute value that can supply to the Reason the supreme practical principle requisite for turning subjective principles of action into objective principles of volition. Rational Nature as End-in-self is a subjective principle to a man having this conception of his own being, but becomes objective when every rational being has the same from the same ground in Reason. Hence a new form (the second) to the practical Imperative: *Act so as to use Humanity (Human Nature) as well in your own person, as in the person of another, ever as end also, and never merely as means.*

To this new formula, the old examples are easily squared. Suicide is using one's person as a mere means to a tolerable existence; breaking faith to others is using them as means, not as ends-in-self; neglect of self-cultivation is the not furthering human nature as end-in-self in one's own person; withholding help is refusing to further Humanity as end-in-self through the medium of the aims of others. [In a note he denies that 'the trivial, Do to others as you would,' &c., is a full expression of the law of duty: it contains the ground, neither of duties to self; nor of duties of benevolence to others, for many would forego receiving good on conditions of not conferring it; nor of the duty of retribution, for the malefactor could turn it against his judge, &c.]

The universality of this principle of Human and Rational Nature as End-in-self, as also its character of objective end limiting merely subjective ends, prove that its source is in pure Reason. Objectively, the ground of all practical legislation is Rule and the Form of Universality that enables rule to be Law (of Nature), according to principle first (in its double form); subjectively, it is End, the subject of all ends being every rational being as End-in-self, according to principle second. Hence follows the third practical

principle of the Will, as supreme condition of its agreement with universal practical Reason—the *idea of the Will of every rational being as a Will that legislates universally*. The Will, if subject to law, has first itself imposed it.

This new idea—of the Will of every rational being as universally legislative—is what, in the implication of the Categorical Imperative, specifically marks it off from any Hypothetical: Interest is seen to be quite incompatible with Duty, if Duty is Volition of this kind. A will merely subject to laws can be bound to them by interest; not so a will itself legislating supremely, for that would imply another law to keep the interest of self-love from trenching upon the validity of the universal law. Illustration is not needed to prove that a Categorical Imperative, or law for the will of every rational being, if it exist at all, cannot exclude Interest and be unconditional, except as enjoining everything to be done from the maxim of a will that in legislating universally can have itself for object. This is the point that has been always missed, that the laws of duty shall be at once self-imposed and yet universal. Subjection to a law not springing from one's own will implies interest or constraint, and constitutes a certain necessity of action, but never makes Duty. Be the interest one's own or another's, the Imperative is conditional only. Kant's principle is the *Autonomy of the Will*; every other its *Heteronomy*.

The new point of view opens up the very fruitful conception of an *Empire or Realm of Ends*. As a Realm is the systematic union of rational beings by means of common laws, so the ends determined by the laws may, abstractly viewed, be taken to form a systematic whole. Rational beings, as subject to a law requiring them to treat themselves and others as ends and never merely as means, enter into a systematic union by means of common objective laws, *i.e.* into an (ideal) Empire or Realm of Ends, from the laws being concerned about the mutual relations of rational beings as Ends and Means. In this Realm, a rational being is either Head or Member: Head, if

legislating universally and with complete independence; Member, if also universally, but at the same time subject to the laws. When now the maxim of the will does not by nature accord necessarily with the demand of the objective principle—that the will through its maxim be able to regard itself at the same time as legislating; universally—a practical constraint is exerted by the principle, which is *Duty*, lying on every Member in the Realm of Ends (not on the Head) alike. This necessity of practice reposes, not on feeling, impulse, or inclination, but on the relation between rational beings arising from the fact that each, as End-in-self, legislates universally. The Reason gives a universal application to every maxim of the Will; not from any motive of interest, but from the idea of the *Dignity* of a rational being that follows no law that it does not itself at the same time give.

Everything in the Realm of Ends has either a *Price* or a *Dignity*. Skill, Diligence, &c., bearing on human likings and needs, have a *Market-price*; Qualities like Wit, Fancy, &c., appealing to Taste or Emotional Satisfaction, have an *Affection-price*. But Morality, the only way of being End-in-self, and legislating member in the Realm of Ends, has an intrinsic *Worth or Dignity*, calculable in nothing else. Its worth is not in results, but in dispositions of Will; its actions need neither recommendation from a subjective disposition or taste, nor prompting from immediate tendency or feeling. Being laid on the Will by Reason, they make the Will, in the execution, the object of an immediate *Respect*, testifying to a Dignity beyond all price. The grounds of these lofty claims in moral goodness and virtue are the participation by a rational being in the universal legislation, fitness to be a member in a possible Realm of Ends, subjection only to self-imposed laws. Nothing having value but as the law confers it, an unconditional, incomparable worth attaches to the giving of the law, and *Respect* is the only word that expresses a rational being's appreciation of that. Autonomy is thus the foundation of the dignity of human and of all rational nature.

The three different expressions that have been given to the one general principle of morality imply each the others, and differ merely in their mode of presenting one idea of the Reason to the mind. *Universal application of the Maxim of Conduct, as if it were a law of nature*, is the formula of the Will as absolutely good; *universal prohibition against the use of rational beings ever as means only*, has reference to the fact that a good will in a rational being is an altogether independent and ultimate End, an End-in-itself in all; *universal legislation of each for all* recognizes the prerogative or special dignity of rational beings, that they necessarily take their maxims from the point of view of all, and must regard themselves, being Ends-in-itself, as members in a Realm of Ends (analogous to the Realm, or Kingdom of Nature), which, though merely an ideal and possible conception, none the less really imposes an imperative upon action. *Morality*, he concludes, is *the relation of actions to the Autonomy of the Will, i.e., to possible universal legislation through its maxims*. Actions that can co-exist with this autonomy are *allowed*; all others are not. A will, whose maxims necessarily accord with the laws of Autonomy, is holy, or absolutely good; the dependence of a will not thus absolutely good is *Obligation*. The objective necessity of an action from obligation is *Duty*. *Subjection to law* is not the only element in duty; the fact of the law being self-imposed gives *Dignity*.

The Autonomy of the will is its being a law to itself, without respect to the objects of volition; the principle of autonomy is to choose only in such a way as that the maxims of choice are conceived at the same time as a universal law. This rule cannot be proved analytically to be an Imperative, absolutely binding on every will; as a synthetic proposition it requires, besides a knowledge of the objects, a critique of the subject, *i.e., pure practical Reason*, before, in its apodeictic character, it can be proved completely *à priori*. Still the mere analysis of moral conceptions has sufficed to prove it the sole principle of morals, because this principle is seen to be a categorical Imperative, and a categorical Imperative enjoins

neither more nor less than this Autonomy. If, then, Autonomy of Will is the supreme principle, Heteronomy is the source of all ungenuine principles, of Morality. Heteronomy is whenever the Will does not give itself laws, but some object, in relation to the Will, gives them. There is then never more than a hypothetical Imperative: I am to do something because I wish something else.

There follows a division and criticism of the various possible principles of morality that can be set up on the assumption of Heteronomy, and that have been put forward by human Reason in default of the required Critique of its pure use. Such, are either *Empirical* or *Rational*. The Empirical, embodying the principle of *Happiness*, are founded on (1) *physical* or (2) *moral feeling*; the Rational, embodying the principle of *perfection*, on (1) the rational conception of it as a possible result, or (2) the conception of an independent perfection (the Will of God), as the determining cause of the will. The Empirical principles are altogether to be rejected, because they can give no universal law for all rational beings; of the Rational principles, the first, though setting up an empty and indefinite conception, has the merit of at least making an appeal from sense to pure reason. But the fatal objection to all four is their implying Heteronomy; no imperative founded on them can utter moral, *i.e.*, categorical commands.

That the absolutely good Will must be autonomous—*i.e.*, without any kind of motive or interest, lay Commands on itself that are at the same time fit to be laws for all rational beings, appears, then, from a deeper consideration of even the popular conceptions of morality. But now the question can no longer be put off: Is Morality, of which this is the only conception, a reality or a phantom? All the different expressions given to the Categorical Imperatives are synthetic practical propositions *a priori*; they postulate a possible synthetic use of the pure practical reason. Is there, and how is there, such a possible synthetic use? This is the question (the

same as the other) that Kant proceeds to answer in the Third Section, by giving, in default of a complete Critique of the faculty, as much as is necessary for the purpose. But here, since he afterwards undertook the full Critique, it is better to stop the analysis of the earlier work, and summarily draw upon both for the remainder of the argument, and the rather because some important points have to be added that occur only in the later treatise. The foregoing is a sufficient example of his method of treatment.

The synthetic use of the pure practical reason, in the Categorical Imperative, is legitimized; Autonomy of the Will is explained; Duty is shown to be no phantom—through the conception of Freedom of Will, properly understood. Theoretically (speculatively), Freedom is undemonstrable; being eternally met, in one of the (cosmological) Antinomies of the Pure Reason, by the counter-assertion that everything in the universe takes place according to unchanging laws of nature. Even theoretically, however, Freedom is not inconceivable, and morally we become certain of it; for we are conscious of the 'ought' of duty, and with the 'ought' there must go a 'can.' It is not, however, as Phenomenon or Sensible Ens that a man 'can,' is free, has an absolute initiative; all phenomena or Sensible Entia, being in space and time, are subject to the Natural Law of Causality. But man is also Noumenon, Thing-in-self, Intelligible Ens; and as such, being free from conditions of time and space, stands outside of the sequence of Nature. Now, the Noumenon or Ens of the Reason (he assumes) stands higher than, or has a value above, the Phenomenon or Sensible Ens (as much as Reason stands higher than Sense and Inclination); accordingly, while it is only man as Noumenon that 'can,' it is to man as Phenomenon that the 'ought' is properly addressed; it is upon man as Phenomenon that the law of Duty, prescribed, with perfect freedom from motive, by Man as Noumenon, is laid.

Freedom of Will in Man as Rational End or Thing-in-itself is thus the great Postulate of the pure Practical Reason; we can be sure of the fact (although it must always remain speculatively undemonstrable), because else there could be no explanation of the Categorical Imperative of Duty. But inasmuch as the Practical Reason, besides enjoining a law of Duty, must provide also a final end of action in the idea of an unconditioned Supreme Good, it contains also two other Postulates: Man being a sentient as well as a rational being, Happiness as well as Perfect Virtue or Moral Perfection must enter into the Summum Bonum (not, one of them to the exclusion of the other, as the Stoics and Epicureans, in different senses, declared). Now, since there is no such necessary conjunction of the two in nature, it must be sought otherwise. It is found in postulating *Immortality* and *God*.

Immortality is required to render possible the attainment of moral perfection. Virtue out of *respect* for law, with a constant tendency to fall away, is all that is attainable in life. The *Holiness*, or complete accommodation of the will to the Moral Law, implied in the Summum Bonum, can be attained to only in the course of an infinite progression; which means personal Immortality. [As in the former case, the *speculative* impossibility of proving the immateriality, &c., of the supernatural soul is not here overcome; but Immortality is *morally* certain, being demanded by the Practical Reason.]

Moral perfection thus provided for, *God* must be postulated in order to find the ground of the required conjunction of Felicity. Happiness is the condition of the rational being in whose whole existence everything goes according to wish and will; and this is not the condition of man, for in him observance of the moral law is not conjoined with power of disposal over the laws of nature. But, as Practical Reason demands the conjunction, it is to be found only in a being who is the author at once of Nature and of the Moral Law; and this is God. [The same remark once more applies, that here

what is obtained is a *moral* certainty of the existence of the Deity: the negative result of the Critique of the Pure (*speculative*) Reason abides what it was.]

We may now attempt to summarize this abstruse Ethical theory of Kant.

I.—The STANDARD of morally good action (or rather Will), as expressed in the different forms of the Categorical Imperative, is the possibility of its being universally extended as a law for all rational beings. His meaning comes out still better in the obverse statement: The action is bad that *cannot be*, or at least *cannot be wished to lie*, turned unto a universal law.

II.—Kant would expressly demur to being questioned as to his PSYCHOLOGY of Ethics; since he puts his own theory in express opposition to every other founded upon any empirical view of the mental constitution. Nevertheless, we may extract some kind of answers to the usual queries.

The Faculty is the (pure Practical) Reason. The apprehension of what is morally right is entirely an affair of Reason; the only element of Feeling is an added Sentiment of Awe or Respect for the law that Reason imposes, this being a law, not only for me who impose it on myself, but at the same time for every rational agent. The Pure Reason, which means with Kant the Faculty of Principles, is *Speculative* or *Practical*. As *Speculative*, it requires us to bring our knowledge (of the understanding) to certain higher unconditioned unities (Soul, Cosmos, God); but there is error if these are themselves regarded as facts of knowledge. As *Practical*, it sets up an unconditional law of Duty in Action (unconditioned by motives); and in this and in the related conception of the Summum Bonum is contained a moral certainty of the Immortality (of the soul), Freedom (in the midst of Natural Necessity), and of God as existent.

As to the point of Free-will, nothing more need be said.

Disinterested Sentiment, as *sentiment*, is very little regarded: disinterested *action* is required with such rigour that every act or disposition is made to lose its character as moral, according as any element of interested feeling of any kind enters into it. Kant obliterates the line between Duty and Virtue, by making a duty of every virtue; at least he conceives clearly that there is no Virtue in doing what we are strongly prompted to by inclination—that virtue must involve self-sacrifice.

III.—His position with respect to Happiness is peculiar. Happiness is not the end of action: the end of action is rather the self-assertion of the rational faculty over the lower man.

If the constituents of Happiness could be known—and they cannot be—there would be no *morality*, but only *prudence* in the pursuit of them. To promote our own happiness is indeed a duty, but in order to keep us from neglecting our other duties.

Nevertheless, he conceives it necessary that there should be an ultimate equation of Virtue and Happiness; and the need of Happiness he then expressly connects with the sensuous side of our being.

IV.—His MORAL CODE may here be shortly presented from the second part of his latest work, where it is fully given. Distinguishing *Moral Duties* or (as he calls them) '*Virtue-duties*,' left to be enforced internally by Conscience, from *Legal Duties* (*Rechtspflichten*), externally enforced, he divides them into two classes—(A) Duties to *Self*; (B) Duties to *Others*.

(A) Duties to *Self*. These have regard to the one *private* Aim or End that a man can make a duty of, viz., his own *Perfection*; for his own *Happiness*, being provided for by a natural propensity or inclination, is to himself no

duty. They are (a) *perfect* (negative or restrictive) as directed to mere Self-Conservation; (b) *imperfect* (positive or extensive) as directed to the Advancement or Perfecting of one's being. The *perfect* are concerned about Self (a), as an *Animal* creature, and then are directed against—(1) *Self-destruction*, (2) *Sexual Excess*, (3) *Intemperance in Eating and Drinking*; (B) as a *Moral* creature, and then are directed against—(1) *Lying*, (2) *Avarice*, (3) *Servility*. The *imperfect* have reference to (a) *physical*, (B) *moral* advancement or perfection (subjectively. *Purity* or *Holiness*).

(B) Duties to *Others*. These have regard to the only Aim or End of others that a man can make a duty of, viz., their *Happiness*; for their *Perfection* can be promoted only by themselves. Duties to others *as men* are metaphysically deducible; and application to *special conditions* of men is to be made empirically. They include (a) Duties of LOVE, involving *Merit* or *Desert* (i.e., return from the objects of them) in the performance: (1) *Beneficence*, (2) *Gratitude*, (3) *Fellow-feeling*; (b) Duties of RESPECT, absolutely *due* to others as men; the opposites are the *vices*: (1) *Haughtiness*, (2) *Slander*, (3) *Scornfulness*. In *Friendship*, Love and Respect are combined in the highest degree. Lastly, he notes *Social* duties in human intercourse (*Affability*, &c.)—these being *outworks* of morality.

He allows no special Duties to God, or Inferior Creatures, beyond what is contained in Moral Perfection as Duty to Self.

V.—The conception of Law enters largely into Kant's theory of morals, but in a sense purely transcendental, and not as subjecting or assimilating morality to positive political institution. The *Legality* of external *actions*, as well as the *Morality* of internal *dispositions*, is determined by reference to the one universal moral Imperative. The principle underlying all *legal* or *jural* (as opposed to moral or ethical) provisions, is the necessity of uniting in a universal law of freedom the spontaneity of each with the spontaneity

of all the others: individual freedom and freedom of all must be made to subsist together in a universal law.

VI.—With Kant, Religion and Morality are very closely connected, or, in a sense, even identified; but the alliance is not at the expense of Morality. So far from making this dependent on Religion, he can find nothing but the moral conviction whereon to establish the religious doctrines of Immortality and the Existence of God; while, in a special work, he declares further that Religion consists merely in the practice of Morality as a system of divine commands, and claims to judge of all religious institutions and dogmas by the moral consciousness. Besides, the Postulates themselves, in which the passage to Religion is made, are not all equally imperative,—Freedom, as the ground of the fact of Duty, being more urgently demanded than others; and he even goes so far as to make the allowance, that whoever has sufficient moral strength to fulfil the Law of Reason without them, is not required to subscribe to them.

The modern French school, that has arisen in this century under the combined influence of the Scotch and the German philosophy, has bestowed some attention on Ethics. We end by noticing under it Cousin and Jouffroy.

VICTOR COUSIN. [1792-1867.]

The analysis of Cousin's ethical views is made upon his historical lectures *Sur les Idees du Vrai, du Beau et du Bien*, as delivered in 1817-18. They contain a dogmatic exposition of his own opinions, beginning at the 20th lecture; the three preceding lectures, in the section of the whole course devoted to the Good, being taken up with the preliminary review of other opinions required for his eclectic purpose.

He determines to consider, by way of psychological analysis, the ideas and sentiments of every kind called up by the spectacle of human actions; and first he notes actions that please and displease the senses, or in some way affect our interest: those that are agreeable and useful we naturally choose, avoiding the opposites, and in this we are *prudent*. But there is another set of actions, having no reference to our own personal interest, which yet we qualify as good or bad. When an armed robber kills and spoils a defenceless man, we, though beholding the sight in safety, are at once stirred up to disinterested horror and indignation. This is no mere passing sentiment, but includes a two-fold judgment, pronounced then and ever after; that the action is in itself bad, and that it ought not to be committed. Still farther, our anger implies that the object of it is conscious of the evil and the obligation, and is therefore responsible; wherein again is implied that he is a free agent. And, finally, demanding as we do that he should be punished, we pass what has been called a judgment of merit and demerit, which is built upon an idea in our minds of a supreme law, joining happiness to virtue and misfortune to crime.

The analysis thus far he claims to be strictly scientific; he now proceeds to vary the case, taking actions of our own. I am supposed entrusted by a dying friend with a deposit for another, and a struggle ensues between interest and probity as to whether I should pay it. If interest conquers, remorse ensues. He paints the state of remorse, and analyzes it into the same elements as before, the idea of *good* and *evil*, of an *obligatory law*, of *liberty*, of *merit* and *demerit*; it thus includes the whole phenomenon of morality. The exactly opposite state that follows upon the victory of probity, is proved to imply the same facts.

The Moral Sentiment, so striking in its character, has by some been supposed the foundation of all morality, but in point of fact it is itself constituted by these various judgments. Now that they are known to stand

as its elements, he goes on to subject each to a stricter analysis, taking first the judgment of *good* and *evil*, which is at the bottom of all the rest. It lies in the original constitution of human nature, being simple and indecomposable, like the judgment of the True and the Beautiful. It is absolute, and cannot be withheld in presence of certain acts; but it only declares, and does not constitute, good and evil, these being real and independent qualities of actions. Applied at first to special cases, the judgment of good gives birth to general principles that become rules for judging other actions. Like other sciences, morality has its axioms, justly called moral truths; if it is good to keep an oath, it is also true, the oath being made with no other purpose than to be kept. Faithful guarding as much belongs to the idea of a deposit, as the equality between its three angles and two right angles to the idea of a triangle. By no caprice or effort of will can a moral verity be made in the smallest degree other than it is.

But, he goes on, a moral verity is not simply to be believed; it must also be practised, and this is *obligation*, the second of the elements of moral sentiment. Obligation, like moral truth, on which it rests, is absolute, immutable, universal. Kant even went so far as to make it the principle of our morality; but this was subjectivizing good, as he had subjectivized truth. Before there is an obligation to act, there must be an intrinsic goodness in the action; the real first truth of morality is justice, *i.e.*, the essential distinction of good and evil. It is justice, therefore, and not duty, that strictly deserves the name of a principle.

The next element is *liberty*. Obligation implies the faculty of resisting desire, passion, &c., else there would be a contradiction in human nature. But the truest proof of liberty is to be sought in the constant testimony of consciousness, that, in wishing this or that, I am equally able to will the contrary. He distinguishes between the power of willing and the power of executing; also between will and desire, or passion. In the conflict between

will and the tyranny of desire lies liberty; and the aim of the conflict is the fulfilment of duty. For the will is never so free, never so much itself, as when yielding to the law of duty. Persons are distinguished from Things in having responsibility, dignity, intrinsic value. Because there is in me a being worthy of respect, I am bound in duty to respect myself, and I have the *right* to be respected by you. My duty (he means, of course, what I owe to self) is the exact measure of my right. The character of being a *person* is inviolable, is the foundation of property, is inalienable by self or others, and so forth.

He passes to the last element of the phenomenon of morality, the judgement of *merit* and *demerit*. The judgement follows, as the agent is supposed free, and it is not affected by lapse of time. It depends also essentially on the idea that the agent knows good from evil. Upon itself follow the notions of reward and punishment. Merit is the natural right to be rewarded; demerit, paradox as it may appear, is the *right* to be punished. A criminal would claim to be punished, if he could comprehend the absolute necessity of expiation; and are there not real cases of such criminals? But as there can be merit without actual reward, so to be rewarded does not constitute merit.

If good, he continues, is good in itself, and ought to be done without regard to consequences, it is no less true that the consequences of good cannot fail to be happy. Virtue without happiness and crime without misfortune are a contradiction, a disorder; which are hardly met with in the world, even as it is, or, where in a few cases they are found, are sure to be righted in the end by eternal justice. The sacrifice supposed in virtue, if generously accepted and courageously undergone, has to be recompensed in respect of the amount of happiness sacrificed.

Once more, he takes up the *Sentiment*, which is the general echo of all the elements of the phenomenon. Its end is to make the mind sensible of the

bond between virtue and happiness; it is the direct and vivid application of the law of merit. Again, he touches the states of moral satisfaction and remorse, speaks of our sympathy with the moral goodness of others and our benevolent feeling that arises towards them—emotions all, but covering up judgments; and this is the end of his detailed analysis of the actual facts of the case. But he still goes on to sum up in exact expressions the foregoing results, and he claims especially to have overlooked neither the part played by Reason, nor the function of Sentiment. The rational character of the idea of good gives morality its firm foundation; the lively sentiment helps to lighten the often heavy burden of duty, and stirs up to the most heroic deeds. Self-interest too is not denied its place. In this connexion, led again to allude to the happiness appointed to virtue here or at least hereafter, he allows that God may be regarded as the fountain of morality, but only in the sense that his will is the expression of his eternal wisdom and justice. Religion crowns morality, but morality is based upon itself. The rest of the lecture is in praise of Eclecticism, and advocates consideration of all the facts involved in morality, as against exclusive theories founded upon only some of the facts.

Lectures 21st and 22nd, compressed into one (Ed. 1846) contain the application of the foregoing principles, and the answer to the question, what our duties are. Duty being absolute, truth becomes obligatory, and absolute truth being known by the reason only, to obey the law of duty is to obey reason. But what actions are conformable to reason? The characteristic of reason he takes to be Universality, and this will appear in the motives of actions, since it is these that confer on actions their morality. Accordingly, the sign whereby to discover whether an action is duty, is, if its motive when generalized appear to the reason to be a maxim of universal legislation for all free and intelligent beings. This, the norm set up by Kant, as certainly discovers what is and is not duty, as the syllogism detects the error and truth of an argument.

To obey reason is, then, the first duty, at the root of all others, and itself resting directly upon the relation between liberty and reason; in a sense, to remain reasonable is the sole duty. But it assumes special forms amid the diversity of human relations. He first considers the relations wherein we stand to ourselves and the corresponding duties. That there should be any such duties is at first sight strange, seeing we belong to ourselves; but this is not the same as having complete power over ourselves. Possessing liberty, we must not abdicate it by yielding to passions, and treat ourselves as if there were nothing in us that merits respect. We are to distinguish between what is peculiar to each of us, and what we share with humanity. Individual peculiarities are things indifferent, but the liberty and intelligence that constitute us persons, rather than individuals, demand to be respected even by ourselves. There is an obligation of self-respect imposed upon us as moral persons that was not established, and is not to be destroyed, by us. As special cases of this respect of the moral person in us, he cites (1) the duty of *self-control* against anger or melancholy, not for their pernicious consequences, but as trenching upon the moral dignity of liberty and intelligence; (2) the duty of *prudence*, meaning providence in all things, which regulates courage, enjoins temperance, is, as the ancients said, the mother of all the virtues,—in short, the government of liberty by reason; (3) *veracity*; (4) duty towards the *body*; (5) duty of *perfecting* (and not merely keeping intact) the intelligence, liberty, and sensibility that constitute us moral beings.

But the same liberty and intelligence that constitute me a moral person, and need thus to be respected even by myself, exist also in others, conferring rights on them, and imposing new duties of respect on me relatively to them. To their intelligence I owe *Truth*; their liberty I am bound to respect, sometimes even to the extent of not hindering them from making a wrong use of it. I must respect also their affections (family, &c.) which form part of themselves; their bodies; their goods, whether acquired by

labour or heritage. All these duties are summed up in the one great duty of *Justice* or respect for the rights of others; of which the greatest violation is slavery.

The whole of duty towards others is not however comprehended in justice. Conscience complains, if we have only not done injustice to one in suffering. There is a new class of duties—*consolation, charity, sacrifice*—to which indeed correspond no rights, and which therefore are not so obligatory as justice, but which cannot be said not to be obligatory. From their nature, they cannot be reduced to an exact formula; their beauty lies in liberty. But in charity, he adds, there is also a danger, from its effacing, to a certain extent, the moral personality of the object of it. In acting upon others, we risk interfering with their natural rights; charity is therefore to be proportioned to the liberty and reason of the person benefited, and is never to be made the means of usurping power over another.

Justice and Charity are the two elements composing social morality. But what is social? and on what is Society founded, existing as it does everywhere, and making man to be what he is? Into the hopeless question of its origin he refuses to enter; its present state is to be studied by the light of the knowledge of human nature. Its invariable foundations are (1) the need we have of each other, and our social instincts, (2) the lasting and indestructible idea and sentiment of right and justice. The need and instinct, of which he finds many proofs, begin society; justice crowns the work. The least consideration of the relations of man to man, suggest the essential principles of Society—justice, liberty, equality, government, punishment. Into each of these he enters. Liberty is made out to be assured and developed in society, instead of diminished. Equality is established upon the character of moral personality, which admits of no degree. The need of some repression upon liberty, where the liberty of others is trenched upon, conducts to the idea of Government—a disinterested third party armed with

the necessary power to assure and defend the liberty of all. To government is to be ascribed, first its inseparable function of protecting the common liberty (without unnecessary repression), and next, beneficent action, corresponding to the duty of charity. It requires, for its guidance, a rule superior to itself, i.e., law, the expression of universal and absolute justice. Here follows the usual distinction of positive and natural law. The sanction of law is punishment; the right of punishing, as was seen, depending on the idea of demerit. Punishment is not mere vengeance, but the expiation by the criminal of violated justice; it is to be measured therefore chiefly by the demerit and not by the injury only. Whether, in punishing, allowance should be made for correction and amelioration, is to put the same case over again of charity coming in after justice.

Here the philosopher stops on the threshold of the special science of politics. But already the fixed and invariable principles of society and government have been given, and, even in the relative sphere of politics, the rule still holds that all forms and institutions are to be moulded as far as possible on the eternal principles supplied by philosophy. The following is a summary of Cousin's views:—

I.—The Standard is the judgment of good or evil in actions. Cousin holds that good and evil are qualities of actions independent of our judgment, and having a sort of objective existence.

II.—The Moral Faculty he analyzes into four judgments: (1) good and evil; (2) obligation; (3) freedom of the will; and (4) merit and demerit. The moral sentiment is the emotions connected with those judgments, and chiefly the feeling connected with the idea of merit. [This analysis is obviously redundant. 'Good' and 'evil' apply to many things outside ethics, and to be at all appropriate, they must be qualified as *moral* (i.e.,

obligatory) good and evil. The connexion between obligation and demerit has been previously explained.]

III.—In regard to the *Summum Bonum*, Cousin considers that virtue must bring happiness here or hereafter, and vice, misery.

IV.—He accepts the criterion of duties set forth by Kant. He argues for the existence of duties towards ourselves.

V. and VI. require no remark.

THÉODORE SIMON JOUFFROY. [1796-1842.]

In the Second Lecture of his unfinished *Cours de Droit Naturel*, Jouffroy gives a condensed exposition of the Moral Facts of human nature from his own point of view.

What distinguishes, he says, one being from another, is its Organization; and as having a special nature, every creature has a special end. Its end or destination is its good, or its good consists in the accomplishment of its end. Further, to have an end implies the possession of faculties wherewith to attain it; and all this is applicable also to man. In man, as in other creatures, from the very first, his nature tends to its end, by means of purely instinctive movements, which may be called primitive and instinctive tendencies of human nature; later they are called passions. Along with these tendencies, and under their influence, the intellectual faculties also awake and seek to procure for them satisfaction. The faculties work, however, at first, in an indeterminate fashion, and only by meeting obstacles are driven to the concentration necessary to attain the ends. He illustrates this by the case of the intellectual faculty seeking to satisfy the desire of knowledge, and not succeeding until it concentrates on a single point its scattered energies. This spontaneous concentration is the first manifestation of Will,

but is proved to be not natural from the feeling of constraint always experienced, and the glad rebound, after effort, to the indeterminate condition. One fact, too, remains even after every thing possible has been done, viz., that the satisfaction of the primitive tendencies is never quite complete.

When, however, such satisfaction as may be, has been attained, there arises pleasure; and pain, when our faculties fail to attain the good or end they sought. There could be action, successful and unsuccessful, and so good and evil, without any sensibility, wherefore good and evil are not to be confounded with pain and pleasure; but constituted as we are, there is a sensible echo that varies according as the result of action is attained or not. Pleasure is, then, the consequence, and, as it were, the sign of the realization of good, and pain of its privation.

He next distinguishes Secondary passions from the great primary tendencies and passions. These arise *apropos* of external objects, as they are found to further or oppose the satisfaction of the fundamental tendencies. Such objects are then called *useful* or *pernicious*. Finally, he completes his account of the infantile or primitive condition of man, by remarking that some of our natural tendencies, like Sympathy, are entirely disinterested in seeking the good of others. The main feature of the whole primitive state is the exclusive domination of passion. The will already exists, but there is no liberty; the present passion triumphs over the future, the stronger over the weaker.

He now passes to consider the double transformation of this original state, that takes place when reason appears. Reason is the faculty of *comprehending*, which is different from knowing, and is peculiar to man. As soon as it awakes in man, it comprehends, and penetrates to the meaning of, the whole spectacle of human activity. It first forms the general idea of

Good as the resultant of the satisfaction of all the primary tendencies, and as the true End of man. Then, comprehending the actual situation of man, it resolves this idea into the idea of the *greatest possible* good. All that conduces to the attainment of this good, it includes under the general idea of the *Useful*; and finally, it constructs the general idea of *Happiness* out of all that is common to the agreeable sensations that follow upon the satisfaction of the primary tendencies.

But besides forming these three perfectly distinct ideas, and exploring the secret of what has been passing within, the reason also comprehends the necessity of subjecting to control the faculties and forces that are the condition of the greatest satisfaction of human nature. In the place of the merely mechanical impulsion of passion, which is coupled with grave disadvantages, it puts forward, as a new principle of action, the rational calculation of interest. The faculties are brought into the service of this idea of the reason, by the same process of concentration as was needful in satisfying the passions; only now voluntarily instead of spontaneously. Being an idea instead of a passion, the new principle supplies a real *motive*, under whose guidance our natural power over our faculties is developed and strengthened. All partial ends are merged in the one great End of Interest, to which the means is self-control. The first great change thus wrought by reason is, that it takes the direction of the human forces into its own hand, and although, even when by a natural transformation the new system of conduct acquires all the force of a passion, it is not able steadily to procure for the idea of interest the victory over the single passions, the change nevertheless abides. To the state of Passion has succeeded the state of Egoism.

Reason must, however, he thinks, make another discovery before there is a truly moral state—must from general ideas rise to ideas that are universal and absolute. There is no real equation, he holds, between Good and the

satisfaction of the primitive tendencies, which is the good of egoism. Not till the special ends of all creatures are regarded as elements of one great End of creation, of Universal Order, do we obtain an idea whose equivalence to the idea of the Good requires no proof. The special ends are good, because, through their realization, the end of creation, which is the absolute Good, is realized; hence they acquire the sacred character that it has in the eye of reason.

No sooner is the idea of Universal Order present to the reason, than it is recognized as an absolute law; and, in consequence, the special end of our being, by participation in its character of goodness and sacredness, is henceforth pursued as a duty, and its satisfaction claimed as a right. Also every creature assumes the same position, and we no longer merely concede that others have tendencies to be satisfied, and consent from Sympathy or Egoism to promote their good; but the idea of Universal Order makes it as much our duty to respect and contribute to the accomplishment of their good as to accomplish our own. From the idea of good-in-itself, i.e., Order, flow all duty, right, obligation, morality, and natural legislation.

He carries the idea of Order still farther back to the Deity, making it the expression of the divine thought, and opening up the religious side of morality; but he does not mean that its obligatoriness as regards the reason is thereby increased. He also identifies it, in the last resort, with the ideas of the Beautiful and the True.

We have now reached the truly moral condition, a state perfectly distinct from either of the foregoing. Even when the egoistic and the moral determination prescribe the same conduct, the one only counsels, while the other obliges. The one, having in view only the greatest satisfaction of our nature, is personal even when counselling benefits to others; the other regarding only the law of Order, something distinct from self, is impersonal,

even when prescribing our own good. Hence there is in the latter case *dévouement* of self to something else, and it is exactly the *dévouement* to a something that is not self, but is regarded as good, that gets the name of virtue or moral good. Moral good is voluntary and intelligent obedience to the law that is the rule of our conduct. As an additional distinction between the egoistic and the moral determination, he mentions the judgment of merit or demerit that ensues upon actions when, and only when, they have a moral character. No remorse follows an act of mere imprudence involving no violation of universal order.

He denies that there is any real contradiction among the three different determinations. Nothing is prescribed in the moral law that is not also in accordance with some primitive tendency, and with self-interest rightly understood; if it were not so, it would go hard with virtue. On the other hand, if everything not done from regard to duty were opposed to moral law and order, society could not only not subsist, but would never have been formed. When a struggle does ensue between passion and self-interest, passion is blind; when between egoism and the moral determination, egoism is at fault. It is in the true interest of Passion to be sacrificed to Egoism, and of Egoism to be sacrificed to Order.

He closes the review of the various moral facts by explaining in what sense the succession of the three states is to be understood. The state of Passion is historically first, but the Egoistic and the Moral states are not so sharply defined. As soon as reason dawns it introduces the moral motive as well as the egoistic, and to this extent the two states are contemporaneous. Only, so far is the moral law from being at this stage fully conceived, that, in the majority of men, it is never conceived in its full clearness at all. Their confused idea of moral law is the so-called moral *conscience*, which works more like a sense or an instinct, and is inferior to the clear rational conception in everything except that it conveys the full force of obligation.

In its grades of guilt human justice rightly makes allowance for different degrees of intelligence. The Egoistic determination and the Moral state, such as it is, once developed, passion is not to be supposed abolished, but henceforth what really takes place in all is a perpetual alternation of the various states. Yet though no man is able exclusively to follow the moral determination, and no man will constantly be under the influence of any one of the motives, there is one motive commonly uppermost whereby each can be characterized. Thus men, according to their habitual conduct, are known as passionate, egoistic, or virtuous.

We now summarize the opinions of Jouffroy:—

I.—The Standard is the Idea of Absolute Good or Universal Order in the sense explained by the author. Like Cousin, he identifies the 'good' with the 'true.' What, then, is the criterion that distinguishes moral from other truths? If *obligation* be selected as the *differentia*, it is in effect to give up the attempt to determine what truths are obligatory. The idea of 'good' is obviously too vague to be a *differentia*. How far the idea of 'Universal Order' gets us out of the difficulty may be doubted, especially after the candid admission of the author, that it is an idea of which the majority of men have never any very clear notions.

II.—The moral faculty is Reason; Conscience is hardly more than a confused feeling of obligatoriness.

Sympathy is one of the primitive tendencies of our nature. Jouffroy's opinion on the subject is open to the objections urged against Butler's psychology.

He upholds the freedom of the Will, but embarrasses his argument by admitting, like Reid, that there is a stage in our existence when we are ruled by the passions, and are destitute of liberty.

III.—The Summum Bonum is the *end* of every creature; the passions ought to be subordinated to self-interest, and self-interest to morality.

In regard to the other points, it is unnecessary to continue the summary.

NOTES

[Footnote 1: Duties strictly so called, the department of obligatory morality, enforced by punishment, may be exemplified in the following classified summary:—

Under the Legal Sanction, are included; (A) Forbearance from (specified) injuries; as (a) Intentional injury—crimes, (b) Injury not intentional—wrongs, repaired by Damages or Compensation. (B) The rendering of services; (a) Fulfilling contracts or agreements; (b) Reciprocating anterior services rendered, though, not requested, as in filial duty; (c) Cases of extreme or superior need, as parental duty, relief of destitution.

Under the Popular Sanction are created duties on such points as the following:—(1) The Etiquette of small societies or coteries. (2) Religious orthodoxy; Sabbath observance. (3) Unchastity; violations of the etiquette of the sexes, Immodesty, and whatever endangers chastity, especially in women. (4) Duties of parents to children, and of children to parents, beyond the requirements of the law. (5) Suicide: when only attempted, the individual is punished, when carried out, the relatives. (6) Drunkenness, and neglect of the means of self-support. (7) Gross Inhumanity. In all these cases the sanction, or punishment, is social; and is either mere disapprobation or dislike, not issuing in overt acts, or exclusion from fellowship and the good offices consequent thereon.]

[Footnote 2: Optional Morality, the Morality of Reward, is exemplified as follows:—

(A) A liberal performance of duties properly so called. (a) The support of aged parents; this, though to a certain extent a legal duty, is still more a virtue, being stimulated by the approbation of one's fellows. The performance of the family duties generally is the subject of commendation. (b) The payment of debts that cannot be legally recovered, as in the case of bankrupts after receiving their discharge.

These examples typify cases (1) where no definite law is laid down, or where the law is content with a minimum; and (2) where the law is restrained by its rules of evidence or procedure. Society, in such cases, steps in and supplies a motive in the shape of reward.

(B) Pure Virtue, or Beneficence; all actions for the benefit of others without stipulation, and without reward; relief of distress, promotion of the good of individuals or of society at large. The highest honours of society are called into exercise by the highest services.

Bentham's principle of the claims of superior need cannot be fully carried out, (although he conceives it might, in some cases), by either the legal or the popular sanction. Thus, the act of the good Samaritan, the rescue of a ship's crew from drowning, could not be exacted; the law cannot require heroism. It is of importance to remark, that although Duty and Nobleness, Punishment and Reward, are in their extremes unmistakably contrasted, yet there may be a margin of doubt or ambiguity (like the passing of day into night). Thus, expressed approbation, generally speaking, belongs to Reward; yet, if it has become a thing of course, the withholding of it operates as a Punishment or a Penalty.]

[Footnote 3: The conditions that regulate the authoritative enforcement of actions, are exhaustively given in works on Jurisprudence, but they do not all concern Ethical Theory. The expedience of imposing a rule depends on the importance of the object compared with the cost of the machinery. A

certain line of conduct may be highly beneficial, but may not be a fit case for coercion. For example, the law can enforce only a *minimum* of service: now, if the case be such, that a minimum is useless, as in helping a ship in distress, or in supporting aged parents, it is much, better to leave the case to voluntary impulses, seconded by approbation or reward. Again, an offence punished by law must be, in its nature, definable; which, makes a difficulty in such cases as insult, and defamation, and many species of fraud. Farther, the offence must be easy of detection, so that the vast majority of offenders may not escape. This limits the action of the law in unchastity.]

[Footnote 4: See, on the method of Sokrates, Appendix A.]

[Footnote 5: In setting forth, the Ethical End, the language of Sokrates was not always consistent. He sometimes stated it, as if it included an independent reference to the happiness of others; at other times, he speaks as if the end was the agent's own happiness, to which, the happiness of others was the greatest and most essential means. The first view, although not always adhered to, prevails in Xenophon; the second appears most in Plato.]

[Footnote 6: 'What Plato here calls the Knowledge of Good, or Reason,—the just discrimination and comparative appreciation, of Ends and Means—appears in the Politikus and the Euthydêmus, under the title of the Regal or Political Art, as employing or directing the results of all other arts, which are considered as subordinate: in the Protagoras, under the title of art of calculation or mensuration: in the Philêbus, as measure and proportion: in the Phaedrus (in regard to rhetoric) as the art of turning to account, for the main purpose of persuasion, all the special processes, stratagems, decorations, &c., imparted by professional masters. In the Republic, it is personified in the few venerable Elders who constitute the Reason of the society, and whose directions all the rest (Guardians and Producers) arc

bound implicitly to follow: the virtue of the subordinates consisting in this implicit obedience. In the *Leges*, it is defined as the complete subjection in the mind, of pleasures and pains to right Reason, without which, no special aptitudes are worth, having. In the Xenophontic *Memorabilia*, it stands as a Sokratic authority under the title of *Sophrosynê* or Temperance: and the Profitable is declared identical with, the Good, as the directing and limiting principle for all human pursuits and proceedings.' (Grote's *Plato*, I., 362.)]

[Footnote 7: 'Indeed there is nothing more remarkable in the *Gorgias*, than the manner in which. Sokrates not only condemns the unmeasured, exorbitant, maleficent desires, but also depreciates and degrades all the actualities of life—all the recreative and elegant arts, including music and poetry, tragic as well as dithyrambic—all provision for the most essential wants, all protection against particular sufferings and dangers, even all service rendered to another person in the way of relief or of rescue—all the effective maintenance of public organized force, such as ships, docks, walls, arms, &c. Immediate satisfaction, or relief, and those who confer it, are treated with contempt, and presented as in hostility to the perfection of the mental structure. And it is in this point of view, that various Platonic commentators extol in an especial manner the *Gorgias*: as recognizing an Idea of Good superhuman and supernatural, radically disparate from pleasures and pains of any human being, and incommensurable with, them; an Universal Idea, which, though it is supposed to cast a distant light upon its particulars, is separated from them by an incalculable space, and is discernible only by the Platonic telescope.' (Grote, *Gorgias*)]

[Footnote 8: There is some analogy between the above doctrine and the great law of Self-conservation, as expounded in this volume (p. 75).]

[Footnote 9: Aristotle and the Peripatetics held that there were *tria genera bonorum*: (1) Those of the mind (*mens sana*), (2) those of the body,

and (3) external advantages. The Stoics altered this theory by saying that only the first of the three was *bonum*; the others were merely *praeposita* or *sumenda*. The opponents of the Stoics contended that this was an alteration in words rather than in substance.]

[Footnote 10: This also might truly be said of the Epicureans; though with them it is not so much *pride*, as a quiet self-satisfaction in escaping pains and disappointments that they saw others enduring. See the beginning of Lucretius' second book, and the last epistle of Epicurus to Idomeneus.]

[Footnote 11: This was a later development of Stoicism: the earlier theorists laid it down that there were no graduating marks below the level of wisdom; all shortcomings were on a par. *Good* was a point, *Evil* was a point; there were gradations in the *praeposita* or *sumenda* (none of which were *good*), and in the *rejecta* or *rejicienda* (none of which were *evil*), but there was no *more or less good*. The idea of advance by steps towards virtue or wisdom, was probably familiar to Sokrates, Plato, Aristotle, and Epicurus; the Stoic theories, on the other hand, tended to throw it out of sight, though they insisted strenuously on the necessity of mental training and meditation.]

[Footnote 12: This theory (taken in its most general sense, and apart from differences in the estimation of particular pleasures and pains), had been proclaimed long before the time of Epicurus. It is one of the various theories of Plato: for in his dialogue called Protagoras (though in other dialogues he reasons differently) we find it explicitly set forth and elaborately vindicated by his principal spokesman, Sokrates, against the Sophist Protagoras. It was also held by Aristippus (companion of Sokrates along with Plato) and by his followers after him, called the Cyrenaics. Lastly, it was maintained by Eudoxus, one of the most estimable philosophers contemporary with Aristotle. Epicurus was thus in no way the

originator of the theory: but he had his own way of conceiving it—his own body of doctrine physical, cosmological, and theological, with which it was implicated—and his own comparative valuation of pleasures and pains.]

[Footnote 13: The soul, according to Epicurus, was a subtle but energetic compound (of air, vapour, heat, and another nameless ingredient), with its best parts concentrated in the chest, yet pervading and sustaining the whole body; still, however, depending for its support on the body, and incapable of separate or disembodied continuance.]

[Footnote 14: Aristot. *De Coelo*. II.a.12, p. 292, 22, 6, 5. In the *Ethics*, Aristotle assigns theorizing contemplation to the gods, as the only process worthy of their exalted dignity and supreme felicity.]

[Footnote 15: Xenophon *Memor.* I. 1—10; IV. 3—12.]

[Footnote 16: These exhortations to active friendship were not unfruitful. We know, even by the admission of witnesses adverse to the Epicurean doctrines, that the harmony among the members of the sect, with common veneration for the founder, was more marked and more enduring than that exhibited by any of the other philosophical sects. Epicurus himself was a man of amiable personal qualities: his testament, still remaining, shows an affectionate regard, both for his surviving friends, and for the permanent attachment of each, to the others, as well as of all to the school. Diogenes Laertius tells us—nearly 200 years after Christ, and 450 years after the death of Epicurus—that the Epicurean sect still continued its numbers and dignity, having outlasted its contemporaries and rivals. The harmony among the Epicureans may be explained, not merely from the temper of the master, but partly from the doctrines and plan of life that he recommended. Ambition and love of power were discouraged: rivalry among the members for success, either political or rhetorical, was at any rate a rare exception: all were taught to confine themselves to that privacy of life and love of

philosophical communion, which alike required and nourished the mutual sympathies of the brotherhood.]

[Footnote 17: Consistently with this view of happiness, Epicurus advised, in regard to politics, quiet submission, to established authority, without active meddling beyond what necessity required.]

[Footnote 18: Locke examines the Innate Principles put forth, by Lord Herbert in his book *De Veritate*, 1st, There is a supreme governor of the world; 2nd, Worship is due to him; 3rd, Virtue, joined with Piety, is the best Worship; 4th, Men must repent of their sins; 5th, There will be a future life of rewards and punishments. Locke admits these to be such truths as a rational creature, after due explanation given them, can hardly avoid attending to; but he will not allow them to be innate. For, First, There are other propositions with, as good a claim as these to be of the number imprinted by nature on the mind.

Secondly, The marks assigned are not found in all the propositions. Many men, and even whole nations, disbelieve some of them.

Then, as to the third principle,—virtue, joined with piety, is the best worship of God; he cannot see how it can be innate, seeing that it contains a name, virtue, of the greatest possible uncertainty of meaning. For, if virtue be taken, as commonly it is, to denote the actions accounted laudable in particular countries, then the proposition will be untrue. Or, if it is taken to mean accordance with God's will, it will then be true, but unmeaning; that God will be pleased with what he commands is an identical assertion, of no use to any one.

So the fourth proposition,—men must repent of their sins,—is open to the same remark. It is not possible that God should engrave on men's minds principles couched on such uncertain words as Virtue and Sin. Nay more, as

a general word is nothing in itself, but only report as to particular facts, the knowledge of rules is a knowledge of a sufficient number of actions to determine the rule. [Innate principles are not compatible with Nominalism.]

According to Lord Herbert, the standard of virtue is the *common notions* in which, all men agree. They are such, as the following,—to avoid evil, to be temperate, in doubtful cases to choose the safer course, not to do to others what you would not wish done to yourself, to be grateful to benefactors, &c. *Conscience* is what teaches us to carry out those principles in practice. It excites joy over good actions, and produces abhorrence and repentance for bad. Upon it, our repentance of mind and eternal welfare depend. (For an account of Lord Herbert's common notions, see Appendix B., Lord Herbert of Cherbury.)]

[Footnote 19: In this respect, Butler differs from both Shaftesbury and Hutcheson. With Shaftesbury, the main function of the moral sense is to smile approval on benevolent affections, by which an additional pleasure is thrown into the scale against the selfish affections. The superiority of the 'natural affections' thus depends on a double pleasure, their intrinsically pleasureable character, and the superadded pleasure of reflection. The tendency of Shaftesbury is here to make benevolence and virtue identical, and at the same time to impair the disinterested character of benevolence.]

[Footnote 20: With this view, we may compare the psychology of Shaftesbury, set forth in his 'Characteristics of Men, Manners, and Times.' The soul has two kinds of affections—(1) *Self-affection*, leading to the 'good of the private,' such as love of life, revenge, pleasure or aptitude towards nourishment and the means of generation, emulation or love of praise, indolence; and (2) *Natural affections*, leading to the good of the public. The natural or spontaneous predominance of benevolence is

goodness; the subjection of the selfish by effort and training is *virtue*. Virtue consists generally in the proper exercise of the several affections.]

[Footnote 21: Butler's definition of conscience, and his whole treatment of it, have created a great puzzle of classification, as to whether he is to be placed along with the upholders of a 'moral sense.' Shaftesbury is more explicit:

'No sooner does the eye open upon figures, the ear to sounds, than straight the Beautiful results, and grace and harmony are known and acknowledged. No sooner are *actions* viewed, no sooner the human affections discerned (and they are, most of them, as soon discerned as felt), than straight an inward eye distinguishes the *fair* and *shapely*, the *amiable* and *admirable*, apart from the *deformed*, the *foul*, the *odious*, or the *despicable*' 'In a creature capable of forming general notions of things, not only the outward beings which offer themselves to the sense, are the objects of the affections, but the very actions themselves, and the affections of pity, kindness, and gratitude, and their contraries, being brought into the mind by reflection, become objects. So that, by means of this *reflected sense*, there arises another kind of affection towards these affections themselves, which have been already felt, and are now become the subject of a new liking or dislike.' What this 'moral sense' approves is benevolence, and when its approval has been acted upon, by subjecting the selfish affections, 'virtue' is attained.]

[Footnote 22: It is instructive to compare Mandeville's *a priori* guesses with, the results of Mr. Maine's historical investigation into the condition of early societies. The evidence shows that society originated in the family system. Mandeville conjectured that solitary families would never attain to government; but Mr. Maine considers that there was a complete despotic government in single families. 'They have neither assemblies for

consultation nor *themistes*, but every one exercises jurisdiction over his wives and children, and they pay no regard to one another.' The next stage is the rise of *gentes* and tribes, which took place probably when a family held together instead of separating on the death of the patriarch. The features of this state were chieftainship and *themistes*, that is, government not by laws, but by *ex post facto* decisions upon cases as they arose. This gradually developed into customary law, which was in its turn superseded, on the invention of writing, by written codes. Maine's Ancient Law, Chap. V.]

[Footnote 23: It is perhaps worth while to quote a sentence or two, giving the author's opinion on the theory of the Moral Sense. 'Against every account of the principle of approbation, which makes it depend upon a peculiar sentiment, distinct from every other, I would object, that it is strange that this sentiment, which Providence undoubtedly intended to be the governing principle of human nature, should, hitherto have been so little taken notice of, as not to have got a name in any language. The word Moral Sense is of very late formation, and cannot yet be considered as making part of the English tongue. The word approbation has but within these few years been appropriated to denote peculiarly anything of this kind. In propriety of language we approve of whatever is entirely to our satisfaction—of the form of a building, of the contrivance of a machine, of the flavour of a dish of meat. The word conscience does not immediately denote any moral faculty by which we approve or disapprove. Conscience supposes, indeed, the existence of some such faculty, and properly signifies our consciousness of having acted agreeably or contrary to its directions. When love, hatred, joy, sorrow, gratitude, resentment, with so many other passions which are all supposed to be the subjects of this principle, have made themselves considerable enough to get titles to know them by, is it not surprising that the sovereign of them all should hitherto have been so little heeded; that, a

few philosophers excepted, nobody has yet thought it worth while to bestow a name upon it?']

[Footnote 24: ADAM FERGUSON (1724-1816), is not of sufficient importance in purely Ethical theory to demand a full abstract. The following remark on his views is made by Professor Veitch:—'Ferguson, while holding-with Reid that the notion of Rightness is not resolvable into utility, or to be derived from sympathy or a moral sense, goes a step beyond both. Reid and Stewart in the inquiry which he raises regarding the definite nature and ground of Rightness itself.' The following is his definition of Moral Good:—'Moral good is the specific excellence and felicity of human nature, and moral depravity its specific defect and wretchedness.' The 'excellence' of human nature consists in four things, drawn out after the analogy of the cardinal virtues: (1) *Skill* (Wisdom); (2) *Benevolence*, the principal excellence of a creature destined to perform a part in social life (Justice); (3) *Application of mind* (Temperance); (4) *Force*, or energy to overcome obstacles (Fortitude). Regarding the *motives* to virtue, either virtue is its own reward, or divine rewards and punishments constitute a sanction; but, in any case, the motive is our own happiness. All the virtues enumerated are themselves useful or pleasant, but, over and above, they give rise to an additional pleasure, when they are made the subject of reflection.]

[Footnote 25: 'The theory which, places the standard of morality in the *Divine nature* must not be confounded with that which, places it in the arbitrary will of God. God did not create morality by his will; it is inherent in his nature, and co-eternal with himself; nor can he be conceived as capable of reversing it.' The distinction here drawn does not avoid the fatal objection to the simpler theory, namely, that it takes away the moral character of God. The acts of a sovereign cannot, with, any propriety, as Austin has shown, be termed either legal or illegal; in like manner, if God is

a moral lawgiver, if 'he is accountable to no one,' then 'his duty and his pleasure are undistinguishable from each other,' and he cannot without self-contradiction be called a moral being. Even upon Mr. Mansel's own theory, it is hardly correct to say that 'God did not create morality by his will.' Morality involves two elements—one, rules of conduct, the other, an obligation to observe them. Now, the authority or obligatoriness of moral laws has been made to depend upon the will of God, so that, prior to that will, morality could not exist. Hence the only part of morality that can be co-eternal with God, is simply the rules of morality, without their obligatoriness, the salt without its savour. The closing assertion that God cannot reverse morality, may mean either that it would be inconsistent with his immutability to reverse the laws he had himself established, or that he is compelled by his nature to impose certain rules, and no others. The first supposition is a truism; the second is not proved. For, since Mr. Mansel has discarded as a fiction any 'absolute law of duty,' it is hard to conjecture whence he could derive any compulsory choice of rules. Why God commands some things in preference to others—whether from a regard to the happiness of all his creatures, or of some only; whether with, a view to his own glory, or from conformity with some abstract notion—has been much disputed, and it is quite *conceivable* that he may not adopt any of those objects.]

[Footnote 26: For help in understanding Kant's peculiar phraseology and general point of view, the reader is referred to the short exposition of his Speculative Philosophy in Appendix B.]

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